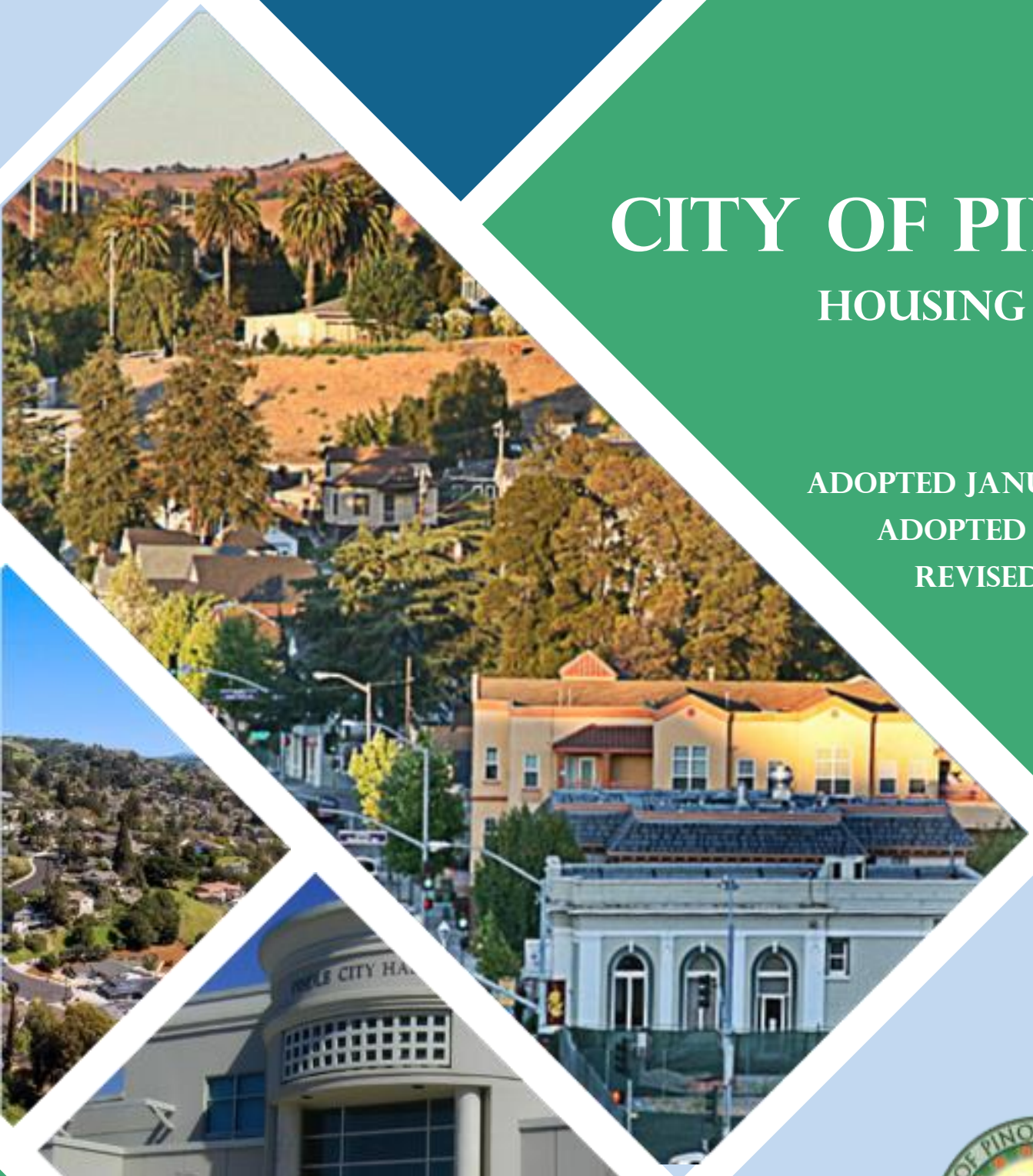

CITY OF PINOLE

HOUSING ELEMENT 2023-2031

ADOPTED JANUARY 17, 2023
ADOPTED APRIL 4, 2023
REVISED JUNE 6, 2023

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Available ang mga serbisyo sa pagsasalin. Mag-email sa amin upang ipaalam sa amin ang tungkol sa iyong mga pangangailangan.

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Thank you to all of the community members who provided input during the Housing Element Update process and helped inform and guide the City's housing plan.

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List of Abbreviations Used

Abbreviation	Definition
AAGR	Annual Average Growth Rate
AB	Assembly Bill
ABAG	The Association of Bay Area Governments
ACS	American Community Survey
ADA	Americans with Disabilities Act
ADU	Accessory Dwelling Unit
AFFH	Affirmatively Furthering Fair Housing
AHSC	Affordable Housing and Sustainable Communities Program
AMI	Area Median Income
APN	Assessor Parcel Number
BAHFA	Bay Area Housing Finance Authority
BMR	Below Market Rate
CalCHA	California Community Housing Agency
CalHFA	California Housing Finance Agency
CalOES	California Governor's Office of Emergency Services
CCCTA	Contra Costa County Transportation Authority
CCCWP	Contra Costa Clean Water Program
CCRC	California Community Reinvestment Corporation
CDBG	Community Development Block Grants
CDD	Community Development Division
CEQA	California Environmental Quality Act
CES	CalEnviroScreen
CHAS	Comprehensive Housing Affordability Strategy
CMU	Commercial Mixed Use
COG	Council of Governments
CUP	Conditional Use Permit
DDA	Difficult Development Areas
DDS	Department of Developmental Services
DOF	Department of Finance
DRB	Development Review Board
EBMUD	East Bay Municipal Utility District
ECHO	Eden Council for Hope and Opportunity
EDD	Employment Development Department
EHV	Emergency Housing Voucher
EIR	Environmental Impact Report
EJ	Environmental Justice
ELI	Extremely Low Income
FEMA	Federal Emergency Management Agency

FHH	Female Headed Households
FMR	Fair Market Rent
FY	Fiscal Year
GP	General Plan
GSAF	Golden State Acquisition Fund
HAMFI	HUD Area Median Family Income
HCD	Office of Housing and Community Development
HCV	Housing Choice Voucher
HDR	High Density Residential
HMDA	Home Mortgage Disclosure Act
HOME	Investment Partnership Programs
HUD	Department of Housing and Urban Development
ICC	International Code Council
JADU	Junior Accessory Dwelling Unit
LAUS	Local Area Unemployment Statistics
LBNC	Low Barrier Navigation Center
LDR	Low Density Residential
LEAP	Local Early Action Planning
LHTF	Local Housing Trust Fund
LID	Low Impact Development
LIHTC	Low-Income Housing Tax Credit
MCC	Mortgage Credit Certificate
MDR	Medium Density Residential
MSA	Metropolitan Statistical Area
MUSA	Mixed Use Sub Area
NOFA	Notice of Funding Availability
NPP	Neighborhood Preservation Program
OIMU	Office Industrial Mixed-Use
OPMU	Office Professional Mixed-Use
OTSA	Old Town Sub Area
PID	Public Information Department
PIT	Point in Time
PITC	Point in Time Count
PLHA	Permanent Local Housing Allocation
PQI	Public Quasi-Public Institutional
PWD	Public Works Department
RAWG	Regional Advisory Working Group
RCAA	Racially Concentrated Area of Affluence
REAP	Regional Early Action Planning
RECAP	Racially and Ethnically Concentrated Area of Poverty
RHNA	Regional Housing Needs Allocation/Assessment

RMU	Residential Mixed Use
RTPA	Regional Transportation Planning Agency
RV	Recreational Vehicle
SAHA	Satellite Affordable Housing Associates
SB	Senate Bill
SLM	Shared Lane Markings
SR	Suburban Residential
SRO	Single Room Occupancy
SSA	Service Sub Area
STMP	Subregional Transportation Mitigation Program
TCAC	Tax Credit Allocation Committee
TOD	Transit-Oriented Development
US	United States
VHFHSZ	Very High Fire Hazard Severity Zone
VMT	Vehicle Miles Travelled
WCCTAC	West Contra Costa Transportation Advisory Committee
WCWD	West County Wastewater District
WPCP	Water Pollution Control Plant
ZHVI	Zillow Home Value Index

Introduction

Purpose and Content

The City of Pinole's 2023 – 2031 Housing Element has been prepared in compliance with the State of California Government Code Section 65302 and in conformance with the Housing Element Guidelines as established by the California Department of Housing and Community Development (HCD). This Housing Element sets forth the City's overall housing objectives in the form of goals, policies, and programs. This format will facilitate the periodic update of the Housing Element, as required by State law.

Data Sources

Various sources of information were used to prepare the Housing Element. The US Census on Population and Housing remains the most comprehensive source of data available on population and housing trends and was widely used throughout the element. Additional data sources consulted include:

- Demographic and housing data provided by ABAG, the State Department of Finance (DOF), and the Census Bureau;
- Housing market information, such as home sales, rents, and vacancies from the Contra Costa Association of Realtors, Craigslist, Zillow, and Home Mortgage Disclosure Act (HMDA);
- Building permit and zoning information from the City of Pinole Community Development Department;
- Special needs housing and services data, including homeless services, from Contra Costa County;
- Housing survey administered to residents and landlords; and
- Telephone interviews with housing professionals and service providers.

Other statistics draw from the most recent figures reported by the U.S. Census Bureau, including the 2020 Census and the American Community Surveys (ACS). Future projections are based on data provided by ABAG. Where available, this data is supplemented with current market data and local secondary sources of information.

Relationship to Other Elements and Plans

This Housing Element identifies goals, policies, and programs that guide housing policy for the City over the 2023 to 2031 planning period. The goals, policies, and programs are consistent with the direction of the other General Plan elements, specifically the Land Use Element, Safety Element, and the Environmental Justice Element. Each goal is followed by one or more policies that are designed to provide direction to the policy makers that will

enable progress towards the goals. Consistency will be reviewed as part of the annual General Plan implementation progress report as required under Government Code section 65400. Listed after a discussion of the goals and policies are the programs designed to implement the specific goals and policies.

The Housing Element goals, policies, and programs aim to:

- Encourage the development of a variety of housing opportunities and provide adequate sites to meet the 2023 – 2031 Regional Housing Needs Allocation (RHNA).
- Assist in the development of housing to meet the needs of lower- and moderate-income households.
- Address and, where appropriate and legally possible, remove governmental constraints to housing development.
- Conserve, preserve, and improve the condition of the existing affordable housing stock. Promote equal housing opportunity for all residents to reside in the housing of their choice. These objectives are required by and delineated in State law (California Code Section 65583 [c][1]).

Public Participation

As required by State law (Government Code Section 65588[c]), all economic segments of the community must be provided an opportunity to review and comment on the Housing Element.

The City of Pinole had a comprehensive and successful public engagement process. It provided extensive information that informed and guided the preparation of the draft Housing Element update. Targeted outreach began in March 2022. This involved engaging a diverse group of people in the planning process, including community members, stakeholders, service providers, educators, the Planning Commission, and City Council in identification of Pinole's Housing Element housing issues.

The City made a comprehensive effort to reach lower- and moderate-income individuals to participate in the Housing Element Update. As noted above, the City develop a multi-lingual outreach campaign, contacted a variety of local organizations including affordable housing developers, advocacy groups, and the fair housing service provider, local service providers, and community centered organizations. Postcards were sent to every household in the City inviting them to participate in the Housing Element update process. The City will continue efforts to develop culturally competent outreach programs to connect residents to a variety of resources including affordable housing resources with the implementation of Program 20, Program 21, Program 22.

The public participation program included:

- Website. An interactive housing element update website, launched in March 2022 and accessed through the City's webpage, which included a description of the project, how to provide input, workshop dates and materials, a link to the Housing Element update survey, and FAQs.
- Surveys. A multilingual (English, Tagalog, Cantonese, and Spanish) online community survey was heavily promoted through email list notification, project website, flyers, postcards, social media posts, banners, stakeholder interviews, and community workshops. The City received 149 completed surveys. Full details of the survey responses are provided in APPENDIX C: PUBLIC OUTREACH.
- Focus Group. One focus group was held on Thursday, June 30, 2022 at 4:00 p.m. to gather input from community members and housing service providers. The organizations participated in the focus group, the Friends of Pinole Creek Watershed, Pinole Valley Community Church, and BGAM Property Management Group
- Stakeholder Interviews. Two stakeholder interviews were held on July 25, 2022 with The Pinole Rotary Club and July 26, 2022 with Contra Costa Association of Realtors to gather input regarding issues the community faces and recommendations to alleviate the identified housing issues.
- Community Workshops. Two virtual community workshops were held on Wednesday, May 11, 2022, and Thursday, June 9, 2022. The website was updated to include information about the community meetings and the project planner sent emails to notify individuals on the mailing list which included stakeholders, community service providers, and members of the public. The links to the presentation video recording were posted on the Housing Element Update website.
- Study Session. One joint study session with the Planning Commission and City Council was held on July 13, 2022. All the efforts of notifying the public that were made for the two community meetings were repeated for the joint study session. The links to the presentation video recording were posted on the Housing Element Update website. The joint study session focused primarily on RHNA site strategy, housing issues, and proposed programs included in the Housing Element. It included a robust discussion of housing issues and responsive programs to meet the needs of all Pinole residents.

The City extensively advertised opportunities to participate and used multiple forms of media to reach the diverse population of Pinole. Efforts to notify the community about engagement opportunities include the following:

- Social media postings on the City of Pinole's Facebook and Instagram pages and Nextdoor.
- Email notifications to the interested parties contact list.
- Notifications in the City's biweekly administrative report.
- Postcard mailed to postal customers citywide.
- Flyers printed and distributed around the City.
- Advertisements on the Pinole Community TV, Channels 26 and 28, that displayed information regarding the Community Workshops. The information was displayed multiple times daily leading up to the workshops.

Example of a social media post for the October 24th Planning Commission meeting

- 11 banners of various sizes, ranging from 58 square feet to eight square feet hung at key locations in the City, including community facilities (such as the senior center, swim center, tennis court, and the library), neighborhood parks, over major throughfares and key pedestrian pathways. Banners included links to the survey in four languages as well as a link to the two virtual community workshops. Full additional photos of the banners and a map of the banner placements in the City, see APPENDIX C: PUBLIC OUTREACH.
- QR codes were printed on all postcards and flyers linking the recipient to the project website, which contained an option to participate in the survey, meeting dates, and notification that translation services are available printed in four languages (English, Tagalog, Cantonese, and Spanish).

Examples of two of the eleven banners placed around the City

Summary of Comments Received

During the outreach process, the City heard comments that touched on issues such as difficulty paying rent, mortgage, or down payment; homelessness; and insufficient housing supply, including affordable housing, farmworker housing, and preferred locations for future housing. Many of the programs and the RHNA sites inventory in the Housing Element Update reflect the community input. In summary, the community engagement and input yielded the following themes and feedback:

- Linking public investment with new housing: Participants expressed a desire for new housing near community facilities and amenities. Program 19 will coordinate with the Environmental Justice Element to pursue place-based improvements in low resource areas to increase environmental health and quality of Pinole through projects identified in the City's capital improvement program.
- Affordability: Participants expressed the lack of affordable housing options in Pinole; specifically identifying ways to incentive multifamily development. Program 8 consists of creating a set of incentives for projects that provide additional affordable housing beyond the City's 15 percent inclusionary requirement.
- Education and Outreach: Participants expressed a lack of community engagement and education on affordable housing, ADUs, housing services and programs that are available, and housing policy. Program 16, Program 20, Program 22, and Program 23 implement outreach and education strategies to increase community awareness about ADUs, housing resources and services, and available fair housing and financing support.
- Housing protections: Participants expressed a need for protections and resources for seniors, first-time homebuyers, and lower-and middle-income individuals. Program 21 establishes coordination with a fair housing service provider to work with residents and landlords for income protections and state rent control laws and in conjunction with Program 20. Program 10 will create a set of incentives to encourage the development of housing for seniors.

Two public comment letters were received regarding the Housing Element update. One letter was submitted prior to the release of the first public review draft of the Housing Element Update and one during the 30-day public review period for the Housing Element Update. Both of these letters were also submitted directly to the City of Pinole prior to or during the 30-day public review period, and therefore many of these comments are captured in the subsections above and helped to inform the draft Housing Element that was submitted to HCD on December 2, 2022.

One letter came on behalf of YIMBY Law and Greenbelt Alliance, dated April 21, 2022. This letter was received prior to the public review draft of the Housing Element and thus does not make any comments on the draft Housing Element. The letter contained a request for a rezoning component in the Housing Element Update to sufficiently meet Pinole's RHNA based solely on trends from 2018-2021 APR data. The letter comments on the development trends in Pinole based on the APR data from 2018 through 2021 and does not account for the 635 units that are currently approved and in various stages of development in the City. As demonstrated in the sites inventory, the City has adequate zoning to meet and exceed the RHNA requirement.

The other came on behalf of a Contra Costa County resident, 350 Contra Costa, Greenbelt Alliance, CaRLA, a resident of Palo Alto, a resident of Berkeley, a resident of San Bernadino, and two residents of San Francisco. This letter contained two main comments, as follows:

- Recommendation to include an analysis of compliance in its approval process with PRC 21080.1 & 21080.2 (time limits for determining whether certain residential projects are exempt from CEQA).
- Recommendation to add a program to specify (i) who is responsible for making the CEQA determination of PRC 21080.1, specify (ii) that their decision will be made within the timeframe permitted by PRC 21080.2, and specify that (iii), when they determine a project is exempt from CEQA, their determination triggers the Permit Streamlining Act (PSA) 60-day deadline (Gov. Code 65950(a)(5)). If existing local practices or regulations are incompatible with these state laws, the program should commit to enacting reforms necessary to achieve compliance within a reasonable and definite timeline.

Program 6 includes reviewing and updating as necessary the EIR prepared for the GP and Specific Plan so that individual projects can utilize opportunities for tiering from environmental documentation and streamlining provided under CEQA, where applicable, which can reduce duplicative analyses and streamline environmental review. This will speed up the review/approval process and greatly reduce costs for the applicant. The City of Pinole makes every effort to comply with all state laws regarding CEQA and permit processing.

A summary of outreach is also provided in the Affirmatively Furthering Fair Housing chapter. For complete survey results and additional detail on outreach see APPENDIX C: PUBLIC OUTREACH.

Public Review Period

Pursuant to Assembly Bill 215 (AB 215), the City distributed the Draft 2023-2031 Housing Element for a 30 day public review period from October 17th, 2022 to November 16th, 2022. Public notification included social media postings and notifications through emails to 65 stakeholders as well as a public review hardcopy available at City Hall. The City received one public comment requesting additional information on how to participate.

The City held public meetings before the Planning Commission on October 24th and City Council on November 15th to discuss and receive feedback on the public review draft. Opportunity for public comment was provided at both meetings. The Planning Commission and City Council were both supportive of the draft document. They discussed opportunities to clarify and strengthen programs and appreciated the thorough and clear analysis and accessibility of the draft element.

The Housing Element was a duly advertised agenda item at the October 24th Planning Commission and November 15th City Council meetings to discuss and receive feedback on

the public review draft. Opportunity for public comment was provided at both hearings. The Planning Commission and City Council both supportive of the draft document. They discussed opportunities to clarify and strengthen programs and appreciated the thorough and clear analysis and accessibility of the draft element. The Planning Commission and City Council discussions centered around how the following topics are addressed in the draft Housing Element:

- Add the Pinole Vista project (223 units) that was approved during the public review period to the sites inventory.
- Allow and encourage single and small unit room rentals.
- Evaluate opportunities for affordable housing on religious facility sites.
- Promote and incentivize affordable housing for teachers.
- Consider more protections to prevent and minimize displacement.
- Encourage additional and continual efforts to obtain input from Pinole's diverse population.

The following City efforts address the discussions with the Planning Commission and City Council:

- The 223-unit Pinole Vista project was added to the sites inventory and the sites and AFFH analysis were modified to include and evaluate the site.
- To encourage single and small unit room rentals, the City is including multiple programs to spur ADU development and educate homeowners regarding ADUs. Program 4, Facilitate ADU Production, is included to encourage and stimulate the development of ADUs. Program 22 consists of ADU, JADU, and SB 9 Education and Promotion. The City currently allows SROs in five zones.
- Program 11 develops a Home Sharing and Tenant Matching Program. To promote additional housing options for teachers, they will be included as eligible tenants for the program.
- As a part of Program 3, Outreach to Developers and Technical Assistance to Applicants, the City will contact faith-based organizations in Pinole to discuss opportunities for housing at their facilities and provide information regarding recent legislation regarding religious-institution affiliated housing projects.
- As a part of Program 20, Displacement Prevention/Housing Mobility, the City will conduct a workshop a meeting/workshop to inform residents and landlords of sources of income protection and state rent control laws such as AB 1482. The City will also coordinate outreach efforts to inform landlords and tenants of recent changes to state law that prevent source of income discrimination, including allowance of housing choice vouchers (HCVs) to establish a renter's financial eligibility.

- The City recently adopted a Communication and Engagement Plan[1] to provide a framework to strengthen the City's communication efforts and help City Hall more effectively reach and engage residents through a series of recommendations centered around topics including planning, media relations, language access, and social media, among others. The Communication and Engagement Plan will help to expand the reach of information for a diverse set of Pinole residents throughout the entirety of the 6th Housing Element Cycle.

HCD 90-Day Review Period, December 2 through March 2, 2023

The City of Pinole submitted the draft Housing Element Update to HCD for HCD's 90-day review on December 2, 2022. The revised draft incorporated extensive revisions in response to comments from the public that were received during the 30-day review period described in detail above.

The City of Pinole conducted additional outreach to housing developers and real estate professionals during the 90-day review period. Pinole has had extraordinarily good housing production in terms of total units as well as excellent production of very low, low and moderate units. In effort to learn from Pinole's success, the City contacted developers with projects in Pinole to discuss:

- What led them to development in Pinole,
- Why they had not previously been building in Pinole, and
- Help identify any constraints to the development process experienced in the permitting process.

City staff met with locally and regionally active developers and real estate professionals including MRK Partners Inc., SAHA, ROIC, and DeNova Homes, Inc. These developers provided letters expressing very positive reviews of City staff, processes and standards. Common reasons for developing in Pinole included:

- Attractive zoning,
- Relatively affordable land cost,
- Availability of land,

[1] Pinole Communication and Engagement Plan: https://cdn5-hosted.civiclive.com/UserFiles/Servers/Server_10946972/File/City%20Government/City%20Manager/2022/City%20of%20Pinole%20Community%20Engagement%20Plan.pdf

- Developable parcels with access to transit and services that essential for affordable and efficient housing and helps to obtain funding for affordable housing
- Knowledgeable, efficient, and flexible staff
- Short entitlement timeframe
- Comparatively efficient and straightforward design review process, staff support in the application process, and City support for housing opportunities.
- Collaborative entitlement process
- Great working relationship with staff

Review of Past Accomplishments

State law (California Government Code Section 65588[a]) requires each jurisdiction to "review its housing element as frequently as appropriate to evaluate all of the following:

(1) The appropriateness of the housing goals, objectives, and policies in contributing to the attainment of the state housing goal.

(2) The effectiveness of the housing element in attainment of the community's housing goals and objectives.

(3) The progress of the city, county, or city and county in implementation of the housing element.

(4) The effectiveness of the housing element goals, policies, and related actions to meet the community's needs, pursuant to paragraph (7) of subdivision (a) of Section 65583."[2]

Per HCD, the three areas of requisite analysis are:

- Review the results of the previous housing element's goals, objectives, and programs. The results should be quantified where possible but may be qualitative where necessary.
- Compare what was projected or planned in the previous housing element to what was achieved. Determine where the previous housing element met, exceeded, or fell short of what was anticipated.
- Based on the above analysis, describe how the goals, objectives, policies, and programs in the updated housing element are being changed or adjusted to incorporate what has been learned from the results of the previous housing element.

Housing Production

The 5th Cycle RHNA for the City of Pinole is shown in Table 1. The 5th Cycle allocation for the City consisted of 80 very low income units, 43 low income units, 43 moderate income units, and 126 above moderate income, for a total of 297 units. As of December 2021, 27 units have been permitted during the 5th Cycle. There is a remaining RHNA need of 80 very low income, 43 low income, 42 moderate income, and 100 above moderate-income units.

[2]http://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=GOV&sectionNum=65588.#:~:text=65588.,of%20the%20state%20housing%20goal.

Table 1: 5th Cycle Housing Production

	Very Low	Low	Moderate	Above Moderate	Total
5th Cycle RHNA Allocation	80	43	43	126	297
Permitted	-	-	1	26	-
Remaining Requirement	80	43	42	100	265

Source: City of Pinole

No Net Loss and Adequate Sites

Pursuant to Senate Bill (SB) 166, the City must always maintain adequate sites to accommodate the remaining RHNA requirement. The City saw development of 27 units over the 5th Cycle.

The City provided a capacity for 74 units on vacant sites and 419 units on specific plan sites, for a total of 493 units. The 5th Cycle identified a surplus capacity of 196 units. At no point during the 5th Cycle did the City have a net loss of capacity. The City maintained a surplus of available sites for all income levels throughout the 2015 to 2023 planning cycle.

Effectiveness at Assisting Special Needs Populations

This section reviews the City's progress on assisting populations with special housing needs during the 5th Cycle. The City has implemented multiple programs to assist special needs populations over the 5th Cycle.

Seniors and Residents with Disabilities

The Pinole Senior Center offers services and programs to the elderly, including free assistance with legal and health services, and fitness classes.

WestCAT is a service of the Western Contra Costa Transit Authority, which provides a Senior Dial-A-Ride service that offers rides to senior citizens. WestCAT also provides a Paratransit service to Pinole, which is a curb-to-curb service ensuring that riders are transported safely and comfortably. These vehicles are equipped with wheelchair lifts providing access for all elderly persons with different levels of abilities.

Through the Contra Costa County Area Agency on Aging, Pinole participates in several food programs including Meals on Wheels, CalFresh, Food Bank of Contra Costa and Solano, and the Senior Food Program.

Persons Experiencing Homelessness

The County works collectively with all cities, including Pinole, to help address the needs of the homeless population in Contra Costa County. The homeless population in the City (53 in the most recent point-in-time count) receives aid from programs through Contra Costa

County Health, Housing & Homeless Services. This includes the Continuum of Care and C.O.R.E. Homeless Outreach.

Accessibility Improvements

The City coordinated with the West Contra Costa Unified School District to complete off-site improvements at Pinole Valley High School that create easier access to the school for persons with disabilities. These changes include new ADA ramps, four traffic signals, and roadway restriping.

The City installed 41 "share the road" signs along Pinole Valley Road. There are 20 signs in the south bound direction beginning at Pinole Valley High School and 21 signs in the north bound direction to San Pablo Avenue. There have also been several road projects that involved upgrading ADA ramps on various segments on San Pablo Avenue.

In addition, the City installed 40 thermoplastic bicycle Shared Lane Markings (SLMs), "sharrows," along Pinole Valley Road to San Pablo Avenue. This route links with the bicycle lanes passing Pinole Valley High School and provides connectivity from the Valley and Old Town to the commercial area near I-80. This route also allows access from Pinole Valley to the Hercules Transit Center.

The City is currently completing a Local Road Safety Plan which will suggest roadway improvements to make roadways safer for all users. Also, the City is scheduled to undertake the development of an Active Transportation Plan which will help identify improvements that will increase the safety and mobility of non-motorized users.

Evaluation of Previous Housing Element Programs

This section illustrates the City of Pinole's accomplishments and status in implementing the housing programs identified for the 2015-2023 5th Cycle, as well as the continued appropriateness of each program for the 2023-2031 6th Cycle. Programs that have been successfully completed or that consist of routine staff functions are marked as "remove," as these programs are no longer necessary for the 6th Cycle. Previous programs that are continued with no or minor modifications are marked as "continue." Finally, programs marked as "retain/modify" are programs that will be continued, but have updated goals and metrics, and may involve combining multiple existing programs into a single 6th Cycle program for ease of use and streamlining.

Table 2: Review of 5th Cycle Programs

5th Cycle Program Name and Number	Action/Target	Timeframe	Accomplishments	Continued Appropriateness	6th Cycle Program Number
Conduct An Annual Housing Element Review (H.1.1)	Provide for annual review of the Housing Element, with opportunities for public input and discussion, in conjunction with State requirements for a written review by April 1 of each year (per Government Code Section 65583(3)). As part of the Annual Housing Element Review, the City will conduct a General Plan internal consistency review.	Annually	Complete for 2021. The City will continue to conduct annual reviews of the Housing Element in subsequent years	Remove - This is a routine staff function and not considered a Housing Element Program. This is also an HCD requirement (Government Code Section 65400.)	N/A
Explore Housing Development Partnerships (H.1.2)	The City shall seek out opportunities to work with other public agencies by identifying housing grant funding opportunities to encourage and implement improvements and expansion of housing supply, and work with developers by creating a developer interest list and periodically assessing development needs to encourage new residential development to provide affordable housing. Contact other public agencies such as the Contra Costa County Housing Authority or Contra Costa County Department of Conservation and Development at least once a year for funding and partnering opportunities.	Ongoing	The City has been working with developers on multiple housing projects that either include affordable units in mixed income projects or are 100 percent affordable projects. The City has facilitated pre-submittal meetings and calls to provide information, highlight application needs, discuss processes, and discuss affordable housing requirements and incentives. Projects the City has worked with developers on include the 223 unit development at Pinole Vista Plaza's vacant K-Mart site, a 154 townhome and condominium development on the vacant Doctor's Hospital site, a 29-unit apartment project on a mixed use site, a 33 unit affordable veteran's	Retain/Modify into an outreach and technical assistance program.	Program 3

5th Cycle Program Name and Number	Action/Target	Timeframe	Accomplishments	Continued Appropriateness	6th Cycle Program Number
			housing on a former redevelopment agency property, and a 100% affordable 179 unit senior complex. The City has not compiled a developer interest list and plans to do so during the 6th Cycle.		
Periodically Review Residential Development Requirements (H.1.3)	Monitor development standards to ensure their appropriateness in fostering residential and mixed use development. • For key housing opportunity sites, provide development standards and design objectives to streamline the development review process for projects that are consistent with applicable Specific Plans and the General Plan. • Provision of clear guidelines and incentives for the development of housing in conformance with current state laws and to identify specific ways to streamline processing for subsequent development proposals.	Ongoing (as necessary)	Regular ongoing discussions on permitting, process, and code update improvements.	Retain/Modify – combine with Mixed-Use incentive program	Program 6
Apply Design Review Guidelines (H.2.1)	Apply the Zoning Ordinance Residential Design Guidelines to new residential projects in order to evaluate projects in the context of existing neighborhoods and continue to maintain an objective process that clearly communicates community expectations in the Design Review process.	Ongoing	The City continues to implement the Residential Design Guidelines for residential projects. The City received thirteen residential design review applications in 2021. The City has recently begun the process of creating objective design standards, with the standards anticipated to be completed and adopted during the 6th Cycle.	Retain/Modify to ensure compliance with SB 330 and that development standards, design guidelines, and findings are objective, and promote certainty in the planning and approval process.	Program 13

5th Cycle Program Name and Number	Action/Target	Timeframe	Accomplishments	Continued Appropriateness	6th Cycle Program Number
Adequate Sites to Meet Regional Fair Share of Housing Growth (H.2.2)	The City shall provide for a variety of housing types with densities ranging from one to seven units per acre in low-density residential areas and up to fifty dwelling units per acre in very high density residential and mixed use areas along portions of the City's transportation corridors included in the proposed Specific Plan for San Pablo Avenue, Pinole Valley Road, and Appian Way, with the incorporation of density bonuses available consistent with State law. In support of this Housing Element, the City developed a parcel-specific inventory of sites suitable for future residential development, including vacant sites currently designated under the City's General Plan and housing opportunity sites designated in the City's Corridor Specific Plan for San Pablo Avenue, Pinole Valley Road, and Appian Way The City's overall construction target is 80 units (2 extremely low, 5 very low, 5 low, 20 moderate, and 48 above moderate).	Ongoing	Complete. Three Corridors Specific Plan for San Pablo Avenue, Pinole Valley Road, and Appian Way includes adequate sites available to developers to meet Regional Fair Share of Housing Growth. A detailed inventory of opportunity sites for potential residential development is included within the site inventory map and list of the adopted Housing Element (Appendix A and B).	Retain	Program 1
Rehabilitation Assistance (H.2.3)	The City will improve public awareness of rehabilitation loan subsidy programs offered by the County and other agencies. Specific actions should include: (a) pamphlets on the programs available at City Hall; and (b) providing public information through articles in the local newspaper and with cable TV public service announcements. In addition, the City will annually explore funding availability at the local, State, and federal levels and pursue funding programs as appropriate with the goal of reinstating the City's Rehabilitation Program. Target: 50 units: 10 extremely low, 10 very low, 10 low, and 20 moderate), inclusive of the target for Action H.2.4 below.	Ongoing (annually)	City staff continues to assist homeowners and provide information at City Hall on rehabilitation assistance resources. In 2021, the City issued 656 permits to rehabilitate housing units, including roofing, water heater replacement, furnace, solar, window/patio door replacement, and home remodel/addition projects.	Retain/Modify. Increase program specificity, language, and metrics, including setting a geographic target for assistance.	Program 16

5th Cycle Program Name and Number	Action/Target	Timeframe	Accomplishments	Continued Appropriateness	6th Cycle Program Number
Acquisition/ Rehabilitation of Blighted or Distressed Properties (H.2.4)	As in other parts of the State, many households in Pinole have been impacted by the recession and depressed housing market, resulting in increases in distressed properties and foreclosure activities. Furthermore, with the dissolution of redevelopment, the City no longer has the funding available to address blighted properties in the community. The City will continue to pursue opportunities to partner with nonprofit housing developers to acquire and rehabilitate blighted or distressed properties, with the objective of making these units available to low income households as affordable housing. Target: 50 units (10 extremely low, 10 very low, 10 low, and 20 moderate), inclusive of the target for Action H.2.3 above.	Ongoing	The City worked with the developer on the construction of an affordable veteran's housing project on a former redevelopment property. The City has worked with the developer to entitle a 100% affordable senior housing complex on an underutilized site.	Retain/Modify. Remove portion regarding blight and redevelopment agency. Update metrics, language, and, set a geographic target for assistance.	Program 17
Fee Structure Evaluation (H.3.1)	Periodically review the City's current development impact fees to ensure that new development contributes its fair share of the costs for the provision of services and facilities.	Ongoing	A fee update was initiated in calendar year 2022 and adopted by City Council in June 2022. Fees went into effect September 2022. Significant changes were made to building permit fees that made the fee schedule more equitable. The adopted fee schedule is now more similar to neighboring jurisdictions, especially for larger scale projects.	Retain/Modify. Specify fee evaluations to be done not less than every 5 years.	Program 14
General Plan Land Uses (H.4.1)	Evaluate General Plan land use designations and plan programs annually to ensure they are consistent with the City's overall goals and review the entire General Plan within eight years.	Annually	The City's GP land use designations are applied to provide direction and flexibility to help meet evolving overall land use goals and policy objectives.	Remove – Not a Housing Element Program.	N/A
Housing Construction (H.4.2)	Construct or encourage the construction of housing units throughout the City through use of the following mechanisms. Construction or approval of at least 279 units between 2014 and 2023.	Ongoing	City staff meets regularly with property owners and developers to encourage additional housing construction at all affordability	Modify - increase program specificity, language, and metrics regarding	

5th Cycle Program Name and Number	Action/Target	Timeframe	Accomplishments	Continued Appropriateness	6th Cycle Program Number
			levels on available housing opportunity sites. Staff provides information regarding the State density bonus programs, and helps owners/developers determine use of bonuses, waivers/exceptions, and incentives. Staff also meets with individuals to provide information on about SB 9 and ADUs.	construction of housing.	
	Mixed-Use Incentives: Encourage mixed residential-commercial uses in areas consistent with the Land Use Plan, and in particular along portions of the San Pablo Avenue, Pinole Valley Road, and Appian War corridors to increase housing opportunities through the following and other means, if appropriate: (1) increased densities; (2) prioritized development project review and processing; and (3) flexibility in parking and development standards.		The City assisted in exploring potential for flexible parking standards, including shared parking agreements for mixed use development.	Retain/Modify.	Program 6
	Rental Housing Site Assemble and Development: City shall contact affordable housing builders annually and provide information about sites to facilitate development of affordable rental housing. Based on development interest, the City shall explore possible assistance including priority processing.		The City executed a Disposition and Development Agreement and agreed to provide a Purchase Loan and Construction Loan to assist in the purchase of the property and construction of the SAHA project (811 San Pablo Ave). The site was a former redevelopment property sold by the City to the developer with agreement to construct an affordable rental housing development.	Retain/Modify – roll into outreach and technical assistance program, and program to develop specific priority processing procedure.	Program 3 and Program 8
	Affordable Housing Incentives: Support the use of the following incentives for well-designed rental and ownership projects that provide a minimum of 15 percent of total units		The City implements its 15% inclusionary housing program for the creation of affordability units in projects.	Retain/Modify to develop specific process for priority review of affordable	Program 8

5th Cycle Program Name and Number	Action/Target	Timeframe	Accomplishments	Continued Appropriateness	6th Cycle Program Number
	affordable to low and moderate income households for 45 and 55 years respectively: a. Density bonuses. Provide density bonuses consistent with the State Density Bonus Law (Government Code Section 65915). b. Flexibility in development standards. Allow flexibility in applying development standards (e.g., parking, floor area, setback, height standards). c. Prioritized Development Review. Affordable housing development should receive the highest priority and efforts should be made by staff and decision-makers to provide technical assistance to potential affordable housing developers; consider project funding and timing needs in the processing of applications; and provide the fastest turnaround time possible in determining application completeness.		The City has an adopted set of design modifications for affordable housing including potential for priority processing. This is adopted in section 17.32.040 of the Zoning Ordinance.	housing developments that go beyond the inclusionary requirement.	
	Require Affordable Housing in Market Rate Residential Projects. Require 15 percent of the units located in new residential developments be affordable, and of those units, 40 percent must be affordable to very low income households. The City's intent is the construction of units on-site. If this is not practical, the City will consider other alternatives of equal value, such as in-lieu fees, construction of units off-site, donation of a portion of the property for future non-profit housing development, etc.		15% inclusionary requirement has been applied in all applicable housing developments.	Retain/modify.	Program 7
	Housing for Extremely Low Income Households and Persons with Disabilities. Based on funding availability, the City shall explore, at least once a year, development assistance for multifamily and supportive housing to meet the needs of extremely low income households and persons with disabilities (including persons with developmental disabilities). The City shall continue to contact housing service providers within West Contra Costa County to determine the best way to facilitate development of housing	Ongoing		Retain.	Program 9

5th Cycle Program Name and Number	Action/Target	Timeframe	Accomplishments	Continued Appropriateness	6th Cycle Program Number
	for extremely low income households and persons with disabilities. The City will annually contact developers to assist in development where feasible by prioritizing available funding, assisting and supporting new applications, providing priority processing, considering fee deferrals or subsidies and design modifications, and facilitating site acquisition.				
Parcel Consolidation (H.4.3)	The City will play an active role in facilitating lot consolidation, particularly as it relates to parcels listed in the Sites Inventory in this Housing Element. The lot consolidation procedure is included in the City's Municipal Code and made available to the public and discussed with developers during the preliminary review process. Lot consolidation requests made in order to facilitate development of affordable housing is processed administratively. Incentives offered for lot consolidation include allowing higher densities for larger parcels once consolidated, flexibility in development standards, and expedited processing.	Ongoing	City staff meets with property owners and developers to encourage parcel consolidation for housing development. The City did not receive any requests for lot consolidations during the 5th Cycle.	Retain //Modify – include in affordable housing incentive programs	Program 8
Second Unit Ordinance (H.4.4)	The City will provide information to the public on the ordinance at City Hall and on its website. In addition, the City will review the Second Dwelling Unit Ordinance in regard to development requirements to encourage the development of well-designed secondary housing units in established residential areas. Construction of 16 new second units between 2014 and 2023.	Ongoing	Updated the ADU ordinance in 2017 and 2020. Staff regularly receives and responds to questions from the public regarding ADU standards and the permit process. 15 ADUs were constructed between 2017 and September 2022. The City streamlines the permitting of ADUs by processing them as a plan check of a building permit, and does not require	Retain and roll into ADU Programs	Program 4 and Program 22

5th Cycle Program Name and Number	Action/Target	Timeframe	Accomplishments	Continued Appropriateness	6th Cycle Program Number
			separate planning permitting for ADUs.		
Homebuyer Programs (H.4.5)	Continue to promote homebuyer assistance programs available through the County and State, such as the Mortgage Credit Certificate (MCC) program and California Housing Finance Agency's Down payment Assistance Program. Specific actions should include: (a) pamphlets on the programs available at City Hall; and (b) providing public information through articles in the local newspaper and with cable TV public service announcements. The City will continue to explore funding opportunities to reinstate the City's Homebuyer Program. Annual evaluation of funding available and pursue funding opportunities as available.	Annually	Inadequate financial resources available in 2021 to directly assist first-time homebuyers and re-establish the City's homebuyer program. The City refers interested individuals to available County and State programs.	Retain and Modify - staff can continue to refer interested parties to County and State programs. Modify to increase promotion of outreach programs.	Program 22
Below Market Rate (BMR) Regulations (H.4.6)	Implement and monitor rental (55 years) and resale (45 years) restrictions for low and moderate income units assisted or constructed by the former Redevelopment Agency to assure that these units remain at an affordable price level as they are occupied, and transferred.	Ongoing	The City continues to use a third-party contractor to monitor affordability control compliance.	Retain - add specific metric.	Program 18
Technical Assistance to Housing Developers (H.4.7)	The City will provide technical assistance to developers to encourage provision of affordable housing that are consistent with City goals. Assistance could include provision of information about available funding sources, pre-application planning meetings, expedited development review and processing, and facilitation of neighborhood meetings.	Ongoing	City staff continued to meet with prospective housing developers in 2021.	Retain/Modify – combine into outreach and technical assistance program.	Program 3

5th Cycle Program Name and Number	Action/Target	Timeframe	Accomplishments	Continued Appropriateness	6th Cycle Program Number
Accessible Units for the Physically Disabled (H.4.8)	The City will facilitate programs and projects that meet Federal, State and local requirements to provide accessibility for the physically disabled in residential units and will promote affordable accessible housing for the physically disabled. The City will encourage accessible units in all new projects; additionally, where outside funding is involved, the City will ensure compliance with funding agency requirements for units accessible to the physically disabled. The City will provide technical assistance to assure proposed units meet Building Code requirements. The City will implement the adopted ordinance establishing Reasonable Accommodation procedures to accommodate the needs of persons with disabilities. Five percent of the units built or approved between 2014 and 2023 should be adaptable for the physically disabled	5% of units built or approved between 2014 and 2023 should be adaptable for the physically disabled	The City is committed to assisting in the development of new projects that provide accessible housing for the disabled or issuing building permits for projects that improve the accessibility of existing housing. The City did not receive any new development requests for housing for the physically disabled or accessibility modifications to existing residential units during the 5th Cycle.	Remove – completed reasonable accommodations procedure.	N/A
Housing for the Homeless (H.4.9)	The City amended the Zoning Ordinance to provide emergency shelters and transitional housing for the homeless; however, additional revisions to the Zoning Ordinance are required to be consistent with State law. Specifically, the Zoning Ordinance will be revised to address the provision of supportive and transitional housing as a residential use to be subjected to requirements for similar uses in the same zones. The Zoning Ordinance will also be revised to remove the emergency shelter distance requirements (other than from another shelter). State law (SB2) allows the emergency shelter ordinance to set distance requirement only from another shelter. The City's ordinance currently includes distance requirements from a public park and a school, transit route, etc. Within 12 months of adopting the 2015-2023 Housing Element, the City will amend the Zoning Ordinance to address the provisions for transitional housing, supportive housing, and emergency shelters consistent with SB 2. The City will continue to monitor the effectiveness and appropriateness of the adopted provisions in facilitating housing for the homeless.	By May 2016	Text amendments were approved in 2016.	Remove - Completed.	N/A

5th Cycle Program Name and Number	Action/Target	Timeframe	Accomplishments	Continued Appropriateness	6th Cycle Program Number
	Complete within one year of Housing Element adoption.				
Employee Housing (H.4.10)	Currently the Zoning Ordinance does not address the provision of employee housing. The City will amend the Zoning Ordinance within one year of the Housing Element adoption to identify employee housing meeting Health and Safety Code definitions will be considered as a residential use and to be permitted in the same manner as similar uses in the same zones. Amend Zoning Ordinance to address employee housing within one year of Housing Element adoption	By May 2016	Text amendments were approved in 2016.	Remove - Completed.	N/A
Prevention of Housing Discrimination (H.4.11)	The City will take actions to prevent discrimination in the housing market and provide information on fair housing laws. Staff will distribute fair housing pamphlets provided by fair housing organizations at the public information counter at City Hall, Pinole Library, and at the Pinole Senior Center, as well as on the City's website. Staff will continue to refer all fair housing complaints to Housing Rights Incorporated, a local fair housing advocacy firm or other groups that provide comparable service. The City will also participate in the Regional Analysis of Impediments to Fair Housing Choice, which is updated every five years. The City will work with the County to publicize the outreach program for the update.	Ongoing	No housing discrimination disputes were brought to the City's attention in 2021.	Retain/Modify - increase program specificity, language, and metrics regarding fair housing. Expand program to include counseling, education, etc.	Program 21
Conservation of Affordable Housing Units (H.4.12)	Pinole's supply of affordable housing units is largely made of multi-family units with affordability covenants in place that ensure affordability at a specific income level for a set period of time following the provision of financial assistance to the project, generally through the former Pinole Redevelopment Agency. A number of the covenants were recorded prior to changes in State law that took effect in 2001 requiring minimum thresholds for affordability and are now nearing their expiration dates. The City will take appropriate steps to ensure that the units with covenants close to expiration are	Through 2017	Former RDA assets, and revenues generated from those assets, are maintained in a Low- and Moderate-Income Housing Asset Fund that continues to be used to administer and monitor compliance with affordable housing and loan agreements and provide for affordable housing development.	Retain - update timeframe, and specific metric (# of homes,)	Program 18

5th Cycle Program Name and Number	Action/Target	Timeframe	Accomplishments	Continued Appropriateness	6th Cycle Program Number
	conserved or replaced and will remain affordable to moderate and lower income households. Specifically, the City will: • Contact the property owners to assess their interest and incentives required in extending the affordability covenant for the at-risk units. • Work with property owners to notify tenants of potential conversion to market rate at least one year prior to conversion, pursuant to State law. • Contact affordable housing developers/providers to solicit their interest and financial capacity in acquiring the at-risk units, • Work with interested property owners/affordable housing developers/providers to pursue funding for the preservation and improvement of at-risk units. Total: 113 units (24 very low, 4 low, and 85 moderate) Through 2017: 24 very low income units; 4 low income units; and 85 moderate income units.				
Explore Options for Senior Assistance Programs (H.4.13)	Explore program revisions and potential new programs aimed at providing assistance to seniors that would allow them to live independently and age in their homes. The potential assistance program(s) may be an offshoot of or include revisions to the existing Residential Rehabilitation Loan Program, which provides grants and low-interest loans to qualifying households. Specifically, identify funding and initiate a program to provide grants to senior homeowners for home improvements to increase accessibility for daily activities. Pursue funding in 2015 with the goal of initiating program in 2016.	2015-2016	Insufficient financial resources were available to establish a City program.	Retain – Modify to set specific measures and goals	Program 10

5th Cycle Program Name and Number	Action/Target	Timeframe	Accomplishments	Continued Appropriateness	6th Cycle Program Number
Energy and Water Conservation (H.5.1.1)	Reduce energy and water consumption in residential buildings by balancing energy-efficient design and water conservation features with cost-effective construction.	Ongoing	The City continued to provide information on available energy and water conservation programs. The City adopted updates to the water efficient landscaping ordinance in the municipal code to reflect the current State ordinance.	Remove – completed.	N/A
Water and Sewer Service Priority Allocation for Affordable Housing (H.5.1.2)	The City will comply with SB 1087 requirements regarding water and sewer priority allocation to affordable housing. The City will coordinate with the East Bay Municipal Utility District, the West County Wastewater Sewer District, and the Pinole/Hercules Water Pollution Control Plant (WPCP) Joint Powers Agreement as needed to facilitate adoption of similar policies or to ensure that the State Public Utility Commission policies are adhered to. Adopt policy within one year of Housing Element adoption	By May 2016	Completed in 2016.	Remove - Completed.	N/A

Housing Needs Assessment

The housing needs assessment analyzes the varied needs of all segments of the community. The assessments evaluate characteristics that inform housing need including population trends, demographics, employment trends, household characteristics, housing stock characteristics, housing inventory and market conditions, and preservation of at-risk units. The assessment also analyzes housing needs of various special needs groups, including elderly persons, large households, female-headed households, persons with disabilities (including developmental disabilities), homeless persons, farmworkers, and extremely low-income households. These components are presented in the context of the City of Pinole, Contra Costa County, and other regional or neighboring areas as appropriate. The housing needs assessment guides the identification of appropriate goals, policies, and programs for the City to implement during the 2023–2031 Housing Element cycle.

The housing needs assessment uses multiple data sources for analysis. Primary data sources include the 2020 American Community Survey (ACS), the 2014–2018 Comprehensive Housing Affordability Strategy (CHAS) published by the US Department of Housing and Urban Development (HUD), and the 2020 US Census. The CHAS provides information related to households with housing problems, including overpayment, overcrowding, and/or housing without complete kitchen facilities and plumbing systems. CHAS data is based on the 2014–2018 ACS data files but differs from the standard files by including a variety of housing need variables shown by HUD-defined income limits and HUD-specified household types. CHAS data uses the HUD Area Median Family Income (HAMFI), which does not differ from the area median income (AMI) used by the California Department of Housing and Community Development (HCD) except that it does not utilize AMI income categories. Both HAMFI and AMI use the same median income from the metropolitan area, which for Pinole is the Oakland-Hayward-Berkeley metropolitan district. Tables that use HAMFI instead of AMI are noted[3].

HCD uses five income categories to evaluate housing need based on the AMI for each metropolitan statistical area; they are used for both funding and planning purposes. The categories are as follows:

- Extremely low-income households, between 0% and 30% of the AMI
- Very low-income households, between 30% and 50% of the AMI
- Low-income households, between 50% and 80% of the AMI
- Moderate-income households, between 80% and 120% of the AMI

[3] Note that data from the different sources and different years may have varying estimates for totals such as population or number of households.

- Above moderate-income households, above 120% of the AMI

Extremely low-, very low-, and low-income households may be grouped together for planning purposes and referred to as "lower-income households."

Projected Housing Needs

As required by California Government Code section 65583, each jurisdiction must have land zoned to accommodate its fair share of the regional housing need. Each jurisdiction's share of needs is known as the Regional Housing Needs Allocation (RHNA). HCD determines the needs for each region of the state. The Association of Bay Area Governments (ABAG) is the regional planning agency for the nine county Bay Area region responsible for assigning each jurisdiction within the region its share of the RHNA. The RHNA is broken down into the five income levels: extremely low, very low, low, moderate, and above moderate.

As determined by HCD, the RHNA for the Bay Area region over the 2023–2031 planning period is 441,176 units. Contra Costa County as a whole received a RHNA of 49,043 units. Pinole was assigned a RHNA of 500 total units, as shown in Table 3.

Table 3: Pinole RHNA, 2023–2031

Income Group	% of County AMI	Units	% of Units
Extremely Low[1]	*0–30%*	60	12.0%
Very Low	*30–50%*	61	12.2%
Low	*50–80%*	69	13.8%
Moderate	*80–120%*	87	17.4%
Above Moderate	*> 120%*	223	44.6%
Total	-	**500**	**100%**

Source: Association of Bay Area Governments (ABAG) as referenced in Pinole 2023-2031 Housing Element Data Package, Table HHPROJ-01.

[1]Pursuant to AB 2634, local jurisdictions are also required to project the needs of extremely low-income households (0–30% of AMI). Fifty percent of the very low-income households are presumed to qualify as extremely low-income households.

Existing Housing Needs

Existing housing needs take into consideration demographic information about the community and region, including population and employment trends. It also considers data about the housing stock and characteristics, including housing age, condition, rates of cost burden, and rates of overcrowding.

Population Growth Trends

Table 4 provides the population trends of Pinole and select regional jurisdictions from 2010 to 2020. Pinole has a population of 19,505 as reported by the 2020 US Census. The County saw a 10.0 percent increase in population over the 10-year time span. Pinole experienced a lower growth rate of 6.1 percent, about 1,115 people. This is a comparable growth rate to

the nearby jurisdictions of El Cerrito and Hercules. Richmond and San Pablo saw marginally higher population changes at 7.2 percent and 7.8 percent, respectively, while Martinez experienced a lower rate of growth at 3.6 percent.

Table 4: Regional Population Change, 2010–2020

Jurisdiction	2010	2020	% Change
Bay Area	7,150,739	7,790,537	*8.9%*
Contra Costa County	1,049,025	1,153,561	*10.0%*
Pinole	**18,390**	**19,505**	***6.1%***
El Cerrito	23,549	24,953	*6.0%*
Hercules	24,060	25,530	*6.1%*
Martinez	35,824	37,106	*3.6%*
Richmond	103,701	111,217	*7.2%*
San Pablo	29,139	31,413	*7.8%*

Source: California Department of Finance, E-5 series (as referenced in ABAG 2023-2031 Housing Element Data Package, table POPEMP-01).

Table 5 provides annual average population growth from 2000 through 2020. Between 2010 and 2020, the Bay Area and Contra Costa County experienced similar average annual growth rates of approximately 1 percent per year. During the same ten-year period, Pinole saw slightly slower annual average growth at 0.6 percent (an increase of 1,115 residents total). In contrast, from 2000 to 2010, the City's population estimate decreased by 649 people or approximately 0.3 percent annually on average.

Table 5: Annual Average Population Growth, 2000–2020

Jurisdiction	2000	2010	2020	2000-2010		2010-2020	
	Total Population			Population Change	*AAGR*	Population Change	*AAGR*
Pinole	19,039	18,390	19,505	-649	*-0.3%*	1,115	*0.6%*
Contra Costa County	948,816	1,049,025	1,153,561	100,209	*1.0%*	104,536	*1.0%*
Bay Area	6,784,348	7,150,739	7,790,537	366,391	*0.5%*	639,798	*0.9%*

Source: California Department of Finance, E-5 series (as referenced in ABAG 2023-2031 Housing Element Data Package, table POPEMP-01).

Age Composition

Pinole's current and future housing needs are determined in part by the age characteristics of its residents as each age group typically has distinct housing needs and preferences. For instance, a higher proportion of young adults generally indicates a need for rental units and first-time homebuyer or first move-up opportunities, including condominiums, townhomes, and smaller single-family homes. Middle-aged residents are usually at the peak of their earning power and typically occupy larger homes. Senior residents are generally homeowners who have resided in their single-family homes for an extended period of time,

and may be in need of making home adaptation improvements to facilitate aging in place or transitioning to smaller living spaces and/or assisted living facilities. As a part of Program 9, the City is developing an aging in place permit policy that reduces the cost of building permits for age-qualified homeowners to make improvements to their home for universal design in order to support aging in place.

Table 6 summarizes the population's age distribution and percentage change from 2000 to 2020. From 2010 to 2020, the largest increases in population were in the age groups of 65-74 years (78.3 percent or 1,219 individuals) and 25-34 years (66.5 percent or 1,408 individuals). The largest decline was in the 15-24 years age group (-38.3 percent) followed by the 45-54 years age group (-27.1 percent). The 2000–2010 and 2010–2020 time periods both show a declining trend in the under 14 age groups in Pinole; over the course of the 20-year period, the 0-4 years age group decreased 19.8 percent, and the 5-14 years age group decreased by 31.2 percent. In comparison, the Countywide age group of 0-4 years decreased by 0.1 percent and the 5-14 age group increased by 1.3 percent.

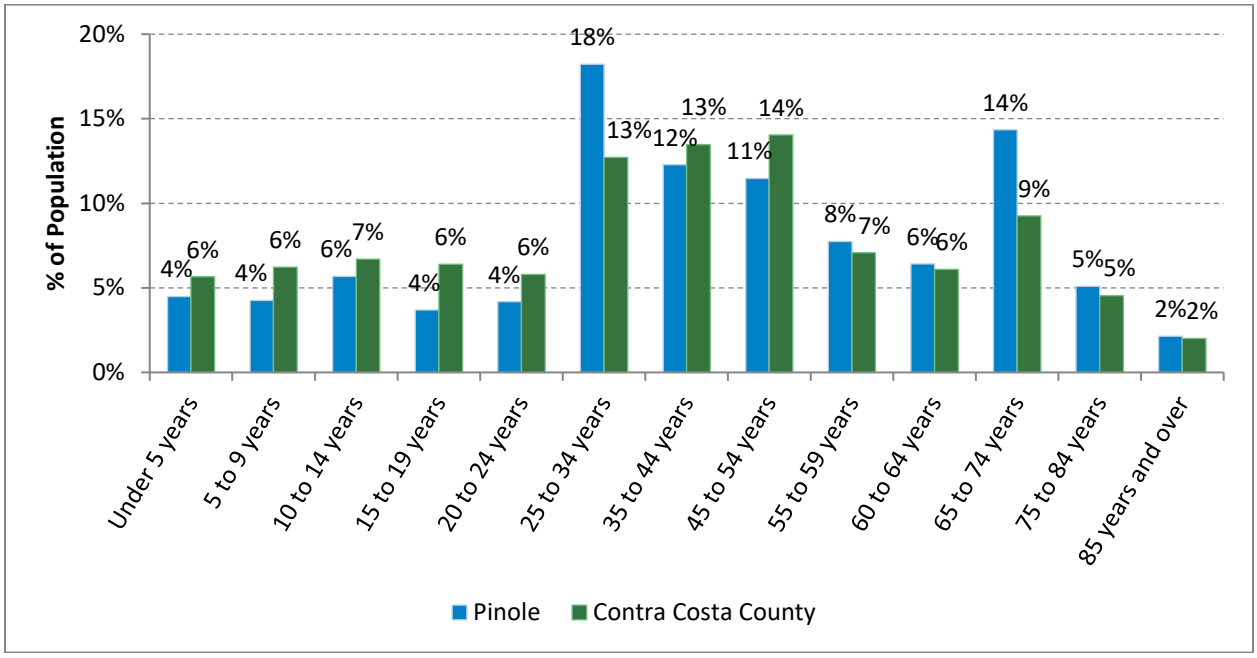
This data suggests that there is an increasing need for senior housing, which may take the form of age-restricted developments, smaller units, and housing with increased support services and proximity to healthcare. The growing 25–34-year-old age group suggests a need for first-time homeownership opportunities and larger housing units, as this group has a higher propensity to start families.

Table 6: Population Age Distribution, Pinole

Age Group	2000	2010	2020	Change 2000-2010		Change 2010-2020	
Age 0-4	1,083	933	869	-150	*-13.9%*	-64	*-6.9%*
Age 5-14	2,794	2,038	1,923	-756	*-27.1%*	-115	*-5.6%*
Age 15-24	2,367	2,467	1,523	100	*4.2%*	-944	*-38.3%*
Age 25-34	2,097	2,116	3,524	19	*0.9%*	1,408	*66.5%*
Age 35-44	3,298	2,209	2,375	-1,089	*-33.0%*	166	*7.5%*
Age 45-54	2,995	3,043	2,218	48	*1.6%*	-825	*-27.1%*
Age 55-64	1,949	2,736	2,737	787	*40.4%*	1	*0.0%*
Age 65-74	1,299	1,556	2,775	257	*19.8%*	1,219	*78.3%*
Age 75-84	855	859	986	4	*0.5%*	127	*14.8%*
Age 85+	302	433	413	131	*43.4%*	-20	*-4.6%*
Total	**19,039**	**18,390**	**19,343**	**-649**	***-3.4%***	**953**	***5.2%***

Source: US Census Bureau, Census 2000 SF1, Table P12; Census 2010 SF1, Table P12; American Community Survey 5-Year Data (2016-2020), Table DP05.

Figure 1: Population Age Distribution, 2020



Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table DP05.

Race and Ethnicity

An understanding of the racial and ethnic trends in a region contributes to an analysis of housing demand. According to 2020 ACS data, Non-White populations in Pinole occupy multifamily units at a higher rate than White populations.[4] Race and ethnicity characteristics also can be correlated with income levels. Table 7 summarizes the racial and ethnic composition of the population in 2010 and 2020. As of 2020, 24 percent of Pinole residents of any race were of Hispanic origin and 76 percent were Non-Hispanic. Of the Non-Hispanic population, 33 percent were white, and 25 percent were Asian or Pacific Islander and 11 percent were Black or African American. Between 2010 and 2020, the White Non-Hispanic population percentage declined by 5 percent, while the Asian or Pacific Islander population percentage increased by 2.6 percent, and the Black or African American population increased by 2.1 percent.

[4] US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table B25032A-E.

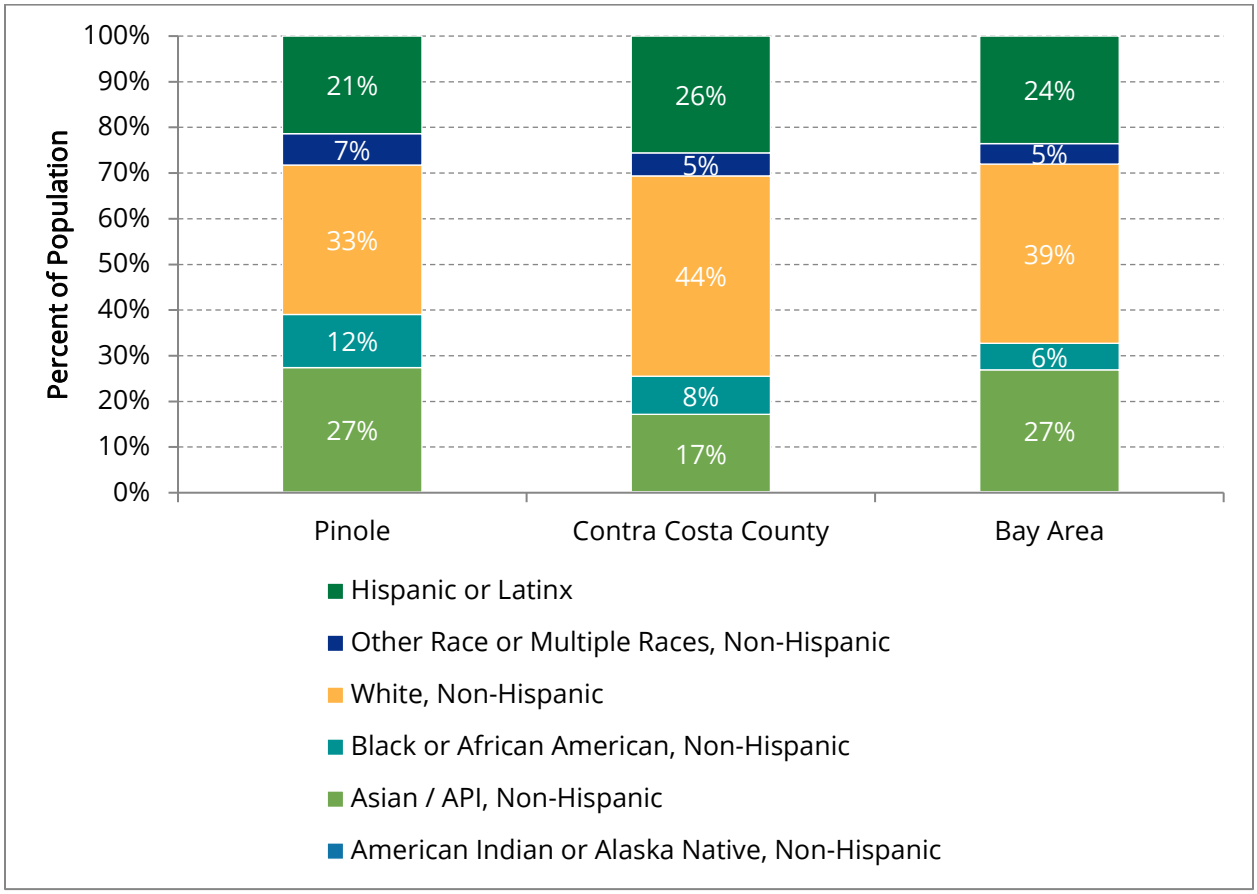
Table 7: Racial and Ethnic Composition, Pinole

Racial/Ethnic Group	2010		2020	
	Number	%	Number	%
Not Hispanic or Latino				
White	7,037	*38.1%*	6,362	*32.9%*
Black or African American	1,642	*8.9%*	2,122	*11.0%*
American Indian & Alaska Native	71	*0.4%*	25	*0.1%*
Asian	4,044	*21.9%*	4,769	*24.7%*
Native Hawaiian & Pacific Islander	50	*0.3%*	20	*0.1%*
Some other race alone	123	*0.7%*	136	*0.7%*
Two or more races	1,005	*5.4%*	1,202	*6.2%*
Subtotal	13,972	*75.7%*	14,636	*75.7%*
Hispanic or Latino				
White	2,060	*11.2%*	1,833	*9.5%*
Black or African American	29	*0.2%*	33	*0.2%*
American Indian & Alaska Native	36	*0.2%*	59	*0.3%*
Asian	35	*0.2%*	63	*0.3%*
Native Hawaiian & Pacific Islander	0	*0.0%*	0	*0.0%*
Some other race alone	1,938	*10.5%*	1,933	*10.0%*
Two or more races	391	*2.1%*	786	*4.1%*
Subtotal	4,489	*24.3%*	4,707	*24.3%*
Total	18,461	*100.0%*	19,343	*100.0%*

Source: US Census Bureau, American Community Survey 5-Year Data 2010 and 2020, Table B03002.

Figure 2 compares the racial and ethnic composition of Pinole compared to Contra Costa County and the Bay Area region. Pinole is a diverse community. The White, non-Hispanic population makes up a smaller subgroup of the population than the County or Bay Area (33 percent compared to 44 and 39 percent, respectively). In Pinole, a larger proportion (12 percent) of the population is Black or African American (8 percent in the County and 6 percent in the Bay Area). The Asian population is representative of the Bay Area, making up 27 percent of the total population, but higher than the County's 17 percent.

Figure 2: Regional Racial/Ethnic Composition, 2019



Source: US Census Bureau, American Community Survey 5-Year Data (2015-2019), Table B03002.

Employment Trends

Employment trends in a region also influence housing needs. The quality and/or pay of available employment can determine the need for various housing types and prices.

Table 8 shows the labor force and employment trends in Pinole in 2010, 2015, and 2020. The labor force has increased by over 1,000 from 2010 to 2020. The unemployment rate decreased by 1.8 percent, from 6.9 percent to 5.1 percent, between 2010 and 2020 and according to Local Area Unemployment Statistics (LAUS) it decreased by 1.5 percent from 2015-2020. In 2020, the unemployment rate for Pinole, at 5.1 percent was lower than the County's unemployment rate of 5.5 percent and according to LAUS it was within a tenth of a percent difference between Pinole (3.3 percent) and the East Bay Region (3.2 percent).

Table 8: Employment Trends, Pinole

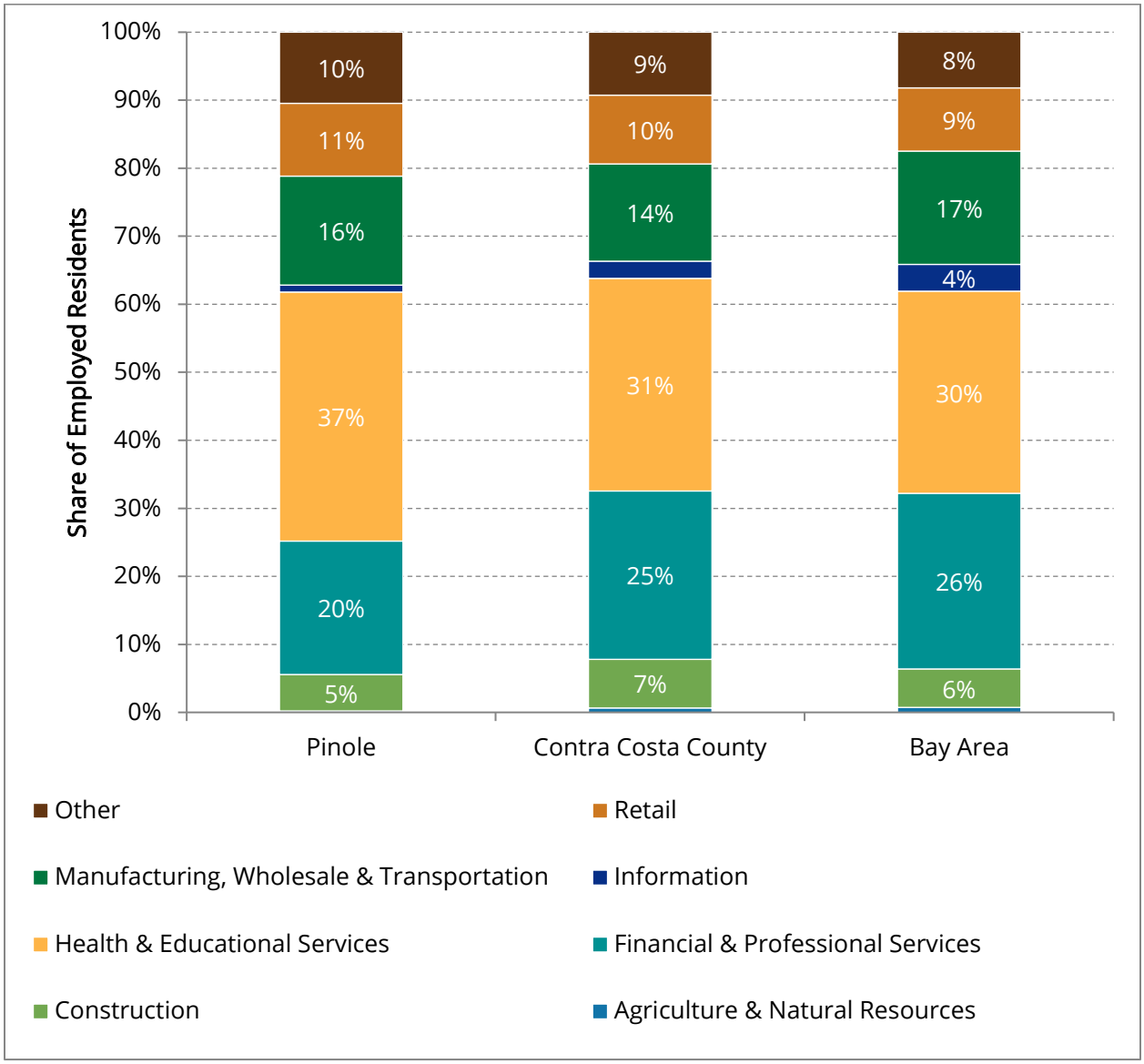
Year	Labor Force	Employment	Unemployment	Unemployment Rate	
2010	9,557	8,888	669	*6.9%*	-
2015	9,757	9,128	629	*6.4%*	*4.8%**
2020	10,595	10,051	544	*5.1%*	*3.3%**

Source: US Census Bureau, American Community Survey 5-Year Data 2010, 2015, and 2020, Table DP03.

*Source: CA EDD, Local Area Unemployment Statistics (LAUS) program; TNDG

Figure 3 displays the employment share by industry in Pinole, Contra Costa County, and the Bay Area region. The employment by industry breakdown when compared among the City, County, and Bay Area region has a few, small differences. Pinole has a smaller percentage of workers employed in the financial and professional services than Contra Costa County and the Bay Area. It has a higher percentage of workers employed in the health and educational services sector.

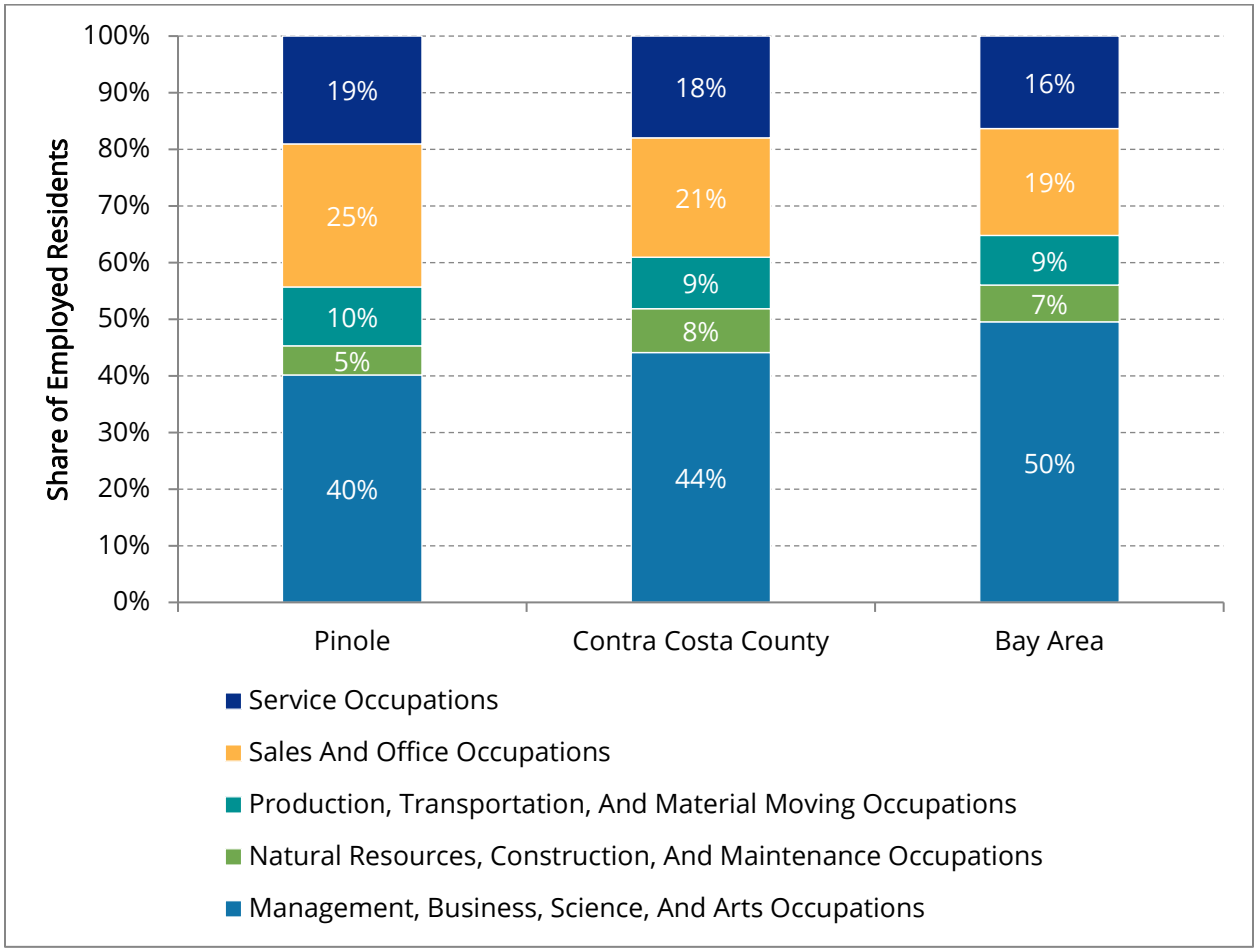
Figure 3: Regional Employment by Industry, 2019



Source: US Census Bureau, American Community Survey 5-Year Data (2015-2019), Table C24030.

Figure 4 displays the regional employment by occupation for Pinole, Contra Costa County, and the Bay Area. As with regional employment by industry, the makeup of employment by occupation is similar across the City, County, and Bay Area region. The largest difference is in the management, business, science, and arts occupations, in which Pinole has a smaller percentage of people employed (40 percent) than the County and Bay Area (44 and 50 percent, respectively). Pinole has a slightly higher percentage of people employed in the sales and office occupations (25 percent) than the County and Bay Area (21 and 19 percent, respectively). The comparison of regional employment by occupation and industry shows no specific housing need unique to Pinole as compared to the County and region.

Figure 4: Regional Employment by Occupation, 2019



Source: US Census Bureau, American Community Survey 5-Year Data (2015-2019), Table C24010.

Household Characteristics

This section describes Pinole's household characteristics, including data on the number of households, household size, and household income. The US Census Bureau defines a household as all persons living in a single housing unit, whether or not they are related. A household can be one person, a single family, multiple families, or any group of related or unrelated persons. The US Census Bureau defines a family as related persons living within a single housing unit.

As shown in Table 9, the number of households in Pinole decreased by 6.2 percent between 2000 and 2010. This was a significant deviation from the increase the County and State experienced during the same time period (6.9 and 7.7 percent, respectively). Between 2010 and 2020, Pinole's household growth has been on par with the state as a whole at just under 6 percent, but lower than the County's 8 percent growth. In 2020, the US Census Bureau reported 6,792 households in Pinole.

Table 9: Number of Households, 2000–2020

Area	2000	2010	2020	% Change 2000-2010	% Change 2010-2020
Pinole	6,837	6,411	6,792	*-6.2%*	*5.9%*
Contra Costa County	344,422	368,087	398,299	*6.9%*	*8.2%*
California	11,502,870	12,392,852	13,103,114	*7.7%*	*5.7%*

Source: US Census Bureau, Decennial Census 2000, Table DP1. American Community Survey 5-Year Data 2010 and 2020, Table S1101.

The average number of persons per household in Pinole was 2.83 in 2020, a slight decrease from 2.88 in 2010. In contrast, the County and State both saw an increase in household size since 2010. As shown in Table 10, the average number of persons per household in Pinole is now similar to the County's average but lower than the statewide average of 3.00. A larger household size may indicate a need for larger housing units and more bedrooms. It may also suggest a need for more affordable units to alleviate the pressure for individuals to cohabitate primarily because of high housing costs. These issues are further analyzed in the Overpayment and Overcrowding section of the needs assessment.

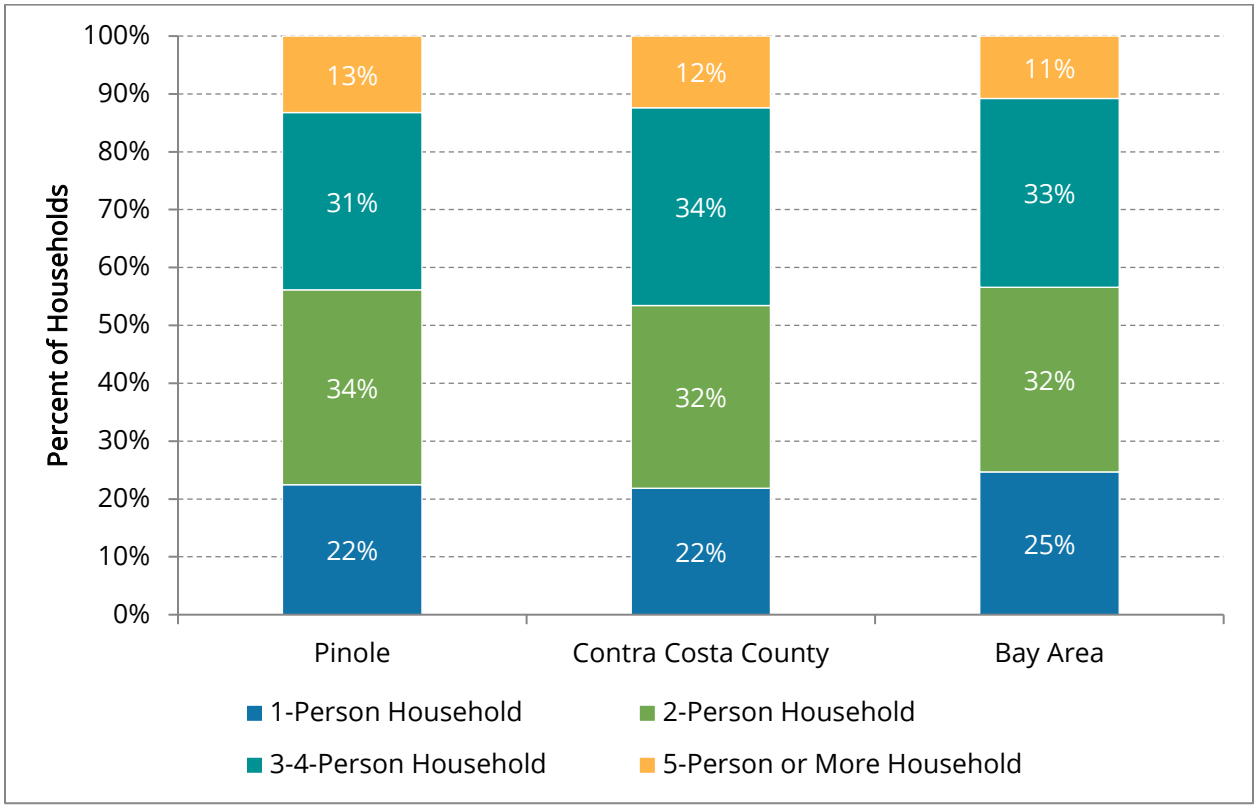
Table 10: Regional Average Household Size

Area	2000	2010	2020
Pinole	2.79	2.88	2.83
Contra Costa County	2.72	2.75	2.86
California	2.87	2.90	3.00

Source: US Census Bureau, Decennial Census 2000, Table DP1 SF2. American Community Survey 5-Year Data 2010 and 2020, Table S1101.

Figure 5 shows the household size distribution of Pinole, Contra Costa County, and the Bay Area region. The distribution is similar among all three geographic areas of analysis. Pinole has a slightly higher proportion of 2-person and 5-or-more-person households than the State or County and fewer 3-to-4-person households.

Figure 5: Households by Size, 2019



Source: US Census Bureau, American Community Survey 5-Year Data (2015-2019), Table B11016.

Table 11 shows trends in household size from 2010 through 2020. The largest change has been an increase in two-person households. In 2010 they made up about 30 percent of all households and now comprise nearly 39 percent of total households. This represents a 42 percent increase in two-person households over the 10-year period. Households with five or more persons increased over 20 percent from 2010 to 2020. One-person households decreased slightly and three- and four-person households declined substantially (17 percent and 25.5 percent, respectively, from 2010 to 2020).

Table 11: Household Size, Pinole, 2010–2020

Household Size	2010		2015		2020		2010-2020
	Units	% of Total	Units	% of Total	Units	% of Total	% Change
1-Person Household	1,307	*20.4%*	1,531	*22.7%*	1,298	*19.1%*	*-0.7%*
2-Person Household	1,854	*28.9%*	2,479	*36.8%*	2,636	*38.8%*	*42.2%*
3-Person Household	1,433	*22.4%*	1,124	*16.7%*	1,184	*17.4%*	*-17.4%*
4-Person Household	1,130	*17.6%*	817	*12.1%*	842	*12.4%*	*-25.5%*
5+ person household	687	*10.7%*	786	*11.7%*	832	*12.2%*	*21.1%*
Total	**6,411**	***100%***	**6,737**	***100%***	**6,792**	***100%***	***5.9%***

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), (2011-2015), and (2006-2010), Table B25009.

The decrease in three- and four-person households may partially be attributed to Pinole's recent trend toward smaller family size, as shown in Table 12. Average family size decreased from 3.27 in 2010 and 2015 to 3.19 in 2020. This contrasts with the County's increase in average family size from 3.28 to 3.34 over the same period. This correlates with Table 6, which shows that the 0-4-years age group decreased 19.8 percent and the 5-14 years age group decreased by 31.2 percent between 2000 and 2020. This data may indicate that as families grow, they are priced out of the housing market and choosing to live elsewhere, that Pinole families are choosing to have fewer children, or a combination of both.

Table 12: Family Household Characteristics, 2010–2020

Area	2010	2015	2020	Change 2010-2020
Pinole				
Families as % of All Households	74.3%	71.6%	74.6%	*+0.3%*
Average Family Size	3.27	3.27	3.19	*-0.08*
Contra Costa County				
Families as % of All Households	70.5%	71.0%	71.9%	*+1.4%*
Average Family Size	3.28	3.34	3.34	*+0.06*

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), (2011-2015), and (2006-2010), Table S1101.

Table 13 displays household size by tenure in Pinole. Just under 70 percent of housing units are owner-occupied citywide. When looking at tenure by household size, one-person households have a lower homeownership rate than other household sizes. Their lower household income may make it more challenging to finance a home.

Table 13: Household Size by Tenure, Pinole, 2020

	Owner Occupied				Renter-Occupied				Total			
	Contra Costa County		Pinole		Contra Costa County		Pinole		Contra Costa County		Pinole	
1-person household	12.9%	51,401	11.2%	758	8.9%	35,587	8.0%	540	21.8%	86,988	19.1%	1,298
2-person household	22.5%	89,816	29.0%	1969	9.0%	35,985	9.8%	667	31.6%	125,801	38.8%	2,636
3-person household	12.2%	48,703	10.8%	736	5.7%	22,746	6.6%	448	17.9%	71,449	17.4%	1,184
4-person household	11.3%	44,967	10.0%	681	5.1%	20,331	2.4%	161	16.4%	65,298	12.4%	842
5-person household	4.9%	19,568	5.5%	373	2.7%	10,598	2.0%	138	7.6%	30,166	7.5%	511
6-person household	1.9%	7,423	2.3%	157	1.0%	3,934	1.2%	83	2.9%	11,357	3.5%	240
7-or-more person household	1.1%	4,360	0.9%	58	0.7%	2,880	0.3%	23	1.8%	7,240	1.2%	81
Total:	**66.8%**	**266,238**	**69.7%**	**4732**	**33.2%**	**132,061**	**30.3%**	**2,060**	**100%**	**398,299**	**100%**	**6,792**

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table B25009.

The median household income for Pinole in 2020 was $104,904, which is within 1 percent of the median income for the County ($103,997). In the City, the median income for owner-occupied households ($112,342) was about $34,000 higher than the median income for renter-occupied households ($77,976). The County has a larger income disparity between owners and renters, with owner-occupied households earning over $56,000 more than renter-occupied households.

Table 14: Median Household Income by Tenure

Jurisdiction	2020 Median Income
Pinole	**$104,904**
Owner-Occupied Households	$112,342
Renter-Occupied Households	$77,976
Contra Costa County	**$103,997**
Owner-Occupied Households	$125,809
Renter-Occupied Households	$69,772

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table B25119.

The State of California uses five income categories to determine eligibility for housing programs. Table 15 shows the State-defined income ranges for each affordability category based on the Contra Costa County AMI of $125,600 for a household of four.

Table 15: Income Range by Affordability Level Based on State Area Median Income, 2021

Affordability Category	% of County Median	Income Range
Extremely Low Income	< 30%	≤ $ 41,100
Very Low Income	30%-50%	$41,101 - $ 68,500
Low Income	50%-80%	$68,501 - $ 109,600
Moderate Income	80%-120%	$109,601 -$ 150,700
Above Moderate Income	> 120%	> $150,700

Source: California Department of Housing and Community Development, Revised State Income Limits for 2021, Dec. 31, 2021.

Table 16 provides a breakdown of income level by tenure in Pinole, using the 2014–2018 CHAS data. Approximately 30 percent of households in Pinole are renter-occupied, compared to 34 percent of households in the County. In Pinole, about 55 percent of households are above the HUD area median family income, which is comparable to the County's 56.5 percent.

Table 16: Household Income Level by Tenure, 2018

Income Level	Owner Occupied	%	Renter Occupied	%	Total	%
Pinole						
Less than or equal to 30% of HAMFI[1]	295	*4.4%*	260	*3.9%*	555	*8.3%*
Greater than 30% but less than or equal to 50% of HAMFI	435	*6.5%*	380	*5.7%*	815	*12.2%*
Greater than 50% but less than or equal to 80% of HAMFI	510	*7.6%*	315	*4.7%*	825	*12.4%*
Greater than 80% but less than or equal to 100% of HAMFI	545	*8.2%*	265	*4.0%*	810	*12.1%*
Greater than 100% of HAMFI	2,860	*42.9%*	800	*12.0%*	3,660	*54.9%*
Total[2]	**4,650**	***69.7%***	**2,020**	***30.3%***	**6,670**	***100%***
Contra Costa County						
Less than or equal to 30% of HAMFI	16,810	*4.3%*	31,625	*8.1%*	48,435	*12.3%*
Greater than 30% but less than or equal to 50% of HAMFI	21,115	*5.4%*	20,335	*5.2%*	41,450	*10.6%*
Greater than 50% but less than or equal to 80% of HAMFI	26,450	*6.7%*	18,655	*4.8%*	45,105	*11.5%*
Greater than 80% but less than or equal to 100% of HAMFI	21,355	*5.4%*	14,480	*3.7%*	35,835	*9.1%*
Greater than 100% of HAMFI	171,795	*43.8%*	49,655	*12.7%*	221,450	*56.5%*
Total[2]	**257,530**	***65.7%***	**134,750**	***34.4%***	**392,275**	***100%***

Source: US Department of Housing and Urban Development (HUD), CHAS ACS tabulation, 2014-2018.
[1] HUD area median family income (HAMFI)
[2] Data presented in this table are based on special tabulations from sample Census data. The number of households in each category usually deviates slightly from the 100 percent total due to the need to extrapolate sample data out to total households. Interpretations of these data should focus on the proportion of households in need of assistance rather than on precise numbers.

Housing Stock Characteristics

This section discusses the housing stock in Pinole including change in housing units, unit size, unit type, age of housing stock, overpayment and overcrowding rates, and housing age and conditions. By analyzing past and current housing trends in the housing stock, future housing needs can be assessed.

Table 17 summarizes the number of housing units in the City and County from 2000 to 2020. In 2000, Pinole had 6,828 housing units. By 2010, the number of housing units increased to 7,158, a 4.8 percent increase. Between 2010 and 2020, the City is estimated to have approximately 52 fewer units (0.7 percent). There was no major loss of units or demolition without replacement during the Cycle, and the decrease is within the margin of error in the census data. In 2020, the Census reported 7,106 housing units in the City, which comprised 1.7 percent of the County's housing units. Pinole's share of the County's housing units slightly

decreased from 2000 to 2020, suggesting that housing unit production in the County is outpacing the production in Pinole.

Table 17: Housing Units, 2000–2020

Year	Pinole	*% Change*	County	*% Change*	Pinole as % of County
2000	6,828	-	354,577	-	1.9%
2010	7,158	*4.8%*	400,263	*12.9%*	1.8%
2020	7,106	*-0.7%*	423,342	*5.8%*	1.7%

Source: US Census Bureau, Decennial Census 2000, Table H001 SF1, 2010 and 2020, Table H1 Redistricting Data.

Table 18 summarizes the distribution of unit size by tenure in 2020. The most common unit size for renter-occupied units was two-bedroom units, followed by three-bedroom units. The most common size for owner-occupied units was three-bedroom units followed by four-bedrooms units. Owner-occupied units tended to be larger than renter-occupied units.

Table 18: Unit Size by Tenure, Pinole, 2020

Unit Size	Owner-Occupied		Renter-Occupied		Total Occupied Housing Units	
	Units	**%**	**Units**	**%**	**Units**	**%**
No bedroom/Studio	47	*1%*	127	*2%*	174	*3%*
1 bedroom	9	*0%*	319	*5%*	328	*5%*
2 bedrooms	541	*8%*	812	*12%*	1,353	*20%*
3 bedrooms	2,391	*35%*	568	*8%*	2,959	*44%*
4 bedrooms	1,603	*24%*	207	*3%*	1,810	*27%*
5 or more bedrooms	141	*2%*	27	*0%*	168	*2%*
Total	**4,732**	***70%***	**2,060**	***30%***	**6,792**	***100%***

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table B25042.

Table 19 summarizes Pinole's housing inventory by building type from 2010 to 2021. In 2021, single-family detached units comprised the largest percentage of housing stock, approximately 70 percent with 5,056 units. Multifamily housing made up 20 percent with 1,461 units. Compared to Contra Costa County, Pinole has a slightly larger share of the housing stock in the form of single-family detached housing units. Single-family detached homes make up 67 percent of the County's housing and multifamily housing accounts for 24 percent. Between 2010 and 2021, the distribution of building types has remained the same for both the County and the City.

Table 19: Housing Inventory by Unit Type

Building Type	2010		2021	
	Units	%	Units	%
Pinole				
Single-Family Home: Detached	5,050	*70.6%*	5,056	*70.5%*
Single-Family Home: Attached[1]	613	*8.6%*	616	*8.6%*
Multifamily[2]	1,459	*20.4%*	1,461	*20.4%*
Mobile Homes	36	*0.5%*	36	*0.5%*
Total	**7,158**	*100%*	**7,169**	*100%*
Contra Costa County				
Single-Family Home: Detached	266,693	*66.6%*	280,271	*66.6%*
Single-Family Home: Attached[1]	31,594	*7.9%*	32,162	*7.6%*
Multifamily[2]	94,602	*23.6%*	101,034	*24.0%*
Mobile Homes	7,374	*1.8%*	7,284	*1.7%*
Total	**400,263**	*100%*	**420,751**	*100%*

Source: State of California, Department of Finance, E-5 Population and Housing Estimates for Cities, Counties and the State — January 1, 2011-2021. Sacramento, California, May 2021.

[1] "Single-Family Home: Attached" is defined as a one-unit structure attached to another unit by a common wall; they are commonly referred to as a townhouse, half-plex, or row house. The shared wall or walls extend from the foundation to the roof with adjoining units to form a property line. Each unit has individual heating and plumbing systems.

[2] "Multifamily" refers to a structure containing two or more units and not classified as a "Single-Family Home: Attached" structure. The units in the structure share attic space and heating and plumbing systems.

Table 20 displays the US Census Bureau's estimates of the number of occupied housing units by building type and tenure in Pinole in 2020. Most of Pinole's housing stock is composed of owner-occupied, detached single-family homes (68.8 percent) followed by renter-occupied, detached single-family homes (16.4 percent). Analyzing the tenure split of the various housing building types reveals that 80.8 percent of detached single-family homes were owner occupied. Multifamily housing was predominantly renter occupied (79.2 percent).

Diversifying Pinole's housing stock to include more multifamily housing in both rental and ownership forms has the potential to provide more affordable housing options, given the construction efficiencies of the multifamily building type. Multifamily housing can also be beneficial for seniors, people with disabilities, and those who prefer less home maintenance or do not need the yard space characteristic of single-family properties.

Table 20: Housing Building Type by Tenure, Pinole, 2020

Building Type	Owner Occupied	*% of Total Units*	Renter Occupied	*% of Total Units*	Total Units
Detached Single-Family Homes	4,218	*68.8%*	1,003	*16.4%*	5,221
Attached Single-Family Homes	310	*5.1%*	92	*1.5%*	402
Multifamily Housing	35	*0.6%*	133	*2.2%*	168
Mobile Homes	68	*1.1%*	153	*2.5%*	221
Boat, RV, Van, etc.	34	*0.6%*	81	*1.3%*	115
Total	**4,665**	***76.1%***	**1,462**	***23.9%***	**6,127**

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table B25032.

Housing Age and Condition

The age of a housing unit is often an indicator of housing conditions. In general, housing that is 30 years old or older may need repairs based on the useful life of materials. Housing over 50 years old is considered aged and is more likely to need major repairs. Many federal and state programs use age of housing as one factor to determine housing needs and the availability of funds for housing and community development.

Table 21 summarizes the age of housing stock by tenure in 2020. Approximately 88.6 percent of all housing units in the City were built prior to 1990 (over 30 years ago), and 52.6 percent of units were built before 1970 (over 50 years ago). This distribution does not significantly vary based on tenure in Pinole. For example, 87.5 percent of the renter-occupied housing stock was built before 1990 and 53.3 percent of renter-occupied units were built prior to 1970. The City has seen very little rental family housing stock built within the past two decades; only 35 rental units have been built since 2000, compared to 197 owner-occupied units.

A windshield survey from code enforcement estimates that about 15 – 20 units in the City are in need of significant repair, under 1 percent of units in the City.

Table 21: Year Housing Built

Year Built	Owner-Occupied		Renter-Occupied		Total	
Built 2014 or later	20	*0.4%*	0	*0.0%*	20	*0.3%*
Built 2010 to 2013	18	*0.4%*	0	*0.0%*	18	*0.3%*
Built 2000 to 2009	159	*3.4%*	35	*1.7%*	194	*2.9%*
Built 1990 to 1999	323	*6.8%*	222	*10.8%*	545	*8.0%*
Built 1980 to 1989	738	*15.6%*	331	*16.1%*	1,069	*15.7%*
Built 1970 to 1979	999	*21.1%*	374	*18.2%*	1,373	*20.2%*
Built 1960 to 1969	1,317	*27.8%*	496	*24.1%*	1,813	*26.7%*
Built 1950 to 1959	982	*20.8%*	415	*20.1%*	1,397	*20.6%*
Built 1940 to 1949	95	*2.0%*	72	*3.5%*	167	*2.5%*
Built 1939 or earlier	81	*1.7%*	115	*5.6%*	196	*2.9%*
Total	**4,732**	*100%*	**2,060**	*100%*	**6,792**	*100%*

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table B25036.

Housing tenure by date of occupancy is listed in Table 22, which shows when households moved into their housing unit. About 30 percent of owner-occupied households have been in the same place of residence since 1989 or earlier (over 30 years). Given that most homeowners do not purchase their home until they are in their late twenties or thirties, this suggests that many of these homeowners would be nearing their senior years and living in housing that is more likely to require repairs due to aging materials. Program 10 includes the development of a policy to give low or no-cost building permits for age-qualified homeowners to make improvements to their home so that they are able to age in place.

Table 22: Housing Tenure by Date of Occupancy

Move In Year	Owner Occupied	% of Units	Renter Occupied	% of Units	Total	% of Units
Moved in 2019 or later	32	*0.7%*	138	*6.7%*	170	*2.5%*
Moved in 2015 to 2018	707	*14.9%*	804	*39.0%*	1,511	*22.2%*
Moved in 2010 to 2014	660	*13.9%*	767	*37.2%*	1,427	*21.0%*
Moved in 2000 to 2009	1,114	*23.5%*	183	*8.9%*	1,297	*19.1%*
Moved in 1990 to 1999	773	*16.3%*	118	*5.7%*	891	*13.1%*
Moved in 1989 or earlier	1,446	*30.6%*	50	*2.4%*	1,496	*22.0%*
Total	**4,732**	*100%*	**2,060**	*100%*	**6,792**	*100%*

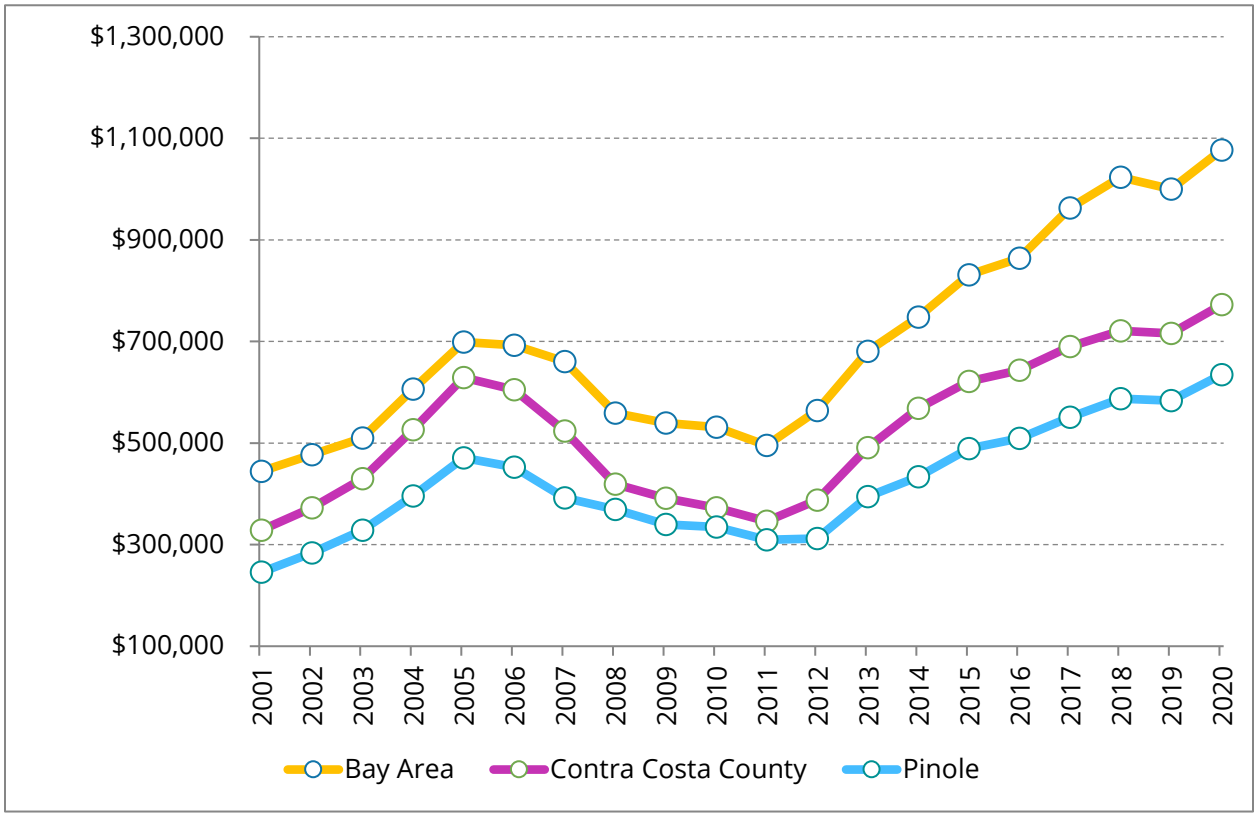
Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table B25038.

Median Home Sales Price

Figure 6 shows the change in home prices in Pinole, Contra Costa County, and the Bay Area region from December 2001 to December 2020. While each geography follows the same general trend over time, Pinole home prices are lower than the other two geographies. After

2005, the housing market slowdown affected home sale prices in Pinole. Between 2005 and 2011, the home sales prices in Pinole decreased by approximately 35 percent. Since then, the median sales prices for new and resale homes in Pinole have steadily increased, with a minor dip at the start of the COVID-19 pandemic in early 2020. Pinole home prices are significantly lower than the County. The median home price in December 2020 was $634,914, which was 18 percent ($137,499) lower than the County median of $772,413.

Figure 6: Regional Home Values, 2001–2020



Source: Zillow Home Value Index (ZHVI), December 2020 (as referenced in ABAG, 2023-2031 Housing Element Data Package, Table HSG-08.)
Notes: Zillow describes the ZHVI as a smoothed, seasonally adjusted measure of the typical home value and market changes across a given region and housing type. The ZHVI reflects the typical value for homes in the 35th to 65th percentile range. The ZHVI includes all owner-occupied housing units, including both single-family homes and condominiums.

Home values in Pinole increased by 17 percent between February 2021 and February 2022, from $665,000 to $779,000, as shown in Table 23. In February 2022, the Zillow home value index in Contra Costa County was $949,000, which represents a 22 percent increase since February 2021. In February 2022, the home values in Contra Costa County were 22 percent higher than those in Pinole. Since a household can typically qualify to purchase a home that is 2.5 to 3.0 times the annual income of that household, Pinole's median income of about

$105,000 implies that the median sales price should be between $262,500 and $315,000.[5] The home value index of approximately $780,000 indicates a high potential for housing cost burden in the City.

Table 23: Zillow Home Value Index, Neighboring Jurisdictions

Jurisdiction	February 2021	February 2022	% Change
El Cerrito	$1,040,000	$1,130,000	*9%*
Hercules	$851,000	$1,030,000	*21%*
Martinez	$674,000	$729,000	*8%*
Pinole	**$665,000**	**$779,000**	***17%***
Richmond	$693,000	$778,000	*12%*
San Pablo	$519,000	$605,000	*17%*
Contra Costa County	**$780,000**	**$949,000**	***22%***

Source: Zillow Home Value Index (ZHVI), February 2022, https://www.zillow.com/ca/home-values/, accessed March 31, 2022.

Notes: Zillow describes the ZHVI as a smoothed, seasonally adjusted measure of the typical home value and market changes across a given region and housing type. The ZHVI reflects the typical value for homes in the 35th to 65th percentile range. The ZHVI includes all owner-occupied housing units, including both single-family homes and condominiums.

Rental Prices

Table 24 and Figure 7 show median home rental prices in Pinole and Contra Costa County from 2010 to 2020. In 2020, the median rental price in Pinole was $1,997. This is a 30 percent increase from the 10-year low of $1,538 in 2015. Rental prices have been steadily increasing in the City since 2015. It should be noted that these median rental prices do not fully capture the housing market effects of the global COVID-19 pandemic. One of the economic impacts seen in California during the COVID-19 pandemic was a rapid increase in home prices, potentially caused by a rapid increase in remote work and higher demand for housing in suburban settings such as Pinole. As a result, rental values in the years following the onset of the pandemic are estimated to be significantly higher and continue to rise.

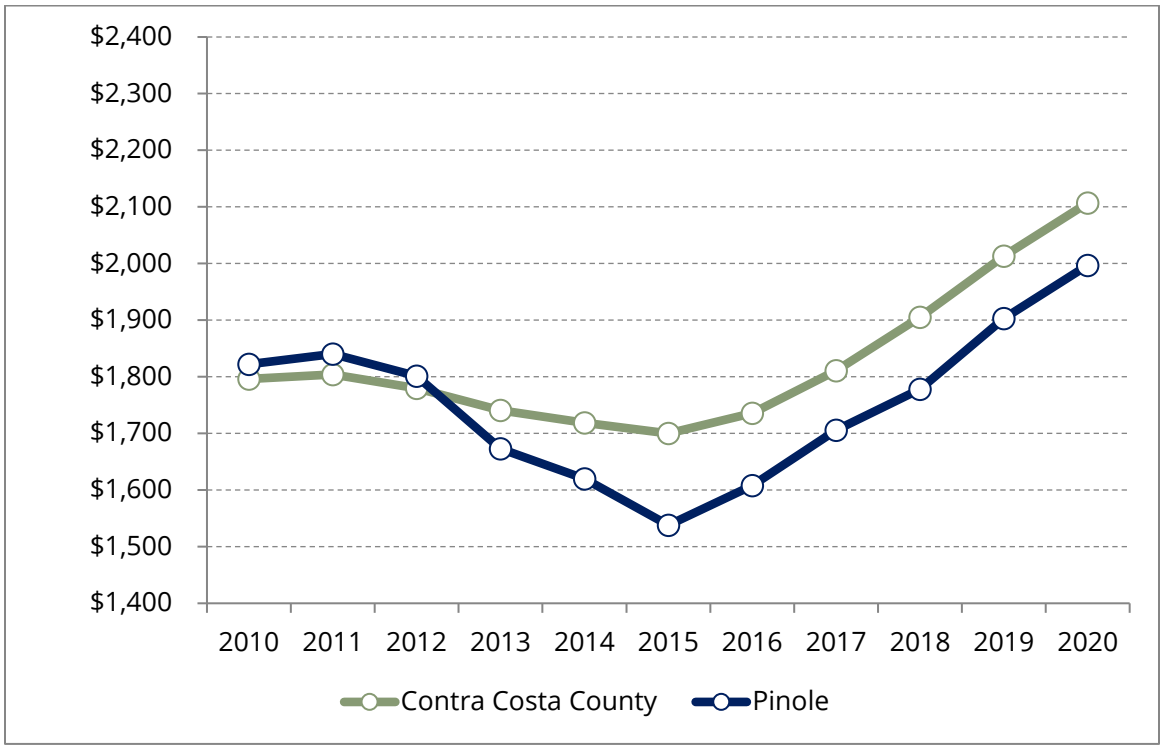
[5] Assumes 10% down payment; 5.00% mortgage interest rate; taxes, insurance, PMI and HOA account for 35% of housing costs; and uses 2022 Contra Costa County Housing Authority utility allowances.

Table 24: Median Monthly Rent, 2010–2020

Median Rental Prices	2010	2011	2012	2013	2014	2015	2016	2017	2018	2019	2020
Pinole	$1,822	$1,840	$1,801	$1,673	$1,620	$1,538	$1,608	$1,706	$1,778	$1,903	$1,997
Contra Costa County	$1,796	$1,804	$1,780	$1,741	$1,719	$1,700	$1,736	$1,811	$1,905	$2,013	$2,107

Source: American Community Survey 5-Year Estimates, Table B25105.

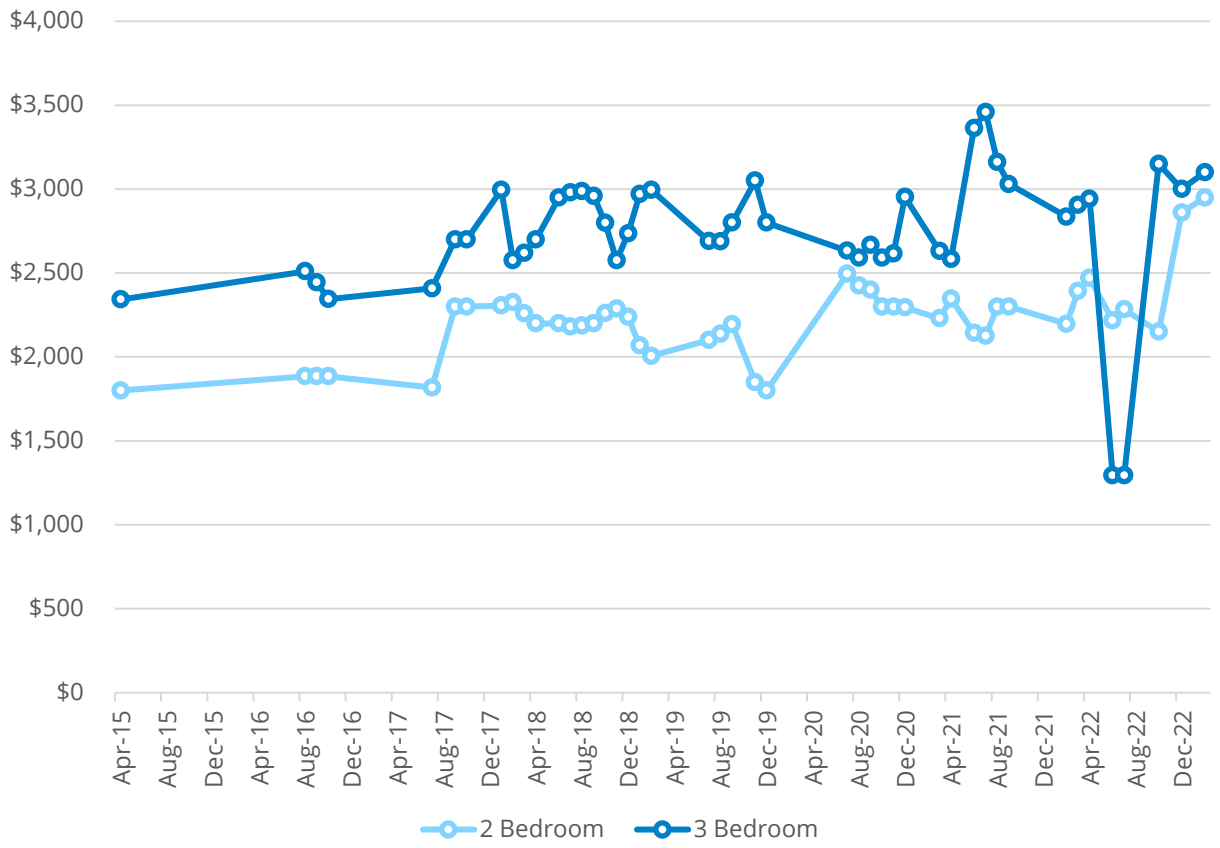
Figure 7: Median Rental Prices, 2010–2020



Source: US Census Bureau, American Community Survey 5-Year Estimates, Table B25105.

Additionally, Figure 8 shows the average rental prices for 2-bedroom and 3-bedroom apartments in Pinole from April 2015 to Dec 2022. As noted in Table 24 and Figure 7, the rental prices in Pinole have steadily increased. At certain points in 2017, 2020, and 2022 the average rental cost between 2- and 3-bedrooms within a few hundred dollars, and between April 2022 and August 2022, 3-bedroom were significantly less expensive.

Figure 8: Average Rent – 2 and 3 Bedroom



Source: zumper.com/rent-research/pinole-ca

Table 25 displays the affordable and fair market rents for low-income households in the Oakland-Fremont HUD Fair Market Rent Area, which includes Contra Costa County. Fair market rents are estimates of what a person moving today can expect to pay in gross rent (cost of shelter plus utilities) for a modestly priced rental home in a given area. The kind of home that can be rented for the fair market rent is in decent condition, but it is not luxury housing. The methodology used to calculate hourly wage and annual salary required to afford the fair market rents without spending greater than 30 percent of income on housing is provided by the National Low Income Housing Coalition.

Table 25: Affordable and Fair Market Rent for Low-Income Households

Unit Size	Hourly Wage Required[3]	Annual Salary Required[2]	Fair Market Rent[1]
Studio	$29.58	$61,520	$1,538
One Bedroom	$35.65	$74,160	$1,854
Two Bedroom	$43.73	$90,960	$2,274
Three Bedroom	$57.81	$120,240	$3,006
Four Bedroom	$68.81	$143,120	$3,578

Source: National Low Income Housing Coalition, Out of Reach 2021: California.

[1] HUD FY 2022 Fair Market Rent Documentation System for Oakland-Fremont, CA HUD Metro FMR Area. [2]Multiply the FMR by 12 to get yearly rental cost. Then divide by .3 to determine the total annual income needed to afford the FMR without spending more than 30 percent of income on housing. [3]Hourly wage assumes working 40 hours per week and 52 weeks per year.

Vacancy Rates

Vacancy rates are indicators of housing supply and demand that reflect the degree of housing choice that is available. Higher vacancy rates can induce downward price pressure, while low vacancy rates can influence upward price pressures. Low vacancy rates usually indicate high demand and/or low supply conditions in the housing market. Vacancy rates that are too low can force prices up, making it more difficult for lower- and moderate-income households to find housing. For rental units, a 7 to 8 percent vacancy rate is considered "healthy," and a vacancy rate of 2 to 3 percent is considered "healthy" for owner-occupied housing. In 2015, the vacancy rate in Pinole was 6.7 percent and decreased to 3.5 percent in 2020. Table 26 summarizes the number of occupied and vacant units in Pinole and Contra Costa County in 2015 and 2020.

Table 26: Occupancy Rates

Occupancy Status	Contra Costa County				Pinole			
	2015	**%**	**2020**	**%**	**2015**	**%**	**2020**	**%**
Occupied Housing Units	384,646	*95.0%*	407,029	*96.1%*	6,737	*93.3%*	6,860	*96.5%*
Vacant Housing Units	20,355	*5.0%*	16,313	*3.9%*	484	*6.7%*	246	*3.5%*
Total Housing Units	405,001	*100%*	423,342	*100%*	7,221	*100%*	7,106	*100%*

Source: US Census Bureau, American Community Survey 5-Year Data (2011-2015) and (2016-2020), Table B25002.

Overpayment and Overcrowding

Overpayment is defined as households paying more than 30 percent of their gross income on housing-related expenses, including rent or mortgage payments and utilities. Households paying greater than 30 percent of their gross income on housing-related expenses are considered to be cost burdened. Severe overpayment occurs when households pay 50 percent or more of their gross income for housing. Higher costs for housing may contribute to households having a limited ability to cover other everyday living expenses. The impact of

housing costs is more apparent for extremely low-, very low-, and low-income households, especially renter households.

Table 27 categorizes renters based on the percent of household income spent on rent. According to 2020 ACS data, 40.9 percent of households spend more than 30 percent of their income on rent. Over 20 percent of households spend more than 50 percent on rent.

Table 27: Gross Rent as a Percentage of Household Income, 2020

Percent of Household Income	Number of Households	Percent of Households
Less than 10 percent	44	*2.1%*
10 to 14.9 percent	171	*8.3%*
15 to 19.9 percent	307	*14.9%*
20 to 24.9 percent	223	*10.8%*
25 to 29.9 percent	155	*7.5%*
30 to 34.9 percent	159	*7.7%*
35 to 39.9 percent	322	*15.6%*
40 to 49.9 percent	101	*4.9%*
50 percent or more	420	*20.4%*
Not computed	158	*7.7%*
Total	2,060	*100.0%*

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table B25070.

Table 28 illustrates housing cost as a percentage of household income by tenure. It shows the number and percentage of households in Pinole and Contra Costa County that experience a cost burden and severe cost burden. According to 2014–2018 HUD CHAS data, in Pinole, 2,768 households (42 percent) experience some form of overpayment, with 849 households (13 percent) experiencing severe overpayment. This is a significant share of the community experiencing a housing cost burden and reflective of a larger regional issue. The County has an even larger share overpaying for housing; 52 percent of households experience some degree of overpayment, and 16 percent experience severe overpayment. Renters are disproportionately affected by overpayment in both Pinole and the County.

Table 28: Overpayment by Income Level and Tenure, 2018

Household Income Range	All Households		Households with Housing Cost Burden			
	Number[6]	%	Overpayment (>30% of income on rent)		Severe Overpayment (>50% of income on rent)	
Owner Households, Pinole						
<= 30% of HAMFI	295	*4.4%*	165	*3.5%*	155	*3.3%*
> 30% ≤ 50% of HAMFI	435	*6.5%*	230	*4.9%*	145	*3.1%*
> 50% ≤ 80% of HAMFI	510	*7.6%*	235	*5.1%*	135	*2.9%*
> 80% ≤ 100% of HAMFI	545	*8.2%*	164	*3.5%*	4	*0.1%*
> 100% of HAMFI	2,860	*42.9%*	155	*3.3%*	0	*0.0%*
Owner Subtotal	**4,650**	***69.7%***	**949**	***20.4%***	**439**	***9.4%***
Renter Households, Pinole						
<= 30% of HAMFI	260	*3.9%*	205	*10.1%*	165	*8.2%*
> 30% ≤ 50% of HAMFI	380	*5.7%*	310	*15.3%*	185	*9.2%*
> 50% ≤ 80% of HAMFI	315	*4.7%*	215	*10.6%*	50	*2.5%*
> 80% ≤ 100% of HAMFI	265	*4.0%*	160	*7.9%*	10	*0.5%*
> 100% of HAMFI	800	*12.0%*	80	*4.0%*	0	*0.0%*
Renter Subtotal	**2,020**	***30.3%***	**970**	***48.0%***	**410**	***20.3%***
Total (Owners & Renters)	**6,670**	***100%***	**1,919**	***28.8%***	**849**	***12.7%***
Owner Households, County						
<= 30% of HAMFI	16,810	*4.3%*	12,770	*5.0%*	10,425	*4.0%*
> 30% ≤ 50% of HAMFI	21,115	*5.4%*	13,195	*5.1%*	7,785	*3.0%*
> 50% ≤ 80% of HAMFI	26,450	*6.7%*	14,225	*5.5%*	5,860	*2.3%*
> 80% ≤ 100% of HAMFI	21,355	*5.4%*	8,770	*3.4%*	2,585	*1.0%*
> 100% of HAMFI	171,795	*43.8%*	25,585	*9.9%*	3,355	*1.3%*
Owner Subtotal	**257,530**	***65.7%***	**74,545**	***28.9%***	**30,010**	***11.7%***
Renter Households, County						
<=30% of HAMFI	31,625	*8.1%*	25,495	*18.9%*	21,515	*16.0%*
> 30% ≤ 50% of HAMFI	20,335	*5.2%*	17,070	*12.7%*	8,545	*6.3%*
> 50% ≤ 80% of HAMFI	18,655	*4.8%*	11,610	*8.6%*	2,415	*1.8%*
> 80% ≤ 100% of HAMFI	14,480	*3.7%*	5,680	*4.2%*	460	*0.3%*
> 100% of HAMFI	49,655	*12.7%*	5,200	*3.9%*	105	*0.1%*
Renter Subtotal	**134,750**	***34.4%***	**65,055**	***48.3%***	**33,040**	***24.5%***
Total (Owners & Renters)	**392,280**	***100%***	**139,600**	***35.6%***	**63,050**	***16.1%***

Source: 2014-2018 HUD CHAS data, Summary Level data for Contra Costa County and City of Pinole.

Lower-income households experience overpayment at a higher rate that moderate- and above moderate-income households in the City. Table 29 shows the rates of overpayment for lower-income households.

Table 29: Overpayment by Lower-Income Households

Household Income Range	All Households	Households with Housing Cost Burden			
		Overpayment (>30% of income on rent)		Severe Overpayment (>50% of income on rent)	
Owner Households, Pinole					
<= 30% of HAMFI	295	165	*55.9%*	155	*52.5%*
> 30% ≤ 50% of HAMFI	435	230	*52.9%*	145	*33.3%*
> 50% ≤ 80% of HAMFI	510	235	*46.1%*	135	*26.5%*
Lower-Income Owners Subtotal	*1,240*	*630*	*50.8%*	*435*	*35.1%*
Renter Households, Pinole					
<= 30% of HAMFI	260	205	*78.8%*	165	*63.5%*
> 30% ≤ 50% of HAMFI	380	310	*81.6%*	185	*48.7%*
> 50% ≤ 80% of HAMFI	315	215	*68.3%*	50	*15.9%*
Lower-Income Renters Subtotal	*955*	*730*	*76.4%*	*400*	*41.9%*
Total Lower-Income (Owners & Renters)	2,195	1,360	*62.0%*	835	*38.0%*
Owner Households, County					
<= 30% of HAMFI	16,810	12,770	*5.0%*	10,425	*4.0%*
> 30% ≤ 50% of HAMFI	21,115	13,195	*5.1%*	7,785	*3.0%*
> 50% ≤ 80% of HAMFI	26,450	14,225	*5.5%*	5,860	*2.3%*
Lower-Income Owners Subtotal	64,375	*40,190*	*62.4%*	*24,070*	*37.4%*
Renter Households, County					
<= 30% of HAMFI	31,625	25,495	*80.6%*	21,515	*68.0%*
> 30% ≤ 50% of HAMFI	20,335	17,070	*83.9%*	8,545	*42.0%*
> 50% ≤ 80% of HAMFI	18,655	11,610	*62.2%*	2,415	*12.9%*
Lower-Income Renters Subtotal	70,615	54,175	*76.7%*	32,475	*46.0%*

[6] Data presented in this table are based on special tabulations from sample Census data. The number of households in each category usually deviates slightly from the 100 percent total due to the need to extrapolate sample data out to total households. Interpretations of these data should focus on the proportion of households in need of assistance rather than on precise numbers.

Household Income Range	All Households	Households with Housing Cost Burden			
Total Lower-Income (Owners & Renters)	134,990	94,365	*69.9%*	56,545	*41.9%*

Source: 2014-2018 HUD CHAS data, Summary Level data for Contra Costa County and City of Pinole.

An overcrowded housing unit is defined by the US Census Bureau as a housing unit occupied by more than one person per room (excluding bathrooms, kitchen, hallway, and closet space). Occupancy by more than 1.5 persons per room constitutes severe overcrowding. Overcrowding can affect public facilities and services, reduce the quality of the physical environment, and create conditions that contribute to deterioration of the housing stock. Additionally, overcrowding can indicate that a community does not have an adequate supply of affordable housing and/or variety of suitable housing units to meet the needs of the community.

Table 30 summarizes overcrowding in Pinole by tenure. Approximately 247 households, roughly 3.6 percent of households, in Pinole were experiencing overcrowding in 2020. This includes 173 owners and 74 renter households. Overall, Pinole has a lower percent of households that are overcrowded compared to the County (3.6 percent and 5.0 percent respectively).

Table 30: Overcrowding by Tenure

	Owners		Renters		Total	
Persons per Room	**Overcrowded Households**	**% of Total**	**Overcrowded Households**	**% of Total**	**Overcrowded Households**	**% of Total**
Pinole						
1.01 to 1.50	156	*3.3%*	66	*3.2%*	222	*3.3%*
>1.50	17	*0.4%*	8	*0.4%*	25	*0.4%*
Total Overcrowded	**173**	***3.7%***	**74**	***3.6%***	**247**	***3.6%***
Contra Costa County						
1.01 to 1.50	4,483	*1.7%*	9,001	*6.8%*	13,484	*3.4%*
>1.50	1469	*0.6%*	4,974	*3.8%*	6,443	*1.6%*
Total Overcrowded	**5,952**	***2.2%***	**13,975**	***10.6%***	**19,927**	***5.0%***

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table B25014.

Preservation of Units at Risk of Conversion

Jurisdictions are required by state Housing Element Law to analyze government-assisted housing that is eligible to convert from low-income to market-rate housing over the next 10 years. State law identifies housing assistance as a rental subsidy, mortgage subsidy, or mortgage insurance to an assisted housing development. Government-assisted housing might convert to market-rate housing for a number of reasons, including expiring subsidies, mortgage repayments, or expiration of affordability restrictions.

Qualified Entities

Under Government Code Section 65863.11, owners of federally assisted projects must provide a "Notice of Opportunity to Submit an Offer to Purchase" to qualified entities that agree to preserve the long-term affordability if they should acquire at-risk projects at least one year before the sale or expiration of use restrictions. Qualified entities have first right of refusal for acquiring at-risk units. Qualified entities are nonprofit or for-profit organizations with the legal and managerial capacity to acquire and manage at-risk properties that agree to maintain the long-term affordability of projects. The following is a list of qualified entities from HCD for Contra Costa County and the surrounding area.

- ACLC Dewey Housing, Inc.
- Affordable Housing Associates
- Alameda County Allied Housing Program
- Anka Behavioral Health
- BRIDGE Housing Corporation
- Christian Church Homes
- Community Housing Development Corporation
- East Bay Asian Local Development Corporation
- East Bay Neighborhood Housing Services
- Eden Housing, Inc.
- Eskaton Properties, Inc.
- Foundation for Affordable Housing, Inc L + M Fund Management LLC
- Neighborhood Housing Services of the East Bay
- Northern California Land Trust, Inc.
- Pacific Community Services, Inc.
- Resources for Community Development
- ROEM Development Corporation
- Rubicon Programs, Inc.
- Rural California Housing Corporation
- Satellite Affordable Housing Associates

Inventory of At-Risk Units

There are no assisted units at risk of conversion in the City during the 6th Housing Element Cycle. There are 322 affordable housing units in Pinole that are subject to rent restrictions per covenants recorded on the property that the City monitors for compliance. The covenants on these properties expire between 2053 and 2099.

Currently, 37 rent-restricted housing units are at converting to market rate within 10 years of the beginning of the planning period (by 2033). Table 31 displays the units that will be converted during the next Cycle as well as units that were converted during the 5th Cycle.

Table 31: Units at Risk of Conversion or Converted During the 5th Cycle, Pinole

Project	Affordable Units	Assisted Units	Type of Government Assistance	Expiration of Affordability
Converting During 6th Cycle				
Westmont of Pinole (formerly Pinole Senior Village) *2850 Estates Avenue*	37 (as of 2022)	31 moderate income 6 very low income	RDA	2028
Subtotal	**37**	**-**	**-**	**-**
Converted During 5th Cycle				
885 Fifth Avenue	1	1 low income	RDA	2014
1965 San Pablo Avenue	1	1 low income	RDA	2014
1520 San Pablo Avenue	4	3 moderate income; 1 low income	RDA	2015
950 Appian Way	3	1 moderate income; 1 low income; 1 very low income	RDA	2015
2529 San Pablo Avenue	1	1 moderate income	RDA	2015
2548 San Pablo Avenue	4	4 moderate income	RDA	2017
815 San Pablo Avenue	2	2 moderate income	RDA	2017
2395 San Pablo Avenue (Pear Street Bistro)	4	3 moderate income; 1 very low income	RDA	2017
Bayside Apartments *530 Sunnyview Drive*	93	71 moderate income 22 very low income	RDA	2020
Total	**113**	**-**	**-**	**-**

Source: City of Pinole, 2022. *These units are accessory dwelling units that are not required to be rented, but if they are rented must be below market rent (less than 120% of AMI).

Of these rent-restricted units, 37 are beds for seniors at Westmont of Pinole, which was formerly Pinole Senior Village. In 2018, the owner purchased the land from the City and the facility from Pinole Senior Village. At that time, a new affordable housing covenant was recorded on the property, which permitted the owner to reduce the number of very low-income beds by one each year. Moderate-income beds are phased out at a maximum rate of 6 per year through 2023 and 5 per year from 2024 to 2028. There were originally 65 rent-restricted beds. Ten were restricted to very low-income households earning 50 percent or less of the AMI. Fifty-five beds were restricted to moderate-income households (110 percent or less of AMI). Table 32 shows the rent-restricted unit reduction schedule. By December 31, 2028, no rent-restricted bed will be required to be maintained at this facility. The owner

cannot raise the rent on any rent-restricted beds and may only reduce restricted beds by voluntary vacation of such bed by an eligible tenant.

Table 32: Westmont of Pinole Rent-Restricted Unit Reduction Schedule

Minimum Required Rent-Restricted Units by Year		
Income Level	Moderate Income	Very Low Income
2018	55	10
2019	49	9
2020	43	8
2021	37	7
2022	31	6
2023	25	5
2024	20	4
2025	15	3
2026	10	2
2027	5	1
2028	0	0

Source: Affordable Housing Covenant between Pinole Senior Living, L.P. and City of Pinole.

Replacement Costs

The California Tax Credit Allocation Committee's 2020 report provides estimates and data on the cost of building assisted units. It estimates that the average cost of an assisted unit in the State of California is $439,827.[7]

Table 33 summarizes the estimated replacement costs per unit using construction cost estimates from the UC Berkeley Terner Center and average unit sizes in the City of Pinole from Apartment Finder. Combined, they provide an estimate for replacement costs by unit size specific to Pinole. It ranges from $252,700 for a one-bedroom unit to $421,420 for a three-bedroom unit. These replacement cost estimates are on the low end because construction costs are from 2018 and have been steadily rising and have not been adjusted for inflation.

[7] California Tax Credit Allocation Committee, 2020 Annual Report. https://www.treasurer.ca.gov/CTCAC/2020/annualreport/2020-TCAC.pdf

Table 33: Replacement Cost

Unit Size	Construction Cost per Square Foot[1]	Average Square Foot/ Unit[2]	Replacement Cost per Unit
1 bedroom	$380	665	$252,700
2 bedroom	$380	899	$341,620
3 bedroom	$380	1,109	$421,420

Source: [1]UC Berkeley Terner Center, 2020, The Hard Costs of Construction: Recent Trends in Labor and Materials Costs for Apartment Buildings in California, 15. https://ternercenter.berkeley.edu/wp-content/uploads/2020/08/Hard_Construction_Costs_March_2020.pdf. [2]ApartmentFinder.com, https://www.apartmentfinder.com/California/Pinole-Apartments, accessed March 25, 2022.

A variety of programs exist to assist cities to acquire, replace, or subsidize at-risk affordable housing units. The following summarizes financial resources available to the City of Pinole.

Federal Programs

Community Development Block Grant (CDBG) – CDBG funds are awarded to cities on a formula basis for housing activities. The primary objective of the CDBG program is the development of viable communities through the provision of decent housing, a suitable living environment, and economic opportunity for principally low- and moderate-income persons. CDBG funds can be used for housing acquisition, rehabilitation, economic development, and public services.

HOME Investment Partnership – HOME is a flexible grant program and funds are awarded on a formula basis for housing activities. HOME considers local market conditions, inadequate housing, poverty, and housing production costs. HOME funding is provided to jurisdictions to assist rental housing or homeownership through acquisition, construction, reconstruction, and/or rehabilitation of affordablehousing.

Section 8 Housing Choice Voucher Rental Assistance Program – This program provides rental assistance payments to owners of private, market-rate units on behalf of very low-income tenants.

Section 811/202 Program – Nonprofit and consumer cooperatives can receive no-interest capital advances from HUD under the Section 202 program for the construction of very low-income rental housing for seniors and persons with disabilities. These funds can be used in conjunction with Section811, which can be used to develop group homes, independent living facilities, and immediate care facilities. Eligible activities include acquisition, rehabilitation, new construction, and rental assistance.

State Programs

California Housing Finance Agency (CalHFA) Multifamily Programs – CalHFA's Multifamily Programs provide permanent financing for the acquisition, rehabilitation, and preservation or new construction ofrental housing that includes affordable rents for low- and moderate-income families and individuals. Oneof the programs is the Preservation

Acquisition Finance Program, which is designed to facilitate the acquisition of at-risk affordable housing developments and provide low-cost funding to preserve affordability.

Low-Income Housing Tax Credit (LIHTC) – This program provides tax credits to individuals and corporations that invest in low-income rental housing. The LIHTC program creates affordable housing opportunities when the developer of a project "sells" the tax credits to an investor(s) who contributes equity to the development in exchange for an ownership position in the project.

California Community Reinvestment Corporation – The California Community Reinvestment Corporation is a multifamily affordable housing lender whose mission is to increase the availability of affordable housing for low-income families, seniors, and residents with special needs by facilitating private capital flow from its investors for debt and equity to developers of affordable housing. Eligible activities include new construction, rehabilitation, and acquisition of properties.

Monitoring of Affordable Units

The City continually monitors the list of affordable housing units and their eligibility to convert to market-rate housing. Former RDA assets, and revenues generated from those assets, are maintained in a Low- and Moderate-Income Housing Asset Fund that continues to be used to administer and monitor compliance with affordable housing and loan agreements and provide for affordable housing development.

The City conducts annual compliance monitoring on over 300 affordable units to ensure property owners and management are complying with affordable income and rent restrictions required by City agreements. Properties are affordable to very low to moderate income households. The City expects to monitor over 400 affordable units as new affordable units are constructed over the next five years. The majority of affordable units are located in rental properties. The City monitors two ownership units to ensure the property owners continue living at their properties as their primary residence or sell their units to income qualified buyers. Program 18 is included to continue to monitor and preserve at-risk housing in the City.

Quantified Objectives

Housing Element law requires that cities establish a maximum number of units that can be converted over the planning period. During the planning period, zero rent-restricted housing units are at risk of being converted to market rate.

Special Housing Needs

Due to special needs or circumstances related to income, family or household characteristics, age, and disability, certain groups have historically had greater difficulties finding quality affordable housing. They also often have a higher prevalence of special

circumstances leading to housing problems such as lower incomes, higher housing cost burdens, and overcrowding. State law therefore requires evaluation of housing needs of these groups, in particular senior households, single-parent households, persons with physical, mental and developmental disabilities, large households, farmworkers, and homeless individuals. Table 34 provides an overview of the presence of special needs populations within the City.

Table 34: Overview of Special Needs Groups, Pinole

Special Needs Group	# of People	% of Population
Persons with a Disability	2,389	*12%*
Persons Experiencing Homelessness	7	*<1%*
Farmworkers	29	*<1%*
Special Needs Group	**# of Households**	**% of Households**
Householders Age 65+	2,354	*35%*
Large Households	832	*12%*
Female-Headed Households	1,050	*16%*
Extremely Low-Income Households	555	*8%*

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020) and HUD CHAS Data (2014-2018).

Table 35 shows the services currently providing support to the special needs populations in Pinole.

Table 35: Inventory of Local Services for Special Needs Populations

Services/Programs	Details	Population Served
Pinole Senior Center	Provides social, educational, recreational, health, nutritional, and consumer services and activities. Serves as a cooling center in extreme temperatures. Membership sponsorship program available for eligible seniors in need of financial assistance.	Elderly, Lower Income Elderly
Pinole Grove Senior Apartments	Offers 70 affordable, one- and two-bedroom senior apartments with senior-targeted amenities.	Lower Income Elderly
Westmont of Pinole	Offers Independent Living, Assisted Living, and Memory Care services.	Elderly,
Visiting Angels Pinole	Offers comprehensive home care for seniors based on their individual needs and preferences in order to help older adults live in their own homes. Services include respite care, personal care, dementia care, companion care, home care services and palliative care.	Elderly, Elderly with disabilities
St. Clare'**s** Home for Seniors	Offers 12 senior living and assisted living units.	Elderly, Lower Income Elderly

Services/Programs	Details	Population Served
Tara Hills Care Home	Community care facility for the elderly	Elderly, Lower Income Elderly
Granada Home Care I and II	Two 6-bed residential care facilities for seniors	Elderly, Lower Income Elderly
Cole Vocational Services Pinole	Offers structured, activity-based adult day programs that give individuals the chance to achieve goals, become independent and be active in the community.	Persons with disabilities (including developmental disabilities)
Pathway to Choices	Provides independent living services, supported living services, adult day program, behavior management, and competency training to people with developmental disabilities.	Persons with disabilities (including developmental disabilities)
811 San Pablo Affordable Housing	Approved 33-unit affordable housing project to low and very-low income households on City land.	Lower income
Vista Woods Affordable Housing	Approved 179 unit affordable housing project for seniors	Lower Income Seniors

Source: City of Pinole.

Farmworkers

Traditionally, agricultural workers are defined as persons whose primary incomes are earned through permanent or seasonal agricultural labor. The 2016–2020 ACS found that 29 Pinole residents were employed in the agriculture, forestry, fishing and hunting, and mining industry. This is less than one percent of all employed individuals in the City over 16 years old.

Table 36 shows the 2017 estimates of farmworkers for Contra Costa County, as reported by the US Department of Agriculture's Census of Agriculture. As indicated, there were an estimated 1,310 farmworkers in the County working on 161 farms. The 2007 Census of Agriculture counted 1,873 farmworkers in the County. This yields a 30 percent decrease of farmworkers in the County from 2007 to 2017.

Table 36: Number of Farmworkers and Farms, Contra Costa County, 2017

Farm/Worker Type	Farmworkers	Farms
Farm Size		
Farms with less than 10 employees	343	126
Farms with 10 or more employees	967	35
Total	**1,310**	**161**
Length of Employment of Workers		
Workers working 150 days or more	450	-
Workers working less than 150 days	860	-

Source: 2017 Census of Agriculture, Table 7, Contra Costa County, https://www.nass.usda.gov/Quick_Stats/CDQT/chapter/2/table/7/state/CA/county/013/year/2017.

Large Households

State housing law defines large households as those consisting of five or more members. Large households are considered a special needs group because it may be difficult for these households to secure adequately sized, affordable housing. In order to balance affordable housing along with other financial responsibilities, large households tend to reside in smaller dwelling units, which may lead to overcrowding.

In 2020, approximately 12 percent (832) of Pinole's 6,792 households were considered large households. This is a similar proportion as seen countywide. Of those large households, 71 percent (588) lived in owner-occupied units, while 29 percent (244) lived in rental housing. Between 2010 and 2020, the percentage of households in the City that are large households remained unchanged as did the distribution between renters and homeowners of large households. In 2010, approximately 12 percent (833) of Pinole's 6,775 households were considered large households. Of those large households, 71 percent (595) lived in owner-occupied units, while 29 percent (238) lived in rental housing.

In Pinole, the proportion of large households that are owners (71 percent) is comparable to the general proportion of ownership households citywide. There is a higher proportion of large households owning their home compared to Contra Costa County (64 percent).

Table 37: Large Households by Tenure, 2020

Household Type (Size)	Owner-Occupied Households		Renter-Occupied Households		Total Households	
Pinole						
Five-person Household	373	*73%*	138	*27%*	**511**	*8%*
Six-person Household	157	*65%*	83	*35%*	**240**	*4%*
Seven-or-more-person Household	58	*72%*	23	*28%*	**81**	*1%*
Total Large Households	588	***71%***	244	***29%***	**832**	*12%*
Total of All Households	4,732	***70%***	2,060	***30%***	**6,792**	***100%***
Contra Costa County						
Five-person Household	19,568	*65%*	10,598	*35%*	**30,166**	*8%*
Six-person Household	7,423	*65%*	3,934	*35%*	**11,357**	*3%*
Seven-or-more-person Household	4,360	*60%*	2,880	*40%*	**7,240**	*2%*
Total Large Households	31,351	***64%***	17,412	***36%***	**48,763**	*12%*
Total of All Households	266,238	***67%***	132,061	***33%***	**398,299**	***100%***

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table B25009.

Large households tend to have more difficulty purchasing housing due to the financial constraints of supporting a larger household and because there is limited housing stock of adequate size. Additionally, rental units with three or more bedrooms are not common, and large affordable rental units are even less common. This can lead to overcrowded housing conditions.

Table 38 provides a summary of housing problems experienced by large households in Pinole by tenure. As previously noted, the types of housing problems include overcrowding, overpayment (cost burden), and households lacking kitchen or plumbing facilities. CHAS 2014–2018 data indicates that 55 percent of large households experience at least one of the housing problems. Analyzing by tenure, 81 percent of large renter households and 43 percent of large owner households have at least one form of housing problem.

As of 2020, 27 percent of the City's housing stock has four or more bedrooms (refer to Table 18). This equates to 1,810 housing units with four or more bedrooms to serve the estimated 832 large households that require at least four bedrooms to avoid over-crowded conditions. However, these figures do not consider whether it is actually large households who occupy these housing units. One must also consider whether these housing units with four or more bedrooms are affordable to large households. Table 38 shows that 34 percent of large households experience a cost burden and 6 percent experience a severe cost burden. Large households that rent have over twice the rate of overpayment (52 percent) than large homeowner households (24 percent).

Table 38: Large Households by Housing Problems and Tenure, Pinole, 2018

Household Type	Large-Household Renters		Large-Household Owners		Total Large Households	
Total Households	270		580		850	
Large Households with Any Housing Problem[1]	81%	220	43%	250	55%	470
Large Households with Cost Burden (> 30%)[2]	52%	125	24%	100	34%	225
Large Households with Severe Cost Burden (> 50%)[2]	4%	10	7%	30	6%	40

Source: HUD Comprehensive Housing Affordability Strategy (CHAS), 2014-2018 data, Table 4 and Table 7.

Notes: Data presented in this table are based on special tabulations from sample Census data. The number of households in each category usually deviates slightly from the 100 percent total due to the need to extrapolate sample data out to total households. Interpretations of these data should focus on the proportion of households in need of assistance rather than on precise numbers.

[1]The four housing problems are: incomplete kitchen facilities, incomplete plumbing facilities, more than 1 person per room, and cost burden greater than 30 percent.

[2]Cost burden occurs when housing costs exceed 30 percent of household income. For renters, housing cost is gross rent (contract rent plus utilities). For owners, housing cost is "select monthly owner costs," which includes mortgage payment, utilities, association fees, insurance, and real estate taxes. Severe cost burden occurs when housing costs exceed 50 percent of household income.

Female-Headed Households

Female-headed households who do not have a spouse present are a special needs group because they tend to experience comparatively low rates of homeownership, lower incomes, and high poverty rates. Female-headed households are often further characterized by whether they have children in the household. Table 39 shows the number of female-headed households by tenure and presence of children. In 2020, 15.5 percent of households in Pinole were female-headed households. This is higher than the County where female-headed households comprise 12.0 percent of all households. Female-headed households in Pinole have a higher rate of homeownership than those in the County (54 percent and 49 percent, respectively). However, female-headed households with children have lower homeownership rates than the County; only 9 percent of female-headed households with children own their home in Pinole compared to 15 percent in the County. Of the 1,050 female-headed households in Pinole, 300 had children under 18 and 750 had no children present.

Table 39: Female-Headed Households by Tenure in Pinole, 2020

Household Type	Owner- Occupied Households		Renter- Occupied Households		Total	% of Total Households
Total Households	4,732		2,060		6,792	
Female householder, no spouse present, *with* children under 18	93	*2.0%*	207	*10.0%*	300	*4.4%*
Female householder, no spouse present, *without* children	469	*9.9%*	281	*13.6%*	750	*11.0%*
Total Female-Headed Households	**562**	***11.9%***	**488**	***23.7%***	**1,050**	***15.5%***

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table B25115.

In Pinole, only 1 percent of female-headed households (11 households) are below the poverty line. All of those 11 households have children under age 18 present. All female-headed households without children are above the poverty line. About 3 percent of all female-headed households with children under 18 are below the poverty line. This is significantly lower than the female-headed household poverty rate in Contra Costa County (17 percent for those female-headed households without children and 25 percent for those with children). [8]

Table 40: Female-Headed Households by Poverty Status in Pinole, 2020

Household Type	Income Below Poverty Level		Income Above Poverty Level		Total	% of Total Households
Total Households	308		6,484		6,792	
Female householder, no spouse present, *with* children under 18	11	*3.6%*	1,039	*16.0%*	1,050	*15.5%*
Female householder, no spouse present, *without* children	159	*51.6%*	887	*13.7%*	1,046	*15.4%*
Total Female-Headed Households	**170**	***55.2%***	**1,926**	***29.7%***	**2,096**	***30.9%***

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table B17017.

Homelessness

Data on homelessness in Contra Costa County is based on the 2020 Point-in-Time Count (PITC) information provided to HUD by the Richmond/Contra Costa County Continuums of

[8] US Census Bureau, American Community Survey 5-year Data (2016–2020), Table B17010.

Care (CoCs) in the application for CoC Homeless Assistance Programs. The PIT Count provides a count of sheltered and unsheltered homeless persons on a single night during the last ten days in January. A follow-up survey sampling of unsheltered and sheltered individuals is conducted two weeks following the count. Per the Contra Costa Health Services website, there were significant inconsistencies discovered in the data of the 2022 PITC and Contra Costa Health Services has been unable to verify the accuracy of the data.[9] As such, this element is utilizing the most recent PITC data available from Contra Costa Health, which is the 2020 PITC. The 2023 PITC Annual Report has not yet been released at the time of the writing of this element.

As shown in Table 41, Contra Costa County had an estimated homeless count of 2,295 persons (668 are sheltered and 1,627 unsheltered). Of these homeless, 319 people (13.9 percent) were in households with adults and children under 18.

Table 41: Homelessness by Household Type and Shelter Status, Contra Costa County

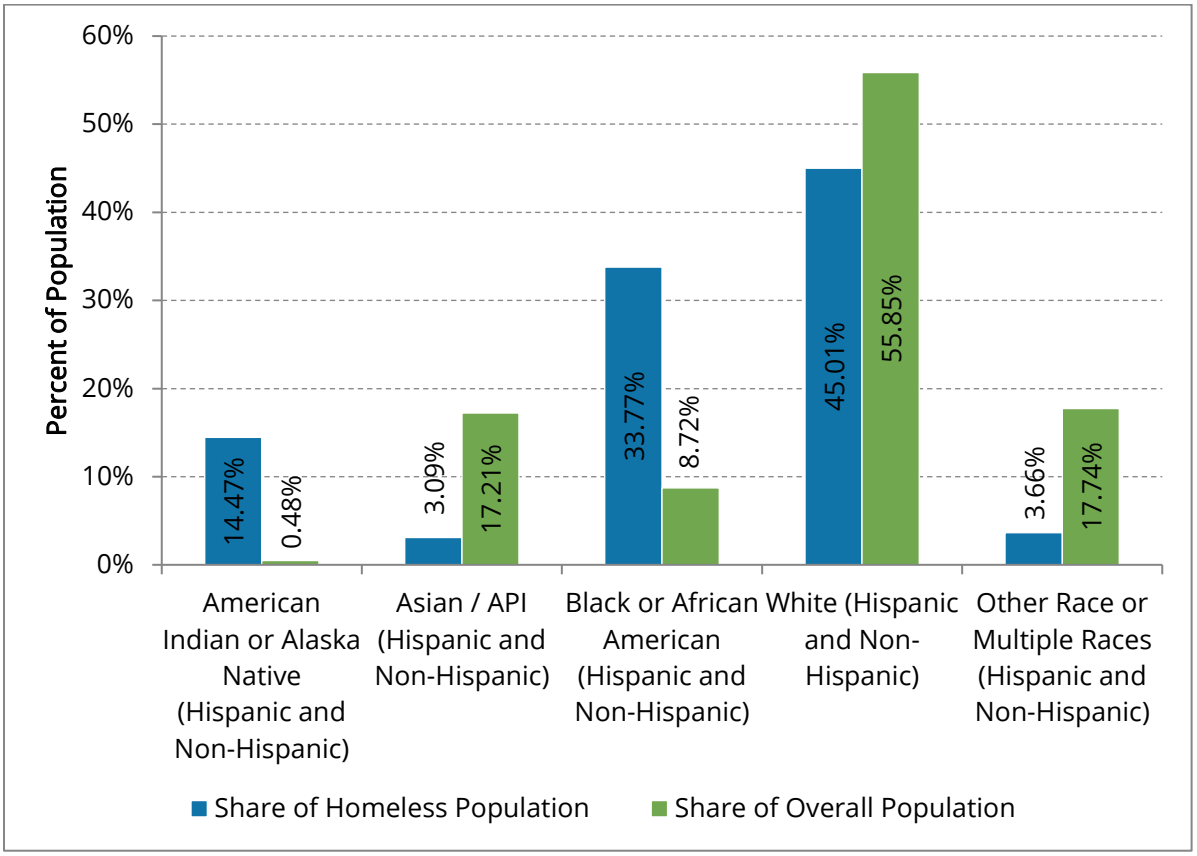
Variable	People in Households Composed Solely of Children Under 18	People in Households with Adults and Children	People in Households without Children Under 18
Sheltered - Emergency Shelter	0	159	359
Sheltered - Transitional Housing	0	32	118
Unsheltered	0	128	1,499

Source: US Department of Housing and Urban Development, Continuum of Care Homeless Populations and Subpopulations Reports (2019)

Figure 9 analyzes the race of the homeless population and shows that the White population makes up the greatest share of the homeless population (45 percent) followed by Black people (34 percent). The Black or African American population and American Indian or Alaskan Native population are disproportionately affected by homelessness, as these groups make up a relatively large share of the homeless population despite making up a small share of the overall population.

[9] Contra Costa Health Services. Data Reports, Point in Time Count. https://cchealth.org/h3/coc/reports.php#PIT

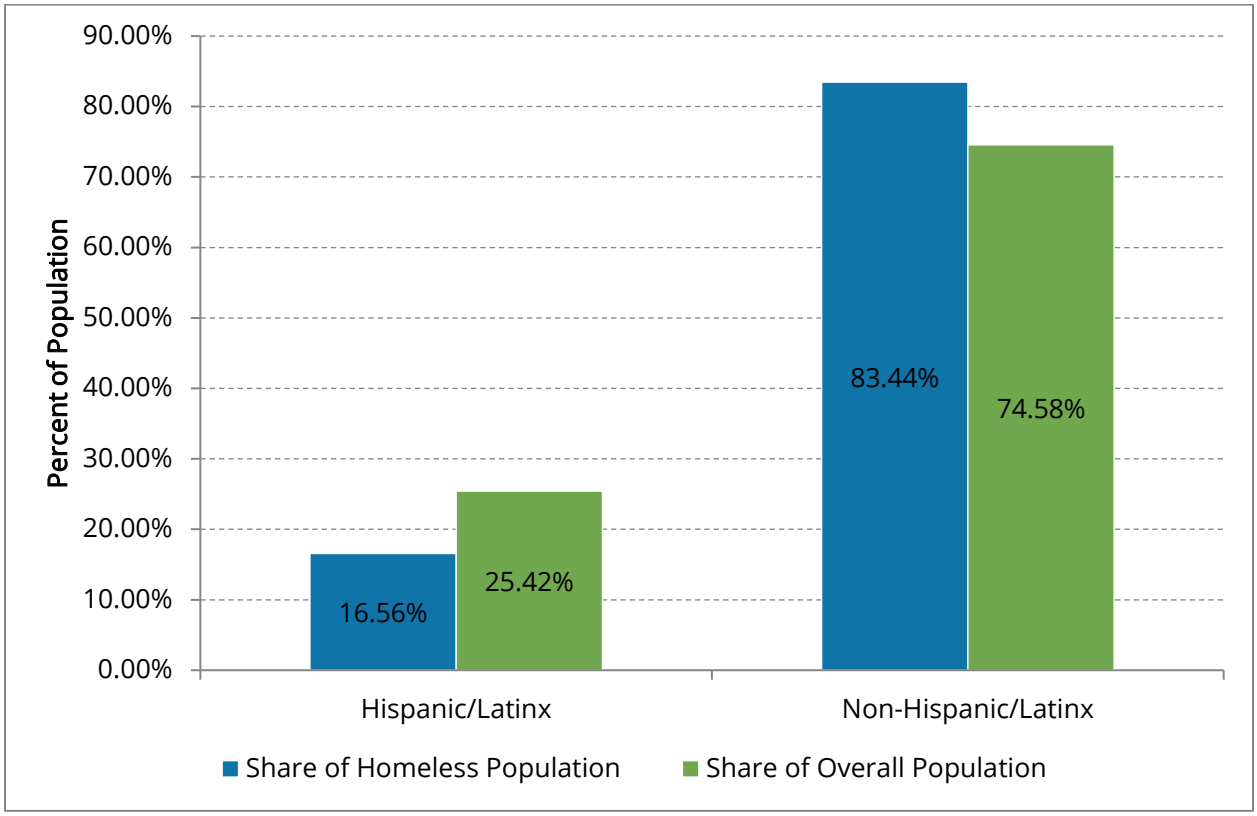
Figure 9: Racial Group Share of General and Homeless, Contra Costa County, 2019



Source: US Department of Housing and Urban Development, Continuum of Care Homeless Populations and Subpopulations Reports (2019); US Census Bureau, American Community Survey 5-Year Data (2015-2019), Table B01001(A-I).

Figure 10 shows that 16.6 percent of the homeless population is Hispanic/Latinx.

Figure 10: Latinx Share of Homeless Populations, Contra Costa County, 2019



Source: US Department of Housing and Urban Development, Continuum of Care Homeless Populations and Subpopulations Reports (2019); US Census Bureau, American Community Survey 5-Year Data (2015-2019), Table B01001(A-I).

Table 42 shows some of the unique challenges that persons experiencing homelessness in Contra Costa face. Of the 2,295 homeless persons counted, 22.6 percent suffer from severe mental illness, 21.5 percent contend with chronic substance abuse, 5 percent are veterans, 5 percent are victims of domestic violence, and 0.4 percent live with HIV/AIDS.

Table 42: Characteristics of Persons Experiencing Homelessness, Contra Costa County, 2019

Variable	Chronic Substance Abuse	HIV/AIDS	Severely Mentally Ill	Veterans	Victims of Domestic Violence
Sheltered - Emergency Shelter	86	4	128	25	28
Sheltered - Transitional Housing	31	1	27	14	6
Unsheltered	377	4	364	75	80
Percent of Total	**21.5%**	**0.4%**	**22.6%**	**5.0%**	**5.0%**

Source: US Department of Housing and Urban Development, Continuum of Care Homeless Populations and Subpopulations Reports (2019)

Notes: These challenges/characteristics are counted separately and are not mutually exclusive, as an individual may report more than one challenge/characteristic. These counts should not be summed.

Table 43 shows a count of individuals that were identified as unsheltered in West Contra Costa County during the January 2020 Point In Time Count (PITC). Pinole had 7 unsheltered individuals, an increase from 3 in 2019. West Contra Costa County saw an increase in the unsheltered population from 510 in 2019 to 513 in 2020. Though the 2023 PITC has not yet been released, an estimate from the Pinole Police Department identified from 5 – 10 unsheltered homeless persons in the City, and noted the most individuals in Pinole experiencing homelessness are homeless by choice. The Pinole Police Department's Community Outreach Unit includes its Homeless Outreach Program.

Table 43: Homeless Population—Unsheltered Individuals in West Contra Costa County

Homeless Population	2019 Unsheltered Population	2020 Unsheltered Population
Pinole	**3**	**7**
Crockett	12	35
El Cerrito	8	24
El Sobrante	16	9
Hercules	1	7
North Richmond	38	22
Richmond	333	280
Rodeo	41	62
San Pablo	58	67
West County Total	510	513

Source: Contra Costa Health Services. 2020 Homeless Point-In-Time Count and Survey.

According to California Department of Education Enrollment Data shown in Table 44, over the 2019-2020 academic year, 2,209 students in Contra Costa County experienced homelessness, and 99 of those students were in Pinole. The California Department of Education considers students to be homeless if they are unsheltered, living in temporary shelters for people experiencing homelessness, living in hotels/motels, or temporarily doubled up and sharing the housing of other persons due to the loss of housing or economic hardship. Student homelessness increased in Pinole between the 2018-19 and 2019-20 academic years by 15 students (18 percent) despite having decreased countywide by 365 students (14 percent) over the same period.

Table 44: Students in Local Public Schools Experiencing Homelessness

Geography	2016-17	2017-18	2018-19	2019-20
Pinole	68	84	84	99
Contra Costa County	2,116	2,081	2,574	2,209
Bay Area	14,990	15,142	15,427	13,718

Source: California Department of Education, California Longitudinal Pupil Achievement Data System, Cumulative Enrollment Data (Academic Years 2016-2017, 2017-2018, 2018-2019, 2019-2020).

Notes: Totals reflect the number of unduplicated primary and short-term enrollments within the academic year (July 1 to June 30) in public schools. The data used for this table was obtained at the school site level, matched to a file containing school locations, geocoded and assigned to jurisdiction, and finally summarized by geography.

Resources

There are a number of regional programs available in close proximity to Pinole to assist persons experiencing homelessness. To help meet the special needs of the homeless, the Contra Costa Crisis Center operates a 24-hour homeless hotline that connects homeless individuals and families to resources available in the County. Through the center, homeless persons are given emergency motel vouchers, provided free voicemail boxes, and referred to local service programs, including housing assistance, job training, substance abuse treatment, counseling, and emergency food, health care, and other vital services.

Table 45 lists facilities with various programs designed for people experiencing homelessness.

Table 45: County Homeless Facilities

Agency Name	Program Name
Interim Housing (Emergency Shelters)	
Bay Area Community Services	Don Brown Shelter
Bay Area Rescue Mission	Men's Emergency Shelter
Bay Area Rescue Mission	Women and Families Shelter
Berkeley Food and Housing Project	Central County Warming Center
Contra Costa Health Services Homeless Program	Brookside Adult Interim Housing
Contra Costa Health Services Homeless Program	Brookside Adult Interim Housing for Veterans
Contra Costa Health Services Homeless Program	Calli House Youth Shelter
Contra Costa Health Services Homeless Program	Concord Adult Interim Housing
Contra Costa Health Services Homeless Program	Philip Dorn Respite Center
Contra Costa Health Services Homeless Program	Philip Dorn Respite Center for Veterans
Greater Richmond Interfaith Program	Emergency Shelter
Greater Richmond Interfaith Program	West County Warming Center
Interfaith Council of Contra Costa	Winter Nights Shelter
SHELTER, Inc.	Mountain View House
STAND for Families Against Violence	Emergency Shelter
Trinity Center	Trinity Winter Shelter
Transitional Housing	
Bay Area Rescue Mission	Men's Transitional Housing Program
Bay Area Rescue Mission	Women & Family Transitional Housing
Bi-Bett Corporation	Uilkema House
Contra Costa Health Services Homeless Program	Appian House: Youth
Contra Costa Health Services Homeless Program	Pomona Apartments
SHELTER, Inc.	Casa Verde
STAND	STAND for Families Against Violence
STAND	STAND Transitional Housing

Source: Contra Costa Health Services: Health, Housing, and Homeless Services Division, Annual Point-in-Time Count Report, August 2020, Appendix A.

The City will continue to prioritize its limited resources to support affordable housing solutions affordable to those with extremely low, very low, and low incomes, particularly those who may experience homelessness or are at risk of losing access to permanent housing.

Emergency shelters are defined by the California Health and Safety Code Section 50801 as "housing with minimal supportive services for homeless persons that is limited to occupancy of six months or less by a homeless person. No individual or household may be denied

emergency shelter because of an inability to pay." The City Zoning Ordinance allows the development of emergency shelters by right in the Office Industrial Mixed Use zone.

Persons with Disabilities

People living with disabilities may have a wide range of housing needs, depending on the type and severity of their disability. Housing affordability is a major concern for individuals with disabilities, particularly for those whose disability impacts their income earning potential. Design accommodations to navigate within the home and to/from the residence are another challenge for persons with disabilities. Access often requires specially designed dwelling units that include features such as wider doorways, ramps in place of stairs, and elevators for units with multiple stories. These modifications have the potential to be expensive and are not usually found in older dwelling units. Ongoing enforcement of the City's Building Code ensures that new construction will be accessible to disabled persons, though all units may not have all the features needed by specific individuals. Additionally, housing with adequate access to public facilities and public transit are important for this special needs group.

The US Census Bureau categorizes disabilities as follows:

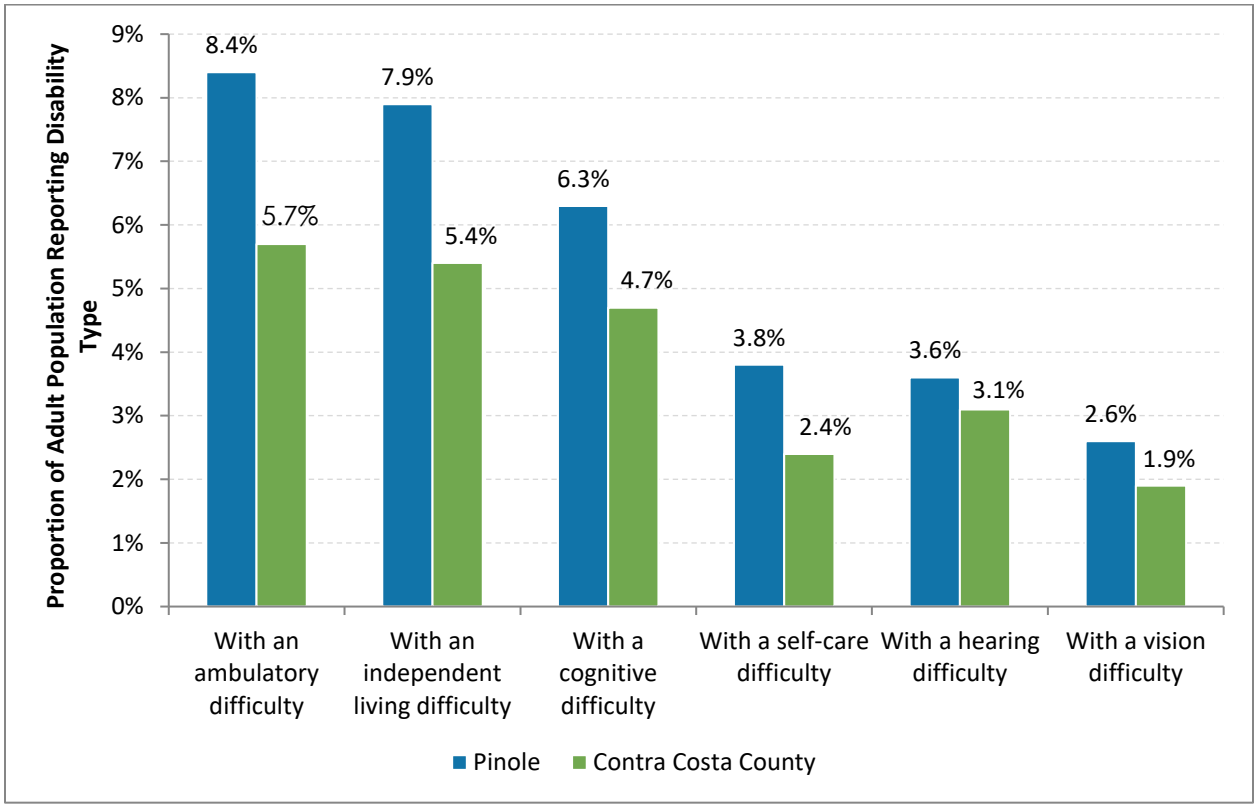
- Hearing difficulty: deaf or has serious difficulty hearing
- Vision difficulty: blind or has serious difficulty seeing even with glasses
- Cognitive difficulty: has serious difficulty concentrating, remembering, or making decisions
- Ambulatory difficulty: has serious difficulty walking or climbing stairs
- Self-care difficulty: has difficulty dressing or bathing
- Independent living difficulty: has difficulty doing errands alone, such as visiting a doctor's office or shopping

Based on the 2016-2020 American Community Survey, there are 2,389 individuals, or 12.4 percent of the population, living with at least one form of disability in Pinole. This is slightly higher than the County where 11.2 percent of the population has a disability.[10] Further information about the type of disabilities residents experience and how it compares to Contra Costa County is illustrated in Figure 11.

The most prevalent types of disability are ambulatory and independent living difficulties. Ambulatory issues are the highest reported disability Citywide. A large population with walking difficulty creates a need for single-story housing, elevators, transit access, wheelchair access, larger homes for live-in help, and proximity to health facilities.

[10] Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table C18108.

Figure 11: Disability by Type



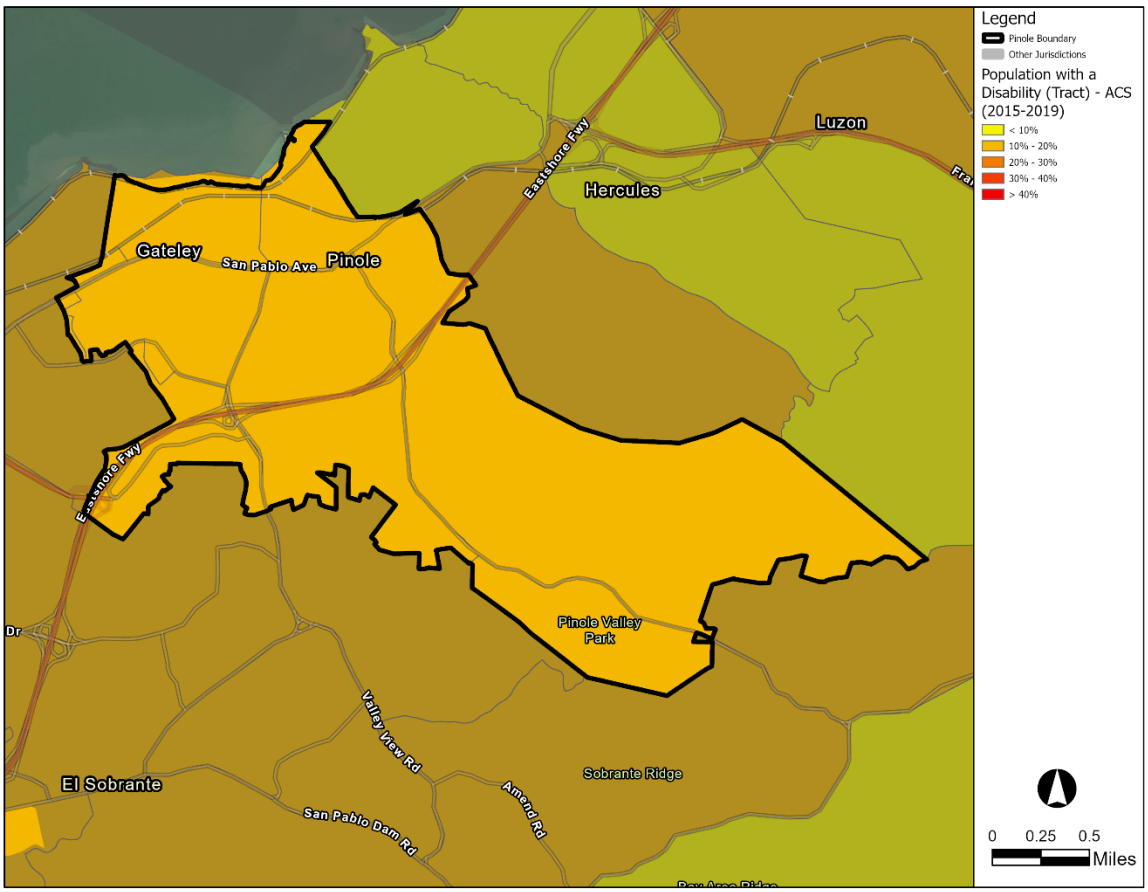
Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table S1810.

Notes: These disabilities are counted separately and are not mutually exclusive, as an individual may report more than one disability. These counts should not be summed.

Compared to the County, Pinole has a larger share of the population experiencing each type of disability. Ambulatory and independent living disabilities are the most prevalent, at 8.4 percent and 7.9 percent, respectively, see Figure 11.

Figure 12 shows Pinole has an overall low distribution of the population with a disability, the entirety of the City has less than 20% of its population with disability which highlights there are no extreme concentration of persons with disabilities.

Figure 12: Population with a Disability 2015-2019



Population with a Disability, 2015-2019

Table 46 shows the elderly population in the City and County and their disability status. In Pinole, 8 percent of people aged 65 and above have one type of disability and 16 percent have two or more disabilities. Twenty-five percent of the elderly population in Pinole experiences at least one type of disability, which is lower than the County's 31 percent. However, the rate of elderly persons experiencing a disability is twice that of the citywide disability rate of 12.4 percent.

Table 46: Elderly People with Disabilities

Disability Status	# of Elderly People with a Disability	% of People Age 65+ (total 4,169)	# of Elderly People with a Disability	% of People Age 65+ (total 178.981)
	Pinole		Contra Costa County	
1 type of disability	354	*8%*	24,799	*14%*
2+ types of disability	680	*16%*	31,425	*18%*
Total Elderly with a Disability	**1,034**	***25%***	**56,224**	***31%***

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table C18108.

Persons with Development Disabilities

A subgroup of disabled residents is those who are developmentally disabled. Many developmentally disabled persons are able to live and work independently. However, more severely disabled individuals require a group living environment with supervision, or an institutional environment with medical attention and physical therapy. Because developmental disabilities exist before adulthood, the first housing issue for the developmentally disabled is the transition from living with a parent/guardian as a child to an appropriate level of independence as an adult.

In Pinole, an estimated 146 individuals have a developmental disability, of which 81 individuals (55 percent) are under age 18.[11] Table 35 lists resources available in the City for persons with developmental disabilities. Local services to support persons with developmental disabilities include Cole Vocational Services and Pathway to Choices, which provide living services, adult day programs, behavior management, and competency training to people with developmental disabilities. Program 9 includes developing a fee waiver program that would provide low or no-cost building permits to age-qualified, ELI households, and households with persons with disabilities, including developmental disabilities, to make improvements to their home for universal design.

The California Department of Developmental Services (DDS) currently provides community-based services through 21 community-based nonprofit corporations known as regional centers. The regional centers serve as a local resource to help find and access services and support available to individuals and families once eligibility is determined. The Regional Center of the East Bay provides service to developmentally disabled individuals throughout Contra Costa and Alameda counties. According to the California Department of Developmental Services, as of December 2019, the Regional Center of the East Bay served

[11] California Department of Developmental Services, Consumer Count by California ZIP Code and Age Group (2020), as referenced in ABAG 2023-2031 Housing Element Data Package, Table DISAB-04.)

21,009 residents with developmental disabilities in the region. Table 47 displays the breakdown of type of developmental disabilities served at the Regional Center. The largest populations served are those with an intellectual disability (43 percent) followed by autism (40 percent).

Table 47: Developmental Disability by Type, 2019

Regional Center of the East Bay		
Developmental Disability	**Individuals**	**Percent**
Autism	8,459	*40%*
Cerebral Palsy	2,426	*12%*
Epilepsy	2,368	*11%*
Intellectual Disability	9,127	*43%*
Other	3,367	*16%*
Total*	**21,009**	*N/A*

Source: California Department of Developmental Service (December 2019), Consumers by Diagnosis and Regional Center.
*People may have more than one type of disability, so individual disability categories will not sum to total.

A number of housing types are appropriate for people living with a developmental disability, including rent-subsidized homes, licensed single-family homes, and homes available through the Housing Choice Voucher program, Program 21. The design of housing accessibility modifications, the proximity to services and transit, and the availability of group living opportunities represent some of the considerations that are important in serving this group. Incorporating barrier-free designs in all new multifamily housing, as required by California and federal fair housing laws, along with affordability, is especially important in housing for disabled residents.

Elderly Persons

The US Census defines persons 65 years of age and older as elderly. Pinole's elderly population has special housing needs associated with affordability, maintenance, and upkeep of their homes, as well as physical access. Elderly persons are more likely to have fixed incomes and have a substantial portion of their financial resources in non-liquid assets, such as property. They often spend a higher percentage of their income on food, housing, medical care, and personal care comparative to non-elderly persons. Elderly persons may have special needs related to housing location and construction. Because of limited mobility, elderly persons typically need closer access to medical services, shopping, public transit, and other amenities. In terms of housing construction, elderly persons may need ramps, handrails, elevators, lower cabinets and counters, and special security devices to allow for greater self-protection. In addition, the elderly may require assistance with housekeeping, maintenance, and repairs to remain in their own homes for as long as possible. Special consideration should be given for recreational and social amenities for the elderly.

As shown in Table 48, an estimated 22 percent of the City's population (4,174 persons) was at least 65 years old in 2020. The percentage of the population that is elderly has steadily been increasing since 1990. Between 2010 and 2020, 1,326 additional people fit the definition of elderly. Table 6 provides a more detailed breakdown of population growth by specific age categories, revealing that the largest percentage increase in population belonged to the 65-74 age group (78.3 percent increase or 1,219 individuals).

Table 48: Elderly Population, 1990–2020

	1990	2000	2010	2020
65 years and over	1,723	2,456	2,848	4,174
Total Population	17,460	19,039	18,390	19,343
Percent of Total	10%	13%	15%	22%

Source: US Census Bureau, Decennial Census (1990-2010). American Community Survey 5-Year Data (2016-2020), Table DP05.

According to the 2020 US Census data shown in Table 49, 35 percent of Pinole's households are headed by one person aged 65 or over. This is higher than the 26 percent of Contra Costa County households.

Table 49: Householders by Age

	Pinole		Contra Costa County	
Householder Age	**Households**	**Percent**	**Households**	**Percent**
15-24 years	54	*0.8%*	6,634	*1.7%*
25-34 years	2,003	*29.5%*	121,924	*30.6%*
35-64 years	2,381	*35.1%*	165,541	*41.6%*
65-74 years	1,424	*21.0%*	59,638	*15.0%*
75-84 years	635	*9.3%*	30,479	*7.7%*
85+ years	295	*4.3%*	14,083	*3.5%*
Total	**6,792**	***100%***	**398,299**	***100%***

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table B25007.

As indicated in Table 50, the 2020 median household income for Pinole households with a householder aged 65 and older was $85,556, which is 14 percent higher than in Contra Costa County, at $75,172. The median income for all households regardless of age is $104,904 citywide and $103,997 countywide (a difference of less than 1 percent). The median income of the elderly population in Pinole is approximately $19,500 less (18 percent lower) than the median income citywide. The lower incomes of the elderly may partially be explained by the fact that elderly populations often live on a fixed income; tend to have a significant portion of their net worth tied up in non-liquid assets, such as property; and have a higher incidence of disability (see Table 46), which may affect earning potential.

Table 50: Median Household Income for Elderly Households (65+ Years)

Householder Age	Pinole Median Income	Contra Costa County Median Income
65 Years and Older	$85,556	$75,172
All Households	$104,904	$103,997

Source: US Census Bureau, American Community Survey 5-Year Data (2016-2020), Table S1903.

Based on HUD's 2014-2018 data CHAS data shown in Table 51, 39 percent of elderly households in Pinole are low income (below 80 percent of the area median family income). Contra Costa County was nearly the same at 40 percent. According to 2020 US Census information, approximately 3 percent of Pinole's seniors fell below the poverty line, compared to 3.7 percent citywide.[12]

Table 51: Income Distribution, Elderly Households (62+ Years)[1]

Income	Pinole		Contra Costa County	
HUD Area Median Family Income (HAMFI)	Number	%	Number	%
<= 30% of HAMFI	310	*10%*	19,620	*14%*
> 30% - 50% of HAMFI	460	*15%*	18,185	*13%*
> 50% - 80% of HAMFI	440	*14%*	18,605	*13%*
> 80% - 100% of HAMFI	405	*13%*	13,530	*10%*
> 100% of HAMFI	1470	*48%*	72,225	*51%*
Total	**3,085**	*100%*	**142,165**	*100%*

Source: US Department of Housing and Urban Development (HUD, Comprehensive Housing Affordability Strategy (CHAS) data (2014-2018), Table 5.

[1] HUD defines "elderly" as people aged 62 and up. However, the US Census Bureau defines "elderly" as people aged 65 and older.

Table 52 summarizes the housing problems experienced by elderly households in Pinole. According to the 2014-2018 CHAS data, 31.6 percent of all elderly households experience some type of housing problem. This includes 48.7 percent of renters and 27.5 percent of owners. For households with at least one person 62 years and older, 81 percent resided in owner-occupied units and 19 percent resided in renter-occupied units.[13]

[12] US Census Bureau, American Community Survey 5-year Data (2016–2020), Table S1701.

[13] HUD CHAS Data (2014-2018), Table 5.

Table 52: Elderly Households by Housing Problems and Tenure, 2018

Housing Problem Type	Elderly Owners		Elderly Renters		Total Elderly	
% of Elderly with any Housing Problem[1]	*27.5%*		*48.7%*		*31.6%*	
% of Elderly with Cost Burden (> 30%)[2]	*26.0%*		*42.9%*		*29.2%*	
% of Elderly with Severe Cost Burden (>50%)[2]	*14.1%*		*32.1%*		*17.6%*	
All Elderly Households	*2,490*	*80.7%*	*595*	*19.3%*	*3,085*	*100%*

Source: 2014-2018 HUD CHAS data, Table 5 and Table 7.
[1] The four housing problems are: incomplete kitchen facilities, incomplete plumbing facilities, more than 1 person per room, and cost burden greater than 30 percent.
[2] Cost burden occurs when housing costs exceed 30 percent of household income. For renters, housing cost is gross rent (contract rent plus utilities). For owners, housing cost is "select monthly owner costs", which includes mortgage payment, utilities, association fees, insurance, and real estate taxes. Severe cost burden occurs when housing costs exceed 50 percent of household income.

The increasing number of elderly persons in the population is creating more demand for affordable, accessible, and low-maintenance housing. As residents age, they may desire alternatives to single-family units, opting for smaller multifamily units or assisted care living. Another option for seniors looking to downsize is accessory dwelling units, which could house seniors or their caregivers. Based on the demographic trends, the need for senior housing is considered a high priority.

Pinole Grove Senior Apartments at 800 John Street offers 70 affordable, one- and two-bedroom senior apartments. Amenities include a community room, a landscaped courtyard, a library, and a hair salon. Units must be occupied by at least one resident who is at least 62 year of age or older. A minimum of 28 units are rent restricted to very low-income households (50 percent of AMI), and 41 units are restricted for moderate-income households (120 percent of AMI).

Westmont of Pinole (formerly Pinole Senior Village) provides independent living, assisted living, and memory care options for seniors. As of 2022, 31 moderate-income and 6 very low-income beds are required to be maintained. In 2018, as a condition of the sale of the property, a covenant was recorded that allowed the owner to reduce the rent restricted units according to the schedule in Table 32. By 2028, there will not be any rent-restricted bed requirements at this facility. The owner cannot raise the rent on any rent-restricted beds and may only reduce restricted beds by voluntary vacation of such bed by an eligible tenant.

The Pinole Senior Center provides social, educational, recreational, health, nutritional, and consumer services and activities to more than 1,000 yearly participants. The Senior Center (2500 Charles Avenue) can be set up to serve as a cooling center during extreme heat events. Per City guidelines, the Senior Center will be opened as a cooling center if the National Weather Service forecasts that Pinole will experience two consecutive days with high temperatures of 95 degrees or more and necessary staff is available. A need-based, no-cost annual membership is available to eligible seniors and is funded by donations from community members.

The City will address the needs of the elderly population through policies and programs that address affordability and special design guidelines for the elderly through Program 10 which includes participation in regional assistance programs, an aging in place low or no-cost building permit, and waiving park impact fees for developments with affordable senior units.

Extremely Low-Income Households

HUD defines extremely low-income households as those with income less than 30 percent of the HUD area median family income (HAMFI). Table 53 summarizes the housing problems experienced by extremely low-income households in Pinole. According to the 2014–2018 CHAS data provided by HUD, there are 555 extremely low-income households in Pinole, which represents about 8.3 percent of all households in the City. In 2018, 8.3 percent of Pinole households were in the extremely low-income category, which is a very slight decrease from 8.6 percent in 2013. Extremely low-income households comprise a smaller share of all households in Pinole compared to the County (12.3 percent of Contra Costa County households). About 47 percent of the extremely low-income households rented their dwelling units; 53 percent owned their dwelling.

Table 53: Extremely Low-Income Households with Housing Problems, 2018

	Extremely Low-Income Renter-Occupied	Extremely Low-Income Owner-Occupied	Extremely Low-Income Total Households
Households with Income < 30% of HAMFI	260	295	555
with any Housing Problem[1]	220	165	385
with Cost Burden (> 30%)[2]	205	165	370
with Severe Cost Burden (>50%)[2]	165	155	320

Source: HUD Comprehensive Housing Affordability Strategy (CHAS) Data, 2014-2018, Summary Level Data for Pinole.

1. The four housing problems are: incomplete kitchen facilities, incomplete plumbing facilities, more than 1 person per room, and cost burden greater than 30 percent.

2. Cost burden occurs when housing costs exceed 30 percent of household income. For renters, housing cost is gross rent (contract rent plus utilities). For owners, housing cost is "select monthly owner costs," which includes mortgage payment, utilities, association fees, insurance, and real estate taxes. Severe cost burden occurs when housing costs exceed 50 percent of household income.

About one-third of all households in Pinole experienced at least one housing problem. Of the extremely low-income households in Pinole, 69.4 percent experienced at least one type of housing problem, with renters higher at 84.6 percent and owners at 55.9 percent. Housing problems for extremely low-income households are a regional issue, and Pinole fares better than the County overall, which has a rate of 80.1 percent. Based on 2018 HUD CHAS data, an estimated 40 extremely low-income households in Pinole lack complete plumbing or kitchen facilities.[14] However, many of these households may live in units without complete kitchens,

[14] HUD CHAS Data (2014-2018), Table 3.

but who received provided meals. ACS 2018 data show 84 housing units lacking complete kitchen facilities, but 75 of those had meals included in rent (only 9 housing units are without a kitchen and without meals provided.)[15]

Extremely Low-Income Households and Overpayment

About 66.7 percent of extremely low-income households were paying more than 30 percent of their income on housing costs, regardless of tenure type. About 55.9 percent of extremely low-income homeowners and 78.8 percent of renters are overpaying. There was also a high rate of households suffering from a severe cost burden (paying more than 50 percent of their incomes on housing). This was the case for about 57.7 percent of all extremely low-income households (52.5 percent for extremely low-income owners and 63.5 percent of extremely low-income renters). All these characteristics occurred at a much higher rate among extremely low-income households than in the City as a whole. At least 28.7 percent of all households in Pinole were overpaying, and 12.7 percent were severely overpaying. The County's extremely low-income households experience a cost burden at a rate of 79 percent and an extreme cost burden at a rate of 65.9 percent.

Extremely Low-Income Households and Overcrowding

In addition to the overpayment problems mentioned above, Pinole's extremely low-income households have an overcrowding problem, though it is not as widespread as the overpayment problem. Overcrowding is defined as more than 1.0 occupant per room (excluding kitchens, bathrooms, and garages). According to 2014-2018 HUD estimates in Table 31, 421 households out of all households in Pinole (regardless of income level or tenure) were living in overcrowded conditions, which represents about 6.3 percent of the total 6,670 households in the City. Examining only the 555 extremely low-income households in the City, 7.0 percent (39 households) experience overcrowding. Overcrowding only affected the extremely low-income renters even though 53.2 percent of extremely low-income households are owner occupied. The rate of severe overcrowding among extremely low-income renters is over four times higher in Pinole than it is countywide (13.5 percent in the City and 3.0 percent in the County.) Extremely low-income renters in Pinole are disproportionately affected by overcrowded living conditions. This indicates a need for larger affordable rental units.

Pinole households with incomes less than 30 percent of the AMI are significantly more affected by housing problems than other income groups. The needs of extremely low-income households include housing units designed for transient/homeless populations, multifamily rental housing, factory-built housing, mobile homes, supportive housing, single-room occupancy units, and workforce housing.

[15] US Census Bureau, American Community Survey 5-year Data (2014–2018), Table B25054.

Summary of Housing Needs

Pinole's overarching housing needs include addressing high housing costs; accommodating demographic age shifts; diversifying the housing stock; and giving consideration to these special needs groups:

- Elderly (35% of households)
- People with disabilities (12% of population)
    - Ambulatory disabilities (8.4% of adults)
    - Independent living disabilities (7.9% of adults)
- Large households (12% of households)
- Extremely low-income households (8.3% of households)

High Housing Costs

High housing costs in Pinole are representative of a regional and statewide issue. Home values have increased steadily since 2012. The median rental price has increased 30 percent since 2015 (see Table 24). In Pinole, 2,768 households (42 percent) experience some form of overpayment, with 849 households (13 percent) experiencing severe overpayment. Overpayment is especially problematic for extremely low-income households, 66.7 of whom experience housing cost burden and 57.7 percent experience a severe cost burden. A high rate of overcrowding is seen among extremely low-income renters (15 percent of these households are overcrowded and 13.5 percent are severely overcrowded). Renters earning 50-80% of the HUD AMI are another group with high overcrowding (19 percent of these households are overcrowded).

Demographic Age Shifts

Planning for an aging population is of utmost importance. In 2020, 22 percent of Pinole's population was 65 years old or older (see Table 6). About 35 percent of households are headed by a resident over 65 years old (see Table 49). Housing to accommodate seniors may take the form of age-restricted developments, smaller units, multifamily housing, ADUs, and housing with increased support services and proximity to healthcare. Universal design practices should be implemented with new construction, given that a high proportion of elderly persons experience some form of disability, particularly ambulatory disabilities. Affordability should be prioritized. The median income for elderly in Pinole is $19,500 less (18 percent lower) than the median income citywide. About 39 percent of elderly households are low income and 30 percent of households moved into their home prior to 1989 (30 years ago). This suggests a need for low-income housing repair assistance to help seniors in aging housing stock retrofit to age in place. Program 9 includes a fee waiver that would provide low or no-cost building permits to age-qualified, ELI households, and disabled households to make improvements to their home for universal design.

Another age group to plan for is the 25-34 year age group. This group had the largest population increase out of all age groups between 2010 and 2020 and now comprises 18 percent of the population (see Table 6). About 30 percent of households have householders aged 25-34 (see Table 49). This group would benefit from having a greater supply of smaller housing units, multifamily housing, ADUs, more affordable rental units, and housing designed for the first-time homebuyer. Because this age group has a higher propensity to start families, a portion of housing production for this demographic should set aside larger units as well.

The under age 14 population in Pinole declined by 28 percent between 2000 and 2020. The 0-4-year age group decreased 19.8 percent and the 5-14 age group decreased by 31.2 percent over that time. Although the rate of decline of the population under age 14 tempered between 2010 and 2020 to just 6 percent, these long-range trends are markedly different than the County trends. In the County, the 0-4 year age group decreased by 0.1 percent and the 5-14 age group increased by 1.3 percent between 2000 and 2020. Average household size and average family size have decreased in Pinole since 2010 despite having increased in the County. These shifting demographics may indicate that as families grow, they are priced out of the housing market, or Pinole families are choosing to have fewer children, or a combination of both. To plan for an inclusive community that includes families with children, the City may consider emphasizing family-friendly housing practices. This could take many forms including affordable-by-design multifamily housing, rent-restricted units for a variety of income levels, and ensuring a portion of new rental housing has larger, multi-bedroom units.

Special Needs Groups

In addition to the special needs of elderly and extremely low-income households mentioned above, people with disabilities and large households are other special needs groups that make up a considerable share of the population and/or households. People with disabilities make up 12.4% of population—with ambulatory (8.4%) and independent living (7.9%) disabilities being the most prevalent—and have very similar housing needs as elderly persons.

Large households (those with 5 or more people) make up 12 percent of all households in Pinole. Over a third (34 percent) of large households experience a cost burden. Pinole has a slightly higher proportion of 5-or-more-person households than the state or County. These factors suggest a need for larger units. Table 38 shows that 34 percent of large households experience a cost burden and 6 percent experience a severe cost burden. Large households that rent have over twice the rate of overpayment (52 percent) than large homeowner households (24 percent).

Diversifying Housing Stock

About 70 percent of Pinole's housing stock is single-family homes, and 70 percent of housing units are owner-occupied. Introducing a variety of housing building types and more rental housing opportunities would facilitate a more inclusive community. Examples include age-restricted developments, smaller affordable-by-design units, multifamily housing, ADUs, universal design practices to accommodate those with disabilities, and housing with increased support services.

Constraints on Housing

The provision of adequate and affordable housing opportunities is an important goal of the City. However, a variety of factors can constrain the development, maintenance, and improvement of housing. This section describes these constraints, including private market forces, governmental codes and regulations, and the physical and natural environment, and analyzes the impact on the production and preservation of housing.

Governmental Constraints

Potential governmental constraints include, but are not limited to, growth management measures, land use controls, development standards, building codes, processing fees and procedures, exactions, property taxes, and site improvement costs. Governmental constraints can limit or deter the operations of the public, private, and nonprofit housing development sectors, making it difficult to meet the demand for housing and limiting supply in a region. Such constraints can limit access to housing for various ethnic, racial, or social groups, or prevent lower-income households from having adequate housing opportunities.

The City of Pinole has the authority to regulate the location, base density, and type of residential development that occurs within the City. This authority is asserted in several ways, including land use controls, site improvement requirements, fees and exactions, permit processing procedures, and other factors that may influence the development, maintenance, and improvement of housing. Like all local jurisdictions, the City of Pinole has a number of procedures, fees, and regulations it requires developers to follow. Additionally, like any agency, the City is constrained by resource availability and other factors beyond its control. Below is a summary of key issues.

Land Use Controls

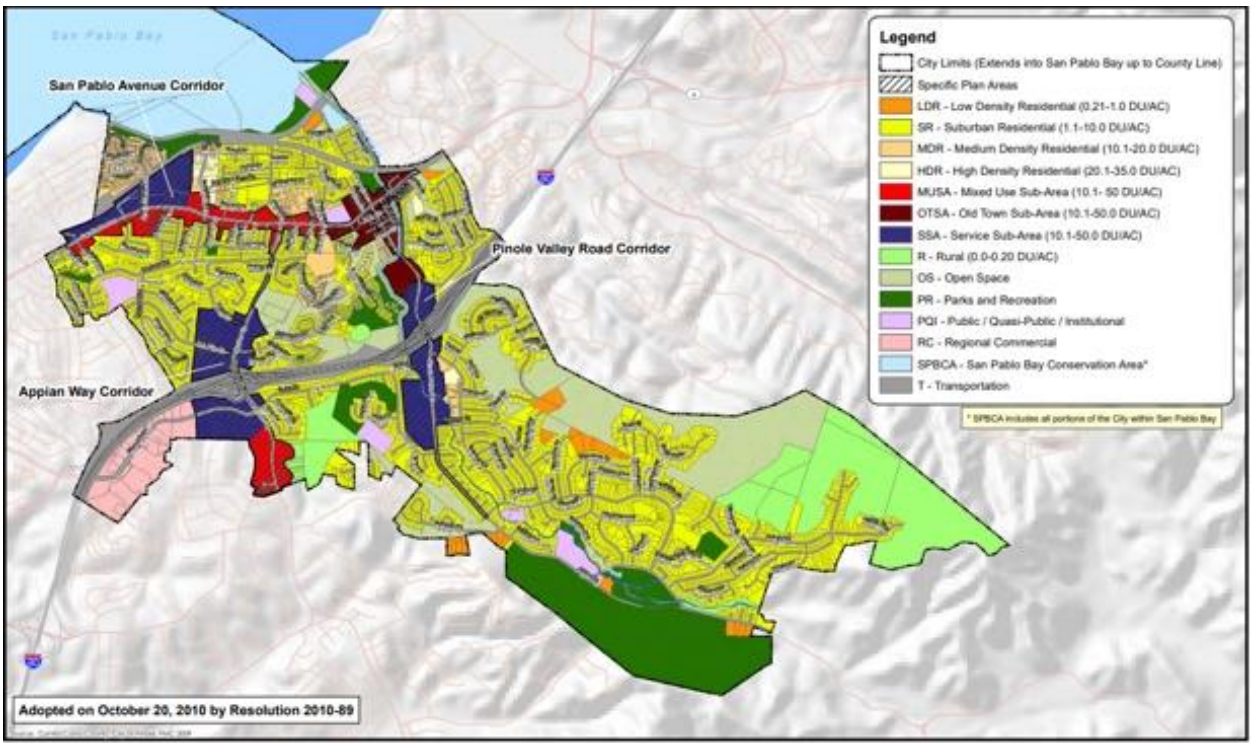
The City of Pinole sets forth policies to guide new development and the use of land within the City limits through its General Plan. These policies, in conjunction with the Three Corridors Specific Plan (2010) and Zoning Ordinance, control the amount and distribution of land allocated for different uses within the City and how this land can be developed.

General Plan

The City of Pinole adopted an updated General Plan in October 2010. The General Plan is a comprehensive, long-range general policy document that expresses the community's vision and establishes five key topics: Sustainability, Priority Development Areas, Economic Development, Recreation and Resources, and Housing. The General Plan Vision identifies Housing as a key topic and states the City will need diverse housing opportunities for people who work and live in Pinole and the region. The Land Use and Economic Development

Element of the General Plan identifies the location, distribution, density, and intensity of land use within the City.

Figure 13: General Land Use Map



The City completed a comprehensive Zoning Ordinance update to correspond with the adopted General Plan in 2010; the Three Corridors Specific Plan adopted with the General Plan established new standards and guidelines for development around Specific Plan corridors consisting of San Pablo Avenue, Pinole Valley Road, and Appian Way. These regulations establish the base considerations and standards for land uses and development within the City. Adopted base densities for residential uses are included in the analysis of the sites discussed in the Sites Section.

The General Plan identifies five residential land use designations, as follows:

R – Rural (0.0 to 0.2 dwelling unit per acre). Includes sites where development shall be clustered to preserve at least 90% of the property in a natural condition and predominantly free of development to protect visual and environmental resources. This designation is typical for sites that are characterized by steep slopes, contain environmental resources, have visual significance in the community, are integral to riparian systems, or which have been identified as having limited development potential due to service delivery constraints. These parcels also create opportunities for urban agriculture uses, including agricultural parks and specialty crop farming. Other uses, such as telecommunications facilities, solar collectors, and wind energy conversion systems, may be considered provided they are designed to preserve the natural landscape. These areas help preserve remaining natural

landscapes. In certain areas of the city, they can also provide open space buffers between Pinole and neighboring communities, serve as fire breaks, provide connections between neighborhoods and recreational areas, and may provide an educational resource.

LDR - Low Density Residential (0.21 to 1 dwelling unit per acre). Includes sites located adjacent to open space areas or near environmental resources where it transitions to residential land uses. This designation is typical of sites where larger lot sizes are appropriate to ensure flexible siting and design to maintain scenic and environmental resources.

SR - Suburban Residential (1.1 to 10 dwelling units per acre). Provides for single-family development that is typical of most residential areas of the City. This is the single largest residential category.

MDR - Medium Density Residential (10.1 to 20 dwelling units per acre). Intended for attached dwelling units, typically two or three stories, which include on-site usable open space. Medium Density Residential land use would include townhomes, apartments, condominiums and planned unit developments.

HDR - High Density Residential (20.1 to 35 dwelling units per acre). Provides for higher density multifamily areas, typically two or three stories, usually located near transit corridors or arterial roadways and located in close proximity to commercial services.

The General Plan describes Specific Plan land use designations as follows:

SSA - Service Sub-Area (10.1 to 50.0 dwelling units per acre). The Service Sub-Area is intended to maintain and enhance existing land uses while providing land use flexibility and incentives to encourage new private investment and additional development. Each service sub-area is described as follows.

San Pablo Avenue: Preserve land for manufacturing and industrial uses, particularly "green industry." A limited amount of general office, retail and residential uses may be permitted where they will not conflict with the principal industrial uses in the area.

Pinole Valley Road: Maintain and increase existing employment opportunities and encourage new housing opportunities while accommodating commercial uses that serve residents through mixed-use development. This is a transitional area that serves residential neighborhoods in Pinole Valley and serves as a gateway immediately south of the historic Old Town.

Appian Way: Maintain and enhance the regional gateway area into Pinole and capitalize on freeway access to upgrade existing development and attract a desirable mix of commercial services and residential uses.

OTSA - Old Town Sub-Area (10.1 to 50.0 dwelling units per acre). The Old Town Sub-Area will maintain and enhance the residential, commercial and mixed-use character, scale and style of Old Town Pinole. All types of commercial and residential uses as either a single use

or in combination with other allowable commercial and residential uses are allowed within this area, at intensities that preserve the character of Old Town Pinole. The designation is intended to encourage ground-floor, pedestrian-friendly retail sales and service uses with upper floors of office and/or residential uses. Residential uses may include single-family and multi-family residential uses.

MUSA - Mixed-Use Sub-Area (10.1 to 50.0 dwelling units per acre). The Mixed-Use Sub-Area encourages mixed residential and commercial development that is united by transit and pedestrian improvements, parks and public spaces. This land use designation allows all types of commercial and residential uses as either a single use or in combination with other allowable commercial and residential uses at densities and intensities that support transit service. The designation is intended to encourage ground floor, pedestrian-friendly retail sales and service uses with upper floors of office and residential uses. Residential uses may include single-family and multi-family residential uses.

The density and intensity ranges for the Three Corridors Specific Plan Area land use categories are shown in Table 54. Development incentives are granted for a project where the project promotes transit-oriented development (TOD) objectives or other City objectives as identified in a Specific Plan, the Redevelopment Plan, or approved planned development, or through any other similar planning document adopted for the area. Incentives may include increased density, reduced parking, greater building height, or other deviations from regular zoning standards.

Table 54: Three Corridors Specific Plan Areas Development Densities and Intensities

Sub-Area	Density (du/acre)	
	Normal (max)	With TOD Incentives (max)
Mixed-Use	35	50
Old Town	35	50
Service	35	50

Source: City of Pinole General Plan

Three Corridors Specific Plan

The Three Corridors Specific Plan expands upon the vision of the sub-area land use designations provided in the General Plan (SSA, OTSA, and MUSA) for each of the three corridors within the Specific Plan. The document establishes the allowable land uses and development standards within each of the three corridors. Development standards include the establishment of standard and special building height requirements, provision of height exceptions, building placement/setback requirements, allowed frontage types, allowed building types, and allowable parking types. Where a standard is not addressed in the Specific Plan, the standard from the Zoning Ordinance would apply. Where there are conflicts

in allowable uses and standards between the Specific Plan and Zoning Ordinance, the Specific Plan would govern.

Development Standards

In general, the City's Zoning Ordinance (Title 17 of the Pinole Municipal Code) establishes development standards for new development, such as densities, height, parking, and setbacks, to implement the development envisioned in the General Plan. The Three Corridors Specific Plan contains development standards applicable when a property is located within the Specific Plan area. As with other cities, Pinole's development standards and requirements are intended to protect the long-term health, safety, and welfare of the community while implementing the goals and policies of the General Plan and Specific Plan.

Height Limits

The City has one type of height limit in residential districts: a maximum height measured from finished grade to the top of the roof or parapet walls. Height limits in the R, R-1, R-2, and R-3 is 35 feet and 20 feet in the LDR district. For the R-4 and mixed-use zones (RMU, CMU, OIMU), the height limit is 50 feet. The height limits do not constrain development from reaching their prescribed General Plan densities.

For development located within the Three Corridors Specific Plan area, the height standards are based on the corridor and the sub-area designation, as provided in Table 55.

Table 55: Three Corridors Specific Plan Height Standards

Corridor	Sub-Area		
	Old Town	**Mixed Use**	**Service**
San Pablo Avenue*	40 feet or 3 stories	50 feet or 4 stories	50 feet or 4 stories
Pinole Valley Road*	40 feet or 3 stories	50 feet or 4 stories	n/a
Appian Way**	n/a	35 feet or 4 stories	75 feet or 6 stories

* Step back at a 45 degree angle above the second story when adjacent to single family home/zone with 35 foot height limit, or above the third story when across the street from single family home/zone with 35 foot height limit or less.

** Height is limited to 35 feet where development is located within 60 feet of an existing single family home or zone with a height limit of 35 feet of less.

Setbacks

All residential zones have setbacks, which are the minimum distances between a structure and a lot line. Setbacks in Pinole vary between the residential zones depending on density. The lower density (LDR and R-1) zones are largely uniform, with 20-foot front setbacks, 5- to 10-foot side setbacks, and 20-foot rear setbacks. The medium to higher density (R-2, R-3, R-4) have 0-foot front setbacks, 5-foot side setbacks, and 15-foot rear setbacks. Mixed use

zones (RMU, CMU, OPMU, and OIMU) have 0-foot front and side setbacks with 15-foot rear setbacks, with OPMU and OIMU having 10-foot side setbacks. While all setbacks reduce the amount of land that is developable on a site, the setbacks do not constrain projects from reaching the maximum housing density in a zone.

Table 56: Primary Building Development Standard for City of Pinole Base Zoning Districts

District	Lot Area (min sq ft)	Setback (minimum distance between structure and property line)					Building Height (max ft)	Allowed Density (units/acre)	
		Front Yard	Side Yard	Side Yard for Second Story	Street Side Yard	Rear Yard		Min	Max
R	5 ac. [1]	30	15	15	20	30	30	N/A	0.2
LDR	43,560	20	10[2]	15	15[4]	20[4]	20	0.21	1.0
R-1	6,000	20	5[3]	12	10[4]	20[4]	35	1.1	10
R-2	3,000	0	5	10	10	15	35	10.1	20
R-3	1,500	0	5	5	10	15[5]	35	20.1	35
R-4	N/A	0	5	5	10	15[5]	50	35.1	50
RC	5,000	0	0	0	0	0	50	N/A	N/A
RMU	N/A	0	0	0	10	15[5]	50	20.1	35
CMU	N/A	0	0	0	10	15[5]	50	20.1	30
OPMU	N/A	0	10	10	10	15[5]	50	N/A	N/A
OIMU	N/A	0	10	10	10	15[5]	50	N/A	N/A

Source: City of Pinole Municipal Code 17.24.020

Notes:

1. The approving authority may approve lots less than five (5) acres in size and reduced setbacks for clustering of units to preserve open space or other resources as part of comprehensive design review.
2. The combined side yard setbacks shall not be less than twenty (20) feet.
3. Within required side yards, at least one (1) side shall provide four (4) feet of unobstructed surface to allow unobstructed access between the front and rear yards.
4. Listed setback distance or twenty percent (20%) of lot width inside yard and twenty percent (20%) of lot depth in rear yard, whichever is less.
5. If abutting non-residential property, there is no minimum rear yard setback.

For development located within the Three Corridors Specific Plan area, setback standards are based on the corridor and the sub-area designation, as provided below.

Table 57: Three Corridors Specific Plan Setback Standards

Corridor	Setback	Sub-Area		
		Old Town	Mixed Use	Service
San Pablo Avenue*	Build to Front Line	0-5 feet	0-10 feet	0-5 feet
	Minimum Side Yard	0 feet, except 15 feet if abutting residential	0 feet, except 15 feet if abutting residential	0 feet, except 15 feet if abutting residential
	Minimum Rear Yard	5 feet, except 15 feet if abutting residential	0 feet, except 15 feet if abutting residential	0 feet, except 15 feet if abutting residential
Pinole Valley Road*	Build to Front Line	0-5 feet	n/a	0-5 feet
	Minimum Side Yard	0 feet, except 15 feet if abutting residential	n/a	0 feet, except 15 feet if abutting residential
	Minimum Rear Yard	5 feet, except 15 feet if abutting residential	n/a	0 feet, except 15 feet if abutting residential
Appian Way**	Build to Front Line	n/a	0-10 feet	0-5 feet
	Minimum Side Yard	n/a	0 feet, except 20 feet if abutting residential	0 feet, except 20 feet if abutting residential
	Minimum Rear Yard	n/a	0 feet, except 20 feet if abutting residential	0 feet, except 20 feet if abutting residential

* Step back at a 45 degree angle above the second story when adjacent to single family home/zone with 35 foot height limit, or above the third story when across the street from single family home/zone with 35 foot height limit or less.

** 35 foot height limit within 60 feet of side or rear property line when adjacent to single family home/zone with 35 foot height limit.

Parking

The Pinole Municipal Code Chapter 17.48 establishes parking standards for various types of land uses, including residential development. High parking requirements can reduce the potential land available for development and increase the cost of development. A recent estimate of parking construction costs in major cities found that in 2022 the national average cost per parking space is $24,748 and the cost in San Francisco per parking space was $30,316.[16]

The minimum parking requirements for residential developments in Pinole are shown in

[16] Transportation Cost and Benefit Analysis II – Parking Costs. Victoria Transport Policy Institution. https://www.vtpi.org/tca/tca0504.pdf

Table 58. As a part of Program 12 the City will further study the parking requirements in the City as a constraint to development and will take action to ensure that parking requirements do not act as a constraint to development by doing one of more of the following: remove or reduce guest parking, remove covered parking requirements, allow tandem parking, and reduce minimum parking requirements.

Chapter 17.48 of the Pinole Municipal Code also provides for reduced parking and shared parking through the Conditional Use Permit process with approval by the Planning Commission. The process for obtaining a shared parking agreement or parking reduction has defined processes and standards. The City is currently processing a CUP for reduced parking requirements. A variance is not needed for a reduction of parking standards. Conditional Use Permits (CUPs) may be requested in applications proposing shared parking arrangements and parking reductions below minimum parking ratios. A reduced parking proposal is being used for residential projects at the Collins House (612 Tennent Ave) and the adjacent property (2279 Park Street). Both projects feature an increase in residential units beyond the previous use: a conversion of a building from two units to include four units for Collins House and a proposal for three units at 2279 Park Street. Both projects have constraints in providing onsite parking spaces. However, the CUP process allows for flexibility in exploring alternative parking arrangements to provide for reductions in standard parking requirements based on specific project needs and available parking resources on the site and in the area to meet needs. The parking requirements for Pinole have not been a constraint to multi-family and below market-rate developments.

As a part of Program 12, the City will reduce the level of approval for a parking reduction and shared parking agreement from a conditional use permit to an administrative use permit. An administrative use permit is a staff level approval. To obtain reduced parking, there are currently four criteria and an applicant must meet three of them. The City will revise the standards for reduced parking in Section 17.48 of the zoning ordinance to make it easier to obtain, such as reducing the number of required findings or increasing the number of available criteria.

In conversations with developers pursuing projects in the City, parking was not noted as a constraint on their projects. In particular, larger multifamily projects have been subject to the City's inclusionary housing requirements and have been eligible for reduced parking under State Density Bonus law. Additionally, the context of some development projects (e.g., senior housing development with reduced parking need or location of a project allowing for shared parking) have allowed for further flexibility in meeting parking need unique to specific characteristics of a project. The City has recently approved over 600 units, including 235 affordable units. The parking requirements have not been a constraint to residential development.

The City is including multiple programs to review and reduce parking requirements including a reduction of parking standards for lower income household developments including SROs

in Program 9 and reducing parking standards for senior housing development in Program 10. Parking requirements for ADUs are compliant with state law.

Table 58: Parking Requirements by Land Use

Land Use Type	Required Parking Spaces	
Residential Uses	Boarding and Rooming Houses	1 space per family (based on designed capacity) plus 0.8 spaces/employee during the peak employment shift and 0.8 spaces per full-time resident staff
	Dwelling, Single-Family - studio	1 space per dwelling unit (garage enclosed or covered)
	Dwelling, Single-Family - one bedroom	2 spaces per dwelling unit (garage enclosed or covered), tandem parking spaces permitted
	Dwelling, Single-Family - two to four bedrooms	2 spaces per dwelling unit (1 space must be garage enclosed or covered), tandem parking spaces permitted in Old Town
	Dwelling, Single-Family - five or more bedrooms	3 spaces per dwelling unit (2 spaces must be garage enclosed or covered and accessed independently; the third space may be tandem)
Dwelling, Multiple-Family	Studio units	1 space per dwelling unit (garage enclosed or covered) plus 0.3 spaces per dwelling unit for visitor parking
	One-bedroom units	1.5 spaces per dwelling unit (1 space must be garage enclosed or covered) plus 0.3 spaces per dwelling unit for visitor parking
	Two+ bedroom units	2 assigned spaces per dwelling unit (1 space must be garage enclosed or covered) plus 0.3 spaces per dwelling unit for visitor parking
Accessory Dwelling Unit	1 space per bedroom or ADU, whichever is less, except parking may be waived as provided in Chapter 17.70, Accessory Dwelling Units and Junior Accessory Dwelling Units	
Senior units, studio, one- and two-bedroom units	1 space per dwelling unit	
Senior units, three + bedroom units	1 space per dwelling unit plus 1 additional off-street space	
Mobile Home Park	2 parking spaces per home site	

Source: City of Pinole Municipal Code 17.48.050

Cumulative Effect of Development Standards

The cumulative effect of development standards is not likely to constrain the ability of developers to achieve maximum densities on site development. The combination of setback,

height, and parking requirements do not impede the ability of projects to reach the maximum density. The City of Pinole has permissive standards for development, especially in the Three Corridors Specific Plan areas. The standards are not uncommon and are similar to other housing-friendly zoning ordinances. The City has recently permitted over 600 units, including 235 affordable units complying with these development standards, or modified where needed through State density bonus provisions. As a part of the housing element update the City had conversations with developers with projects in the City to discuss their experience developing in Pinole. Developers were asked to identify any constraints they experienced in the development process. No setback, height, or parking requirement was noted in conversations with developers as a restriction on their development. The development standards do not constrain the ability for projects to meet the densities in each zone.

The City of Pinole does not utilize any floor area ratio, maximum floor area, or maximum lot coverage standards to limit the size of buildings in the City. Projects are limited by height and setbacks.

Recent projects in Pinole demonstrate that the existing development standards (including setbacks and height requirements) do not constrain development from meeting, and in many cases exceeding, the maximum allowable density in each zone. All of the five projects include affordable housing. In most cases, concessions for density bonuses and inclusionary housing were also leveraged to achieve densities beyond the allowable maximum. Table 59 compares the approved projects with the development standards of the relevant zone. Three of the recent projects exceed the maximum allowable density due to density bonus for affordable housing. Of these, two still comply with the standard maximum height and one used the concession to exceed the height limit. The SAHA affordable housing project exceeds the density of the zone while meeting the height and setback requirements of the CMU zone.

The BCRE project used an incentive through compliance with state affordable housing law to receive a height increase from 50 to 60 feet. This project retained the existing commercial uses and building located in the center of the site and added more commercial uses and residential units to the site. Working around the existing building led to the increased height to accommodate the floor area.

Table 59: Comparison of Development Standards of Recent Projects

Project	Zone	Actual Density / Max Density Allowed	Actual Height/ Max Height	Actual Setbacks / Allowed Setbacks
Appian Village	RMU/CMU	20.9 / 32.7*	37’2” ft** / 50 ft	Side: 5 ft / 10 ft Rear: 5 ft / 15 ft
BCRE Mixed-Use	OPMU	16.6 / 30	60 ft / 50 ft	Front: 77 ft / 0 ft Side: 5 ft / 0 ft

Project	Zone	Actual Density / Max Density Allowed	Actual Height/ Max Height	Actual Setbacks / Allowed Setbacks
				Rear: 10 ft / 0-15 ft
Pinole Vista	CMU	37.6 / 30	55 ft / 75 ft	Front: 67 ft / 0 ft Side: 77, 142 ft / 0 ft Rear: 167 ft / 15 ft
SAHA Affordable Veteran's Housing	CMU	55 / 30	48 ft / 50 ft	Front: 0 Ft / 0 ft Side: 15 ft / 15 ft Rear: 15 ft / 15 ft
Vista Woods	VHDR	89 / 50	60 ft / 50 ft	Front: 0 ft / 0 ft Side: 1 ft, 14 ft / 15 ft Rear: 15 ft / 15 ft

*Densities proportional to acreage between two zones.

**Tallest building height.

Source: City of Pinole.

Inclusionary Housing Requirements

Pinole Municipal Code Chapter 17.32.02 stipulates that, for all rental or ownership developments of four or more units, at least 15 percent of the total units must be constructed and offered for sale or rent as affordable housing units. Of those units, no less than 40 percent (or 6 percent of the total) must be made available to very low-income households.

The City has seen recent development complying with these standards, including development of over 600 units and 235 affordable units. Two recent projects are one hundred percent affordable projects. The recently approved Pinole Vista project includes inclusionary units of 48 percent (13) very low income units and 52 percent (13) low income units, which exceeded the required percentage of very low income units by the inclusionary housing ordinance. The developer increased the proportion of very low units to take advantage of state density bonus laws. Another recent development includes a subdivision of four units that increased from three to four units to provide one moderate income for-sale unit. This and other recently approved market and affordable housing projects demonstrate that the cumulative regulations have been able to facilitate a variety of new housing development, such that 80% of the City's RHNA could be met with currently approved projects. Recent development trends demonstrate that the City's inclusionary housing requirements do not constraint development.

Incentives for constructing affordable housing may include density bonuses, fee subsidies or deferrals, and design incentives as follows:

1. Density Bonus. Consistent with California Government Code Sections 65915 through 65918, qualifying projects can receive a density bonus by right.

2. Fee Subsidy or Deferral. The City Council may subsidize or defer payment of city development impact fees and/or building permit fees applicable to the affordable housing units or the project of which they are a part. The affordability control covenant shall include the terms of the fee subsidy or deferral.
3. Design Modifications. The granting of design modifications relative to affordable housing requirements shall require approval of the City Council and shall meet all applicable zoning requirements of the city. Modifications to typical development standards may include the following:
    a. Reduced minimum setbacks;
    b. Reduced minimum building separation requirements;
    c. Reduced square footage requirements;
    d. Reduced parking requirements;
    e. Reduced minimum lot sizes and/or dimensions;
    f. Reduced street standards;
    g. Reduced on-site open space requirements;
    h. Increased height limitations;
    i. Increased maximum lot coverage;
    j. Allowance for live-work units within multi-family residential zoning districts;
    k. In lieu of reduced setbacks, allowance for attached dwelling units, if shown to be necessary to make the project feasible; or
    l. Other regulatory incentives or concessions proposed by the developer or the city that result in identifiable, financially sufficient, and actual cost reductions.
    m. Priority Processing. After receiving the required discretionary approvals, the residential development that provides affordable housing units may be entitled to priority processing of building and engineering approvals, subject to the approval of the City Manager.

The City does not collect in-lieu fees through the City's inclusionary requirement, it utilizes an incentive based approach to achieving affordable housing on-site. An alternative method of compliance is the construction of affordable units at an off-site alternative location. The lack of an in-lieu fee option can act as a constraint on development, especially on smaller projects that may end up providing a higher proportion of affordable units due to their small size. As a part of Program 7, the City will pursue creation of an in-lieu fee alternative for the inclusionary housing requirement to provide flexibility for smaller projects and to create a new funding source for affordable housing projects. The inclusionary fee will help ensure that the inclusionary requirements do not constrain smaller projects and that smaller projects are providing an equal proportion of affordable units as larger projects.

Density Bonus

The City's Zoning Ordinance includes a provision for granting density bonuses as an incentive for the production of affordable housing in Section 17.38.020. The City's Density Bonus provision within the Municipal Code is not up to date with the latest updates to California Government Code 65915. Through Program 12, the City will update its Zoning Ordinance to ensure compliance with state density bonus law. Where development is proposed that is eligible for density bonuses and their associated waivers and incentives under State Law, the provisions under California Governmental Code Section 65915 are applied to the project.

As part of Program 12, the City will update the Zoning Ordinance to reflect the latest provisions set forth in California Government Code 65915. Program 12 will include amendments to the density bonus provisions to comply with state law. Specifically, the update will increase the maximum density bonus from 35 to 50 percent with the criteria and allowances under state density bonus law, add student housing as a housing type that is eligible for density bonus incentives, and reduce parking from 2 to 1.5 spaces for two and three bedroom units and from 2.5 to 2 spaces for four or more bedroom units. The City is complying with state density bonus law though the code is not yet updated.

Providing for a Variety of Housing Types

Table 60 shows the allowed uses in residential zones in the Zoning Code. As discussed in the next section, accessory dwelling units and junior accessory dwelling units are allowed in all residential zoning districts under Section 17.20.020 of the City's Zoning Ordinance. The RC (Regional Commercial) zone is a included in Table 60for reference, though housing is not generally permitted; the zone consists of the large regional commercial shopping center area along Interstate 80, outside of the Three Corridor specific Plan Areas. Single-family residential zoning includes six districts: R, LDR, R-1, R-2, R-3, and RMU. Single-family dwellings are permitted as a matter of right in most multifamily residential districts except R-4 and is only allowed in one mixed-use district (RMU).

Multifamily residential zoning includes R-1, R-2, R-3, R-4, and RMU (Residential Mixed Use), CMU (Commercial Mixed Use), OPMU (Office Professional Mixed Use), and OIMU (Office Industrial Mixed Use) mixed-use districts. Multifamily units are permitted as a matter of right in the R-2, R-3, R-4 districts; they are also permitted in the RMU and CMU districts.

Table 60: Allowed Residential Uses Under the Zoning Code

Land Uses	R	LDR	R-1	R-2	R-3	R-4	RC	RMU	CMU	OPMU	OIMU
Dwelling, Accessory/ Junior Accessory[1]	P	P	P	P	P	P	N	P	P	P	P
Dwelling, Multifamily	N	N	N	P	P	P	N	P	P	N	N
Dwelling, Single Family	P	P	P	P	P	N	N	P	N	N	N
Dwelling, Two-Family	N	N	N	P	P	N	N	N	N	P	P

Land Uses	R	LDR	R-1	R-2	R-3	R-4	RC	RMU	CMU	OPMU	OIMU
Dwelling, Three- and Four-Family	N	N	N	P	P	P	N	P	P	N	N
Emergency Shelter [2]	N	N	N	N	N	N	N	N	N	N	P
Group Residential	N	P	P	P	P	P	N	C	C	N	N
Manufactured Home	P	P	P	P	P	P	N	N	N	P	N
Mobile Home Park	C	C	C	C	C	C	N	N	N	N	N
Residential Care Facilities	P	P	P	P	P	P	N	P	P	N	N
Single Room Occupancy Facilities	N	N	N	C	C	C	N	C	C	N	N
Supportive Housing (located in housing of a type permitted in the zone)	P	P	P	P	P	P	P	P	P	P	P
Transitional Housing [2] (located in housing of a type permitted in the zone)	N	P	P	P	P	P	P	P	P	P	P

Source: City of Pinole Municipal Code 17.20.020

Note: P = Permitted; C = Conditionally Permitted; N=Not Allowed

1 See additional regulations for Accessory Dwelling Units and Junior Accessory Dwelling Units in Chapter 17.70.
2 See additional regulations for Emergency Shelters in Chapter 17.62.

Where a property is located within the Three Corridors Specific Plan area, the Specific Plan establishes the list of allowable residential uses based on the corridor, sub-area, and land use/zoning designation. The exhibits below (Table 61, Table 62, Table 63) show the allowable residential uses in the three corridor areas of the Specific Plan. In general, multifamily residential is permitted by right throughout the Specific Plan area with some exceptions such as prohibition on Public Quasi-Public Institutional (PQI) parcels, required Conditional Use Permit approval in OPMU, and limitation of units on the ground floor at street frontages in certain locations. Single family residential is not permitted outside of the Old Town Sub-Area. Second dwelling units (or ADUs/JADUs) are allowed consistent with the locational requirements as provided under the Zoning Code; and the Zoning Code would take precedence over the Specific Plan for any conflicts between the Specific Plan and Zoning Code regarding ADUs/JADUs to maintain consistency with requirements under State law.

Table 61: Permitted Land Uses for San Pablo Avenue

Land Uses	Old Town Sub-Area				Service Sub-Area		Mixed-Use Sub-Area			
	MDR	RMU	CMU	OPMU	CMU	OPMU	VHR	RMU	CMU	OPMU
Dwelling, Multifamily	P	P	P[1]	P[1]	P[1]	P[1]	P	P	P[1]	P[1]
Dwelling, Second Unit	CUP	N/A[2]	N/A[2]	N/A[2]	N/A[2]	N/A[2]	N/A[2]	N/A[2]	N/A[2]	N/A[2]

Land Uses	Old Town Sub-Area				Service Sub-Area		Mixed-Use Sub-Area			
	MDR	RMU	CMU	OPMU	CMU	OPMU	VHR	RMU	CMU	OPMU
Dwelling, Single-family	P	P	N	N	N	N	N	N	N	N
Dwelling, Two-family	P[3]	P[3]	N[3]	N	N	N	N	N	N	N
Family Day Care Home, Small (6 children or less)	P	P	P	P	P[3]	P[3]	P	P	P[3]	P
Family Day Care Home, Large (7 – 24 children)	P[4]	P[4]	P[4]	P[4]	P	P	P	P	P	N
Home Occupation	P	P	P	P	P[4]	P[4]	P[3]	P[3]	P[4]	P
Live-Work Facility	P	P	P	P	P	P	N	P	P	P
Residential Care Home	CUP	P	P	P	CUP	CUP	CUP	P[4]	CUP[1]	CUP[1]
Emergency Shelter/ Temporary Home	N	N	N	N	CUP[1]	CUP[1]	CUP	N	CUP[1]	CUP[1]

1 Not allowed on first floor at street frontage, except for residential development on a property with an affordable housing agreement and when that development includes community benefits as specified in the General Plan.

2 See Multi-Family Residential

3 Not permitted if the same use is preexisting and within 200'

4 Home occupations must have no external evidence of business activity, (e.g. signs, noise, odor, vibration, etc.) or reduce available parking. No customers or employees are allowed at the home and no advertising which gives the home address is allowed.

Table 62: Permitted Use Table for Pinole Valley Road

Land Uses	Old Town Sub-Area			Service Sub-Area	
	MDR	HDR	CMU	CMU	OPMU
Dwelling, Multifamily	P	P	P[1]	P[1]	P[1]
Dwelling, Second Unit	N/A[2]	N/A[2]	N/A[2]	N/A[2]	N/A[2]
Dwelling, Single-family	P	N	N	N	N
Dwelling, Two-family	N/A[2]	N/A[2]	N/A[2]	N/A[2]	N/A[2]
Family Day Care Home, Small (6 children or less)	N	P	P	P[3]	P[3]
Family Day Care Home, Large (7 – 24 children)	CUP[4]	CUP[4]	CUP[4]	P	P
Home Occupation	N	P	P	P[4]	P[4]
Live-Work Facility	P	P	P	P	P
Residential Care Home	CUP	P	P	CUP[1]	CUP[1]
Emergency Shelter/ Temporary Home	N	N	N	CUP[1]	CUP[1]

1 Not allowed on first floor at street frontage

2 See Multi-Family Residential

3 Not permitted if the same use is preexisting and within 300'

4 Home occupations must have no external evidence of business activity, (e.g. signs, noise, odor, vibration, etc.) or reduce available parking. No customers or employees are allowed at the home and no advertising which gives the home address is allowed.

Table 63: Permitted Use Table for Appian Way

Land Uses	Service Sub-Area			Mixed-Use Sub-Area		
	RMU	CMU	OPMU	HDR	RMU	CMU
Dwelling, Multifamily	P	P	P[1]	P	P	P[1]
Dwelling, Second Unit	N/A[2]	N/A[2]	N/A[2]	N/A[2]	N/A[2]	N/A[2]
Dwelling, Single-family	N	N	N	N	N	N
Dwelling, Two-family	N/A[2]	N/A[2]	N/A[2]	N/A[2]	N/A[2]	N/A[2]
Family Day Care Home, Small (6 children or less)	P[3]	P[3]	P[3]	P[3]	P[3]	P[3]
Family Day Care Home, Large (7 – 24 children)	CUP	CUP	CUP	N	CUP	CUP
Home Occupation	P[4]	P[4]	P[4]	P[4]	P[4]	P[4]
Live-Work Facility	P	P	P	P	P	P
Residential Care Home	CUP	CUP[1]	CUP[1]	CUP	CUP	CUP[1]
Emergency Shelter/ Temporary Home	N	N	N	N	N	N

1 Not allowed on first floor at street frontage

2 See Multi-Family Residential

3 Not permitted if the same use is preexisting and within 300'

4 Home occupations must have no external evidence of business activity, (e.g. signs, noise, odor, vibration, etc.) or reduce available parking. No customers or employees are allowed at the home and no advertising which gives the home address is allowed.

Accessory Dwelling Units

Accessory dwelling units (ADU) and junior accessory dwelling units (JADU) are attached or detached dwelling units that provide complete independent living facilities for one or more persons and are located on a lot with a proposed or existing primary residence. ADUs provide additional housing opportunities for people of all ages and economic levels. The City of Pinole allows and regulates ADUs and JADUs in Chapter 17.70 of the Municipal Code and in compliance with California Government Code Sections 65852.2 and 65852.22. ADUs are permitted on lots with an existing or proposed single-family or multifamily residence, subject to a ministerial approval process through building permit plan check review. The City streamlines the permitting of ADUs by processing them as a plan check in a building permit application review and does not require separate planning permits for ADUs.

The City will continue to update the ADU ordinance as necessary and work with the state to ensure compliance with state law as part of its ADU production program (Program 4), which includes efforts to spur the development of affordable housing through the construction of ADUs. The City is also creating a Home Sharing and Tenant Matching Program to help senior residents age in place and encourage ADU and JADU development (Program 11).

Senate Bill 9

Effective January 1, 2022, Senate Bill (SB) 9 requires ministerial approval of a housing development with no more than two primary units in a single-family zone, the subdivision of a parcel in a single-family zone into two parcels, or both. SB 9 facilitates the creation of up to four housing units in the lot area typically used for one single-family home. The City has not received any SB9 applications as of October 2022 but has seen some interest from homeowners. Promotion of SB9 opportunities in the City is included as a part of Program 23.

The City has not adopted an SB9 ordinance or objective standards. The City will amend the zoning ordinance in Program 12 to reflect the provisions of California Government Code Section 65852.21. Additionally, to facilitate and provide for technical assistance of SB 9 units, the City is including Program 6.

Emergency Shelters

An emergency shelter is housing with minimal supportive services for unhoused persons that is limited to occupancy of 180 days or less per calendar year by an unhoused person. No individual or household may be denied emergency shelter because of an inability to pay.

The City's emergency shelter requirements are provided in Article IV Special Use Standards of the Zoning Ordinance. Pursuant to SB 2, the City of Pinole permits emergency shelters by right without discretionary review in the Three Corridors Specific Plan Office Industrial Mixed Use (OIMU) zone.

The Zoning Ordinance permits emergency shelters by right in the OIMU zone subject to the same development and management standards as other permitted uses in the zone. In addition, the following requirements regulate future emergency shelters to enhance compatibility (Chapter 17.62):

- Emergency shelters of more than ten persons shall be situated more than 300 feet from another emergency shelter.
- A maximum of 30 beds shall be available in the facility, unless a conditional use permit is approved for a greater number. The maximum number of beds does not apply in situations of City- or statewide designated disasters or catastrophic conditions.
- Smoke detectors, approved by the Fire Department, shall be provided in all sleeping and food preparation areas for emergency shelters.
- The size of an emergency shelter shall be in character with the surrounding neighborhood.
- The emergency shelter shall have an interior, on-site waiting and client intake area that is a minimum of 200 square feet. The emergency shelter shall include a landscaped exterior waiting area that is a minimum of 100 square feet.

- Off-street parking shall be provided at the rate of one space per three beds plus one space per employee, and may only be required based on demonstrated need, provided that the same parking requirements are applied for other residential or commercial uses in the same zone.
- Exterior lighting shall be consistent with Zoning Code requirements.
- Emergency shelters shall provide on-site management and support staff at all times during shelter use.
- Emergency shelters must have on-site security during the hours that the shelter is in operation.

Assembly Bill 139 (2019) modified the allowed parking standards for emergency shelters. The City may now only require parking to meet the needs of staff working at the shelter and may not impose any standards based on the number of beds or persons served. The City's existing ordinance requires one space for each three beds and one per each employee, which is not reflective of recent changes to state law.

The City is including Program 12 to amend the Emergency Shelter ordinance to comply with AB 139 and all state standards for emergency shelters. The City will also review the other standards for emergency shelters to verify that they are required for all other uses in the zone and are not unique to emergency shelters beyond those allowed by state law.

The City is compliant with AB 2339 (2023) that requires zoning designations identified to allow emergency shelters as a permitted use without a conditional use or other discretionary permits in a zone that also allows residential uses. The City allows emergency shelters without a conditional use or other discretionary permits in the OIMU zone. Under the general Zoning Code standards, this is a mixed-use zone that permits residential uses including two-family dwellings, supportive housing, and transitional housing. The OIMU zone in Three Corridors Specific Plan also allows live-work facilities by right and multi-family residential with a CUP.

Emergency shelters are allowed by-right in the OIMU zone. Pinole has 35.4 acres of land zoned OIMU, all of which is located in the northwestern area of the City along San Pablo Avenue in the Three Corridors Specific Plan. Emergency shelters in land zoned OIMU allows for proximity to public transit, employment centers and some commercial amenities and resources along one of the City's major commercial throughfares. The area is fit for human habitation, has access to infrastructure and is located in the one of the most walkable corridors of the City. There are a number of residential uses at varying densities adjacent to this zone. The zone does not allow for heavy industrial uses. Building in the OIMU zone may have heights up to 50 feet and no front yard setbacks. Required setbacks include 10-foot side and 15-foot rear setbacks. Other residential uses allowed in the OIMU zone include two-family dwellings, ADUs and JADUs, supportive housing, and transitional housing. The OIMU standards will not preclude or constrain the development of emergency shelters.

The latest homeless point-in-time count indicated that there are 7 unsheltered homeless individuals living in Pinole; the City needs to ensure that at least 1,400 sf of floor area could be available for emergency shelter development or conversion. Based on a review of the City's standards and shelter need, there are 5.6 acres of vacant land and multiple underutilized lots in the OIMU zone that meet the requirements and can accommodate the City's shelter need. The 5.6 acres of vacant land in the OIMU zone are within 0.5 miles of transit stops along San Pablo Avenue.

Low Barrier Navigation Centers

Low barrier navigation centers (LBNC) are service-enriched shelters that are focused on moving individuals into more permanent housing. LBNCs provide temporary housing while case managers connect individuals experiencing homelessness to shelter, public benefits, and health services. Under the Housing for Homeless Act (2019), local governments are required to allow LBNCs by right in areas zoned for mixed uses and nonresidential zones that permit multifamily uses.

Pinole does not currently explicitly allow LBNCs in any zone, though this would not prevent their development if an application for one were received. Through Program 12, the City will amend its zoning code pursuant to Government Code Section 65583 to allow for LBNCs by right in areas zoned for mixed uses and nonresidential zones that permit multifamily uses.

Manufactured Homes

The permitting of modular, or manufactured, housing on foundations is subject to the same development standards as conventional single-family units, consistent with Government Code Section 65852.3. The City of Pinole permits modular homes by right in all residential zones that permit single-family dwellings by right except in the Residential Mixed Use (RMU) district. As part of the zoning code amendment program, Program 12, the City will amend the zoning code in RMU to permit manufactured homes on permanent foundations as if they were single-family homes.

Supportive and Transitional Housing

Supportive housing is a permitted use by-right in every residential zone in the City. This includes all zones in the City where multifamily and mixed uses are allowed, as well as nonresidential zones permitting multifamily uses, as shown in Table 60.

Transitional housing is also permitted use by-right in every zone in the City where multifamily and mixed uses are allowed, as well as nonresidential zones permitting multifamily uses, as shown in Table 59. Transitional housing is not permitted the rural (R) zone; however, only single-family dwellings are permitted in this zone, and no multifamily uses or mixed-use are permitted.

As defined in section 17.22.020 of the Pinole Municipal Code, both supportive and transitional housing "shall be permitted, conditionally permitted or prohibited in the same

manner as other residential dwellings of the same type in the same zone under this code and applicable state law." The City complies with California Government Code Section 65651(b) and only subjects supportive housing to comply with written, objective development standards and policies that apply to other multifamily development within the same zone and reviews the projects with non-discretionary action.

The first permanent supportive housing project in the City, a 33-unit project for veterans (SAHA development), broke ground during the first week of June 2023.

While the City allows these uses by right in most cases, the City does not have objective design standards for these types of homes to add certainty to the development process. As part of Program 13, the City will create and adopt objective development standards.

Single-Room Occupancy Units

Single-room occupancy (SRO) residences are small, one-room units occupied by a single individual, and may either have a shared or private kitchen and bathroom facilities. SROs are rented on a monthly basis, typically without a rental deposit, and can provide an entry point into the housing market for extremely low-income, formerly unhoused, and disabled persons. SRO units are allowed in five multifamily zones including in both mixed-use and exclusively residential zones (R-2, R-3, R-4, CMU, and RMU) upon the granting of a conditional use permit.

There is no potential constraint on the development of SRO residences. The code allows the construction of very small, efficiency, or micro-units of all affordability levels in all zones that allow residential uses. The City's zoning code does not establish specific unit size limitations; minimum unit sizes follow standards established by the California Building Code.

The City's definition for SROs is "multi-unit housing for very low-income persons that typically consists of a single room and shared bath and also may include a shared common kitchen and common activity area. SROs may be restricted to seniors or be available to persons of all ages. Subsidized versions may be supervised by a government housing agency." SROs are eligible for reduced parking standards through Program 9 and affordable housing incentives in Program 8.

Development Review and Permitting Procedures

The efficiency and timing of a jurisdiction's processes for review and approval of residential development has a significant impact on the amount and pace of housing construction. The procedures for development review and permitting in the City of Pinole are described below.

Permit Processing Procedure

The requirements of the permit processing procedure have the potential to act as a constraint to the development of housing. The time and uncertainty of the review and revision cycle can contribute significantly to the overall cost of the project, ability to obtain

and maintain funding, and the cost of each dwelling unit. Certainty and consistency in permit processing procedures and reasonable processing times are important to ensure that the developmental review and approval process does not act as a constraint to development by adding excessive costs or discouraging housing development.

Permitted uses are those uses allowed without discretionary approval of the use. In general, residential uses are either permitted by right or not permitted, with some exceptions. Therefore, discretionary review based solely on allowing a residential use is uncommon. Discretionary review is more typical for the physical development or modification of a residential structure.

The Zoning Code provides for certain variances or reductions in standards with discretionary review. The discretionary review processes allow for consideration of certain deviations from standards following consideration by the Community Development Director or the Planning Commission and determination that findings in the municipal code have been met. For single family residential structures, minor deviations for limited modification of maximum height by 10 percent and setbacks by 5 percent may be approved by the Community Development Director following a public hearing. Parking reductions may be granted through a Conditional Use Permit approved by Planning Commission. For other types of deviations from standards, a variance may be requested for consideration by the Planning Commission. Although discretionary review may extend the time required for application processing, they provide flexibility when warranted by special circumstances applicable to a project and for which there may be no other remedy. In some instances, a Conditional Use Permit or Variance may be processed concurrently with another entitlement request such as Comprehensive Design review that also requires discretionary review.

Design Review

Design Review is the discretionary review process through the Planning Division to review proposed residential development and modifications, and it is separated into Administrative Design Review and Comprehensive Design Review. Administrative Design Review is the staff-level review process applicable to single family residential additions. Comprehensive Design Review requires approval by the Planning Commission and encompasses all new residential developments.

The Comprehensive Design Review process is single, comprehensive discretionary approval of the physical design for compliance with the site design standards.

As a part of the Design Review process, applications are reviewed by the Design Review Ad-Hoc Subcommittee meeting (see step 4 below). This is a voluntary ad-hoc meeting of City staff and three planning commission members to review the plan set and make recommendations on the proposed plans. The applicant does not attend and there is no fee. The Design Review Ad-Hoc Subcommittee meeting serves as a working session between staff and three planning commission members to provide detailed review and recommendations to the applicant and the full Planning Commission. The intent and purpose is to streamline

the approval process and the number of meetings and hearings before the full Planning Commission. This provides constructive feedback to the applicant very early in the process and helps applicants understand what the Planning Commission is looking for and reduce the number of Planning Commission reviews on their project. It helps save time and increase certainty of approval for applicants.

The majority of projects have one Design Review Ad-Hoc Subcommittee meeting and only one meeting and hearing before the Planning Commission. At most, large projects with significant comments in the first Design Review Ad-Hoc Subcommittee meeting may have a second meeting.

In a review of development projects since 2015, the Design Review Ad-Hoc Subcommittee meeting process never resulted in a reduction of density, size of units, or number of units for any project. As a part of Program 13, the City is developing a set of objective design standards that will provide even greater clarity and certainty to the Comprehensive Design Review process and help to further reduce the approval process and increase the certainty that projects will be approved in one Planning Commission Hearing.

City staff conducts preliminary reviews to assist applicants prior to application submittal at no additional cost. This allows staff and the prospective applicant to identify important project issues early in the development review process. Further, the City has prepared Residential Design Guidelines to clarify City expectations for proposed new residential development, which can assist applicants prior to application submittal. ADUs, interior remodels and minor exterior modification, such as reroofs, siding work, and deck work, are only subject to ministerial review through the building permit plan check process and involve short processing times; these approvals may be issued over the counter or typically within four to six weeks depending on completeness of the submittal, the extensiveness of comments, and the responsiveness of applicants. A single family residential addition requiring Administrative Design Review is normally processed between six to eight weeks depending on the completeness of the application; approval can typically be provided within three to four weeks following determination that the application is complete.

New development requires Comprehensive Design Review, which applies to new single family residences and larger multifamily residential structures. A new single family residence may require three to four months to process depending on application completeness, responsiveness to comments and resubmittals, public noticing requirements, and scheduling of public hearings. Multifamily developments generally require longer review times due to the complexity of the projects, which can range from four months to a year (or longer), especially if more extensive studies are required due to the scale of development, site constraints, and potential impacts. Whenever possible, the City processes all project applications concurrently in order to maximize the efficiency of processing and save time and cost for both the City and the developer. Comprehensive design review is generally done concurrently with required environmental review.

The City conducted a review of recent projects since 2015 that went through the Comprehensive Design Review Process. The Comprehensive Design Review process was not used to reduce the density, size of units, or number of units for any project. Two recent projects increased in size throughout the review process, with the Pinole Vista project increasing from 214 to 223 units and the Hazel Street subdivision increasing from three to four units, including one unit for sale at the moderate income level.

All of the reviewed projects were approved in one Planning Commission hearing.

As a part of Program 13, the City is developing a set of objective design standards that will provide clarity to the Comprehensive Design Review process and help to speed up the length of the approval process and certainty that projects will be approved in one Planning Commission Hearing.

Step-by-Step Permit Process

The City review process is typically as follows:

1. Application Submittal
2. Application is routed to Planning Division. Additional routing is done for Public Works Department, Fire Department, Police Department, and outside agency preliminary comments, depending on the scope of the project
3. The Planning Division provides the applicant with an application status letter commenting on the completeness of the application within 30 days of application submittal.
    a. Letter will identify if the Application is complete or what items are required to determine a complete Application.
    b. Resubmittal in response to the Completeness Letter will restart the 30-day review process cycle.
4. **(Optional)** Design Review Ad-Hoc Subcommittee Meeting, scheduled within 30 days of determination of complete application or receipt of a complete plan set that shows compliance with design standards.
    a. Design Review Ad-Hoc Subcommittee provides initial feedback on project design for new development projects. At least one meeting but no more than two are held.
    b. Meetings can be held simultaneously with completeness review, preparation of the environmental review document, or preparation of materials for the Planning Commission meeting, and it may not necessarily add time to the overall entitlement review process.
5. California Environmental Quality Act Review. Environmental review can be initiated during the application review process.

a. CEQA Exemptions / Consistency Analyses require 1-5 months to process.
b. Negative / Mitigated Negative Declarations (ND/MND) require between 6-9 months to process
c. Environmental Impact Reports (EIR) require between 9–12 months to process, including public review and response to comments.

6. Planning Commission public hearing is scheduled based on the level of environmental review needed, consistent with requirements under CEQA:
    a. CEQA Exemption/Consistency with EIR – at least 30 days.
    b. Negative Declaration/Mitigated Negative Declaration – at least 30 days, pending no significant change to document based on comments received.
    c. Draft Environmental Impact Report – at least 45 days, pending no significant change to document based on comments received.
7. City Council (if required) public hearing is scheduled 30–45 days after the Planning Commission public hearing.

Recent Permit Processing Examples

Recent permit processing examples for five multifamily and two single family projects are shown below. The average for multifamily was 363 days. The average for single family was 110 days. The average of all seven projects together was 291 days.

Multifamily

Vista Woods – 179-unit affordable senior apartment (180 days from application to approval)

1. Applied for Comprehensive Design Review on March 31, 2021.
2. Application and CEQA materials complete on August 17, 2021.
3. Planning Commission hearing held and approval granted September 27, 2021.
4. Permit Issuance:
    a. Building Permit
        i. Applied August 24, 2021
        ii. Issued January 26, 2022

SAHA – 33-unit affordable apartment (135 days from application to approval)

1. Applied for Comprehensive Design Review on February 22, 2021.
2. Application and CEQA materials complete on May 20, 2021.
3. Planning Commission hearing held and approval granted July 7, 2021.

4. Permit Issuance:
    a. Grading Permit
        i. Applied July 5, 2022
    b. Building Permit
        i. Applied December 13, 2022

Appian Village – 154 unit townhomes and condominiums (405 days from application to approval)

1. Applied for Comprehensive Design Review on March 2, 2021.
2. Application and CEQA materials complete on December 15, 2021.
3. Planning Commission hearing held and approval granted April 11, 2022.
4. Permit Issuance:
    a. Demolition Permit
        i. Demolition Permit Applied June 29, 2022
        ii. Demolition Permit Issued September 26, 2022
    b. Building Permit
        i. Building Permit Applied December 13, 2022

BCRE – 29 unit apartment and commercial/office building addition (557 days from application to approval)

1. Applied for Comprehensive Design Review on October 29, 2020.
2. Application and CEQA materials complete on March 21, 2022.
3. Planning Commission hearing held and approval granted May 9, 2022.
4. Permit Issuance:
    a. Grading Permit
        i. Grading Permit Applied January 30, 2023

Pinole Vista – 223 unit apartment (540 days from application to approval)

1. Applied for Comprehensive Design Review on April 26, 2021.
2. Application and CEQA materials complete on June 14, 2022.
3. Planning Commission hearing held July 25, 2022.
    a. City Council hearing held and approval granted October 18, 2022.

Single Family

472 Limerick Rd – New single family home (143 days from application to approval)

1. Applied for Comprehensive Design Review on July 10, 2020.
2. Application and CEQA materials complete on October 22, 2020.
3. Planning Commission hearing held and approval granted November 30, 2020
4. Permit Issuance:
    a. Building Permit
        i. Applied March 15, 2021
        ii. Issued April 13, 2022

2511 Ellerhorst St – New single family home (77 days from application to approval)

1. Applied for Comprehensive Design Review on September 10, 2018.
2. Application and CEQA materials complete on October 10, 2018.
3. Planning Commission hearing held and approval granted November 26, 2018.
4. Permit Issuance:
    a. Building Permit
        i. Applied December 18, 2018
        ii. Issued October 28, 2019

Positive Feedback on Efficient Permit Process from Developers

Pinole has had extraordinarily good housing production in terms of total units as well as excellent production of very low, low and moderate units. In effort to learn from Pinole's success, the City contacted developers with projects in Pinole to discuss:

- What led them to development in Pinole,
- Why they had not previously been building in Pinole, and
- Help identify any constraints to the development process experienced in the permitting process.

City staff met with locally and regionally active developers and real estate professionals including MRK Partners Inc., SAHA, ROIC, and DeNova Homes, Inc. These developers provided letters expressing very positive reviews of City staff, processes and standards. Common reasons for developing in Pinole included:

- Attractive zoning

- Relatively affordable land cost
- Availability of land
- Developable parcels with access to transit and services that essential for affordable and efficient housing and helps to obtain funding for affordable housing
- Knowledgeable, efficient, and flexible staff
- Short entitlement timeframe
- Comparatively efficient and straightforward design review process, staff support in the application process, and City support for housing opportunities.
- Collaborative entitlement process
- Great working relationship with staff

Permit Processing Time

New residential additions and development projects in the City are required to complete the design review process, either by staff-level review or by review with a Planning Commission hearing. Table 64 shows the typical permit processing time for development that is consistent with the City's General Plan, Zoning Ordinance, and Residential Design Guidelines. Multifamily projects in the R-3 and R-4 zones and permitted areas within the Three Corridors Specific Plan are subject to Comprehensive Design Review. All single-family subdivisions require tentative and final map approvals. A project that is not consistent with the City's zoning and land use regulations could require additional approvals, such as a rezoning, General Plan amendment, or a variance when warranted.

The average length of time for discretionary approvals is at least four months for multifamily developments or a single-family subdivision. A General Plan amendment or rezoning could add another 30 to 60 days to the process as each require City Council approval. Large complex projects impose a lengthier review process, largely due to the environmental review process.

Comprehensive design review is generally done concurrently with required environmental review. The required environmental review takes more time than the design review and entitlement processing. The amount of time required to complete environmental review of a project depends greatly on the size, scope, and location of the project, the environmental issues under review, and the extent of public comment received. Program 6 includes reviewing and updating as necessary the EIR prepared for the GP and Specific Plan so that individual projects can utilize opportunities for tiering from environmental documentation and streamlining provided under CEQA, where applicable, which can reduce duplicative analyses and streamline environmental review. This will speed up the review/approval process and greatly reduce costs for the applicant.

The City conducted a review of recent development to determine the actual amount of time the entitlement process takes. Though the process varies dependent on environmental review, most large projects have been approved quickly. Of the five projects recently approved, the length of time from application submittal to the completion of the Comprehensive Design Review was approximately 21 weeks, 25 weeks, 26 weeks, 52 weeks, and 78 weeks for an average of 40 weeks. The project that took 78 weeks had to complete significant environmental studies and special studies that added to the length of time of the approval process. These are very quick approval periods for the complex type of projects in comparison to most cities.

All of the reviewed projects were approved in one Planning Commission hearing. The Comprehensive Design Review process was not used to reduce the density, size of units, or number of units for any project. Two recent projects increased in size throughout the review process, with the Pinole Vista projecting increasing from 214 to 223 units and the Hazel Street subdivision increasing from three to four units, including one unit for sale at the moderate income level. As a part of Program 13, the City is developing a set of objective design standards that will provide clarity to the Comprehensive Design Review process and help to speed up the length of the approval process.

Table 64: Typical Permit Processing Time by Project Type

Permit Type	Length of Approval	Approval Body
Building Permit	4–6 weeks	Issued by Building Department
Conditional Use Permit	12-15 weeks	Planning Commission
Variance	12-15 weeks	Planning Commission
Subdivision/Tentative Tract Map	15–26 weeks	Planning Commission
Final Tract/Parcel Map	15–26 weeks	Planning Commission
Zone Change/Zoning Amendment	15–26 weeks	City Council
General Plan Amendment	15–26 weeks	City Council
Administrative Design Review	4-8 weeks	Community Development Director
Comprehensive Design Review (Single Family)	12-15 weeks	Planning Commission
Comprehensive Design Review (Multifamily)	15-52 weeks*	Planning Commission
Environmental Review	4–52 weeks	Varies by Project

*Concurrent with environmental reviews

Planning, Building, and Development Impact Fees

Housing developments are typically subject to three types of fees: planning-related fees, building permit fees, and development impact fees. The fees are charged by the City and

other agencies to cover administrative processing costs associated with development and help ensure the provision of adequate services.

Fees vary based on the type of application necessary for project approvals. The processing fees are passed on in the rent or sales price, so excessive fees may ultimately affect the affordability of housing. It is best practice to periodically conduct user fee studies to ensure the City is recouping the cost of providing services in areas for which fees apply. On June 21, 2022, the Pinole City Council approved modifications and increases to the Building, Planning, Code Enforcement and Public Works user fees. The adoption of new fees was a culmination of a fee study evaluating internal costs necessary to maintain City operations, including provision of services required for processing development applications, and ensuring fees are within a reasonable range with respect to those charged by other jurisdictions. This was the final step in accomplishing a Strategic Plan objective to conduct a comprehensive fee study to ensure cost recovery of current and potential service fees. In conversation with developers, one developer noted the revised fees made it easier to develop larger projects in Pinole and referenced it as a removal of a constraint to large development in the City. The most current fee schedule is available on the City's website. Planning-related fees for the City of Pinole are shown in Table 65.

On average, fees for a single-family development are comparable to the surrounding jurisdictions in Contra Costa County and represent a reasonable level of fees necessary to retain the quality of development and infrastructure that characterizes the City's standards. The average fee is also comparable for multifamily units. Fees may represent a barrier to the construction of housing because they increase the minimum costs of a dwelling unit and are passed onto the purchaser or renter. However, as the City's fees are not excessive as seen when compared to neighboring jurisdictions, and the City has seen housing production during the 5th Cycle, these development fees do not constitute actual constraints on the production of housing.

Additionally, affordable projects are eligible for fee waivers. This includes projects that comply with the City's inclusionary housing ordinance. The City streamlines the permitting of ADUs by processing them as a plan check of a building permit and does not require separate planning permits for ADUs; this also results in a significant reduction in the amount of fees and review time required for an ADU.

Table 65: Planning Related Fees and Regional Fee Comparison

Applications	Fee			
	Pinole	Hercules	San Pablo	Richmond
Design Review				
Administrative Design Review: Single family residential additions; additions of less than 500 sf for multifamily and nonresidential	$725	$437	$2,786	$2,112

Applications	Fee			
	Pinole	Hercules	San Pablo	Richmond
Comprehensive Design Review – Small New single-family residence; new multifamily building with 2 to 4 units; multifamily and nonresidential additions 500 to 5,000sf	$3,700			
Comprehensive Design Review – Medium New multifamily building with 5 to 10 units; multifamily and nonresidential additions 5,001 to 10,000sf	$9,941			
Comprehensive Design Review – Large New multifamily building of 10 or more units; new nonresidential buildings; multifamily and nonresidential additions greater than 10,000sf	$20,000 Deposit; $14,000 Min Fee			Actual Cost - Deposit of $10,500 - $15,500
Conditional Use Permits (CUP)	$5,186	Actual + 20%	$4,737	$4,500
Prezoning / Annexation	$20,000 Deposit; $14,000 Min Fee			
Rezoning / Zoning Code Amendment (Includes Map and Text	$9,460	Actual + 20%	$8,462	$13,000 Deposit
Minor Development Plan Amendment	$430			
General Plan Amendment	$10,000 Deposit; $7,000 Min Fee	Actual + 20%	$11,847	$13,000 Deposit
Specific Plan Amendment	$10,000 Deposit; $7,000 Min Fee			
Subdivision / Tentative Map				
Minor Subdivision / Parcel Map (4 Lots or Less)	$5,000 Deposit; $3,500 Min Fee	Actual + 20%	$6,769	Actual Cost – Deposit of $6,500
Major Subdivision / Tract Map (5 or More Lots)	$7,500 Deposit; $5,000 Min Fee			Actual Cost - Deposit of $7,500 - $18,000
Final Map				

Applications	Fee			
	Pinole	Hercules	San Pablo	Richmond
Parcel Map	$5,000 Deposit; $3,500 Min Fee	Actual + 20%	$11,847	$1,852
Tract Map	$7,500 Deposit; $5,000 Min Fee			$4,169 - $9,263
Variance				
Minor Deviation	$660			
Single Family Variance	$1,650			Actual Cost - Deposit of $3,500

Source: City of Pinole

The City of Pinole provides a fee schedule for the development impact fees per use. Development impact fees add to the cost of residential development. However, they can be a cost-effective mechanism for financing the new infrastructure (e.g., water, sewer, roads) required to support new development. The fees allow for the consolidation of infrastructure projects when it is more cost-effective to do so and, by law, must be linked to the actual impact of the specific project.

The City of Pinole imposes a number of development impact fees, including for public facilities and equipment, wastewater development, parks and recreation development, transportation, police, fire protection, and drainage development. Typically, fees for higher-density residential are lower than those for lower-density residential. Development fees for the City of Pinole are shown in Table 66, which is also available on the City's website. As part of Program 14, the City will be reviewing its development impact fees by the end of 2023 to ensure that new development contributes its fair share of the cost for the provision of services and facilities. Additionally, the City is including a waiver of park impact fee for all affordable units in excess of the City's 15 percent inclusionary requirement (Program 8).

Table 66: Development Impact Fees, Per Unit

Fee Type	Single Family	Multi-Family
Police	$1,148.95	$870.42
Fire Protection	$1,468.25	$1,112.31
Public Facilities & Equipment	$1,981.29	$1,500.98
Wastewater	$4,943.00	$3,707.00
Transportation	$414.83	$294.53
Drainage	$1,104.82	$66.29
Parks and Recreation	$8,013.78	$6,071.05
Total	$19,074.92	$13,622.58

Source: City of Pinole (https://www.ci.pinole.ca.us/UserFiles/Servers/Server_10946972/File/Finance/Master%20Fee%20Schedule.pdf)

School Fees

In addition to the costs above, the West Contra Costa Unified School District charges development fees. The entirety of Pinole is served by the West Contra Costa Unified School District. As of 2020, the residential development fees for the school district are $4.08 per square foot. The City does not have control over these fees, but the fees have not constrained the development of housing in recent years.

County Transportation Impact Fee

West County Subregional Transportation Mitigation Program (STMP) is managed by the West Contra Costa Transportation Advisory Committee (WCCTAC) to mitigate the heavy regional traffic impacts in the county and includes an impact fee assessed for new development. The City collects the STMP fee on behalf of WCCTAC for new developments, with fees assessed based on the number and type of units. For FY 2022-2023, the STMP fee is $6,458 for a new single family residence and $3,181 for each multifamily residential unit. The City does not have control over these fees, but the fees have not constrained the development of housing in recent years.

Regional Fee Comparison

As shown in Table 65: Planning Related Fees and Regional Fee Comparison the City's permit and processing fees are comparable to, and typically lower than most of the nearby cities such as San Pablo and Richmond. San Pablo and Hercules are similar in size and character to Pinole. The City of Pinole's fees are reasonable and not considered a constraint to housing development.

SB 35 Approval Procedure

SB 35 (2017) requires a Streamlined Ministerial Approval Process for developments in jurisdictions that have not made sufficient progress toward their Regional Housing Needs Allocation.

The City of Pinole has not received any SB 35 applications. Should the City receive an SB 35 application, it will follow the below permitting procedure from the Streamlined Ministerial Approval Process guidelines outlined by the California Department of Housing and Community Development.

- After receiving a notice of intent to submit an application for a Streamlined Ministerial Approval Process, and prior to accepting an application for a Streamlined Ministerial Approval process, the City will complete the tribal consultation process outlined in Government Code Section 65913.4(b).
- The City will perform a determination of consistency with regard to objective zoning, subdivision, and design review standards.
- The City will perform a determination of consistency with density requirements.
- The City will complete the design review within the following timeline:
- Within 60 calendar days of submittal of the application to the City if the development contains 150 or fewer housing units.
- Within 90 calendar days of submittal of the application to the City if the development contains more than 150 housing units
- The City will determine whether the applicant for Streamlined Ministerial Approval complies with requirements, and will approve or deny the application, within the following timeline:
- Within 90 calendar days of submittal of the application to the City if the development contains 150 or fewer housing units
- Within 180 calendar days of submittal of the application to the City if the development contains more than 150 housing units.

To assist developers and the City with SB 35 applications, the City will implement Program 13 to help facilitate the above process and will support any future applicants and provide information regarding the SB 35 permitting process on the City website.

Housing for Persons with Disabilities

The US Census Bureau defines persons with disabilities as those with a long-lasting physical, mental, or emotional condition. Certain conditions affect a person's housing choices, whether it creates a need for accessibility, living spaces for caretakers, transit access, or other.

Reasonable Accommodation Procedures

Pinole's Municipal Code includes specific provisions to facilitate reasonable accommodation for individuals with disabilities. Section 17.12.050 specifies that "in order to make specific housing available to an individual with a disability, a disabled person or representative may request reasonable accommodation relating to the various land use, zoning, or rules, policies, practices, and/or procedures of the City." When a request for reasonable

accommodation is filed with the Community Development Director, it will be reviewed and considered as a ministerial action unless determined otherwise by the Community Development Director. A request for reasonable accommodation shall be considered ministerial in nature when it is related to a physical improvement that cannot be constructed to conform to the City's setbacks or design standards. Typical improvements considered to be "ministerial" in nature would include ramps, walls, handrails, or other physical improvements necessary to accommodate a person's disability. The Community Development Director shall issue a written determination of his or her action within 30 days of the date of receipt. If the Community Development Director determines that the request is non-ministerial, he or she will refer it to the Planning Commission, which will hold a public hearing to consider the request.

In making a determination regarding the reasonableness of a requested accommodation, the approving authority must make all of the following findings:

- The housing which is the subject of the request for reasonable accommodation will be used for an individual protected under the Fair Housing Act.
- The request for reasonable accommodation is necessary to make specific housing available to an individual protected under the Fair Housing Act.
- The requested reasonable accommodation does not impose an undue financial or administrative burden on the City and does not fundamentally alter City zoning, development standards, policies, or procedures.

In addition, the Zoning Ordinance allows for reduced parking requirements for housing for persons with disabilities (Section 17.48.060).

The City complies with the intent of reasonable accommodation requirements and is not determined a constraint for developing multi-family housing.

Zoning and Land Use Policies

The City of Pinole allows both group residential and residential care facilities as land uses as shown in Table 60. Group residential uses are permitted by right in the LDR, R-1, R-2, R-3, and R-4 zones. They are not allowed in the Rural (R) zone. The group residential use does not have any cap or limit on the number of residents. There is no difference in review or policy for group homes with more than six residents. Program 12 includes a zoning amendment to allow group homes in the R zone as a permitted use by right as is allowed in all other residential zones. There is no CUP or other permit requirement for group homes in residential zones; they are permitted in the same manner as other residential uses are in the same zone.

Residential care facilities are a permitted use in every residential zone and mixed-use zone in the City.

With the exception of monitoring compliance with building code requirements, which are also governed by the state, the City has no authority to approve or deny group homes of six or fewer people. The City does not restrict occupancy of unrelated individuals in group homes, and, in permitted zones, permits housing for special needs groups without any required distances between such uses or the total number of uses in the City.

As noted in the supportive housing section, supportive housing is a permitted use in all residential and mixed-use zones in the City.

Program 12 will review standards and definitions for both group homes and residential care facilities to ensure that they are fully compliant with all appropriate state laws and that there are no constraints on group homes in the Zoning Code. This includes a zoning amendment to allow group homes in the R zone as a permitted use by right as is allowed in all other residential zones and adding a definition of group residential to the Zoning Code.

Definition of a Family

The Pinole Municipal Code Section 17.98.020 defines family (household) as "One (1) or more persons, whether or not related by blood, marriage, or adoption, sharing a dwelling unit in a living arrangement usually characterized by sharing living expenses, such as rent or mortgage payments, food costs, and utilities, as well as maintaining a single lease or rental agreement for all members of the household and other similar characteristics indicative of a single household." This definition is consistent with state law and does not pose a constraint on the development of housing for persons with disabilities.

The definition of households does not require a single lease or rental agreement, rather uses this as an example of one of the characteristics that are indicative of a single household. However, in order to ensure clarity in the definition of household, as a part of Program 12, the City will review the definition of family and revise as appropriate to ensure that the definition does not require nor imply that it requires a single lease or rental agreement.

California Building Code

The City of Pinole has adopted the 2022 California Building Code, with local amendments. The modifications and changes were adopted with recommendation by the City of Pinole Building Official. Modifications and changes are reasonable and necessary due to local climactic, geological, or topographical conditions or are otherwise permitted by state law. Local amendments to the building code can be found in Pinole City Code Chapter 15.04.030 and include changes to definitions, permit issuance conditions, sprinkler system requirements, exterior building materials, and slab thickness. Amendments are minor changes, and no modifications pose constraints to development.

The 2022 California Building Standards Code (Cal. Code Regs., Title 24) was published July 1, 2022, and became effective January 1, 2023. Amendments include changes to the California Code of Regulations Title 24, Part 2, Volume 1 of 2 and Part 2, Volume 2 of 2, including the

2019 California Historic Building Code, Title 24, Part 8 and the 2019 California Existing Building Code, Title 24, Part Chapter 10, and all Appendices are adopted by reference. Specific changes were made sections addressing work exempt from permits, definition for abandoned permits, how permits are issued and to who, information to be include on construction documents, various updates to term definitions, building numbering and lighting, wood burning stove appliances, and restrictions to siding materials in fire hazard severity zones.

Changes to the Building Code which could affect housing production include a new definition for Standard Plans and additional approval requirements. A building official may now approve a set of plans for a building or structure as a "standard plan," provided the applicant has submitted complete sets of plans and paid the plan checking fee. When it is desired to use an approved "standard plan" for an identical structure, three plot plans shall be submitted, and a plan-checking fee equal to one-half of the full plan-checking fee required shall be paid. Such duplicate plans shall be compared, stamped, and kept on the job site. For approval, a Building Official of the City of Pinole is authorized to develop a covered/concealed construction policy for any covered or concealed construction, without prior building inspection, to be opened to ensure compliance with the California Building codes. The policy shall encourage utilization of the least invasive deconstruction methods as possible to document construction methods used, such as photographs, invoices, and structural engineer/architectural engineer reports.

After analysis, changes and amendments made to the California Building Code will have a no impact to housing prices or production. If anything, changes made to the code have streamlined processes, made clarifications on definitions, and improved safety while preventing extra time or costs to applicants and the community .

Code Enforcement

The City's Code Enforcement staff responds to potential violations of the Pinole Municipal Code. There is one full time and one seasonal code enforcement officer in the City. Code enforcement is both proactive and reactive in the City. Proactive code cases are opened if violations have to do with health, safety, or welfare. Code Enforcement works in tandem with the City's Building Official to ensure all structures are built with permit and applicable inspections, which ensure health and safety of our constituents

Most housing-related code cases are building without a permit, outdoor storage (debris, miscellaneous "collections" in the front yard and visible from the public right of way/street/sidewalk), and overgrown vegetation/dead trees posing a hazard.

On- and Off-Site Improvements

The City requires on- and off-site improvements for new developments, which are intended to meet health and safety requirements of the community. On-site improvements that residential developers are responsible for include constructing road, water, sewer, and

storm drainage improvements on new housing sites. Property owners are responsible for maintaining landscaping areas and replacing dead trees and vegetation planted as part of the project and parking lot lighting shall be provided to meet requirements of the Lighting Ordinance (PMC 17.46). Site design needs to be able to manage runoff/stormwater on site per standard engineering requirements and projects shall have a connection to the public sewer collection system. Off-site improvements generally include installation of curbs, gutters, and sidewalks for all new development projects.

Additionally, utility undergrounding is generally required in new development areas if feasible and in existing areas where comprehensive redevelopment is proposed. An in-lieu fee may be paid instead for development with less than 500 feet of public frontage or where utilities are located within a dedicated public utility easement. Waivers from undergrounding may be allowed for above-ground meters, transformers, condensers, switches and other related equipment. Waivers from undergrounding may also be granted by the approving authority if the applicant demonstrates the undergrounding requirement has the effect of prohibiting requirement of telecommunication facilities. To assist developers navigate this requirement, Program 3 includes coordination and outreach with PG&E.

Overhead facilities may be installed and maintained for a period of ten days to provide emergency service. Longer terms in cases of unusual circumstances require approval by the Public Works Director to erect, construct, install, maintain, use or operate poles, overhead wires and associated structures.

Chapter 16.20 General Regulations and Design includes standards for local street rights-of-way and curb-to-curb widths, sanitary sewer and storm drainage lines, street lighting, erosion control, landscaping, and easements.

Although it is likely that the costs for the construction of on-site and off-site improvements do have an impact on housing supply and affordability, the requirements are not excessive compared with nearby jurisdictions and are necessary to provide safe transportation access and utility system connections.

Nongovernmental Constraints

Requests to Develop Below the Anticipated Density

Requests to develop housing at densities below those anticipated in the Housing Element act as a potential constraint to housing development. Table 67 shows the 5th Cycle sites that have or are being developed including the anticipated and actual number of units and anticipated and actual density of the developments. The City received three requests to develop on 5th Cycle RHNA sites. These sites have all been entitled and are discussed in detail in the sites inventory section.

Of the three 5th Cycle sites being developed, two are being developed at much higher densities than anticipated, at 55 and 89.1 dwelling units per acre. The third site being

developed is a project on multiple parcels beyond just the parcel identified in the 5th cycle Housing Element. This project is being developed at a density lower than anticipated, 20.9 as opposed to 30.5, but is yielding 43 more units that projected as it includes development of an adjacent parcel. The yields of these projects, in addition to the rest of the approved projects , were considered in determining the realistic yields of the sties inventory for the 6th Cycle.

To understand constraints to development in Pinole, the City interviewed developers who have recent gone through the permitting process. These developers did not identify any development constraints that would preclude them from reaching the maximum density on their projects.

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Table 67: 5th Cycle Sites Developed

Site (APN, Address)	Anticipated # of Units	Actual # of Units	Anticipated Density (du/ac)	Actual/ Proposed Density (du/ac)	Identified Site (5th Cycle)
811 San Pablo Ave (SAHA)	9	33	30	55	Yes
600 Roble (Vista Woods)*	146	179	50	89.1	Yes
2151 Appian Way (Appian Village)*	113	154	30.5	20.9	Yes

* Cycle 5 Housing Element Opportunity Sites which comprised multiple parcels

Land Costs

Land costs have a demonstrable influence on the cost and availability of affordable housing. Land prices are determined by numerous factors, most important of which are land availability and permitted development densities. As land becomes less available, the price of land increases. According to Contra Costa Association of Realtors in 2022 the average sales price for a single-family detached home is $828,110 which is up 6.7% from 2021, however closed sales are down 22% from 2021. The average sales price for a townhouse-condo attached home is $554,909 which is up 22.4% from 2021 with closing sales down 26.7% from 2021.

In Pinole, proximity to the employment centers in Silicon Valley and San Francisco and the scarcity of adequate housing opportunities in western Contra Costa County have influenced upward pressure on land and housing costs.

According to online listings from Zillow.com, in August 2022, there was only one vacant residential parcel listed for sale in the City. This vacant parcel was listed for $1,500,000. The price of land varies depending on a number of factors, including size, location, the number of units allowed on the property, and access to utilities.

Recent vacant land sold is shown by cost and acreage in Table 68; this does not include sale parcel described above. The price for recent land sold ranges from $7.34 to $13.86 per square foot, with an average price of $9.97 per square foot (or $434,293 per acre). The City has little control over land costs.

Table 68: Recent Vacant Lot Sales in Pinole

Acreage	Land Cost	Cost per sq. ft.	Date Sold
0.37	$223,500	$13.86	12/28/21
1.00	$320,000	$7.34	10/07/21
0.79	$300,000	$8.71	05/24/21

Source: Zillow.com, 2022

Construction Costs

Construction costs include the cost of materials and labor. Materials costs include the cost of building materials (wood, cement, asphalt, roofing, pipe, glass, and other interior materials), which vary depending on the type of housing being constructed and amenities provided. In general, construction costs can be lowered by increasing the number of units in a development, until the scale of the project requires a different construction type that commands a higher per square foot cost.

One indicator of construction costs is Building Valuation Data, compiled by the International Code Council (ICC). The unit costs compiled by the ICC include structural, electrical, plumbing, and mechanical work, in addition to interior finish and normal site preparation. The data are national and do not account for regional differences, nor include the price of the land upon which the building is built. The most recent Building Valuation Data, dated August 2022, reports the national average for development costs per square foot for apartments and single-family homes as follows:

- R-2 Residential Multifamily: $153 to $227.64 per square foot
- R-3 Residential One- and Two-Family Dwelling: $166.08 to $212 per square foot
- R-4 Residential Care/Assisted Living Facilities: $193.49 to $269.11 per square foot

California building costs tend to be higher than national levels. A 2020 study by the Berkeley Terner Center noted that construction costs in the state are highest in the Bay Area, and reached more than $380 per square foot in 2018.[17]

[17] Terner Center for Housing Innovation. The Hard Costs of Construction: Recent Trends in Labor and Materials Costs for Apartment Buildings in California. March 2020. https://ternercenter.berkeley.edu/wp-content/uploads/2020/08/Hard_Construction_Costs_March_2020.pdf

Pinole uses both the ICC and RSMeans construction valuation software as a resource for valuations. Pinole area construction cost uses a cost multiplier/index multiplier of 1.2%.

Financing Availability

Interest rates affect homeownership opportunities throughout the City. In August 2022, Freddie Mac's primary mortgage market survey listed interest rates on home loans at 5.13 percent on a 30-year fixed-loan rate. Low housing inventory can create competition among potential homebuyers, especially for first-time homebuyers. The sales price of housing is typically adjusted for changes in mortgage rates.

Table 69 displays the number of loan applications received in 2020 for the purpose of purchasing a home in the Oakland-Berkeley-Livermore metropolitan statistical area, which includes the City of Pinole. Specifically, the table provides the number of total applicants, the number of originated applications, the number of applications that were approved but not accepted, and the number of applications denied across various types of loans.

Table 69: Disposition of Home Loans, 2020

Loan Type	Total Applicants	Originated	Approved Not Accepted	Denied	Withdrawn / Other
Conventional Purchase	42,938	26,224	1,192	3,120	12,402
Government Backed Purchase	7,847	4,111	242	598	2,896
Home Improvement	8,775	4,487	281	1,796	2,211
Refinance	74,951	37,535	2,136	11,064	24,216
Total	134,511	72,357	3,851	16,578	41,725

Source: lendingpatternslite.com, 2020

Federal and State Programs

The City participates with Contra Costa County as part of the Urban County Program for federal Community Development Block Grant (CDBG) and HOME funds. The CDBG program, sponsored by the US Department of Housing and Urban Development (HUD), is a primary source of funds for the county's community development and housing programs. As an eligible Urban County, as defined by HUD, Contra Costa County receives funds annually to carry out CDBG eligible activities. The county directs these funds to housing, economic development, infrastructure improvements, public facilities, and public service projects designed to meet the needs of very low- and low-income persons. The City can also apply directly to the county for CDBG and HOME funds for specific projects.

Environmental and Infrastructure Constraints

Environmental hazards affecting housing units include geologic and seismic conditions, soil conditions, flood risk, vegetation and wildlife habitat, toxic and hazardous waste, fire hazards, noise levels, and preservation of agricultural lands. Potential environmental constraints in Pinole include seismic hazards, flooding, and fire hazards. Infrastructure constraints include the availability and cost of water and sewer services. The following hazards may impact future development of residential units in the City and can pose a potential constraint to housing development.

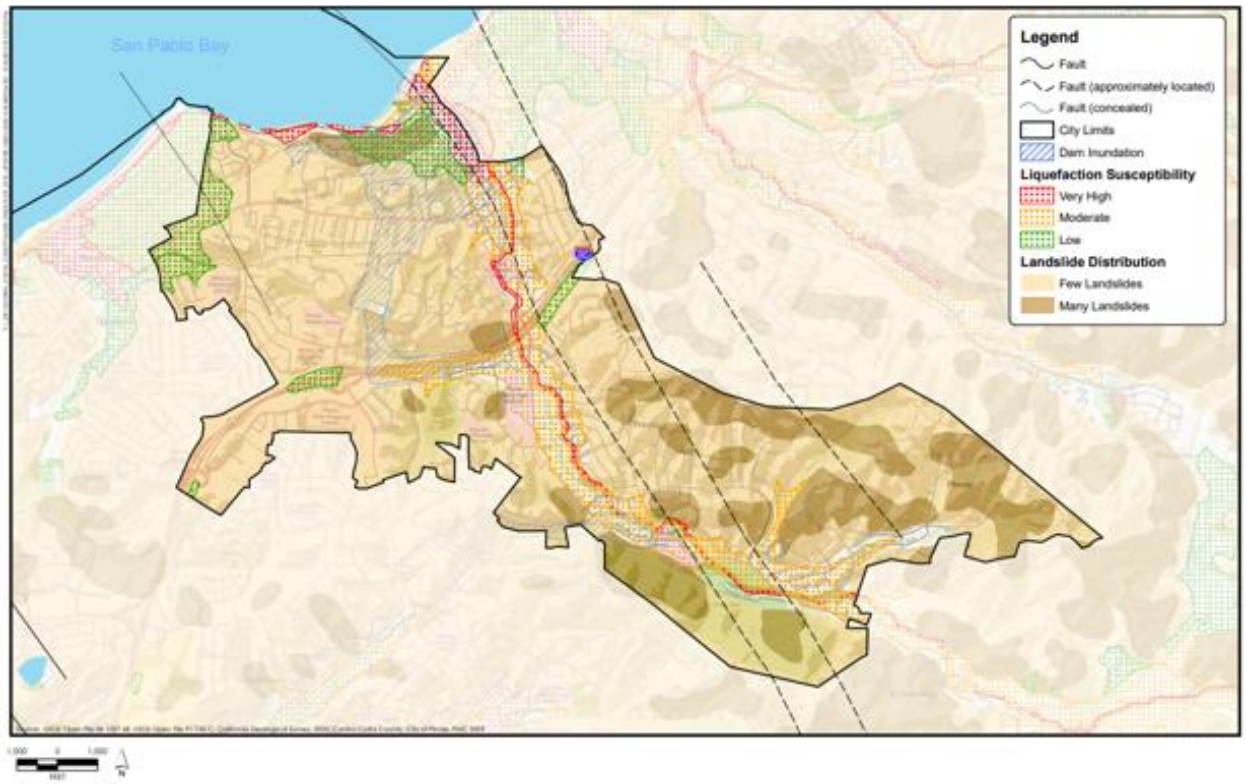
Environmental Constraints

Seismic Hazards

Pinole is located approximately 1.5–3.9 miles northeast of the Hayward fault and the Rodgers Creek/Healdsburg fault zone underneath San Pablo Bay and is also located about 18 to 20 miles northeast of the San Andreas fault zone. The Green Valley-Concord fault trend is located approximately 12 miles east of Pinole. Though the San Andreas fault system, which forms the boundary between the North American and Pacific plates, is the principal source

of earthquakes in California, given its proximity to Pinole, the Hayward fault poses the greatest seismic threat to the City.

Figure 14: Geological Hazards



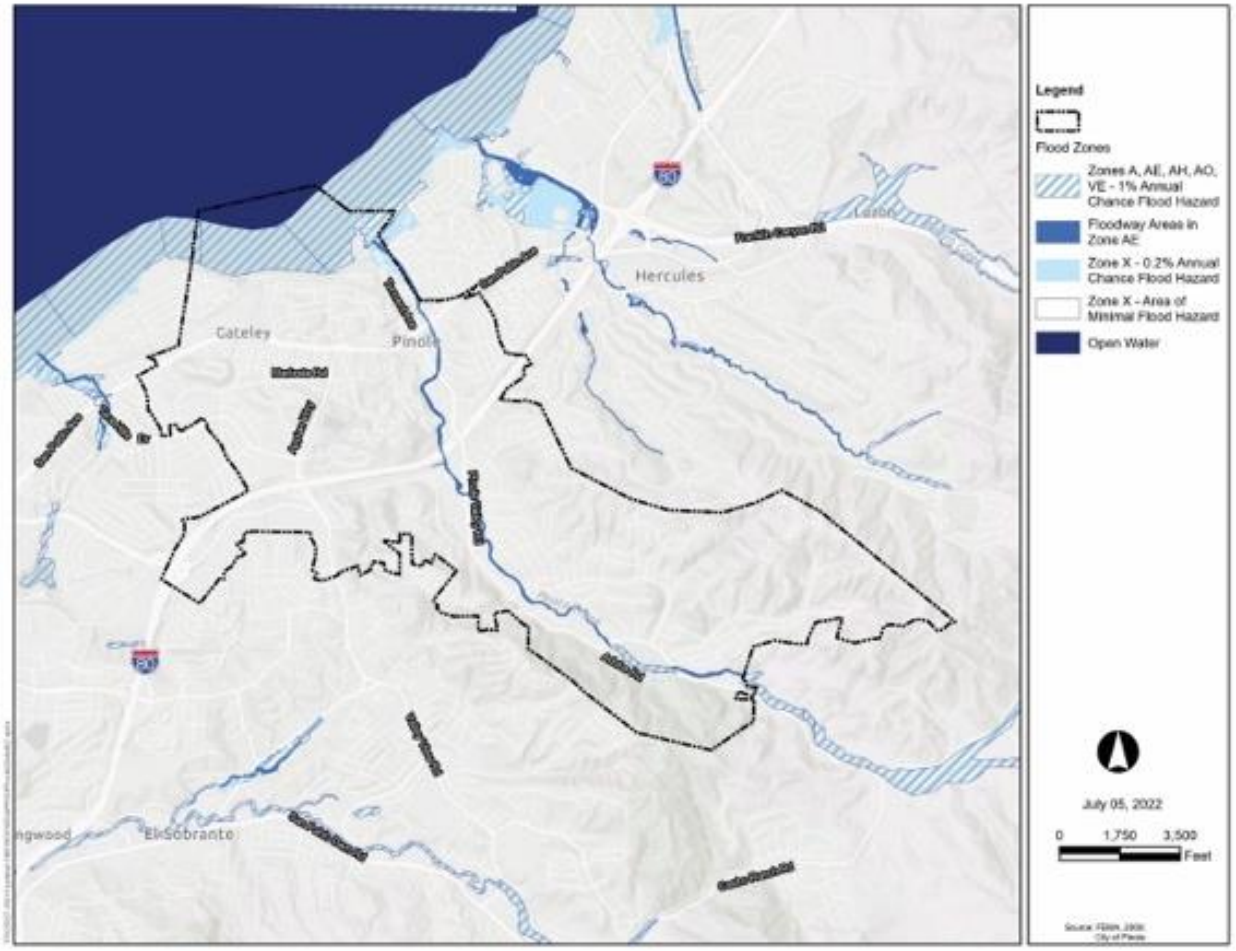
Flooding

The City of Pinole is located in a low flood zone. During heavy rain events and high tides, certain areas of the City may experience some flooding.

The FEMA National Flood Hazard Map has identified areas in Pinole that are subject to flooding, which are almost entirely located at the San Pablo Bay shoreline and along Pinole Creek- the two surface water features in the City. Coastal flooding of San Pablo Bay would potentially inundate areas along the northern coast of the City. Flood hazard zones have been mapped by FEMA that would result in the event of significant storm events. The flood hazard zone associated with San Pablo Bay would only affect the bay coastline area of the City and would not impact developments in the City. The flood zone is categorized as a FEMA 100-year flood hazard zone with a 1 percent annual chance of flooding.

Flood zones associated with Pinole Creek are primarily near San Pablo Bay in the northern area of the creek. The flood zone is categorized as a FEMA 500-year flood hazard zone with a 0.2 percent annual chance of flooding, which results from an extraordinary storm event. Flooding in this area is also unlikely and would not significantly impact critical infrastructure or notable areas within the City. The FEMA flood zones in the City are depicted in Figure 15.

Figure 15: FEMA Flood Zones

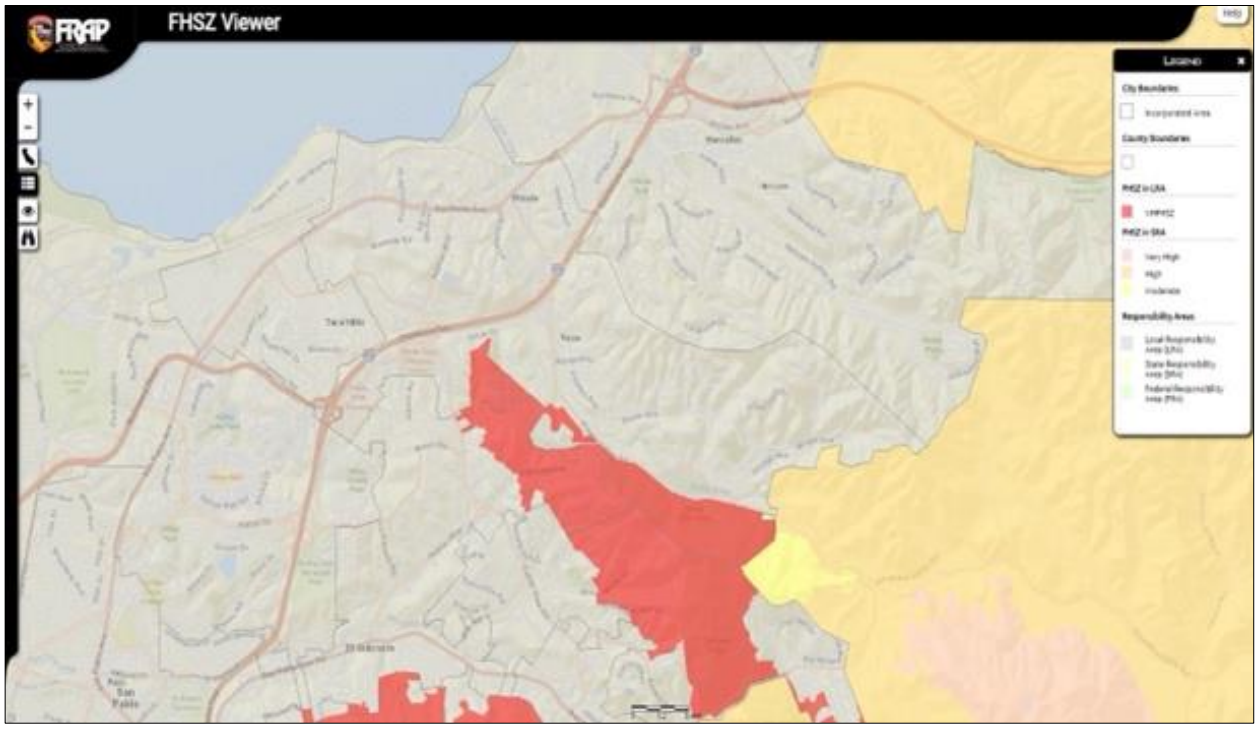


Fire

The Very High Fire Hazard Severity Zone (VHFHSZ) in Pinole is shown in Figure 16 and is located along the southwestern border of the City. Additionally, moderate fire severity areas are located directly south of the City's southern border.

The East Bay Municipal Utility District (EBMUD) maintains a Fire Management Plan, which includes the Pinole Valley watershed basin located within Pinole's sphere of influence. EBMUD provides fire suppression and protection services on watershed lands. influence, and the Community Services and Facilities Element for further discussion of EBMUD. The City of Pinole Fire Department provides fire protection services within the City limits and has long-term contracts to serve several county unincorporated neighborhoods adjacent to the City. The City is recently worked ConFire to negotiate a contractual arrangement for ConFire to take over all fire protection services (fire prevention, suppression, and emergency medical response), effective March 1, 2023. The Fire Department's mission is to provide for the safety and welfare of the public through preservation of life, property, and the environment. The Fire Department promotes disaster preparedness, fire prevention, and safety in the City by providing free services and safety devices, public outreach (schools, businesses) and public education and/or training courses (safety demonstrations including child car seat safety and earthquake preparedness), maintenance (station upgrades, etc.) and biannual inspections (commercial occupancies).

Figure 16: Fire Hazard Severity Zones



Source: CalFire FRAP

Water and Sewer Infrastructure

Provision of adequate water and sewer do not constitute a constraint on development in the City.

The East Bay Municipal Utility District (EBMUD) provides water service to the City. The City of Pinole and West County Wastewater District (WCWD) are the wastewater service providers to the City. Currently, there is adequate capacity available within EBMUD and both wastewater service providers sewer districts to handle development anticipated in the Pinole General Plan. The installed utilities that provide gas distribution, electric circuit, and service are also adequate to handle future development in Pinole.

The City complies with requirements regarding water and sewer priority allocation to affordable housing. As needed, the City will coordinate with EBMUD, WCWD, and the Pinole/Hercules Water Pollution Control Plant (WPCP) Joint Powers Authority to facilitate adoption of similar policies or to ensure adherence to California Public Utilities Commission policies on water/sewer priority for affordable housing. In 2016, the City adopted a policy for water and sewer services to provide priority allocation to affordable housing in the event a rationing system is implement.

The City of Pinole Public Works Department and West County Wastewater District maintain the City's sewer system. The City of Pinole is responsible for the collection and treatment of wastewater flows to their lift stations and treatment plant, the Pinole/Hercules Water Pollution Control Plant (WPCP). The Pinole/Hercules WPCP is owned and operated by a Joint Powers Authority comprising the Cities of Pinole and Hercules. The facility treats wastewater from both cities to secondary standards prior to discharge to San Pablo Bay. There are two operational discharge outfalls: deep-water and shallow water. The Deepwater outfall is shared with the Rodeo Sanitary District and is permitted by the Regional Water Quality Control Board (RWQCB). The shallow water outfall is not permitted but has been used during wet weather conditions when influent flows exceed the capacity of the deep-water outfall.

In 2019, the City completed a full-scale upgrade of the Pinole-Hercules Water Pollution Control Plant to expand its capacity, meet new discharge requirements and provide wet weather treatment capabilities. These improvements met new conditions in the renewed National Pollutant Discharge Elimination System discharge permit that entail the elimination of blending peak wet weather flows and use of the emergency outfall for peak wet weather flows less than 14.6 million of gallons per day (mgd).

The West County Wastewater District is responsible for collection and treatment of flows tributary to their lift stations and treatment plant. Approximately 0.4 square miles in Pinole lie within the district.

Affirmatively Furthering Fair Housing

Introduction

Assembly Bill (AB) 686 requires a jurisdiction's housing element to provide an analysis of contributing factors to fair housing issues and to commit to actively and meaningfully affirmatively further fair housing. This analysis includes an assessment of fair housing enforcement, outreach activities, integration and segregation, racially and ethnically concentrated areas of affluence and poverty, disparities in access to opportunities, disproportionate housing needs, and any other contributing factors that serve as impediments to fair housing. The assessment also analyzes the extent to which the identified Regional Housing Needs Allocation (RHNA) sites affirmatively further fair housing.

Outreach

The City of Pinole solicited community input throughout the Housing Element update process in a variety of ways. The main strategies to gather public participation are summarized below.

Outreach Activities

Community members were engaged using the following methods:

- Online survey in English, Tagalog, Cantonese, and Spanish
- Community Workshops
    - Workshops were recorded and made available on the City website in English, Tagalog, Cantonese, and Spanish
- Web page on City website
- Stakeholder focus groups/interviews
- Email list
- Postcards and flyers with links to project website, survey, community meeting dates, and notification of translation services
- Pinole Community Television advertisements
- Articles in the City's biweekly Administrative report
- Social media posts
- 11 Banners around the community and at community facilities
- Joint City Council/Planning Commission study session

Organizations Contacted and Consulted

Organizations contacted and interviewed included:

Affordable Housing Developers

- SAHA (Satellite Affordable Housing Associates)
- MRK
- BRIDGE Housing
- Community Housing Development Corporation

Business Groups

- Bayfront Chamber of Commerce
- Contra Costa College Economic & Workforce Development Department
- San Pablo Economic Development Corporation

Community and Environmental Justice Groups

- Communities for a Better Environment
- Environmental Justice League
- Friends of the Library
- Richmond Pinole Lions Club
- Friends of Pinole Creek Watershed
- Pinole Garden Club
- Pinole Seals Swim Club
- Pinole for Fair Government
- West County League of Women Voters
- Contra Costa Builders Exchange
- Building Industry Association of the Bay Area
- Contra Costa Association of Realtors
- Pinole Historical Society
- Their Club (youth group)
- The Quinan Street Project

Major Employers

- Kaiser Permanente
- Target

- West Contra Costa Unified School District

Real Estate and Construction Groups

- Coldwell Banker Real Estate (Pinole Branch)
- Security Pacific Real Estate Brokerage (Richmond Branch)
- DeNova Homes
- BGAM - Property Management
- Sequoia Real Estate

Religious Organizations and Churches

- Church of Christ
- Nichiren Shoshu Myoshinji Temple
- Pinole Valley Community Church
- St. Joseph's Church
- Valley Bible Church
- Christ the Lord Church
- Sunset Evangelistic Center

Service Providers

- Eden Council for Hope and Opportunity (ECHO)
- Disabled People's Recreation Center
- Cole Vocational Services
- Pinole Senior Center
- EAH Housing
- Housing Authority of Contra Costa County
- Bay Area Rescue Mission
- Contra Costa Health Services
- The Salvation Army
- Meals on Wheels Contra Costa County
- Contra Costa County Aging & Adult Services
- HOPE Solutions
- Pathway to Choices
- East Bay Housing Organizations

- Pinole Library

The City made a comprehensive effort to reach lower- and moderate-income individuals to participate in the Housing Element Update. As noted above, the City develop a multi-lingual outreach campaign, contacted a variety of local organizations including advocacy groups and the fair housing service provider, local service providers, and community centered organizations. Postcards were sent to every household in the City inviting them to participate in the Housing Element update process. The City will continue efforts to develop culturally competent outreach programs to connect residents to anti-displacement programs and affordable housing resources with the implementation of Program 20, Program 21, Program 22.

Housing Element Update – City Website

The City created the Housing Element update web page on the City's website to provide:

- Background and information on the Housing Element process;
- Link to the Housing Element update survey;
- Documents related to the Housing Element;
- Recordings of the Community Workshop presentations in English and Spanish;
- Notification to the public of future events; and
- Notification and interest sign-up lists and comment and question pathways for residents to get involved in the process and to provide comments or questions to the project team or City representatives.

Stakeholder Interviews

The City reached out to 58 individuals who represented a diverse range of agencies and organizations to participate in interviews and focus groups regarding the housing needs and issues in Pinole. Five interviews/focus groups were held on June 30, July 25, and July 26, 2022. The stakeholder groups that participated included the following:

- Friends of Pinole Creek Watershed (June 30, 2022, focus group)
- Pinole Valley Community Church (June 30, 2022, focus group)
- BGAM Property Management (June 30, 2022, focus group)
- Pinole Rotary Club (July 25, 2022, one-on-one interview)
- Contra Costa Association of Realtors (July 26, 2022, one-on-one interview)

The stakeholders discussed a variety of concerns and the following key themes were identified:

- Protect and promote the character of Pinole while providing a variety of housing options.

- Provide housing near community facilities and amenities like parks, open space, and transportation.
- A lack of affordable housing options and how to incentivize multifamily and affordable development in the City.
- Habitat restoration and protection needs to be considered when locating housing sites.
- Need for more education and outreach to inform residents of housing law and what affordable housing is, to shift the perceived stigma.
- Provide protections and resources for seniors, first-time homebuyers, and lower- and middle-income individuals.

Housing Element Survey

Another component of the outreach effort was the Housing Element survey, posted on the City's website from May 2022 through August 2022, and promoted through a variety of channels to reach the entire community. Although the survey was offered in four languages (English, Spanish, Cantonese, and Tagalog), all respondents participated in English. As of the close of the online survey on August 15, 2022, the City received a total of 149 completed surveys. Of those who responded, 63 percent of respondents were homeowners, 49 percent of respondents were white or Caucasian, and 35 percent were a senior out of the 100 responses who answered the question (49 respondents skipped this question). Responses to the survey primarily revealed concerns from residents regarding:

- Difficulty paying rent, mortgage, or down payment
- Substandard housing quality
- Strong support for workforce housing
- Improvements to infrastructure and access to community amenities

Responses to the survey revealed particular concern about the following groups being able to find an affordable place to live in Pinole: persons experiencing homelessness, lower- and middle-income workers, and the elderly. The housing issues that survey respondents were most concerned about were poor infrastructure in neighborhoods (streetlights, sidewalks, roadways, etc.), followed by overcrowding and homelessness.

Public Workshops

The City held two virtual public workshops—Wednesday, May 11, 2022, and Thursday, June 9, 2022, both at 7:00 p.m.—to present information on the Housing Element update and gather public input. Twenty-five members of the community participated in the workshops and provided feedback through question and answer sessions in the Housing Element update process including housing needs (workshop #1) and the potential RHNA sites, draft goals, and programs (workshop #2). Live Tagalog, Cantonese, and Spanish interpretations

were provided, recorded, and posted on the project webpage for both workshops for those who could not attend, or who wanted to review the materials and meetings at their leisure.

Assessment of Fair Housing Issues

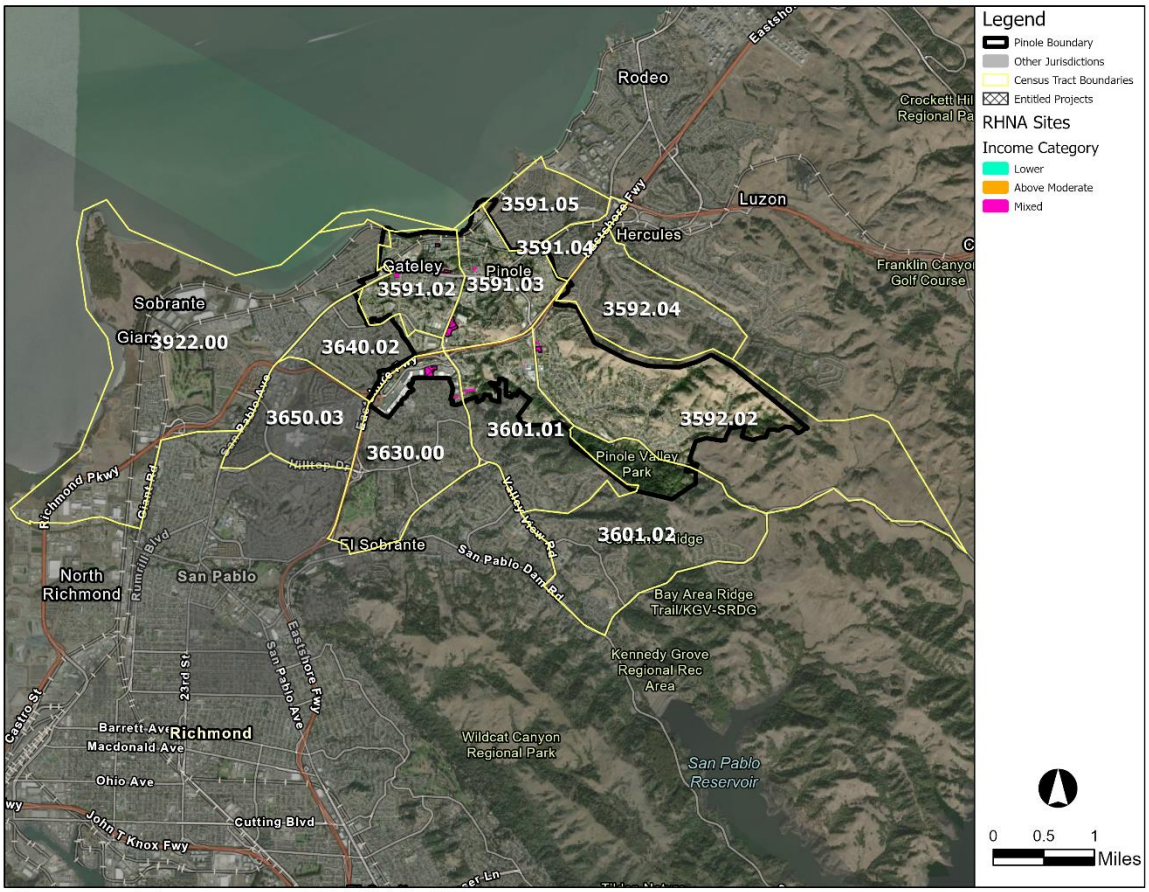
City Overview

Pinole is located in Contra Costa County, in the Oakland-Hayward-Berkeley, CA Metropolitan Statistical Area. The City is bordered on the north by San Pablo Bay, on the southeast bay regional park lands, and on the remain sides by surrounding jurisdictions. Pinole is approximately five square miles of land and is bisected by Interstate 80.

Much of the fair housing analysis is based upon census data provided at the census tract level. Figure 17 displays the census tracts in the City. Many tracts have a small area within the City of Pinole, but the majority of their area is located outside city limits. Two of the census tracts (tracts 3630 and 3640.02) have very little housing and are primarily commercial developments and Interstate 80. Census tract 3601.02 is completely occupied by the Pinole Valley Park, which is open space available to the public, and does not have any commercial or housing developments. Most of the housing in Pinole is located in four census tracts: 3591.02, 3591.03, 3592.02, and 3601.01.

The Affirmatively Furthering Fair Housing (AFFH) section also considers the effects that the selected RHNA sites may have on fair housing. Selected RHNA sites and entitled projects are relatively distributed throughout the City.

Figure 17: Census Tracts and RHNA Sites



Census Tracts and RHNA Sites

Source: HCD AFFH Data Viewer

Nine of the twelve census tracts that intersect Pinole have the majority of their area located outside city limits. Three census tracts make up the majority of the land area of the City, as noted in Table 70. Pinole is split between the Low and Moderate Opportunity categories. These are relative rankings based on composites of the environmental, economic and education scores. The discrepancies between the scores for the three census tracts that comprise the majority of Pinole are not as large as the maps might suggest. Of the three main tracts in the City, the environmental opportunity scores range from 0.46 to 0.76, just beyond the 0.50 to 0.75 range. The economic scores of the three primary tracts range from 0.21 to 0.26, showing little variation despite the category break at 0.25. This demonstrates there is a smaller economic discrepancy than the map suggests. Similarly, the vast majority of the City is in the same 0.25 to 0.50 educational opportunity category. While the composite ranking derived from these three component scores are not enumerated, these slight variations in the individual component scores suggest that there is likely relatively little variation in the overall composite scores.

The median incomes of the tracts that make up the majority of the City, thus also being the tracts where the majority of sites are located, cover a relatively small range between $66,000 and $86,000. Similarly, there is little discrepancy between these tracts in percent of the population that is non-white, with a range generally between 60 and 74 percent.

When evaluating the City for segregation, the City has a moderate dissimilarity index of 31.86, which is just above the threshold of 30.0 for low segregation. Segregation at the City level is much lower than 47.32 index for Contra Costa County as a whole. The location of the RHNA sites will not exacerbate the relatively small differences in the fair housing considerations (segregation, integration, or access to opportunity) between the primary tracts in Pinole.

The eastern portion of Pinole, Tract 3592.02, is largely built out. The lower density single family land use pattern is firmly set and is not likely to change in the foreseeable future. Higher density development was and is limited by steep slopes and a lack of access to transportation, services and employment. There is limited opportunity for significant development in these areas and are not likely to redevelop in the next eight years. The area has slightly higher household incomes in comparison to the other two census tracts in Pinole. The TCAC maps designated the area as Moderate Opportunity designation. The City is including Program 4, Program 5, and Program 23 to facilitate and encourage increased access to these areas via ADU and SB 9 development in these neighborhoods. Additionally, Program 11 creates a tenant-matching program, including creating a set of materials provided to ADU applicants at the time they apply for a building permit or ADU permit. These affirmative marketing materials will include contact information for housing service providers (such as the home share programs) and non-profit housing organizations that serve lower-income tenants in the surrounding region. Interested residents can use these materials and tenant-matching program to find prospective tenants in a larger market area beyond city limits, including residents of all races, ethnicities, ages, and abilities. A Home Sharing and Tenant Matching program can also assist in helping those who work in Pinole, including teachers, find housing options in the City.

There are only six proposed RHNA sites. All six are identified as mixed-income sites that are already zoned for high density residential and allow for all income levels. Two of the six opportunity sites are commercial non-vacant sites. One is in the moderate opportunity area, the other is in the lower opportunity area. Listing a site does not require development of affordable housing. Listing and future development of the six opportunity sites is not expected to change or exacerbate fair housing considerations of segregation, integration, or access to opportunity. The number of sites is too few, the effect of listing the sites is minimal, and listing the sites simply identifies the most suitable, eligible, qualified, and likely to be developed sites in next 8 years.

The majority of RHNA sites are located along the mixed use corridors, where there is greater access to transit employment and services. Concentrations of sites are not varied by income level. There is a relatively even distribution of lower, moderate, and above-moderate income units throughout the City, as illustrated by Table 70 and the subsequent bar graphs throughout the fair housing analysis. There are low resource tracts with higher concentrations of the lower-income units, as well as low resource tracts with higher concentrations of above-moderate-income units. There are no patterns of segregation exacerbated by the location of the RHNA sites by income category. The City is including Program 19, a place-based improvement program to ensure that the RHNA sites will improve access to resources throughout the City.

Table 70: Comparison of Fair Housing with Respect to Location

Tract	Low	Mod	Above Mod	RHNA Units*	TCAC Composite Category	Median Household Income	Total Households	% of Population with a Disability	% of Children in FHH	Total Population	CalEnviroScreen Percentile	% Non-White
Census Tracts Mostly Inside of Pinole												
3591.02	204	47	12	263	Low Resource	$66,897	1,849	13.6%	27.6%	5,159	40.5	74.0%
3591.03	16	27	126	169	Low Resource	$74,125	1,957	11.4%	28.4%	5,051	48.6	62.6%
3592.02	15	3	25	43	Moderate Resource	$86,086	2,207	17.1%	18.5%	6,148	19.5	60.0%
Census Tracts Mostly Outside of Pinole												
3591.04	0	0	0	0	Moderate Resource	$72,569	849	12.4%	36.2%	1,932	33.1	82.3%
3591.05	0	0	0	0	Moderate Resource	$117,885	1,510	7.6%	8.2%	4,542	25.4	84.8%
3592.04	0	0	0	0	Moderate Resource	$117,986	1,525	10.7%	11.1%	4,702	22.0	83.4%
3601.01	18	6	4	28	Low Resource	$85,859	1,577	17.1%	6.8%	4,576	37.0	62.6%
3601.02	0	0	0	0	Moderate Resource	$110,395	1,526	12.0%	8.9%	4,326	5.2	61.4%
3630.00	46	6	196	248	Low Resource	$66,705	2,664	16.4%	15.6%	7,043	41.2	67.2%
3640.02	0	0	2	2	Low Resource	$57,726	1,829	10.6%	25.1%	5,518	68.4	77.4%

3650.03	0	0	0	0	Low Resource	$65,938	2,170	14.4%	19.3%	4,924	52.0	82.2%
3922.00	0	0	0	0	Low Resource	$73,814	3,173	13.7%	22.8%	10,605	86.4	83.5%

*Includes entitled projects

Fair Housing Enforcement and Outreach Capacity

Fair housing enforcement and outreach capacity refers to the ability of a locality and fair housing entities to disseminate information related to fair housing laws and rights and provide outreach and education to community members. Enforcement and outreach capacity also includes the ability to address compliance with fair housing laws, such as investigating complaints, obtaining remedies, and engaging in fair housing testing.

In Contra Costa County, local housing, social services, and legal service organizations include the Fair Housing Advocates of Northern California (FHANC), Eden Council for Hope and Opportunity (ECHO) Fair Housing, and Bay Area Legal Aid.

The Department of Housing and Urban Development's Office of Fair Housing and Equal Opportunity (HUD FHEO) enforces fair housing by investigating complaints of housing discrimination. Table 71 shows the number of FHEO filed cases in Contra Costa County between 2015 and 2020. A total of 148 cases were filed between 2015 and June 30, 2020, with disability having the highest number of allegation basis followed by racial discrimination and familial status.

Table 71: FHEO Cases in Contra Costa County, 2015-2020

Year	Number of Field Cases	Disability	Race	National Origin	Sex	Familial Status
2015	28	17	4	2	2	4
2016	30	14	8	7	5	6
2017	20	12	3	5	1	5
2018	31	20	6	3	4	9
2019	32	27	4	4	4	1
2020	7	4	1	0	2	1
Total	**148**	**94**	**26**	**21**	**18**	**26**

Source: Department of Housing and Urban Development Office of Fair Housing and Equal Opportunity

Fair housing services are provided to residents of Pinole primarily through the Eden Council for Hope and Opportunity (ECHO) Housing. ECHO Housing is a US Department of Housing and Urban Development (HUD) approved housing counseling agency, which provides tenants and landlords in Contra Costa County and the region with services that include tenant's rights workshops, landlord training, rent review and eviction assistance, and mediation services. ECHO Housing has offices in Antioch, Alameda, and Monterey. Additionally, Bay Area Legal Aid provides legal assistance to low-income residents for a wide range of issues, including eviction issues, rent raises, and housing conditions and

discrimination. Bay Area Legal Aid has offices in Richmond, Oakland, and Napa, as well as other cities in the Bay Area. This organization also offers monthly housing rights clinics in Richmond.

The Office of Fair Housing and Equal Opportunity (FHEO) received 11 fair housing inquiries between 2013 and 2021. Three of the inquiries were regarding disability discrimination, one was regarding national origin, and the remaining were found to have no identity-related basis. Seven of the cases were found to have no basis or valid issue, and the remaining were not pursued.

In Pinole, three inquiries were made to ECHO regarding fair housing between 2016-2020. The nature of the first allegation in 2017 was on fair housing discrimination on the basis of racial discrimination. ECHO provided counseling to the client and landlord. The second and fourth inquiry occurred in 2020 and was also on the basis of racial discrimination. Testers from ECHO were sent for investigation but found insufficient evidence to move forward on all three inquiries.

According to the Pinole Housing Element Update survey 39 percent of respondents were not concerned with housing segregation and discrimination with the next highest respondent rate at 19 percent who were somewhat concerned with housing segregation and discrimination.

In addition to the efforts of the above nonprofit groups, Contra Costa County enacted an eviction and rent increase moratorium on April 21, 2020. The eviction moratorium for certain residential tenants and a moratorium on certain residential rent increases ended on September 30, 2021, and has not been extended. Protections laid out in the memorandum include the following: prohibition on evictions due to unpaid rent (related to COVID-19), ban on no-fault evictions, moratorium on rent increases, a 120-day grace period to pay back rent, and no late fees for back rent.

The City of Pinole adheres to all state and federal fair housing laws and is committed to continuing to do so.

Integration and Segregation

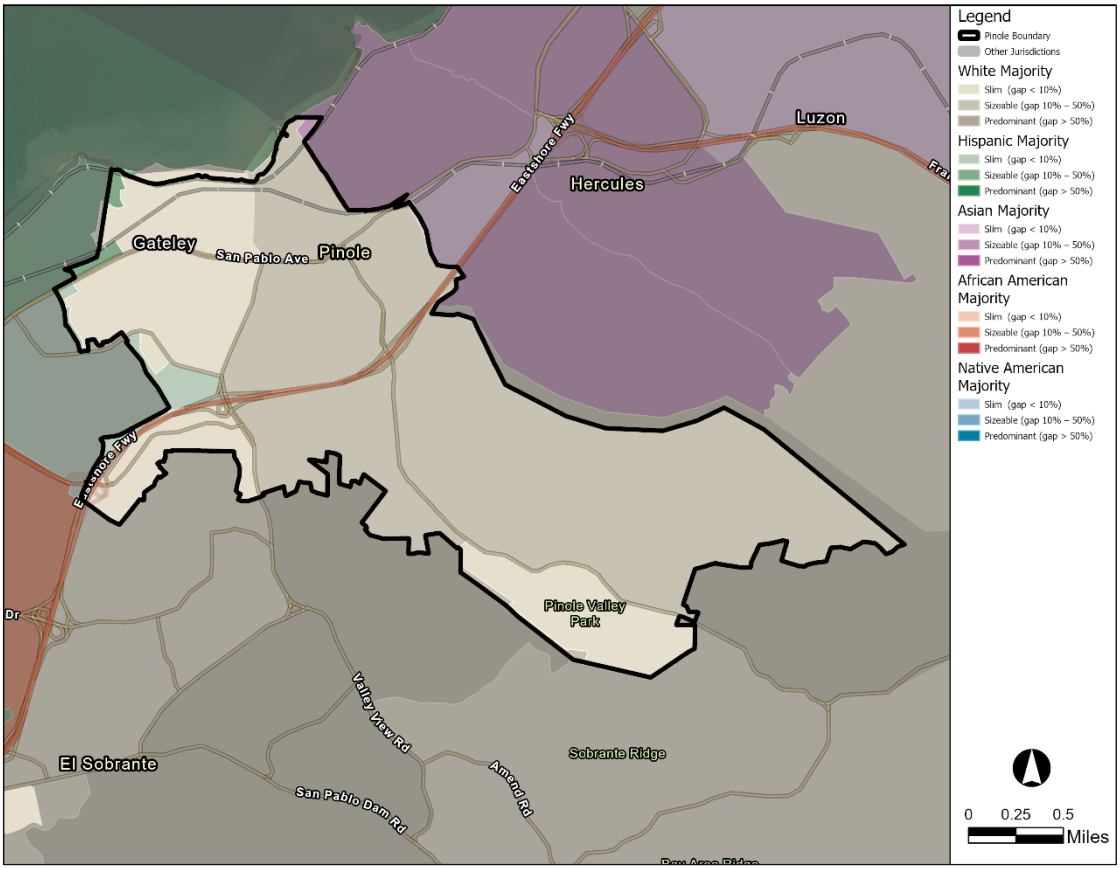
Race and Ethnicity

Figure 18 shows the racial and ethnic majority by census tract in the City of Pinole. As illustrated, almost the entirety of the City has a sizable White majority, with a small portion in the west having a slim White majority. Just outside city limits, there is an Asian majority to the east and a Hispanic majority in the west. The portions of the City in the west with a slim White majority are also the areas where poverty and single female-headed households are more prevalent.

These trends continue beyond the bounds of the City. Pinole has comparable racial trends to the County and the Bay Area as a whole. A predominant discrepancy is Pinole's prominent

Asian population, which makes up 27 percent of the City, while Countywide, the Asian population is about 17 percent of the overall makeup. Pinole has a prominent Filipino population. The Contra Costa County Analysis of Impediments to Fair Housing Choice notes that since 1990 segregation for African Americans has decreased and segregation levels for Hispanics and Asians and Pacific islanders have increased in the County and Region.

Figure 18: Racial and Ethnic Majority, 2010



Racial and Ethnic Majority, 2010

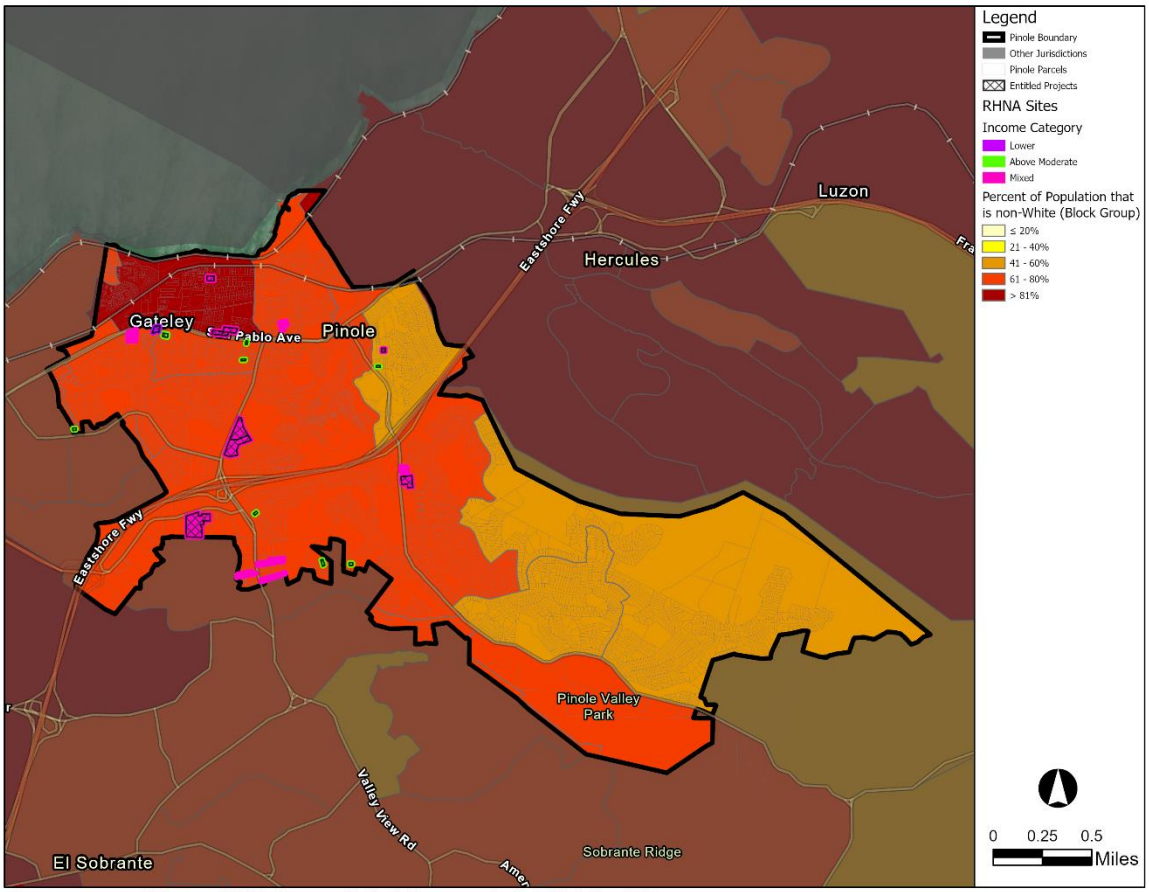
Source: HCD AFFH Data Viewer

Figure 19 shows the percent of the population in each block group that is non-White. As shown in Figure 19, the northwest portion of the City has the highest percent of the population that is non-White. The majority of Pinole has a non-White population between 41 to 60 percent. Three block groups in eastern Pinole have the lowest amount of non-White population, between 21 and 40 percent. The portions of the City in the west with a larger non-White population are also the areas where poverty and single female-headed households are more prevalent.

As of 2019, 67 percent of the City was non-White, while 56 percent of the County was non-White, and 61 percent of the Bay Area region was non-White. The overall distribution of the

non-White population is comparable between the City and the region as a whole, with a slightly higher proportion in Pinole.

Figure 19: Percent non-White, 2018 and RHNA Sites

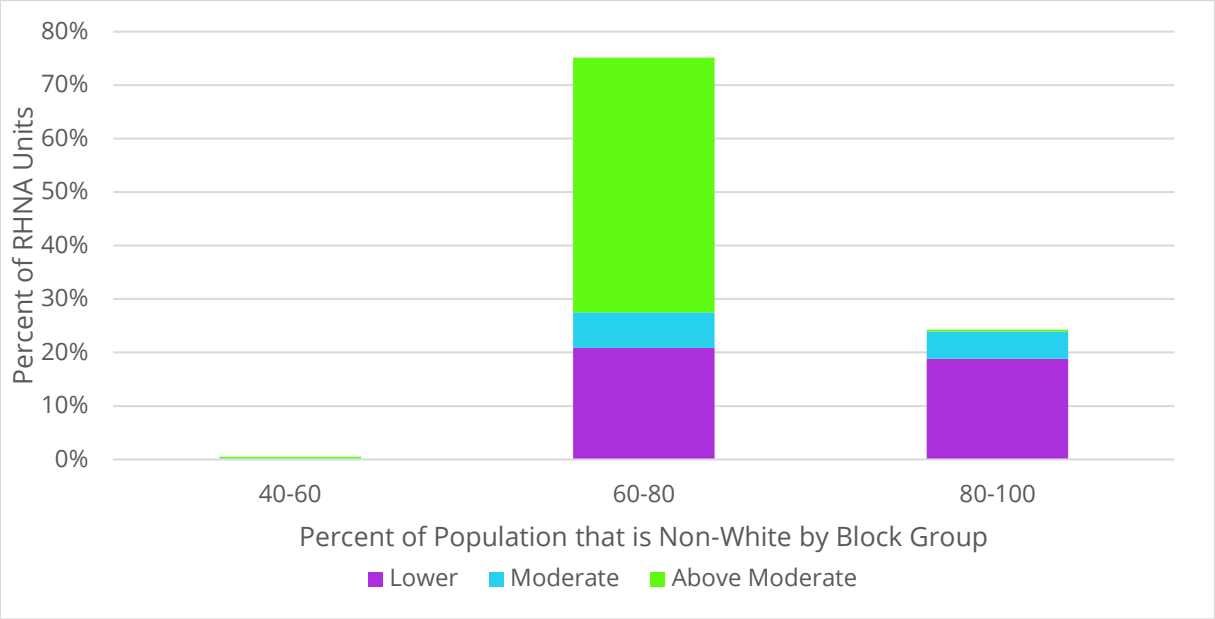


Percent Non-White, 2018 and RHNA Sites

Source: HCD AFFH Data Viewer

Figure 20 compares the RHNA units with the total percentage of the population that is non-White. The sites are relatively evenly distributed throughout the City, without a concentration in any specific area. As the non-White population is distributed across the City as well, it is unlikely that the RHNA site selection will exacerbate any conditions or make any negative changes to fair housing conditions as they pertain to the non-White population.

Figure 20: Percent non-White Comparison of RHNA Units



Dissimilarity Index – Race and Ethnicity

Segregation is defined by the census as the spatial distributions of different groups among units in a metropolitan area. Segregation can be quantified by using the dissimilarity index, which measures the distribution of two groups in a city and assigns a score between 1 and 100. The level of segregation is determined by assessing what percentage of residents in a census block would have to move for each block to have the same proportion of said group. A score of zero (0) reflects a fully integrated environment; a score of 100 (or 100%) reflects full segregation. Therefore, a higher dissimilarity index indicates higher concentrations of the indicated ethnic groups in areas of the City, when compared to the White population distribution. A lower dissimilarity index implies higher integration, and a more even distribution of each ethnicity when compared to the White population. The formula for this calculation is provided by California Department of Housing and Community Development's (HCD) AFFH Guidance Document.

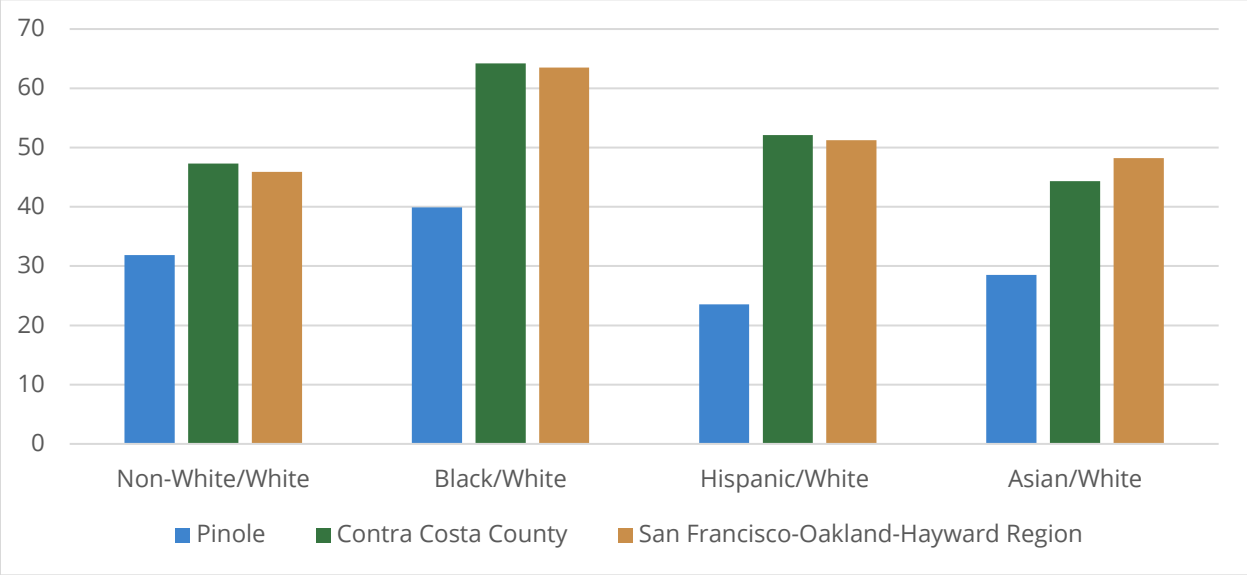
The categories for the dissimilarity index on a scale of 1-100 are as follows:

- <30: Low Segregation
- 30-60: Moderate Segregation
- >60: High Segregation

Figure 21 provides the dissimilarity index values in Pinole, Contra Costa County, and the MSA region as a whole, indicating the level of segregation between White residents and residents who are non-White, Black, Hispanic, or Asian. In Pinole, there is moderate segregation

between the Black and White populations. There is low segregation between the Hispanic and White populations and between the Asian and White populations. Overall , the City has a moderate dissimilarity index of 31.86, which is just above the threshold for low segregation. Segregation at the City level is much lower than Contra Costa County as a whole.

Figure 21: Dissimilarity Index for Race, 2020



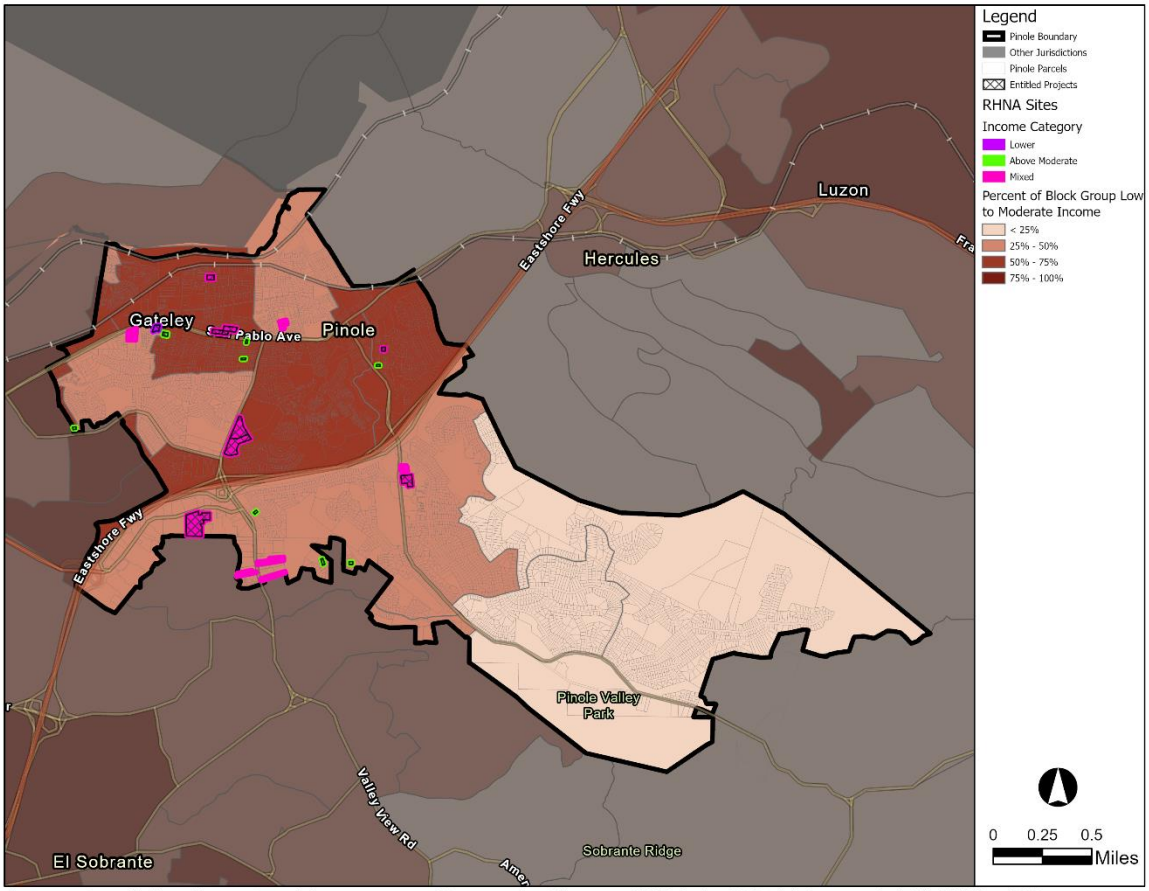
Source: American Community Survey 2020 5-Year Estimates, Contra Costa County Analysis of Impediments to Fair Housing

Income

The dissimilarity index can also be used to calculate income segregation, using the same scale as above. In the Bay Area region, income segregation is moderate with an income dissimilarity of 35.1. In Pinole, income dissimilarity is 26.6, indicative of low segregation.

As shown in Figure 22, and in comparison with Figure 19 above, the area in the western portion of the City with the greater concentration of the low- to moderate-income population is also the area with larger non-White population. It is also where the households at the poverty level and single female-headed households are more prevalent. Approximately 47 percent of the entitled and proposed units are located in an area where 50 to 75 percent of the households are low to moderate income.

Figure 22: Low to Moderate Income Population, 2011–2015 and RHNA Sites



Low to Moderate Income Population, 2011-2015 and RHNA Sites

Source: American Community Survey 2010-2014

The City established a vision to focus growth along the corridors in the Three Corridors Plan, which has access to transit, employment opportunities, and community resources. Additionally, conversations with affordable and market rate developers noted that the availability of vacant and underutilized land along these corridors was a factor in what led to developing in Pinole. Affordable housing developers referenced the increased availability of funding for projects in these corridors as they ranked higher for competitive funding sources.

The eastern portion of Pinole with lower percentages of a low-moderate income population are characterized by constrained lands with steep sloped and open spaces. The developable portions have been recently developed and are therefore among the most expensive in the City. There is limited opportunity for significant development in these areas and are not likely to redevelop in the next eight years. Due to the relatively new homes and low density development in these areas due to environmental constraints, these low density neighborhoods correlate with higher household income. Additionally, there is limited access

to transit, employment and services. The City is including Program 4, Program 5, and Program 23 to facilitate and encourage ADU and SB 9 development in these neighborhoods.

The majority of RHNA sites are located along the mixed use corridors, where there is currently a more predominant low to moderate income population, as shown in Figure 23. The City is including Program 19, a place-based improvement program to ensure that the RHNA sites will improve access to resources throughout the City. RHNA sites selected are those that are most likely to develop in the next eight years, have access to infrastructure, transit, employment, and services.

Figure 23: Low to Moderate Income Population Comparison of RHNA Units

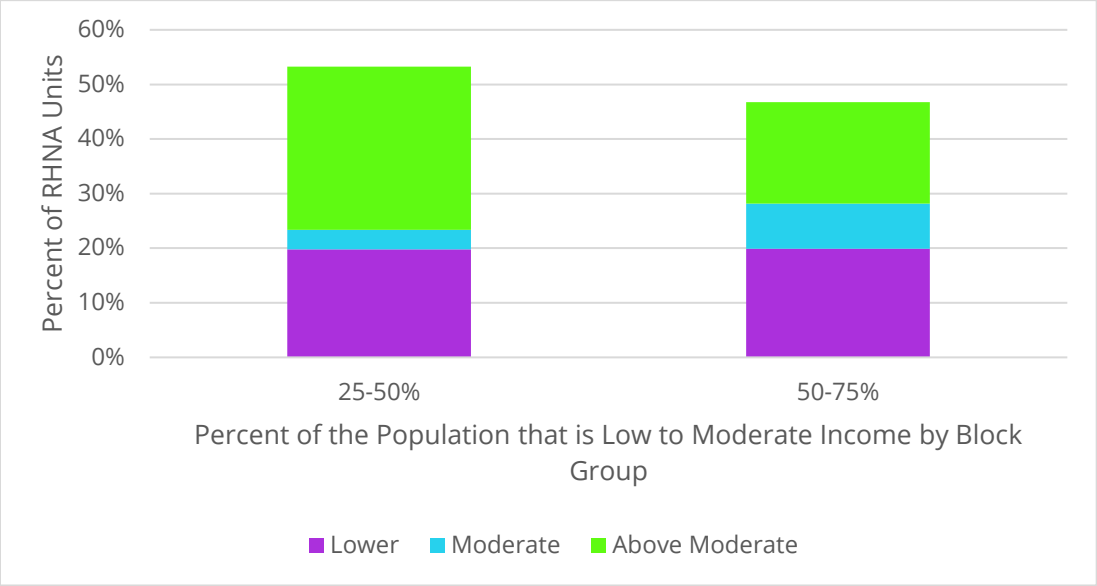
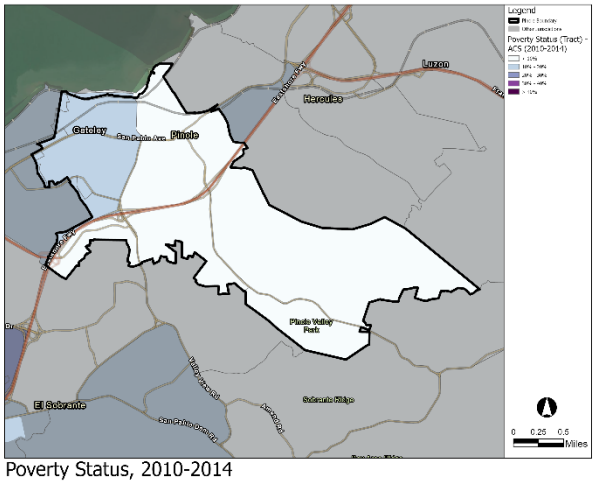


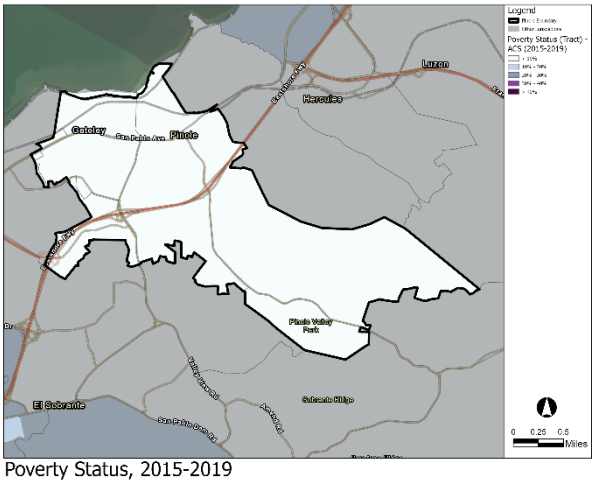
Figure 24 shows the change in the population under the federal poverty line by census tract from 2010-2014 to 2015-2019. Poverty is defined by incomes falling below the annually defined thresholds for family size by the Census. As shown in Figure 24, there are no census tracts in Pinole where more than 10 percent of the population experiences poverty. Poverty levels have decreased over time, as the median income has risen in Pinole. In 2020, 3.7 percent of Pinole's overall population was below poverty level. Poverty in Contra Costa County is also low, with overall 8.2 percent of the population living below poverty level.

As there are no concentrations of poverty in the City, the distribution of the sites is unlikely to have an effect on distribution of poverty.

Figure 24: Poverty Status, 2010-2014 and 2015-2019



Poverty Status, 2010-2014

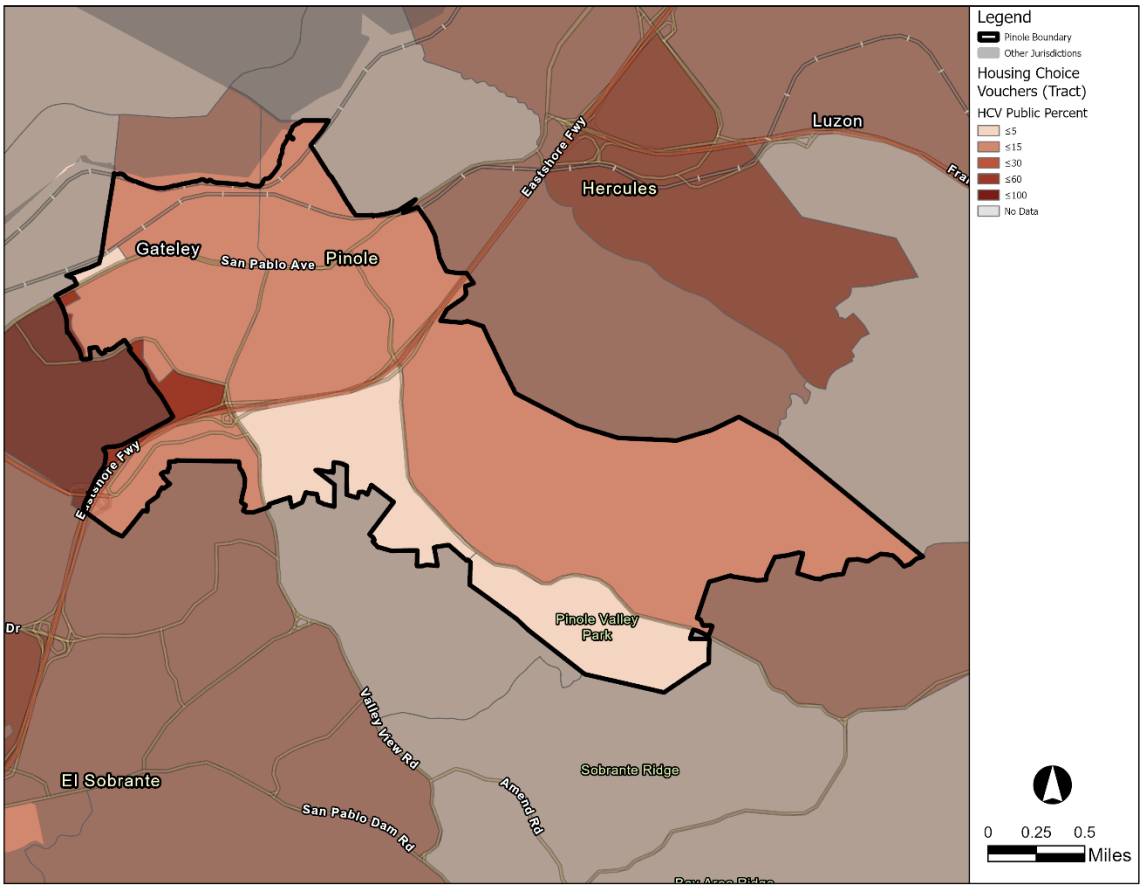


Poverty Status, 2015-2019

Source: HCD AFFH Data Viewer

Figure 25 displays the distribution of housing choice vouchers (HCV) in the City. The HCV program is a 100 percent federally funded rental subsidy for low-income households living in privately owned rental units. The Contra Costa Housing Authority administers the HCV program for those in Pinole. The HCV program makes payments directly to the landlord and allows households to choose where they want to live, as long as it is up to minimum standards. Voucher amounts are dependent on family size and income and can expand housing choice and options for those on limited incomes, including those with low incomes, people with disabilities, and the elderly. As of 2010, there were 100 households using HCVs in the City of Pinole.

Figure 25: Housing Choice Vouchers, 2010



Housing Choice Vouchers, 2010

Source: HCD AFFH Data Viewer

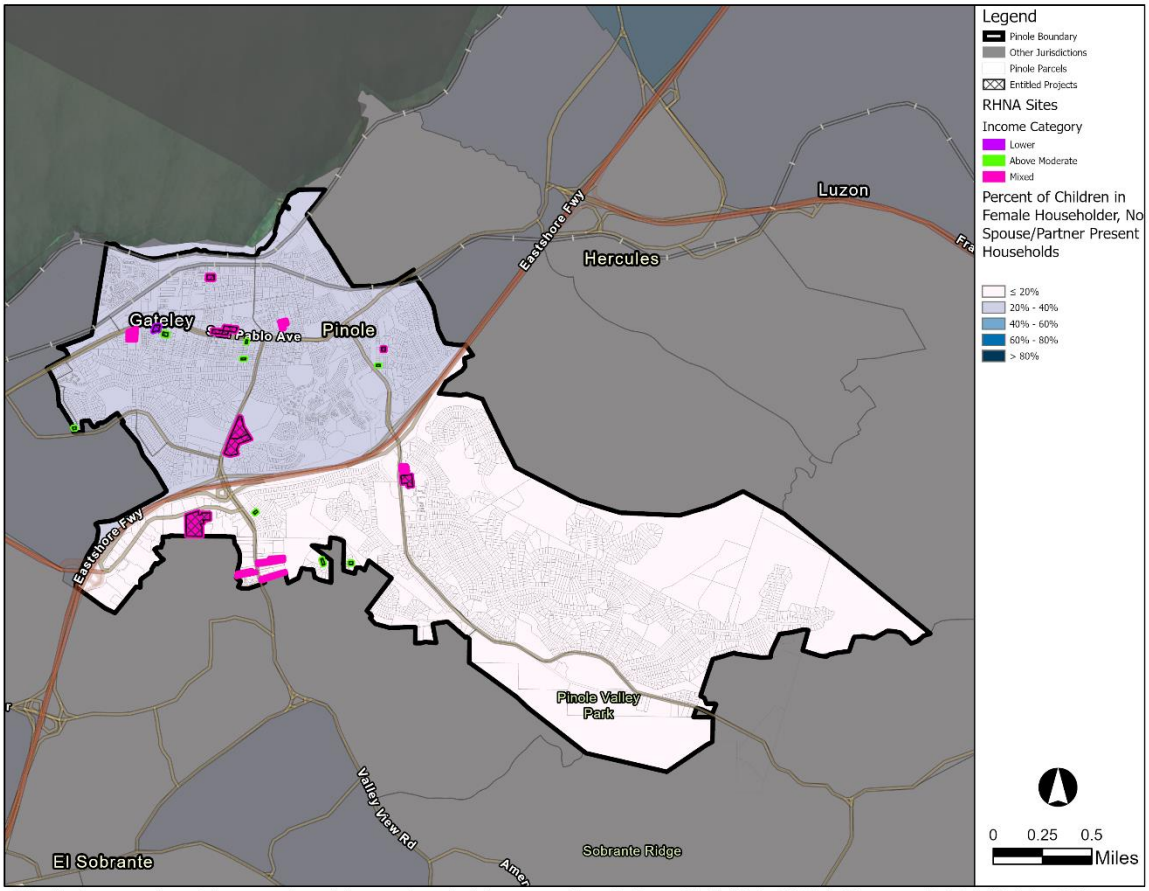
Familial Status

Figure 26 shows the percentage of children that are living in female-headed households with no spouse by census tract. It also shows entitled and proposed RHNA sites. In 2020, 1,050 households, or 15.5 percent of the total households in Pinole, were female-headed households, which is only slightly higher than the 12.0 percent for the County.

Four of Pinole's census tracts have less than 20 percent of children in female-headed households. These tracts are east of Interstate 80 (Eastshore Freeway). Conversely, all tracts west of Interstate 80 have between 20 and 40 percent of children in female-headed households.

As shown in Figure 27, about 58 percent of RHNA sites are in a tract where 20-40 percent of children are in female-headed households. There are no areas of the City where more than 28 percent of children are in female-headed households. RHNA sites are not expected to impact fair housing concerns based on familial status.

Figure 26: Children in Female-Headed Households and RHNA Sites, 2015-2019



Children in Female-Headed Households, 2015-2019 and RHNA Sites

Source: HCD AFFH Data Viewer

Figure 27: Female-Headed Households comparison of RHNA Units

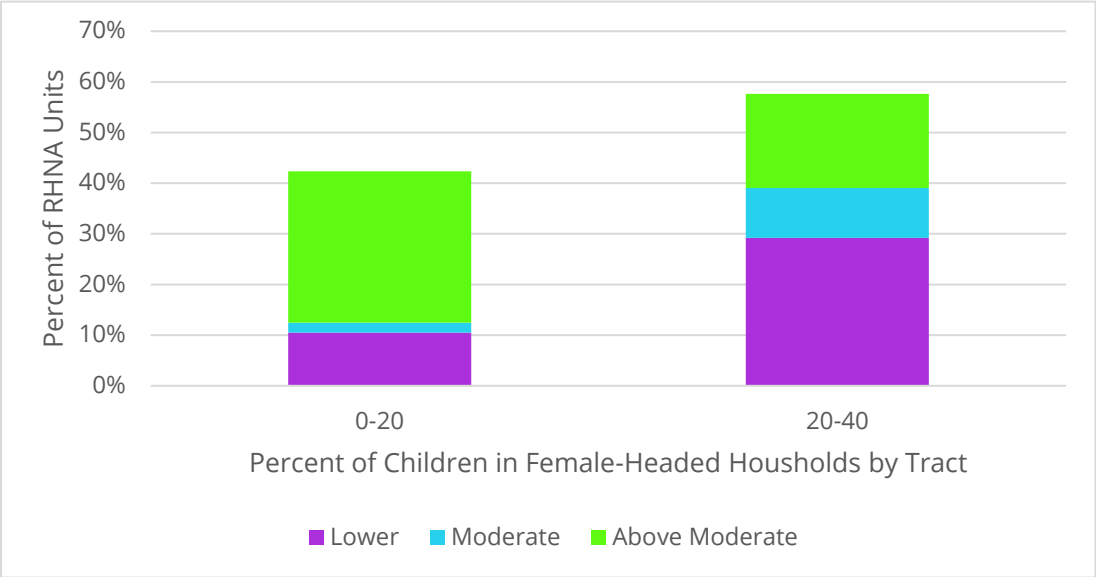
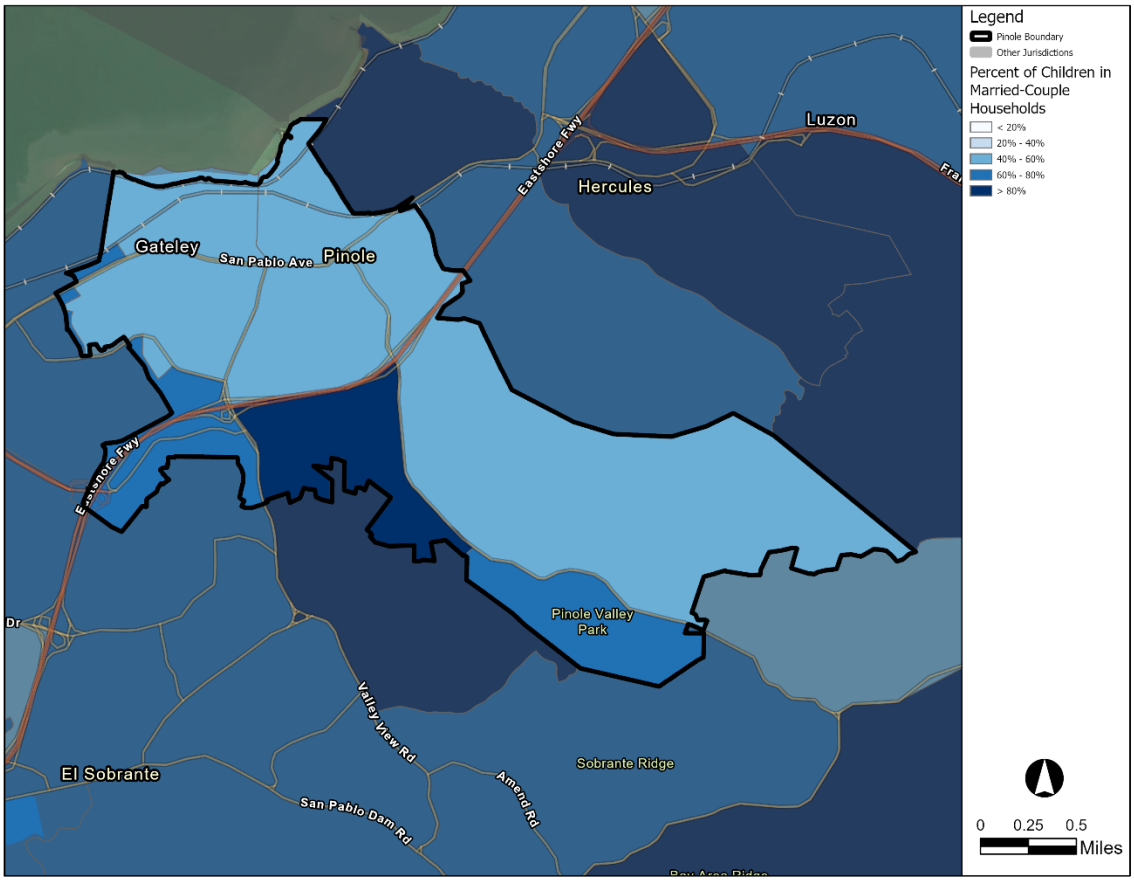


Figure 28 shows the percentage of children in married couple households. No census tract in Pinole has less than 40 percent of children in married couple households. Most of the City's residential census tracts are in the 40 to 60 percent range, while census tract 3601.01 has a percentage of children in married couple households of 80 percent or more. In the City of Pinole, 23.3 percent of households are married couple households with children present, compared to 34 percent Countywide. RHNA sites are not expected to impact fair housing concerns based on familial status.

Figure 28: Children in Married Couple Households, 2015-2019



Children in Married-Couple Households, 2015-2019

Source: HCD AFFH Data Viewer

Persons with Disabilities

The US Census Bureau provides information on the number of persons with disabilities of varying types and degrees. According to the US Census Bureau, a person is considered to have a disability if they have difficulty performing certain functions or difficulty with certain social roles. Affordability of appropriate housing and access, both within the home and to/from the home site, are the primary challenges for persons with disabilities. Access often requires specially designed dwelling units. Additionally, housing locations near public facilities and public transit are important for this special needs group. In 2019, it was estimated by the Census that 14 percent of the population in Pinole, 11 percent in Contra Costa County, and 10 percent in the Bay Area region have a disability. Types of disabilities included in the Census are:

- Hearing difficulty: deaf or has serious difficulty hearing
- Vision difficulty: blind or has serious difficulty seeing even with glasses

- Cognitive difficulty: has serious difficulty concentrating, remembering, or making decisions
- Ambulatory difficulty: has serious difficulty walking or climbing stairs
- Self-care difficulty: has difficulty dressing or bathing
- Independent living difficulty: has difficulty doing errands alone, such as visiting a doctor's office or shopping

Figure 29 shows an estimate of the number of Pinole residents with disabilities by type of disability. The most prevalent types of disability are ambulatory and independent living difficulties. Note that individuals may have more than one type of disability.

Ambulatory issues are the highest reported disability Citywide. A large population with walking difficulty creates a need for single-story housing, elevators, transit access, wheelchair access, larger homes for live-in help, and proximity to health facilities.

Figure 29: Disability Characteristics, 2019

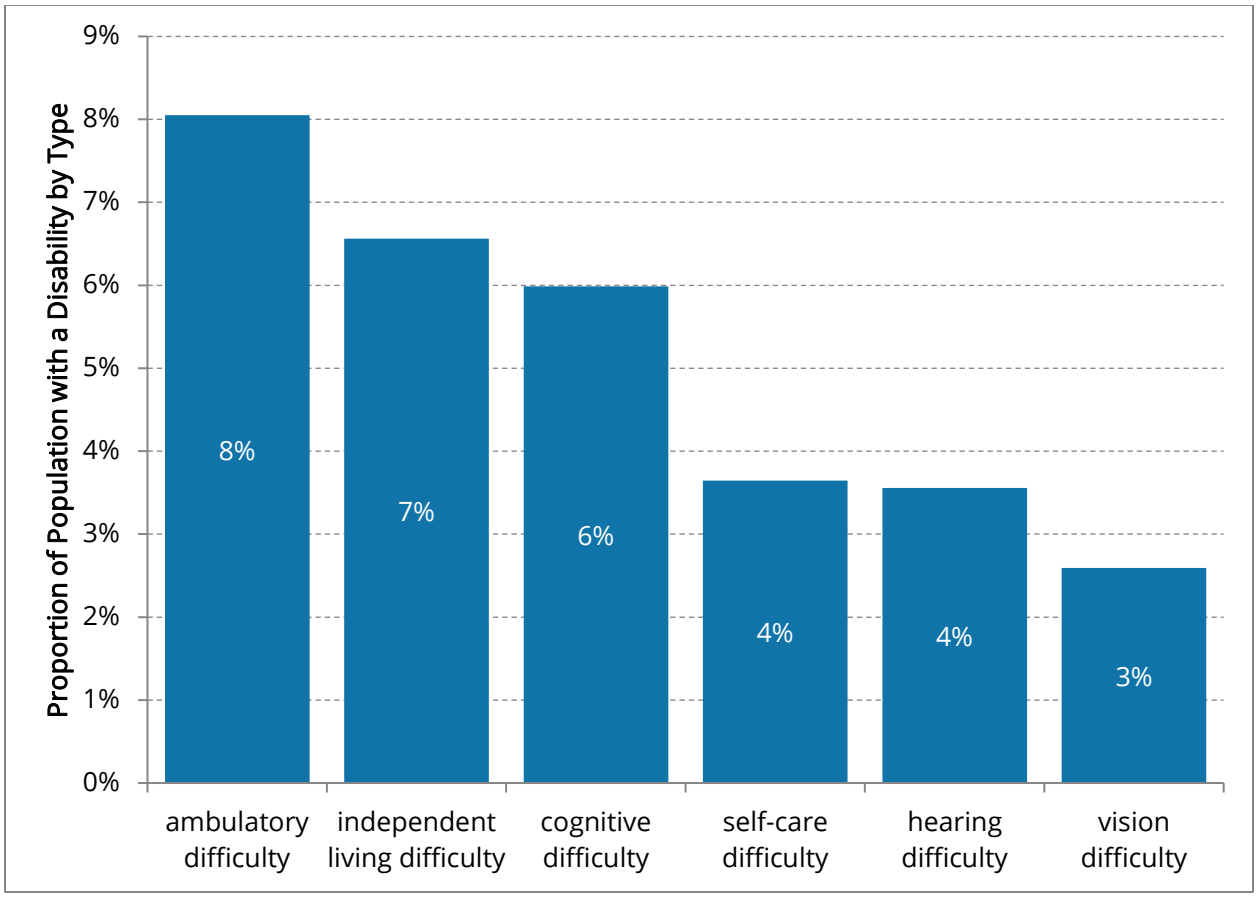
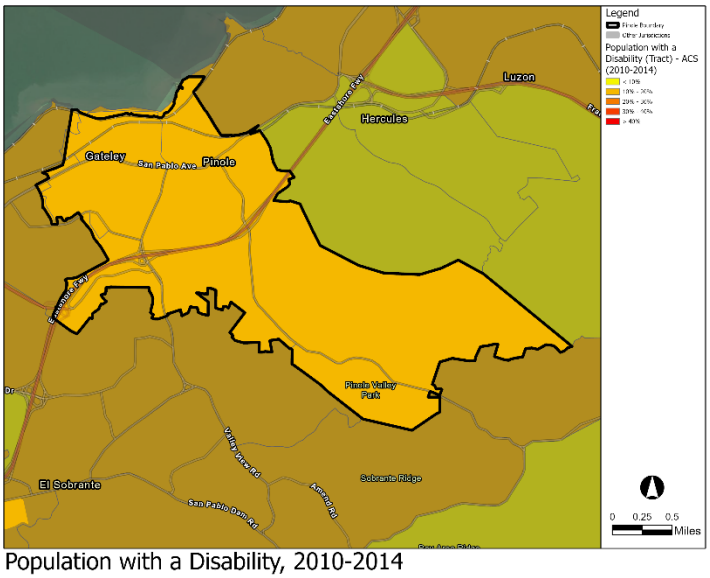


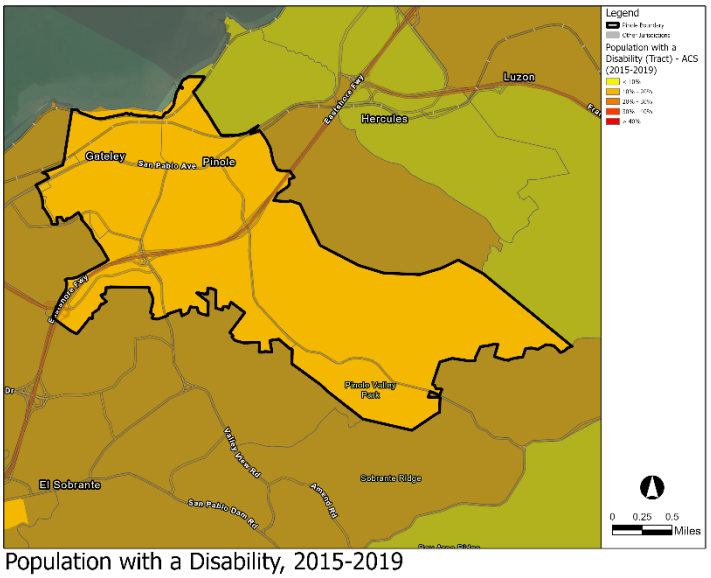
Figure 30 shows that the disabled population is evenly distributed throughout Pinole. There are no significant changes in location or concentration of those with a disability between 2010-2014 and 2015-2019. There is no area of the City with an extreme concentration of

persons with disabilities. The sites are not expected to cause fair housing concerns as they relate to residents with a disability.

Figure 30: Population with a Disability, 2010-2014 and 2015-2019



Population with a Disability, 2010-2014



Population with a Disability, 2015-2019

Source: HCD AFFH Data Viewer

Regional Comparison

Pinole is a racially integrated City and comparisons to the region reflect this. According to a 2018 study on racial segregation in the San Francisco Bay Area, "Pinole is the most integrated city in Contra Costa County, with a population that is 35 percent white, 26 percent Latino, 22 percent Asian, and 8 percent Black."[18] The updated findings using 2020 census data identified Pinole as one of the six "racially integrated" cities in the Bay Area.[19]

Findings from Integration and Segregation

Overall, there is a difference in trends in integration and segregation between the eastern and western regions of the City. The City of Pinole has higher concentrations of low- to moderate-income residents in the northwestern areas of the City, which also are areas with larger non-White populations and more children in female-headed households. There are no concentrations of poverty or people with disabilities. The City is racially integrated when compared to the region. There are no significant disparities in access to amenities, conditions

[18] Racial Segregation in the San Francisco Bay Area, Part 1. https://belonging.berkeley.edu/racial-segregation-san-francisco-bay-area-part-1

[19] The Most Segregated Cities and Neighborhoods in the San Francisco Bay Area. https://belonging.berkeley.edu/most-segregated-cities-bay-area-2020

or infrastructure between neighborhoods or based on protected status. This includes equal access to parks, streetscapes, schools, safe routes, infrastructure, community amenities, housing conditions, and general neighborhood conditions. Pinole is a small city that has and continues to make consistent investment in all neighborhoods. Pinole is a small and diverse City that does not have significant variation in access to amenities. Based on windshield surveys and code compliance cases, there does not appear to be a difference in quality of housing in neighborhoods throughout the City; there is no geographic pattern. The City is in the process of moving to an electronic permitting system. This new system will include the ability to spatially review code compliance cases and development permits.

The proposed and entitled RHNA sites are relatively distributed throughout the City and are not anticipated to exacerbate any fair housing concerns.

Racially and Ethnically Concentrated Areas of Poverty and Affluence

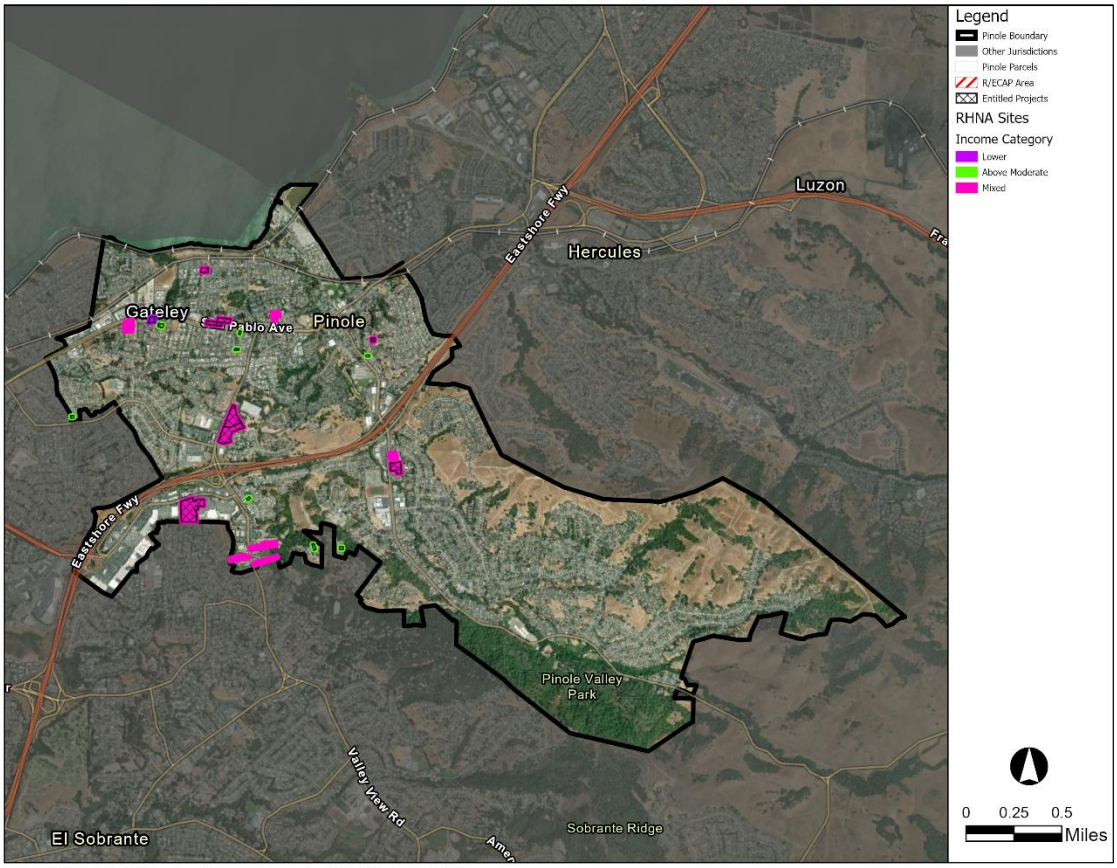
Racially and Ethnically Concentrated Area of Poverty

HUD defines Racially and Ethnically Concentrated Areas of Poverty (R/ECAP) as areas where the percentage of the population that is non-White is over 50 percent and the percentage of households with incomes below the poverty line is over 40 percent. Alternatively, a neighborhood can be a R/ECAP if it has a poverty rate that exceeds 40 percent or is three or more times the average tract poverty rate for the metropolitan/micropolitan area, whichever threshold is lower.

There are no R/ECAPs in Pinole or in the nearby vicinity, as seen in Figure 31. Additionally, there are no areas of high segregation and poverty, as identified by the California Tax Credit Allocation Committee (TCAC). The closest R/ECAPs to Pinole are located in Vallejo and Berkeley.

The housing opportunity sites are not expected to cause fair housing concerns related to R/ECAPs, as no sites are located in a R/ECAP and the site distribution is not anticipated to contribute to the creation of a R/ECAP.

Figure 31: RECAPs Vicinity and RHNA Sites, 2021



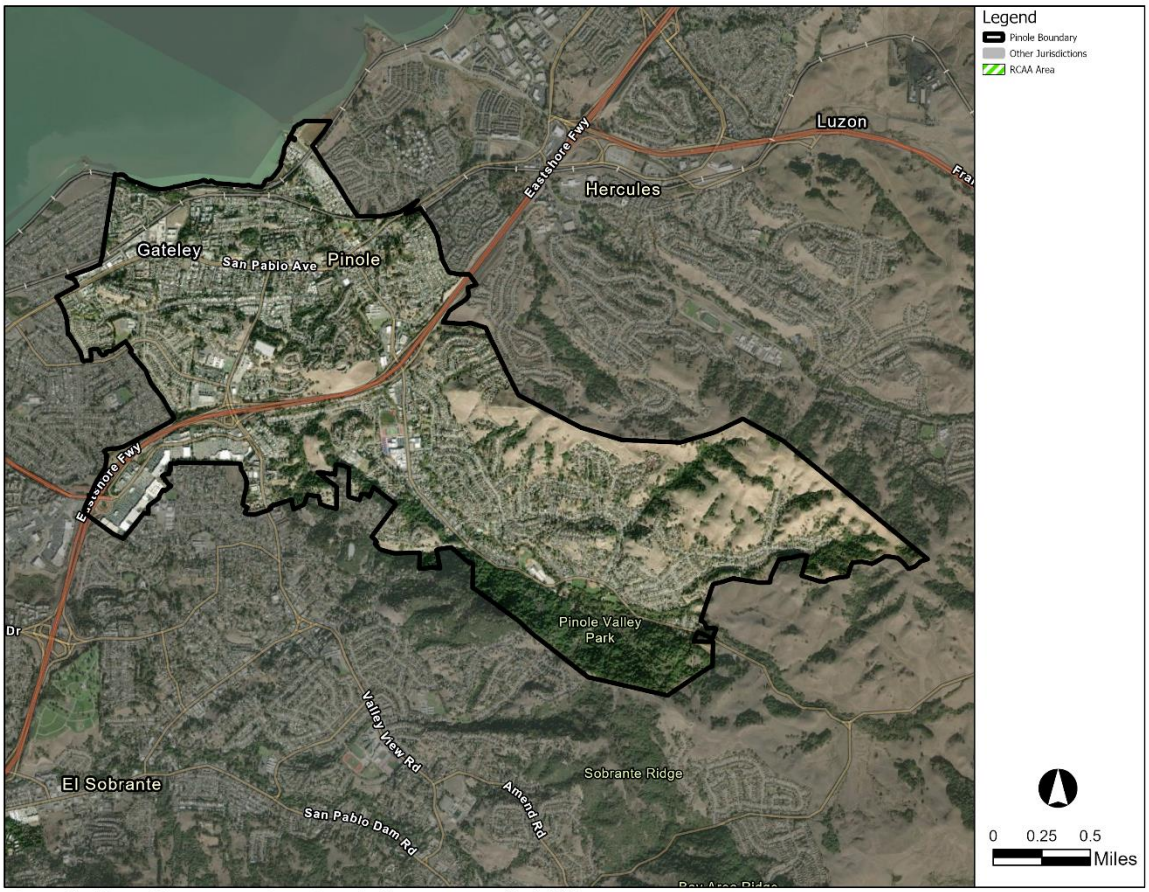
RECAP Vicinity and RHNA Sites

Source: HCD AFFH Data Viewer

Racially Concentrated Area of Affluence

HUD defines Racially Concentrated Areas of Affluence (RCAAs) as areas where the percentage of the White population in a tract is over 1.25 times the average percentage of the White population in the given Council of Government (COG) region and the median income is 1.5 times higher than the COG or state AMI), whichever is lower. At the time of this analysis, there are no RCAAs in Pinole, as seen in Figure 32.

Figure 32: RCAAs Vicinity, 2015-2019



Source: HCD AFFH Data Viewer

Disparities in Access to Opportunities

California Tax Credit Allocation Committee (TCAC)

One tool that can be used to analyze disparities in access to opportunities is the Tax Credit Allocation Committee (TCAC) Opportunity Area resource designations. These were prepared by a task force commissioned by TCAC and HCD to identify areas statewide whose economic, educational, and environmental characteristics support positive outcomes for low-income families. The map is updated annually. Opportunity maps are made for three domains: economic, environmental, and education. Each map uses a number of indicators to determine its individual score. A composite score and resource designation combining all three designations is then assigned to each block group.

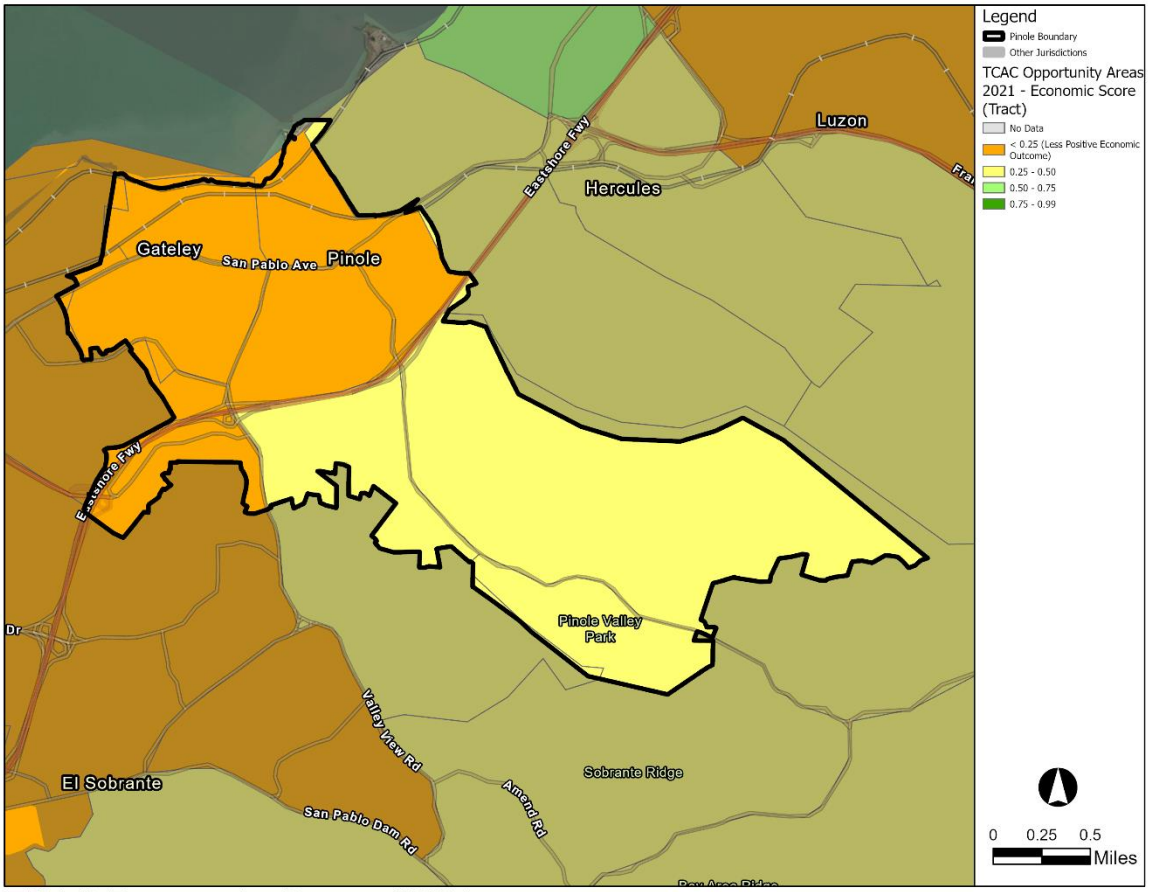
To determine final resource designation, the top 20 percent of overall scores in the economic, environmental, and education categories in a county are labeled as highest resource and the next 20 percent of scores are labeled as high resource. Then, any areas

that are considered segregated and that have at least 30 percent of the population living below the federal poverty line are labeled as an area of High Segregation and Poverty. Any remaining uncategorized areas in the county are evenly divided between moderate resource and low resource areas.

Economic Indicators

Economic indicators include poverty, adult education, employment, job proximity, and median home value. The scores for Pinole are shown in Figure 33. Pinole has more positive economic scores in the east, and less positive scores in the northwestern part of the City. The more positive scoring area contains single-family homes. The more positive scoring area also contains large areas of open space, which may slightly skew results. The low economic scores in northwestern Pinole may be associated with the lower incomes and home values in this area.

Figure 33: TCAC Economic Score, 2021



TCAC Economic Score, 2021

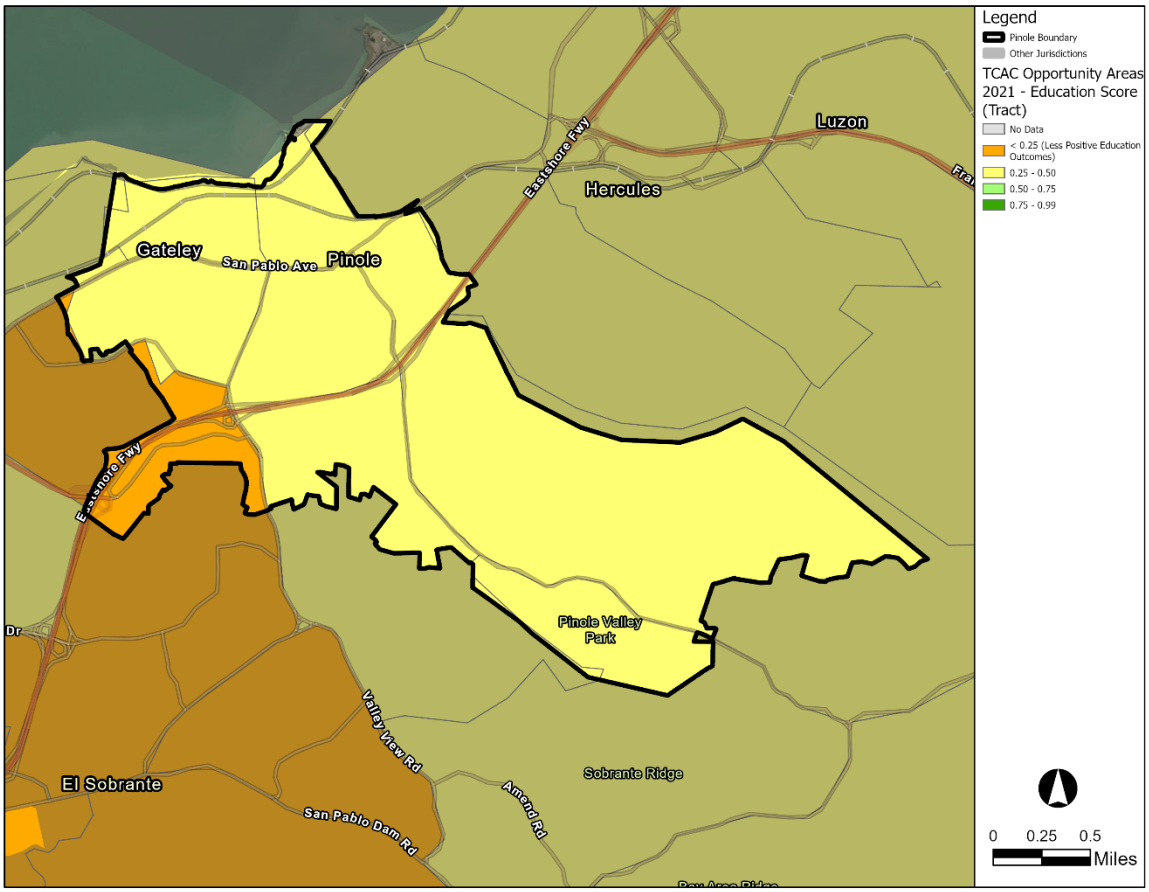
Source: HCD AFFH Data Viewer

Education Indicators

Education indicators include math and reading proficiencies of fourth graders, high school graduation rates, and the student poverty rate. The entirety of Pinole is served by the West Contra Costa Unified School District, which includes three elementary (grades K-6), one bilingual school (courses in both English and Spanish) covering elementary and middle schools (grades K-8), one middle school (grades 7-8), and one high school (grades 9-12). Currently, there are no Title I schools in Pinole. According to Great Schools, 71 percent of schools in the district are rated below average, 22 percent are rated average, and 8 percent are rated above average[20]. As shown in Figure 34, most of the City has lower outcomes. Education scores are less positive in the southwestern area of the City, while the rest of the City is slightly less than average.

[20] Great Schools, West Contra Costa Unified School District Summary. https://www.greatschools.org/california/richmond/west-contra-costa-unified-school-district/

Figure 34: TCAC Education Score, 2021



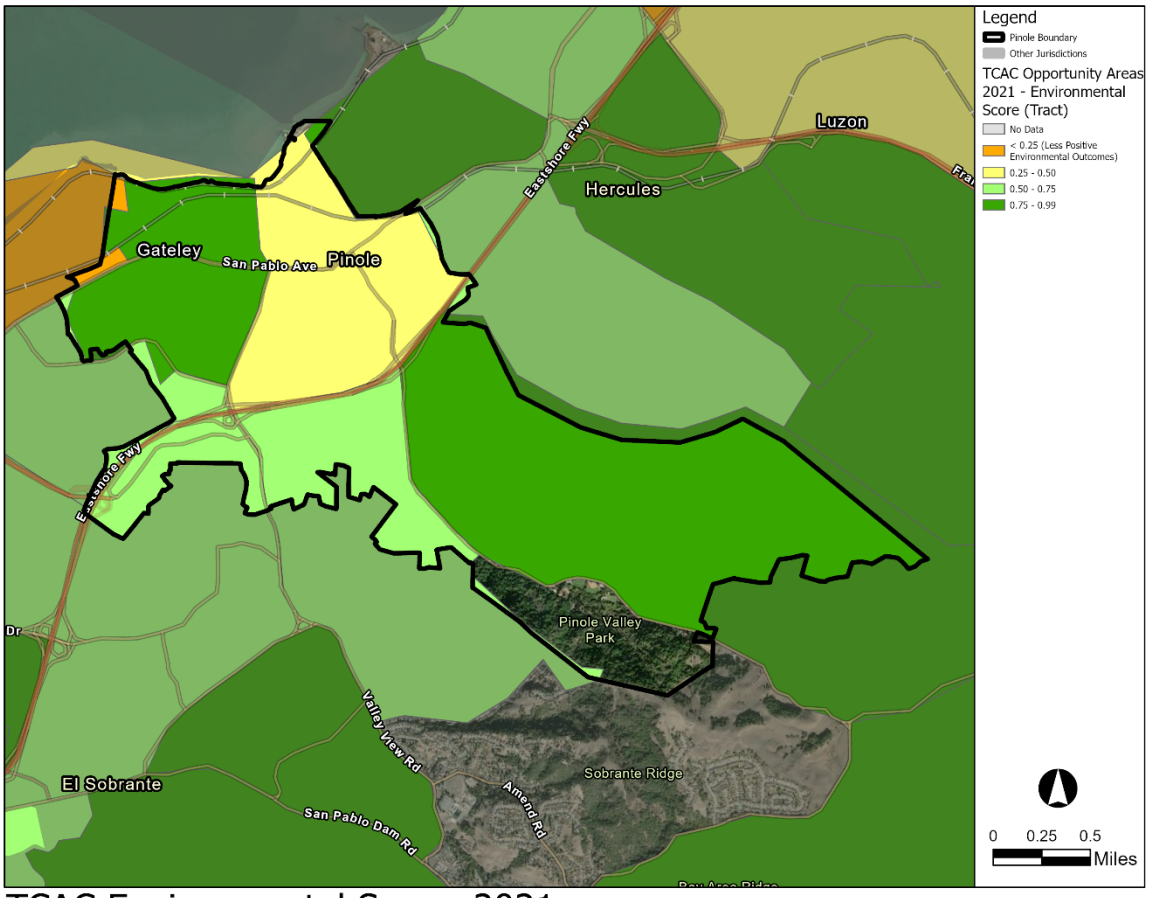
TCAC Education Score, 2021

Source: HCD AFFH Data Viewer

Environmental Indicators

The environmental domain utilizes CalEnviroScreen (CES) 4.0 pollution indicators and values (see below for more discussion on CES). As shown in Figure 35, the scores vary throughout the City, with environmental outcomes becoming less positive toward the north. The census tracts are bisected by Interstate 80, which contributes to the air and noise pollution. Additionally, this portion of Pinole is largely built out, and is dominated by automobile dependent infrastructure—notably single-family zoning and subdivisions and 'big-box' style commercial developments. Additionally, the lower environmental outcomes in the northwestern areas contain varying intensities of industrial use, from auto mechanic shops to concrete production facilities.

Figure 35: TCAC Environmental Score, 2021



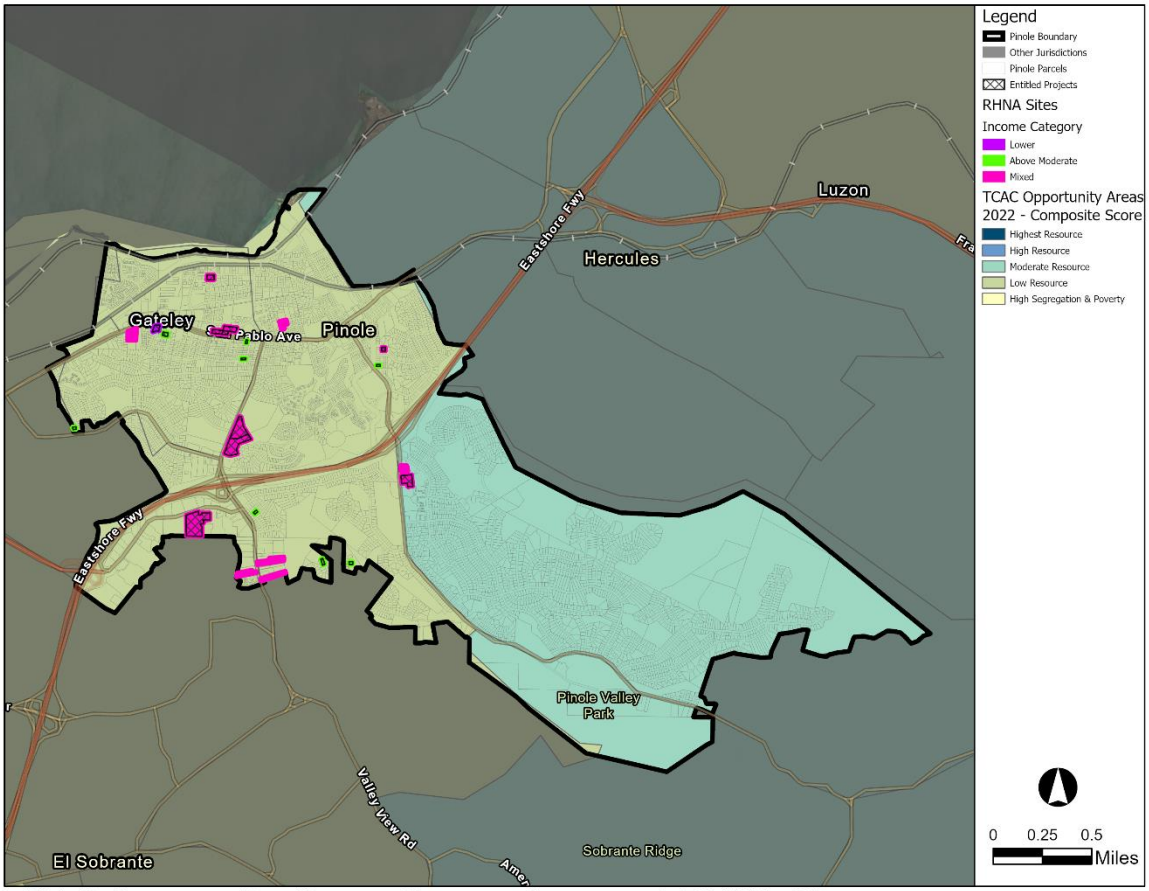
TCAC Environmental Score, 2021

Source: HCD AFFH Data Viewer

TCAC Composite Score

Scores for each domain and the composite score for each census tract are shown in Figure 36. The entirety of the City is in the moderate or low resource area. Tracts that are moderate and low resource are likely due to their lower economic and education scores. The City is focusing growth as infill along the corridors identified in the Three Corridors Specific Plan, which has access to transit, employment opportunities, and community resources. As such, the majority of RHNA sites are located along and in proximity to these corridors that provide access through currently categorized low resource areas. Investment in the Three Corridors Specific Plan area is expected to increase access to opportunity and increase resources in the low resource area of the City. The City is also including programs to encourage development through incentives for mixed-use development, affordable, and senior housing with Program 6, Program 8, and Program 10 respectively. The City will also include Program 15 permit streamlining and Program 17 acquisition/rehabilitation of blighted or distressed properties to further encourage development in low resource areas.

Figure 36: TCAC Composite Score



TCAC Composite Score Comparison and RHNA Sites

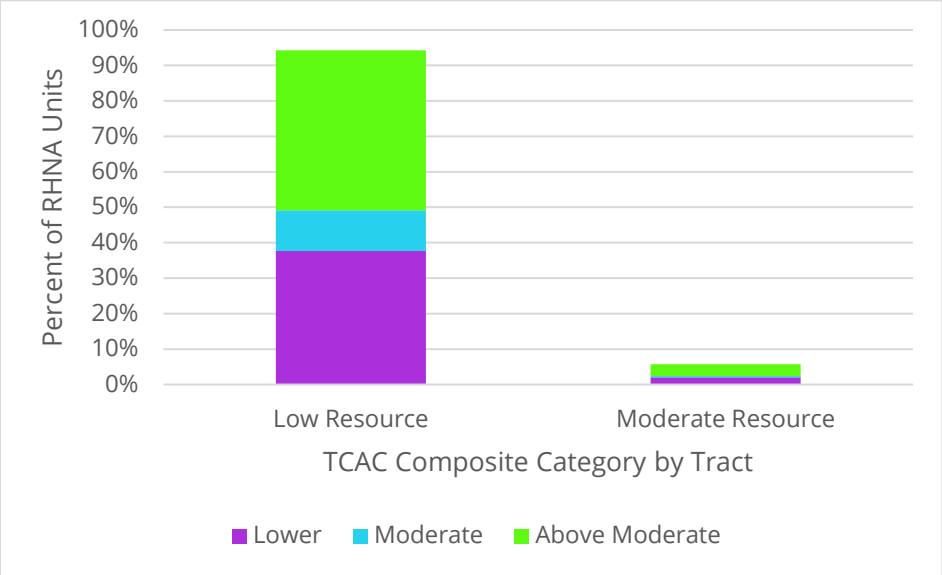
Source: HCD AFFH Data Viewer

Figure 37 displays the RHNA units shown by income level that are in each TCAC composite category. The entirety of the City, and thus all of the units, are located in within the low and moderate resource category. This includes 95 percent of low-income units located in the low resource category while only 5 percent are in the moderate resource category. RHNA sites of various incomes in areas of these categories is unlikely to exacerbate any conditions or make any negative changes to the resource designation.

Pinole is split between the Low and Moderate Opportunity categories. These are relative rankings based on composites of the environmental, economic and education scores. The discrepancies between the scores for the three census tracts that comprise the majority of Pinole are not as large as the maps might suggest. Of the three main tracts in the city, the northern tract has the lowest environmental opportunity score of 0.46, just below the 0.50 threshold for the next highest range. Similarly, the economic scores of the three primary tracts range between 0.21 to 0.26, showing little variation despite the category break at 0.25 demonstrating that there are less economic discrepancies than the maps suggest. Similarly,

the vast majority of the city is in the same (0.25 to 0.50) educational opportunity category. While the composite scores derived from these component scores are not enumerated, these slight variations in the individual component scores suggest that there is likely relatively little variation in the overall composite scores.

Figure 37: TCAC Designation Comparison of RHNA Units



Transportation

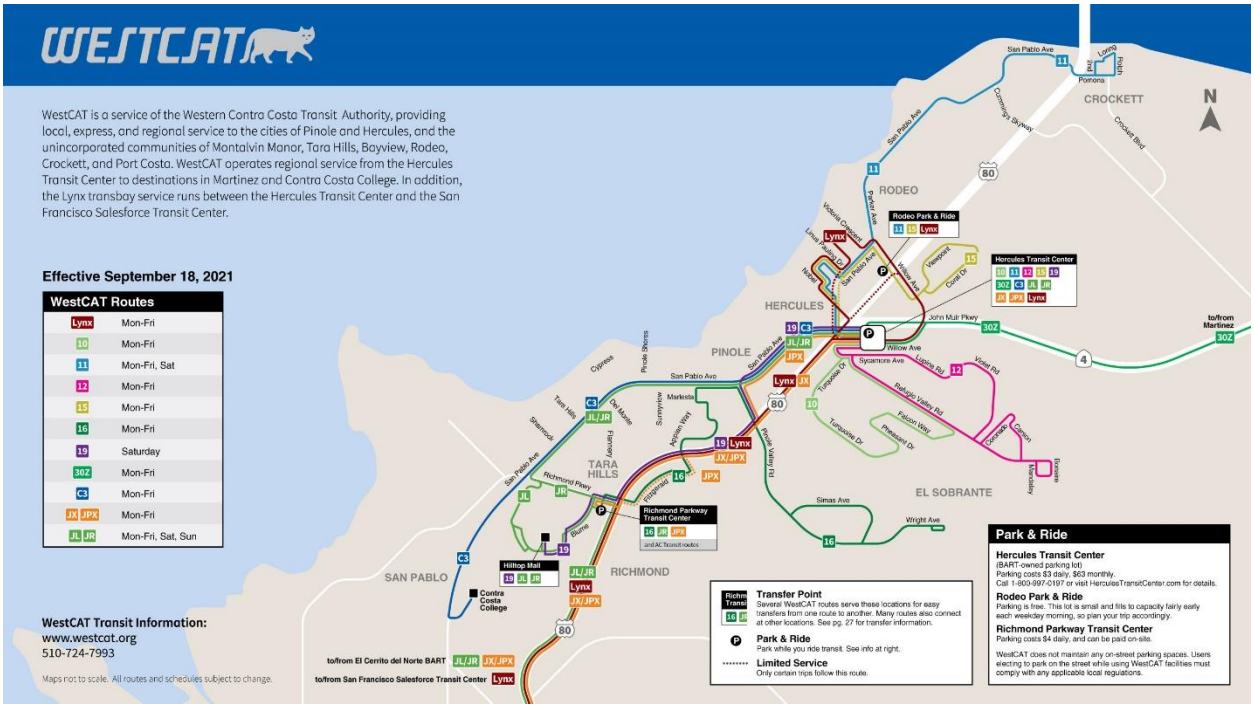
Access to adequate transportation and a variety of transit options can help illustrate disparities in access to opportunities. WestCAT is a transit service of the Western Contra Costa Transit Authority, which provides local transit service coverage in western Contra Costa County. It also provides express services to regional transit hubs and stations such as the Salesforce Transit Center in San Francisco and the El Cerrito Del Norte BART Station. WestCAT also offers free dial-a-ride programs for elderly and disabled residents. Both public transportation and Interstate 80 provide access from Pinole to west Contra Costa County and the rest of the Bay Area.

The City also has a few multiuse bike paths, providing safer, nonmotorized transportation options within the City. There is a bike path along Pinole Creek which bisects San Pablo Avenue, one of the major thoroughfares, but does not extend east of Interstate 80. The trail connects to the regional San Francisco Bay Trail, which contains existing portions within City limits.

The Richmond Parkway Transit Center and the Hercules Transit Center are transit and commuter hubs in surrounding communities. The Richmond Parkway Transit Center is located on the west side of the I-80 and Richmond Parkway interchange, just west of the western City limits. The Hercules Transit Center is located less than one and one half miles

east of the eastern City limits from San Pablo Avenue. WestCAT operates bus routes that connect to these centers.

Figure 38: Transit Map



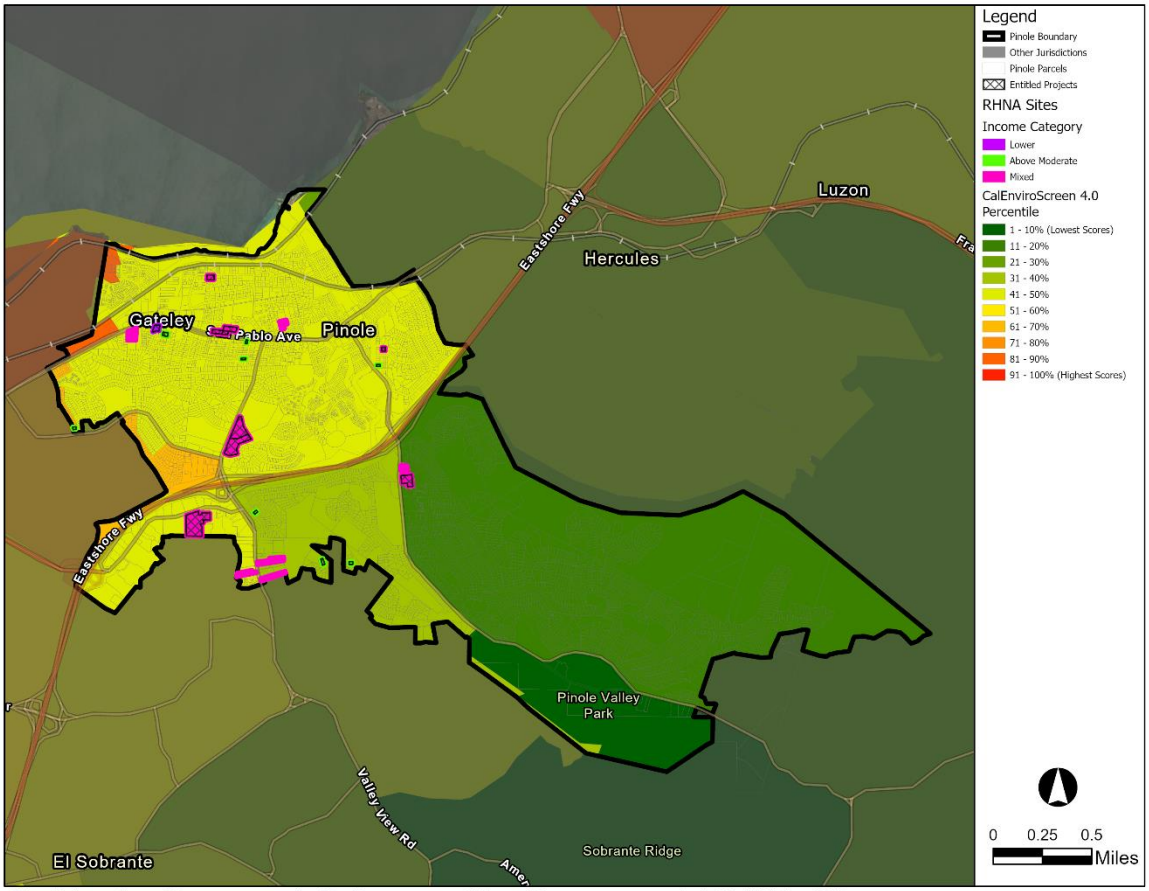
Source: WestCAT, 2022

CalEnviroScreen

CES 4.0 is a tool that identifies communities in California that are disproportionately burdened by pollutants. Factors used to identify communities include ozone, particulate matter, drinking water contaminants, pesticide use, lead, diesel particulates, asthma rates, and linguistic isolation. A higher score indicates a higher effect of pollutants for the area.

As shown in Figure 39, CES scores vary across the City. The southeastern areas of the City have the lowest scores, with the higher scores in the northwestern corner of the City. The highest scored census tract in Pinole, but primarily includes Bayview-Montalvin, falls into the 81-90 percent range. The tract scores high in diesel particulate, toxic releases, and lead from housing. The tract is bisected by a railway, which is likely a factor of high scores for this. The lower-density southeastern part of Pinole contains large open spaces that significantly limit development, contributing to the lower CES scores.

Figure 39: CES Percentile and RHNA Sites

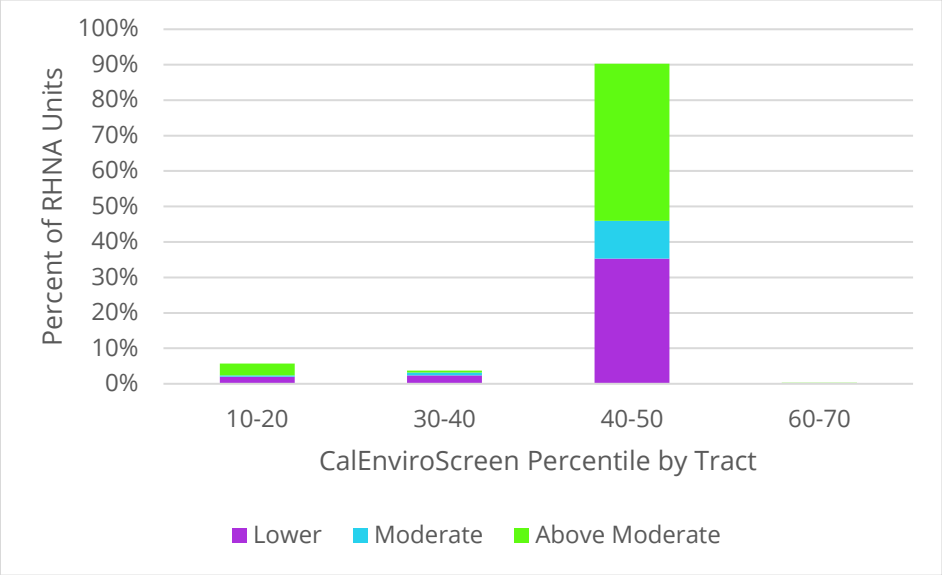


CalEnviroScreen 4.0 Percentile Score and RHNA Sites

Source: HCD AFFH Data Viewer

Figure 40 displays the comparison of RHNA sites and in each CES score group. While they largely follow similar trends, there is a concentration of sites in the 41-50 percentile, especially mixed-income sites. This concentration is in part due to the likelihood of development and availability of vacant and underutilized properties, as well as access to amenities along San Pablo Avenue, a major city thoroughfare.

Figure 40: CalEnviroScreen Percentile Comparison of RHNA Units



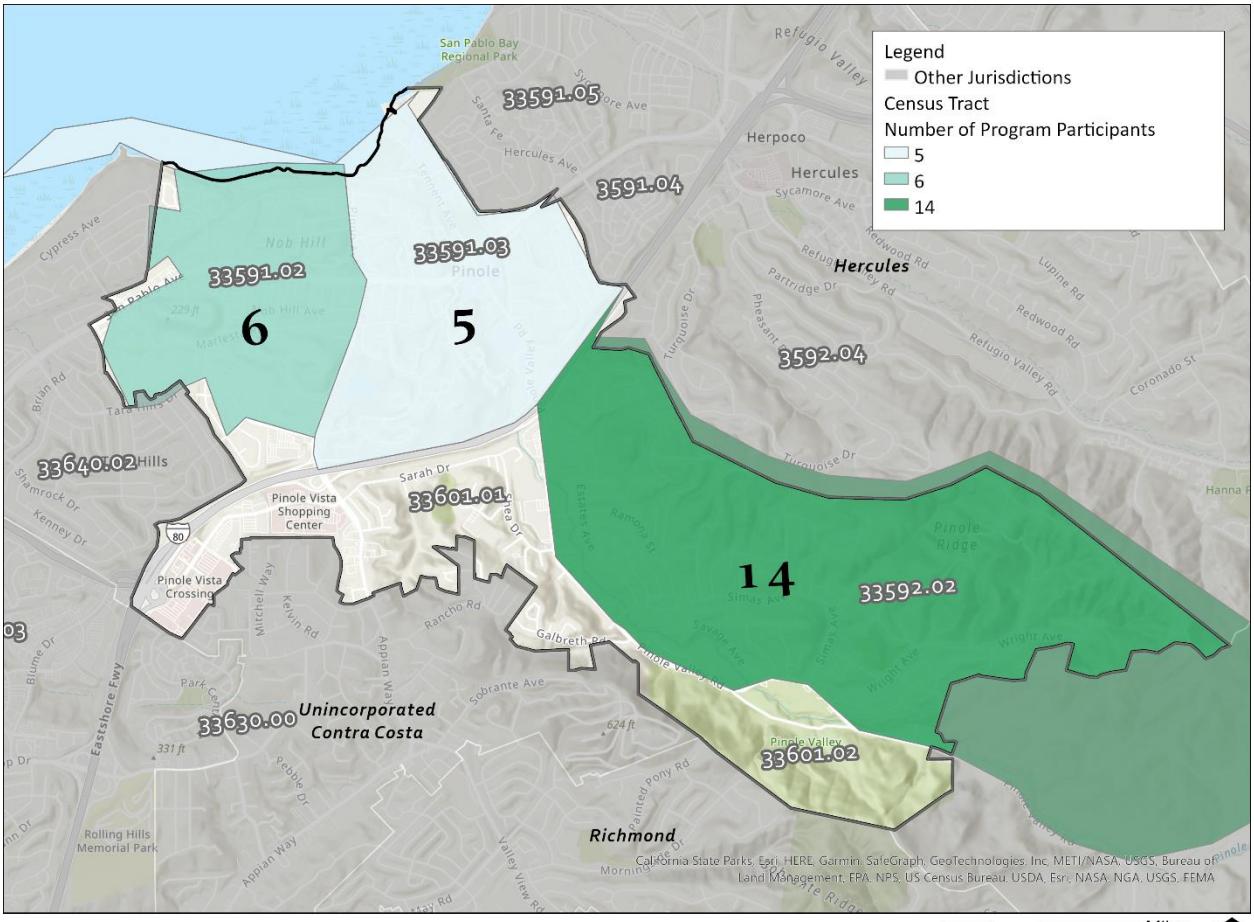
Local Weatherization Efforts

Contra Costa County participated in BayREN, which is a coalition of the Bay Area's nine counties that partners to promote resource efficiency at the regional level, focusing on energy, water and greenhouse gas reduction. There are multiple programs that encourage and incentivize households to make energy efficient upgrades to their homes.

Between 2015 and 2022, twenty five households participated in the weatherization program in the City. The geographic distribution of households participating by census tract is shown in below. As mentioned previously, the majority of the population of Pinole is in three census tracts, and these are the three tracts that have seen participation in BeyREN programs. These

As a part of Program 19: Place-Based Improvements, the City is working with Contra Costa County to develop an enhanced BayREN Home+ rebate incentive structure for Pinole homeowners and multifamily property owners to undertake needed energy efficiency projects. The City is partnering with BayREN in the 2022-23 fiscal year to provide $250k in funding for weatherization and energy efficiency projects in Pinole and to reduce the barrier to home electrification. The program will assist with achieving financially feasible for energy efficient and weatherization projects to move forward in Pinole. As a part of the program, lower resource areas in west Pinole will be targeted first. These areas have had less participation in the existing BayREN programs, so the City will focus outreach and education in these areas first.

Figure 41: BayREN Weatherization Participation by Census Tract, 2015-2023



Number of Weatherization Program Participants, 2015- 2023

Findings

Trends in the access to opportunities analysis show that the City largely has lower access to opportunities throughout. The City has lower scores in opportunity metrics compared to the County as a whole. As such, many of the RHNA sites are located in the low resource areas, which include the highest rates of low-income households and are where housing choice voucher use primarily occurs.

Although a majority of the RHNA sites are located in low resource areas they are also located along corridors identified in the Three Corridors Specific Plan as areas of investment and growth in Pinole. Along with the Three Corridors Specific Plan there are concurrent capital improvement projects along these corridors to improve safety and access to community amenities and transit including, complete streets and pedestrian infrastructure improvements.

Additionally, conversations with developers noted that the availability of vacant and underutilized land along these corridors was a factor in what led to developing in Pinole. Developers referenced the increased availability of funding along these corridors.

The City is including programs to ensure that the RHNA site selection will improve access to resources and amenities in lower-resource areas. This includes Program 19 place-based improvements, Program 21 displacement prevention, and affordable and senior housing incentives with Program 8 and Program 10 respectively.

Additionally, other programs in the Housing Element are intended to spur housing development in the moderate-resource areas of the City. This includes Program 15 to incentivize mixed-used development, Program 15 streamline the permit process, and target ADU education with Program 23.

Disproportionate Housing Needs

Substandard Housing

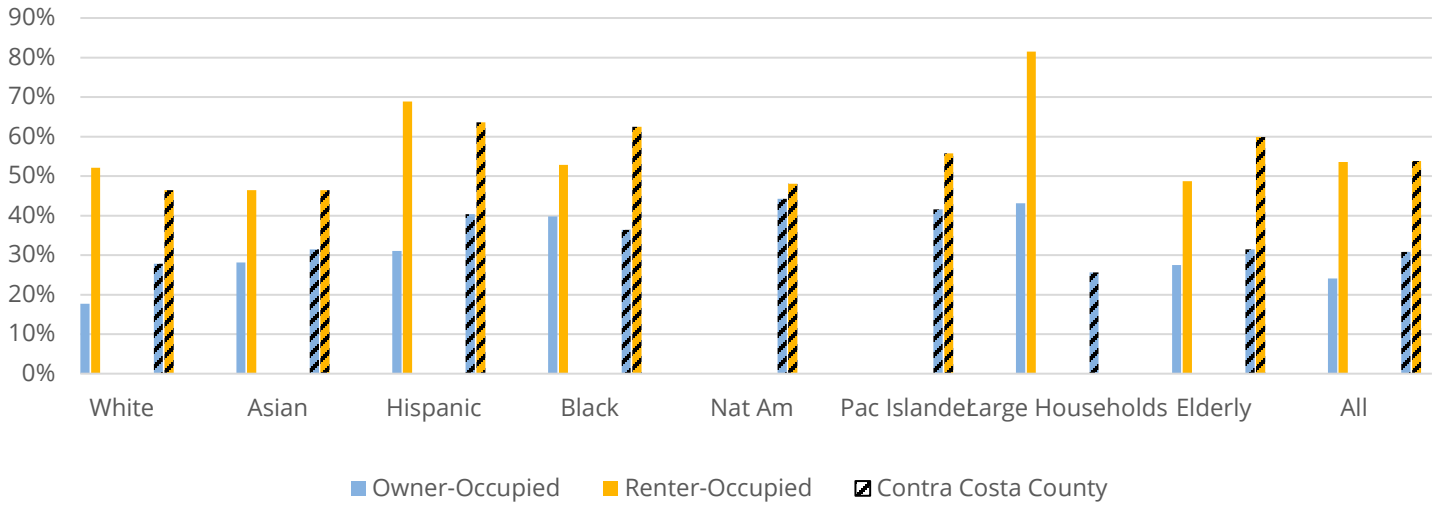
Disproportionate housing needs are determined by comparing substandard housing or housing problems to tenure, race, household size, or household age. A household is considered substandard or to have a housing problem if it has one or more of the four following housing problems:

- Housing unit lacks complete kitchen facilities
- Housing unit lacks complete plumbing facilities
- Housing unit is overcrowded
- Household is cost burdened

A large household is a household with three or more children, but it is also often calculated as a household with five or more people, as it is for the charts below. An elderly household is calculated as any household with a person over 62 years of age. Large and elderly households are often more likely to experience housing problems.

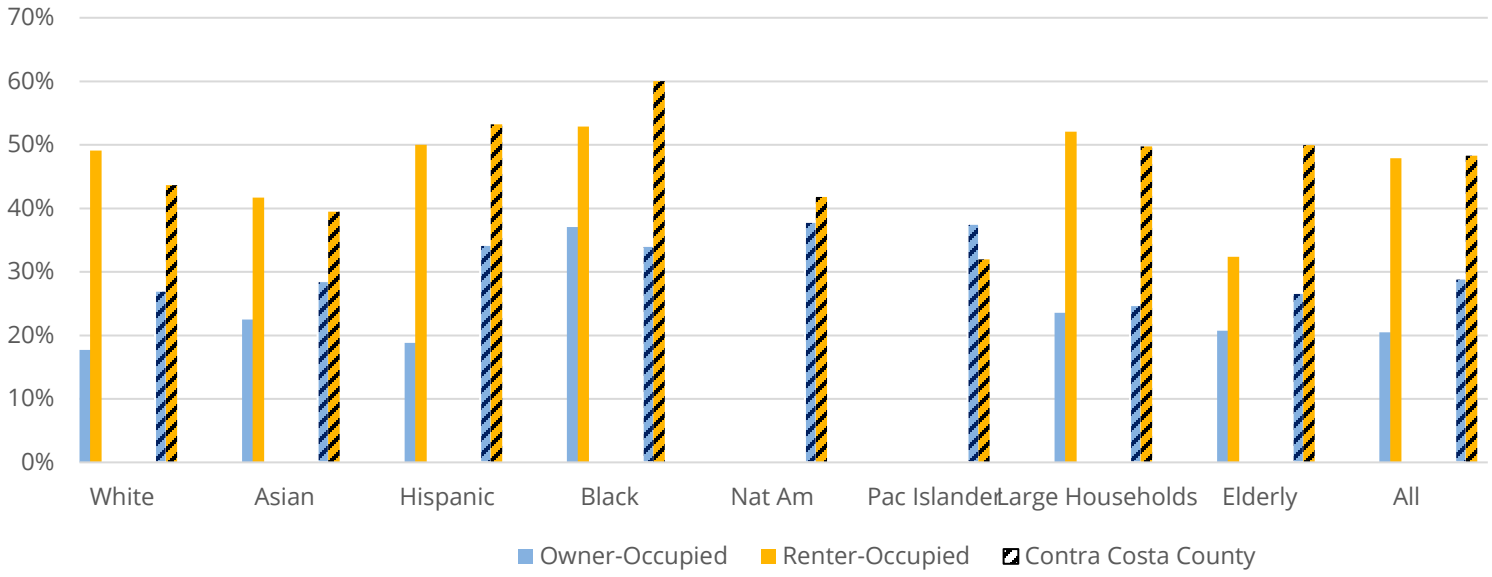
Renters experience housing problems at a higher rate than owners across all ethnicities. Black owners and large household owners experience housing problems at the highest rate among housing owners. Hispanic renters experience housing problems at the highest rate overall at around 69 percent. Black renters experience housing problems at the next highest rate at 53 percent, followed by 52 percent of White and 46 percent Asian renters. Rates of housing problems for the Hispanic population are relatively comparable between the City and the County, with 31 and 40 percent between the City and County respectively, and 69 and 64 percent of Hispanic renters in the City and County, respectively, experience housing problems. In 2018, there were no Native American or Pacific Islander populations in the City, which indicates why Figure 42 reads that 0 percent of that population experiences housing problems.

Figure 42: Housing Problems by Tenure and Race/Elderly/Housing Size



Cost burden is when a household spends more than 30 percent of its monthly income on housing costs like rent, mortgage, or utilities. Large households have more costs to support more people and may experience cost burden or a lack of excess funds to amend housing problems. Elderly households may be on a fixed income, which may constrain the ability to pay for maintenance of older homes.

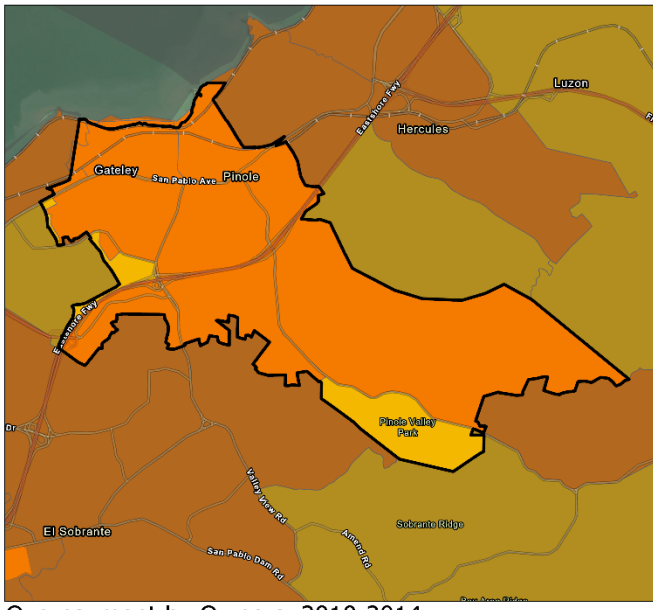
Figure 43: Cost Burden by Tenure and Race/Elderly/Housing Size



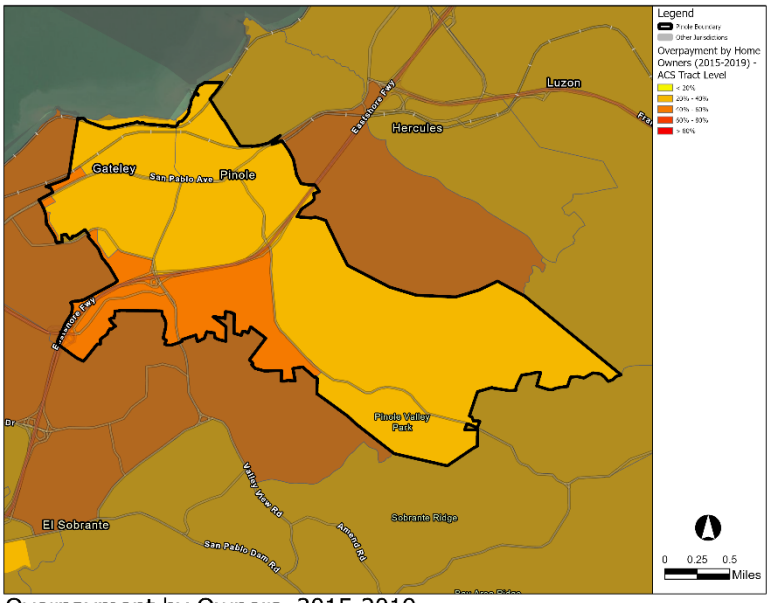
Overpayment by both owners and renters has decreased in Pinole over time in most areas of the City. The area with the highest levels of overpayment is the same area that has low environmental scores and higher levels of poverty. Overpayment by renters in the City

occurs at a comparable level with the County, with both showing approximately 48 percent of these households experiencing cost burden; overpayment by owners occurs at a slightly lower level in the City than in the County. In both cases, renters have higher rates of overpayment than owners.

Figure 44: Overpayment by Owners



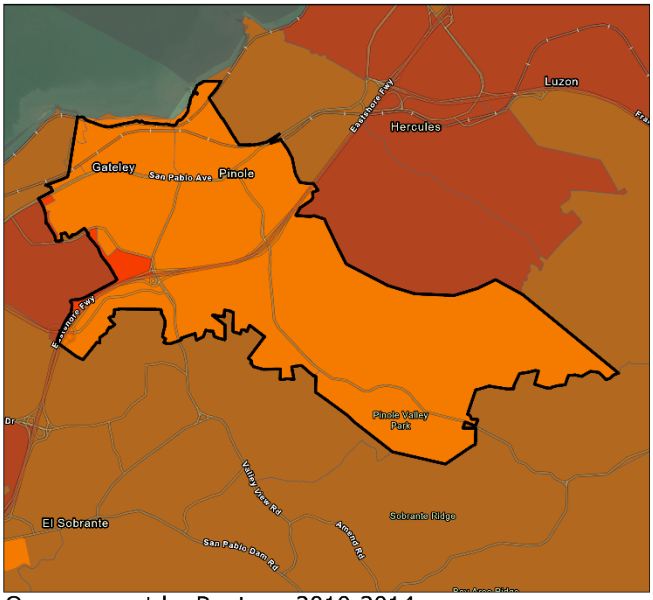
Overpayment by Owners, 2010-2014



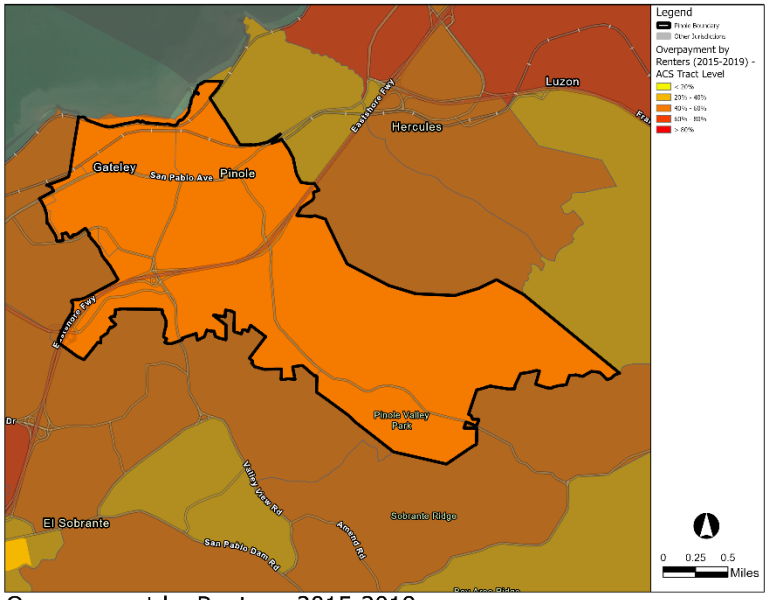
Overpayment by Owners, 2015-2019

Source: HCD AFFH Data Viewer

Figure 45: Overpayment by Renters



Overpayment by Renters, 2010-2014



Overpayment by Renters, 2015-2019

Source: HCD AFFH Data Viewer

To understand the geographic trends of substandard housing in the City, a review of code enforcement cases from April 2020 to March 2023 was conducted. Of the 1,486 code cases open during that time, six substandard housing cases were opened (0.4 percent of all cases). The approximate locations of these cases are shown in Figure 46. The substandard code enforcement cases are spread throughout the western and northern parts of the City. Substandard housing cases tend to correlate with areas that have a lower median income.

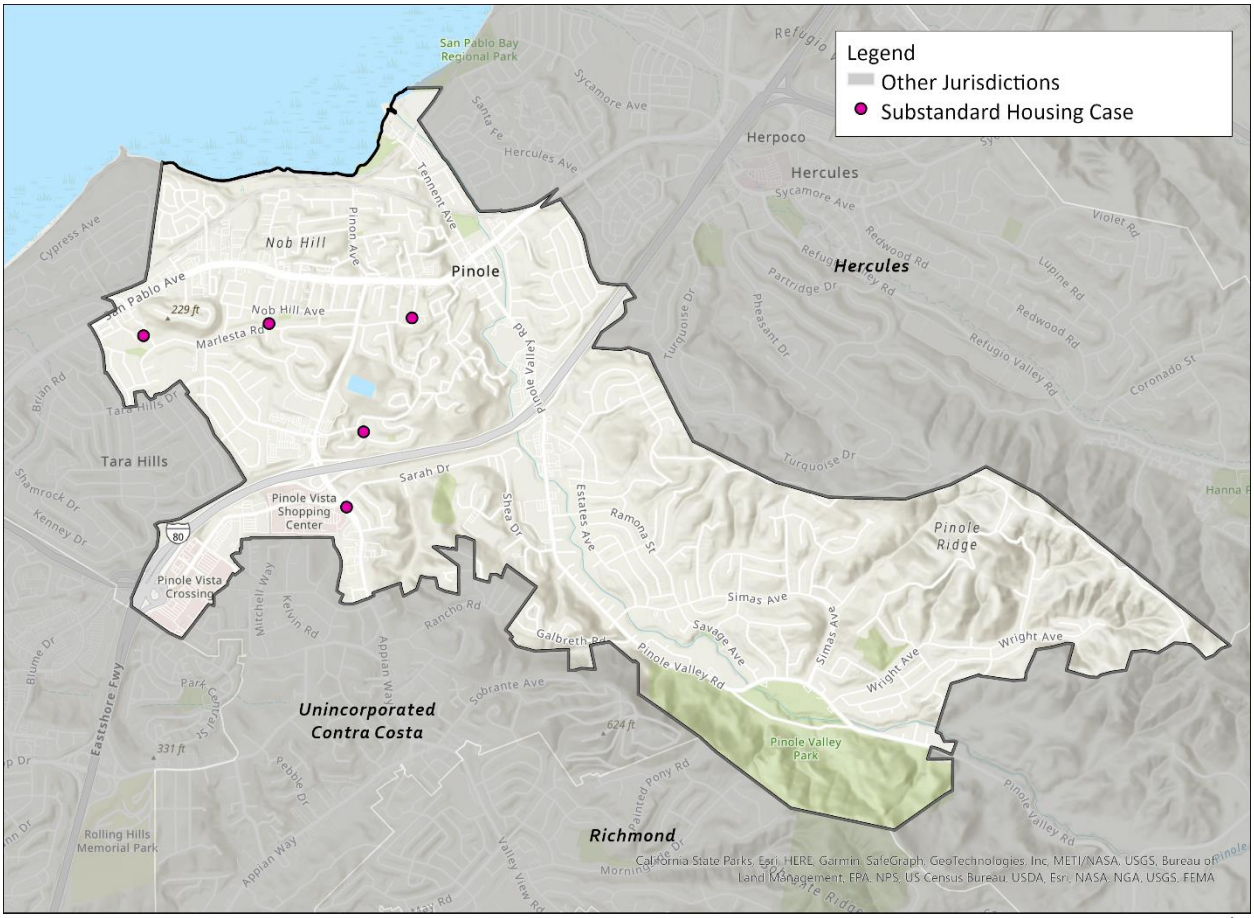
Code enforcement estimated through a windshield survey 15 – 20 units, less than one percent, in the City are in need of significant repair, under 1 percent of units in the City. Results from the windshield survey also noted that there was no specific neighborhood or street that had clustered substandard housing.

Resources available for improving for substandard housing are provided on the City of Pinole's website. The following resources are listed:

- Contra Costa County's Neighborhood Preservation Program - Provides financial assistance through a loan of up to $70,000 to low-income homeowners for home rehabilitation projects.
- Habitat for Humanity East Bay/Silicon Valley (Home Repair) - Repairs, valued up to $10,000, for eligible low-income mobile homeowners to address health and safety deficiencies.
- Homeowner Energy Efficiency BayREN Program – Rebates and financing assistance for home energy improvements.

- Multifamily Homeowner Energy Efficiency BayREN Program - Financial incentives when to upgrade multifamily building's energy and water efficiency.
- County Weatherization program. Federal and State-funded program available to owners or renters of homes, apartments or mobile homes and whose purpose is to assist low and/or fixed income people in making their homes more energy-efficient.

Figure 46: Substandard Housing Code Enforcement Cases, 2020-2023



Source: City of Pinole Code Enforcement.

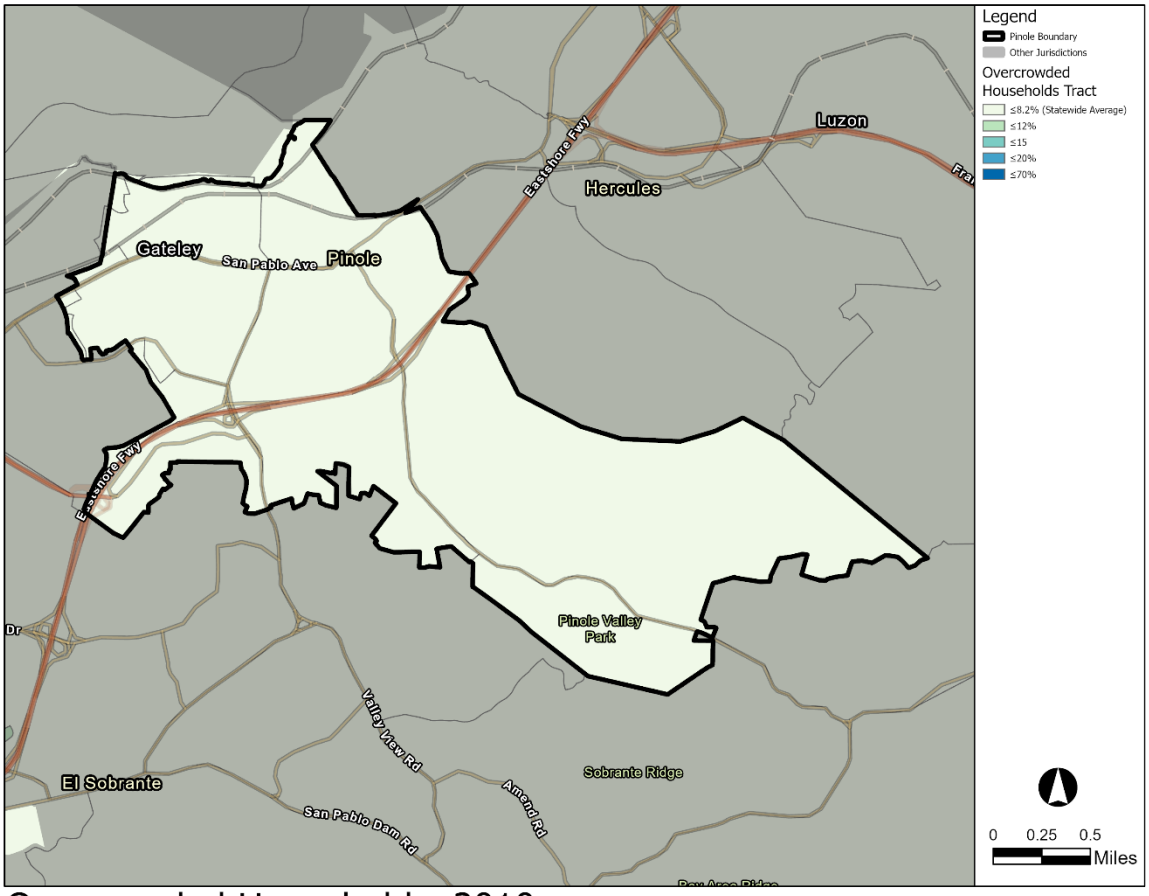
Overcrowding

A household is considered overcrowded when there is more than one person per room, including living and dining rooms but excluding bathrooms and kitchens. Overcrowding can affect public facilities and services, reduce the quality of the physical environment, and create conditions that contribute to deterioration of the housing stock. Additionally,

overcrowding can indicate that a community does not have an adequate supply of affordable housing and/or variety of suitable housing units to meet the needs of the community.

In Pinole, there are no areas that have more than the statewide average of 8.2 percent of households experiencing overcrowding.

Figure 47: Overcrowded Households



Overcrowded Households, 2010

Source: HCD AFFH Data Viewer

Table 72 summarizes overcrowding in Pinole by tenure. Instances of overcrowding vary by tenure, with renters experiencing lower levels of overcrowding than owners. Approximately 247 households, roughly 3.7 percent of all households in Pinole, were experiencing overcrowding in 2019. This included 173 owner-occupied households and 74 renter-occupied households.

In Contra Costa County, cities near Pinole, such as San Pablo and Hercules, have similar rates of overcrowding. Pinole has lower levels of overall overcrowding compared to the County as a whole.

Table 72: Overcrowding, 2019

Jurisdiction	Persons per Room	Owners		Renters		Total	
		Overcrowded Households	% of Total	Overcrowded Households	% of Total	Overcrowded Households	% of Total
Pinole	1.01 to 1.50	156	2.3%	66	1%	222	3.3%
	>1.50	17	0.3%	8	0.1%	25	0.4%
	Total Overcrowded	173	2.6%	74	1.1%	247	3.7%
Contra Costa County	1.01 to 1.50	4,483	1.1%	9,001	2.3%	13,484	3.4%
	>1.50	1,469	0.3%	4,974	1.3%	6,443	1.6%
	Total Overcrowded	5,952	1.4%	13,975	3.6%	19,927	5.0%

Source: HUD CHAS Data, 2019

Homelessness

The homeless population is a group that has disproportionately higher needs than those who are housed. Pinole currently does not have any shelters, and therefore there are no sheltered members of the homeless population. The Contra Costa Health, Housing & Homeless Services conducts the annual Point in Time Count (PITC), which counts the sheltered and unsheltered homeless population in each city in the County. The PITC takes place during the last week of January each year. Per the Contra Costa Health Services website, there were significant inconsistencies discovered in the data of the 2022 PITC and Contra Costa Health Services has been unable to verify the accuracy of the data.[21] As such, this element is utilizing the most recent PITC data available from Contra Costa Health, which is the 2020 PITC. The 2023 PITC Annual Report has not yet been released at the time of the writing of this element.

The PITC identified 3,093 both sheltered and unsheltered homeless persons in Contra Costa County. Table 73 shows the PITC for west Contra Costa County, which includes Pinole and neighboring jurisdictions. There were 7 homeless persons surveyed in Pinole in January 2020, all of which were unsheltered.

[21] Contra Costa Health Services. Data Reports, Point in Time Count. https://cchealth.org/h3/coc/reports.php#PIT

Table 73: West Contra Costa County Unsheltered Point in Time Count, 2020

Jurisdiction	Total
Pinole	**7**
Crockett	35
El Cerrito	24
El Sobrante	9
Hercules	7
North Richmond	22
Richmond	280
Rodeo	62
San Pablo	67

Source: 2020 Contra Costa County: Annual Point in Time Count Report

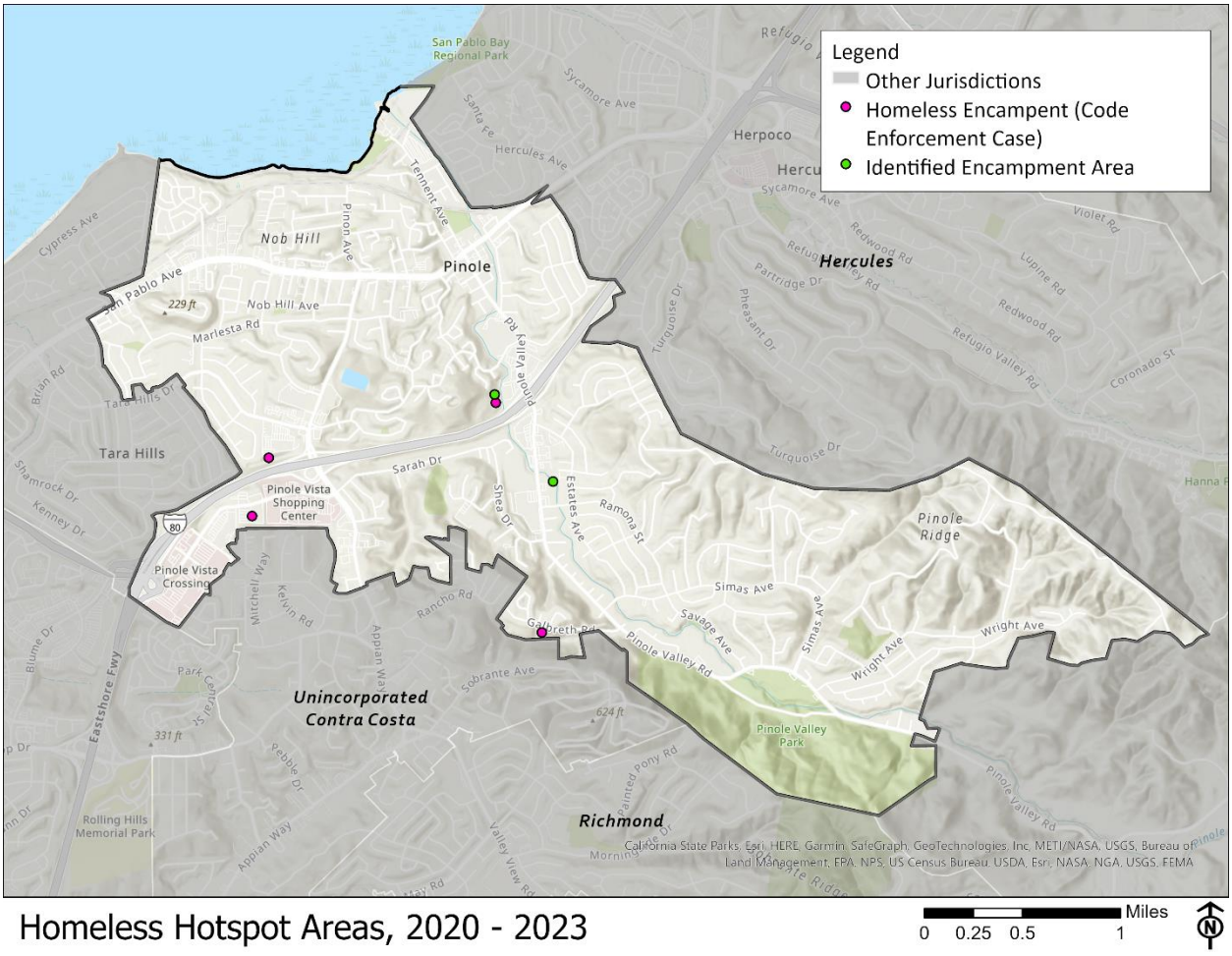
To understand the spatial trends of homelessness in Pinole, the City reviewed recent code enforcement data and contacted the City of Pinole Police Department. The Pinole Police Department's Community Outreach Unit includes its Homeless Outreach Program. The Police Department noted that in its experience in outreaching with persons experiencing homelessness in the city, the majority, are homeless by choice. The needs of persons experiencing homelessness by choice may include access to meals, showers, and public restrooms.

Though the 2023 PITC has not yet been released, an estimate from the Pinole Police Department identified 5 – 10 unsheltered homeless persons in the City in 2023.

The Pinole Police Department identified two areas popular with persons experiencing homelessness in the City - adjacent to the Pinole Library, and besides the bowling alley. From April 2020 through March 2023, there were four code enforcement cases opened for homeless encampments. The location of these cases as well as the locations identified by the Pinole Police Department as popular homeless locations are shown in Figure 48 below. The location behind the bowling alley was identified by both a code enforcement case and the Pinole Police Department.

These locations areas are not concentrated in one specific street, neighborhood, or corridor in the City. They are not clustered in areas of the City in the low TCAC resource category. Three of the spots are located relatively close to the I-80 freeway. Three of the points are along Pinole Creek. All of the identified common locations are on parcels with areas that have a number of trees, open space, and the ability to access shade. Five of the six identified homeless areas are within ½ mile of a transit stop, which could provide access to services in Pinole or neighboring jurisdictions. Several spots are also located behind large buildings which provide screening and a form of separation, protection and privacy from other uses. The location in the southern part of the City is not close to a transit stop.

Figure 48: Homeless Hotspot Areas



Source: City of Pinole Police Department and Code Enforcement.

There are a number of regional programs available in close proximity to Pinole to assist persons experiencing homelessness. To help meet the special needs of the homeless, the Contra Costa Crisis Center operates a 24-hour homeless hotline that connects homeless individuals and families to resources available in the County. Through the center, homeless persons are given emergency motel vouchers, provided free voicemail boxes, and referred to local service programs, including housing assistance, job training, substance abuse treatment, counseling, and emergency food, health care, and other vital services. Information regarding these services is available on the City of Pinole's website.

The Homeless Outreach Program allows the City of Pinole staff to work directly with the homeless persons in Pinole. City staff go out in the field to meet the homeless persons in their environment to monitor their activity as well as their safety. Staff provides information on housing resources to each person experiencing homelessness that is encountered. This program has helped bridge a gap between the City and the homeless population.

Table 45 in the Housing Needs chapter lists facilities with various programs designed for people experiencing homelessness.

Displacement

The Urban Displacement Project at the University of California, Berkeley, developed a map of "sensitive communities" where residents may be particularly vulnerable to displacement in the event of increased redevelopment and drastic shifts in housing cost. Sensitive communities are defined based on the following set of criteria:

The share of very low-income residents is above 20 percent.

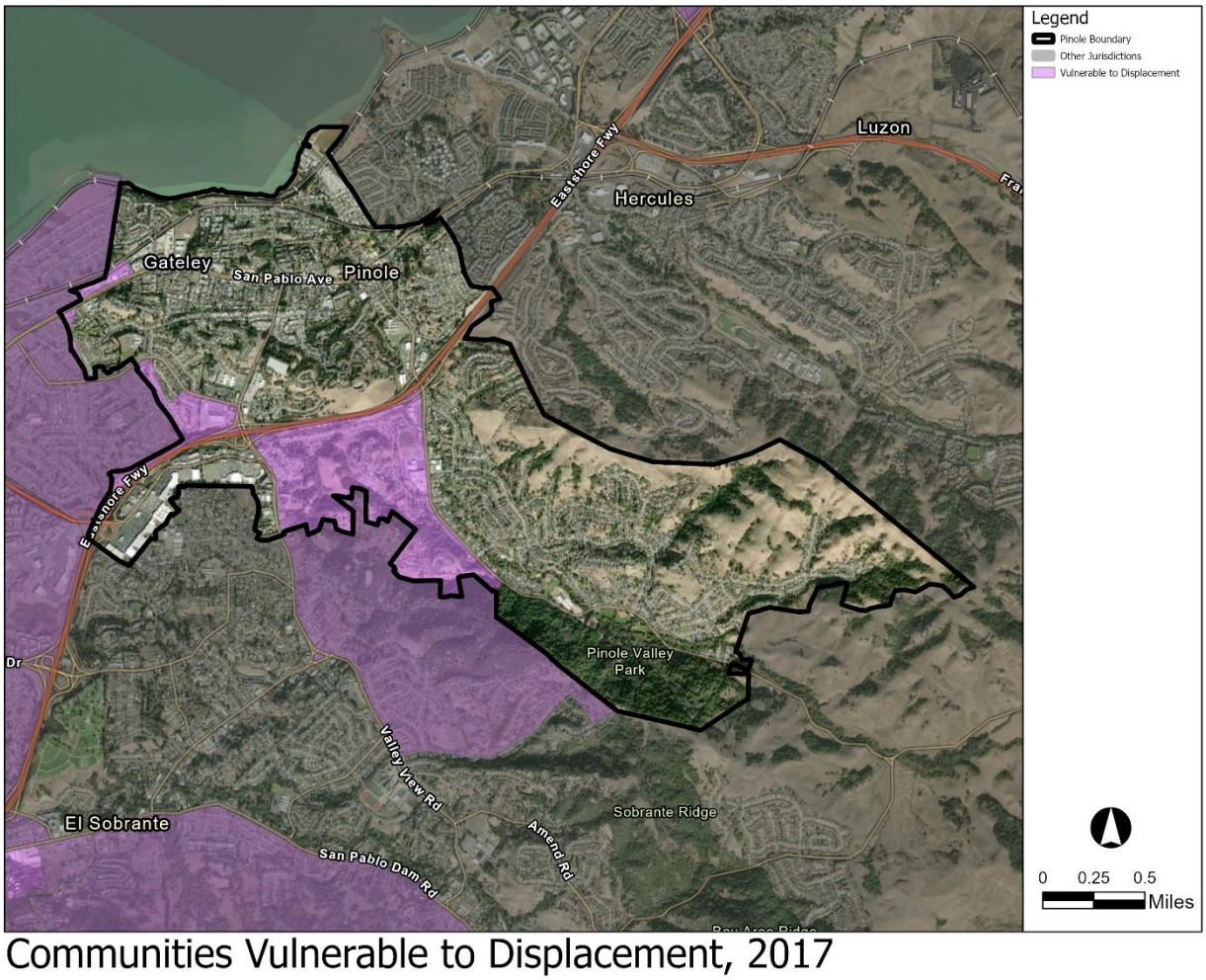
The tract must also meet two of the following criteria:

- The share of renters is above 40 percent.
- The share of people of color is above 50 percent.
- The share of very low-income households (50 percent AMI or below) that are severely rent burdened is above the county median.
- The census tract, or areas in close proximity, have been experiencing displacement pressures. Displacement pressure is defined as:
  - The percentage change in rent above county median for rent increases OR
  - The difference between tract median rent and median rent for surrounding tracts above median for all tracts in county (rent gap).

Figure 49 shows the areas vulnerable to displacement as identified by the Urban Displacement Project. Two census tracts in Pinole are considered vulnerable to displacement, residential tract 3601.01 and commercial tract 3640.02, the largest area being located centrally within the City along Interstate 80. Areas along the western City limits show similar risk.

The City is attempting to meet its RHNA without displacing existing residents by identifying vacant and underutilized sites that do not have existing residential uses. Therefore, the City's RHNA strategy is not anticipated to exacerbate risk of displacement. Instead, it is expected to minimize displacement by providing new housing opportunities for all income levels in areas with greater risk. Additionally, the City is implementing a Displacement Prevention Policy/Housing Mobility (Program 21) and Fair Housing Resources and Services Program (Program 20) to further minimize the risk of displacement.

Figure 49: Communities Vulnerable to Displacement



Communities Vulnerable to Displacement, 2017

Source: HCD AFFH Data Viewer

Findings

The analysis of disproportionate housing needs shows similar trends to the access to opportunities and integration and segregation analysis. The western and central portion of the City shows higher needs than the rest of Pinole, including needs and issues related to higher rates of overpayment and possible displacement risk. Additionally, renters, Hispanic and large households experience the greatest rates of housing problems in the City.

The City is including Program 19, a place-based improvement program to ensure that the RHNA site selection will improve access to resources throughout the City.

RHNA sites are distributed throughout the City and are not in areas with concentrations of disproportionate housing needs.

Other Contributing Factors

Local Historical Land Use, Zoning Patterns and Investment Patterns

Pinole was incorporated in 1903 and served as a small, regional hub along the San Pablo Bay. Contra Costa County and the City of Pinole experienced a post-World War II population boom, becoming a bedroom community for people working in San Francisco and Oakland. Interstate 80 was constructed in 1958 and bisected the City. This major interstate helped usher in the era of automobile-dominated development in Pinole and the surrounding areas. As a result of this era of development and preferences during this time, single family residential development has been the prevailing form of residential land use covering the City. Pinole has little land left for greenfield development, and a majority of the City is built out.

With the adoption of the Three Corridors Specific Plan in 2010 and subsequent development, the City has seen growth in areas with access to transit and employment along Appian Way, Pinole Valley, Road, and San Pablo Avenue. The purpose of the Specific Plan is to facilitate revitalization of the San Pablo Avenue, the Pinole Valley Road, and the Appian Way corridors. The City of Pinole has designated these corridors as Priority Development Areas (PDAs) through FOCUS, a regional development and conservation strategy that promotes more compact land use patterns for the Bay Area. PDAs are locally identified, infill development opportunity areas where there is local commitment to developing more housing along with facilities and services to meet the day-to-day needs of residents in a pedestrian-friendly environment served by transit. Additionally, conversations with affordable and market rate developers noted that the availability of vacant and underutilized land along these corridors was a factor in what led to developing in Pinole. Affordable housing developers referenced the increased availability of funding for projects in these corridors as they ranked higher for competitive funding sources.

Pinole is Racially Integrated

Pinole is a racially integrated City and comparisons to the region reflect this. According to the 2018 study by the University of California, Berkeley on racial segregation in the San Francisco Bay Area, "Pinole is the most integrated city in Contra Costa County, with a population that is 35 percent white, 26 percent Latino, 22 percent Asian, and 8 percent Black."[22] The updated findings using 2020 census data identified Pinole as one of the six "racially integrated" cities in the Bay Area.[23]

[22] Racial Segregation in the San Francisco Bay Area, Part 1. https://belonging.berkeley.edu/racial-segregation-san-francisco-bay-area-part-1

[23] The Most Segregated Cities and Neighborhoods in the San Francisco Bay Area. https://belonging.berkeley.edu/most-segregated-cities-bay-area-2020

Pinole does not have a pattern of segregation. While the AFFH maps and data show relatively subtle differences between census tracks, it is not possible to determine that the differences are caused by land use patterns resulting from the General Plan or zoning. Pinole's high level of integration and diversity demonstrates that the land use patterns are providing a range of housing types and opportunities to a wide range of persons and household types and needs.

Additionally, the City conducted outreach to real estate professionals in Pinole inquiring if they had come across any racially restrictive covenants or other discriminatory practices in the City. Two respondents, each with over 20 years of experience in the City, affirmatively stated that they were not aware of any redlining, racial covenants, or other discriminatory practices in Pinole. A third respondent agreed that they had not come across such language in Pinole but had heard from other real estate professionals that racially restrictive verbiage exists in some areas in the cities of Moraga, Lafayette, and Orinda roughly 15-20 miles to the south. A fourth respondent with over 30 years of real estate experience in the area has come across recorded covenants, conditions, and restrictions for properties aged 60-70 years that have discriminatory language. However, they have never encountered discriminatory practices when representing a buyer or seller in a transaction.

Responses in the Housing Element community survey indicate Pinole is a racially integrated jurisdiction. Eighty percent (80%) of respondents said Pinole is racially integrated while 8.2% indicated it was segregated and 12% said they were unsure. Additionally, respondents noted that Pinole has become increasingly integrated in the past 10-20 years and identified Pinole as more integrated than other Bay Area jurisdictions.

No History of Restrictive Voter Initiatives

Pinole has no history of restrictive voter initiatives or growth control measures. The City Clerk's office conducted a thorough review of the records of proposed and approved voter initiatives. The search found no record of passed or proposed voter initiatives that limited growth in the City. The records review also included contacting Contra Costa County for any records of such ballot initiatives in Pinole; no initiatives were found.

High Cost of Development

Difficult development areas (DDA) are areas with high land, construction, and utility costs relative to the area median income and are based on fair market rents, income limits, the 2010 Census counts, and 5-year American Community Survey data. HUD has determined that the entire jurisdiction of Pinole falls within a DDA. While being in a DDA can give developers additional tax credits on a project, there are also additional and often substantial barriers to construction in Pinole. Small developers and developments are less likely to be financially able to pursue construction in the area, and suitable sites for development are becoming ever harder to find. In addition to the lack of land, the high costs of construction and land can make building additional housing stock difficult.

Regional Growth and Racial Integration

The development pattern of the San Francisco Bay Area is a result of a wide range of coordinated strategies used to continue racial exclusion prior to the state and federal fair housing legislation. Many exclusionary housing policies now common across the United States originated in the Bay Area: San Francisco was among the first cites to use zoning to target specific racial groups with policies, Berkeley's 1916 zoning ordinance established exclusive single family residential zones, and developers and other organizations created a major barrier to public and affordable housing in Oakland. Though there is no history of such practices in Pinole, the regional effects of exclusionary zoning practices can still be felt across the Bay Area.

In 2018, the Othering & Belonging Institute launched a project to investigate the extent, harm and solutions to racial residential segregation in the San Francisco Bay Area. This project utilized the Divergence Index to identify the most segregated and integrated cities in the Bay Area. According to this project, the City of Pinole was ranked as one of the most integrated cities in the Bay Area with a top five Inter-municipal Divergence score.

Insights from Local Knowledge

The fair housing analysis and prioritization of contributing factors utilized a number of sources of local knowledge to aid in understanding the unique attributes of Pinole as they relate to fair housing issues. The list below summarizes a number of local data sources an outreach efforts the City pursued to contribute to the fair housing analysis and prioritization of contributing factors in the City. The list is not comprehensive but rather provides highlights of sources of local knowledge and how they aided in analysis and forming policies and programs.

- Code enforcement data from 2020 through March 2023 illustrates the spatial distribution and quantity of homelessness and of substandard housing cases in the City. The data highlights any geographic trends in the City.
- Conversations with code enforcement regarding substandard housing. Code enforcement did not note any geographic trends of substandard housing and noted they are generally spread throughout the City.
- Conversations with the Police Department regarding the Homeless Outreach Program identified two homeless hotspots and the efforts of the Homeless Outreach Program.
- Data from BayREN of program participation show which areas in the City are utilizing the BayREN programs. This data helped to inform the geographic trends and roll-out of the partnership with BayREN that is part of Program 19.
- Conversations with developers who have recently undergone development in the City, including affordable housing developers, to understand constraints to housing

development, especially housing development for lower-income and special needs households, in Pinole and the region.

- Outreach to four real estate professionals in the City to understand their experience with any discrimination or racial covenants in Pinole and the region.
- Data from the City's fair housing provider, ECHO, regarding the number and type of fair housing complaints in the City.
- Use of the Contra Costa County Analysis of Impediments to understand regional trends and patterns and how they relate to Pinole, as well as to understand which trends commonalities and differences between Pinole and the rest of the County.

The City also utilized information from the extensive public outreach including survey results, workshop participation, focus groups, and recommendations from the Planning Commission and City Council, as documented in the Public Participation section of the AFFH as well as staff experience and knowledge to contribute to the fair housing analysis of the Housing Element.

Fair Housing Issues, Contributing Factors, and Meaningful Action

The City has drafted goals and actions that specifically address the contributing factors identified in the AFFH analysis. While the City views all contributing factors as important priorities to address, higher priority was given to factors that limit fair housing choice and/or negatively impact fair housing, per Government Code Section 65583(c)(10)(A)(iv).

Table 74 displays the identified fair housing issue, contributing factor, actions taken to address the contributing factor, and priority level for each issue. Relevant programs are referenced in the action column for each contributing factor.

Table 74: Contributing Factors

Identified Fair Housing Issue	Contributing Factor	Action (Program #)	Priority
Disproportionate Housing Needs	• Lack of affordable or multifamily housing/diverse housing stock	• Facilitate ADU Production (Program 4) • Incentives for Mixed-Use Developments (Program 6) • SB 9 Technical Assistance (Program 5) • Affordable Housing Incentives (Program 8) • Housing for Extremely Low-Income Households and Persons with Disabilities (Program 9) • Senior Housing Incentives (Program 10) • Displacement Prevention / Housing Mobility (Program 21) • Home Sharing and Tenant Matching (Program 11)	High
Access to Opportunities	• Lower access to opportunities than Contra Costa County as a whole	• Place-Based Improvements (Program 19) • Fair Housing Resources and Services (Program 20) • Housing Resources Education (Program 22) • Home Sharing and Tenant Matching (Program 11)	High
Segregation and Integration	• Lack of affordable housing stock • Land-Use environmental restrictions	• Outreach and Technical Assistance to Applicants (Program 3) • Facilitate ADU Production (Program 4) • SB 9 Technical Assistance (Program 5)Incentives for Mixed-Use Developments (Program 6) • Affordable Housing Incentives (Program 8) • Zoning Amendments (Program 12) • Place-Based Improvements (Program 19) • ADU Education (Program 23)	Moderate

Identified Fair Housing Issue	Contributing Factor	Action (Program #)	Priority
Outreach and Enforcement Capacity	• Lack of widely publicized housing information	• Place-Based Improvements (Program 19) • Fair Housing Resources and Services (Program 20) • Housing Resources Education (Program 22) • ADU Education (Program 23)	Low

Table 75 provides a detailed overview of actions included in Housing Element programs that are aimed at affirmatively furthering fair housing. The table separates the actions by their identified fair housing issue and priority level. It summarizes the specific commitment, timeline, geographic targeting, and metric for each program.

Table 75: AFFH Actions Matrix

HE Programs or Other Activities	Specific Commitment	Timeline	Geographic Targeting	2023–2031 Metric
Disproportionate Housing Needs				
Program 4	To encourage and increase ADU production in the City, a number of efforts are included. The programs are intended to help the City meet its target projection of 3 ADUs per year.	Track ADU permits as they are submitted. Review ADU strategies annually as part of the Annual Progress Report process. Adopted amnesty program and developed fast track program within 2 years of Housing Element adoption.	Targeted promotion of ADUs in east Pinole. Targeted promotion of ADUs in neighborhoods which the geographic review identifies as building fewer ADUs.	Construction of 5 ADUs per year.
Program 6	The City will develop incentives to encourage residential mixed-use development in areas consistent with the Three Corridors Specific Plan Land Use Plans, and in particular along portions of the San Pablo Avenue, Pinole Valley Road, and Appian Way.	Within two years of Housing Element adoption.	Three Corridors Specific Plan areas and mixed-use zones	Amended zoning ordinance with adopted incentives. Entitlement of 3 mixed-use projects using one or more of the available incentives
Program 5	The City is in the process of creating informational materials to assist applicants and property owners in submitting applications for the development of SB 9 projects, which would highlight permit requirements and development standards to promote greater clarity in preparing submittals.	Zoning amendments and objective design standards by Q2 2025. Creation of simplified lot split form by Q1 2024.	Targeted promotion in the R1 zone. Targeted promotion of SB 9 units in	Facilitation of 10 SB 9 applications

HE Programs or Other Activities	Specific Commitment	Timeline	Geographic Targeting	2023–2031 Metric
	Materials are anticipated to be completed in 2023. In the interim, City staff provides guidance to applicants and owners through correspondences by phone, email, and counter meetings to help applicants understand State standards and provisions under SB 9, discuss preliminary design concepts, and explain permit procedures. Additionally, the City is in the process of establishing objective design standards. Objective design standards would provide greater predictability and clarity regarding design attributes for new residential development and support ministerial review and are anticipated to be completed within two years of Housing Element adoption. The City has recently received its first SB 9 application. In an effort to encourage and facilitate development in single family zone, the City will pursue a number of technical assistance and facilitation efforts including: • Updating the zoning code. This will include a review of developmental standards that could constrain SB 9 development and updating the zoning code to remove such constraints. • Creating a simplified lot split form to process SB 9 projects and provide the form online • Ensure objective design standards for SB 9 units (Program 13) This program works in conjunction with Program 23, ADU, JADU, and SB 9 Education, which provide a variety resources and outreach to homeowners regarding SB 9.		neighborhoods where geographic review identifies fewer were built.	
Program 8	Create and adopt a set of incentives for projects that provide a minimum of 15 percent of total units affordable to low and moderate income households, and provide additional	Within two years of Housing Element Adoption	Citywide	Completion of initial review of affordable

HE Programs or Other Activities	Specific Commitment	Timeline	Geographic Targeting	2023–2031 Metric
	affordable housing beyond the City's 15 percent inclusionary requirement.			housing developments within prescribed timeline. Expedited review of projects to take 50% less time than the normal review process.
Program 9	Encourage and facilitate the development of housing for ELI households and housing for persons with disabilities	Annual review of funding opportunities, collaboration with services providers, and contact of developers. Annual developer workshop. Use of one or more incentives for ELI and/or households with persons with disability housing development in one project throughout the planning period. Development of fee waiver program within 18 months of Housing Element adoption. Zoning Ordinance amendments for ELI parking reduction within two years of Housing Element adoption.	Citywide	Annual contact of developers
Program 10	The City will develop a set of incentives to encourage the development of housing for seniors.	Within two years of Housing Element adoption	Citywide	Use of one or more

HE Programs or Other Activities	Specific Commitment	Timeline	Geographic Targeting	2023–2031 Metric
				incentives for senior housing development in one project throughout the planning period.
Program 21	Within one year, coordinate with a qualified fair housing service provider to conduct a meeting/workshop to inform residents and landlords of sources of income protection and state rent control laws such as AB 1482. This may be done in coordination with the workshop in Program 18. Coordinate outreach efforts to inform landlords and tenants of recent changes to state law that prevent source of income discrimination, including allowance of housing choice vouchers (HCVs) to establish a renter's financial eligibility. Pursuant to SB 330, ensure that when existing housing is demolished, at least an equivalent number of units at the same affordability are created as replacements.	Revise zoning ordinance to require affordable unit replacement within two years of Housing Element adoption; create and distribute informational materials by within 18 - 24 months of Housing Element adoption, with annual outreach to tenants and relevant organizations. Conducted workshop within one year of adoption.	Conduct the source of income protection/tenant's rights workshop in west Pinole.	Conducted workshop within one year of adoption. Provide resources on source of income discrimination and housing choice vouchers to 35 households annually.
Program 11	The Home Sharing and Tenant Matching program will work in tandem with educating residents and facilitating additional ADU and JADU developments across the City. The pamphlets developed in Program 22 will include detailed the Pinole home sharing program, once developed, and references to other educational and financial resources for homeowners incorporating and ADU and/or JADU on their properties or seeking housemates to live in their JADU.	Develop program components, outreach strategies and compile resources within three years of Housing Element adoption.	Citywide	10 tenant matches completed throughout the planning period.

HE Programs or Other Activities	Specific Commitment	Timeline	Geographic Targeting	2023–2031 Metric
	A Home Sharing and Tenant Matching program can also assist in helping those who work in Pinole, including teachers, find housing options in the City.			
Segregation and Integration				
Program 3	The City will provide technical assistance to developers to encourage provision of affordable housing that are consistent with City goals. The City will engage and coordinate with other public agencies, faith and community-based organizations, and housing developers.	Technical assistance provided as needed. Develop comprehensive coordinated review procedures with all city departments within one year of Housing Element adoption. Create developer interest list within 6 months of Housing Element adoption and contact affordable housing builders annually with information about sites to facilitate development of affordable rental housing. Annual outreach to public agencies and community and faith-based organizations for funding and partnership opportunities.	Faith-based organizations and facilities across Pinole.	Technical assistance to all affordable housing applicants. Make the comprehensive coordinated review with all city departments standard operating procedure for all residential developments. Annual review of available funding sources and contact to other agencies and developers.

HE Programs or Other Activities	Specific Commitment	Timeline	Geographic Targeting	2023–2031 Metric
Program 4	To encourage and increase ADU production in the City, a number of efforts are included. The programs are intended to help the City meet its target projection of 3 ADUs per year.	Track ADU permits as they are submitted. Review ADU strategies annually as part of the Annual Progress Report process. Adopted amnesty program and developed fast track program within 2 years of Housing Element adoption.	Targeted promotion of ADUs in east Pinole. Targeted promotion of ADUs in neighborhoods which the geographic review identifies as building fewer ADUs.	Construction of 5 ADUs per year.
Program 5	The City is in the process of creating informational materials to assist applicants and property owners in submitting applications for the development of SB 9 projects, which would highlight permit requirements and development standards to promote greater clarity in preparing submittals. Materials are anticipated to be completed in 2023. In the interim, City staff provides guidance to applicants and owners through correspondences by phone, email, and counter meetings to help applicants understand State standards and provisions under SB 9, discuss preliminary design concepts, and explain permit procedures. Additionally, the City is in the process of establishing objective design standards. Objective design standards would provide greater predictability and clarity regarding design attributes for new residential development and support ministerial review and are anticipated to be completed within two years of Housing Element adoption. The City has recently received its first SB 9 application. In an effort to encourage and facilitate development in single	Zoning amendments and objective design standards by Q2 2025. Creation of simplified lot split form by Q1 2024.	Targeted promotion in the R1 zone. Targeted promotion of SB 9 units in neighborhoods where geographic review identifies fewer were built.	Facilitation of 10 SB 9 applications

HE Programs or Other Activities	Specific Commitment	Timeline	Geographic Targeting	2023–2031 Metric
	family zone, the City will pursue a number of technical assistance and facilitation efforts including: • Updating the zoning code. This will include a review of developmental standards that could constrain SB 9 development and updating the zoning code to remove such constraints. • Creating a simplified lot split form to process SB 9 projects and provide the form online • Ensure objective design standards for SB 9 units (Program 13) This program works in conjunction with Program 23, ADU, JADU, and SB 9 Education, which provide a variety resources and outreach to homeowners regarding SB 9.			
Program 6	The City will develop incentives to encourage residential mixed-use development in areas consistent with the Three Corridors Specific Plan Land Use Plans, and in particular along portions of the San Pablo Avenue, Pinole Valley Road, and Appian Way.	Within two years of Housing Element adoption.	Three Corridors Specific Plan areas and mixed-use zones	Amended zoning ordinance with adopted incentives. Entitlement of 3 mixed-use projects using one or more of the available incentives
Program 8	Create and adopt a set of incentives for projects that provide a minimum of 15 percent of total units affordable to low and moderate income households, and provide additional affordable housing beyond the City's 15 percent inclusionary requirement.	Within two years of Housing Element Adoption	Citywide	Completion of initial review of affordable housing developments

HE Programs or Other Activities	Specific Commitment	Timeline	Geographic Targeting	2023–2031 Metric
				within prescribed timeline. Expedited review of projects to take 50% less time than the normal review process.
Program 12	The City is including a number of zoning amendments as identified in the constraints section to ensure compliance with state law and remove constraints to development.	Within two years of Housing Element adoption.	Citywide	Not Applicable
Program 19	As a part of the EJ Element, the City will pursue programs to increase environmental health and quality of life across Pinole. The City is working with County develop a contractual arrangement to develop an enhanced BayREN Home+ rebate incentive structure for Pinole homeowners and multifamily property owners to undertake needed energy efficiency projects. The City has multiple projects in its Capital Improvements Plan identified to improve mobility and active transportation opportunities in the western part of the City.	As identified in CIP Schedule; Environmental Justice Element adopted by the end of 2023. BayREN rebates in the 2022-23 fiscal year.	Targeted roll out of program to Western Pinole/EJ Element Impacted Community first.	Completed Capital Improvement Projects and Adopted Environmental Justice Element.
Program 23	The City is developing a comprehensive education program to promote the development of second dwelling units in the City. The program will contain information for residents who may be unaware of the ability to build or incorporate an ADU	Develop outreach strategies and compile resources within two years of Housing Element adoption. Promotion of Home Sharing and	Increased promotion of ADUs, JADUs, and SB 9 potential in higher	Increased development of ADUs from 3 to 5 annually.

HE Programs or Other Activities	Specific Commitment	Timeline	Geographic Targeting	2023–2031 Metric
	and/or JADU on their properties, as well as detailed guidance on how to go through the ADU an JADU process and what financial resources are available. The City will provide pamphlets on the City website and at City Hall with detailed information on the ADU and JADU processes. The City will also provide a pamphlet with detailed information on SB 9 opportunities in the City. This will include a FAQ and detailed guidance on how to utilize SB 9 in the City. This program will work in conjunction with Program 11.	Tenant Matching (Program 11) six months after program development.	opportunity areas of the City as determined by TCAC opportunity area maps.	Development of 1 JADU annually.
Access to Opportunities				
Program 19	As a part of the EJ Element, the City will pursue programs to increase environmental health and quality of life across Pinole. The City is working with County develop a contractual arrangement to develop an enhanced BayREN Home+ rebate incentive structure for Pinole homeowners and multifamily property owners to undertake needed energy efficiency projects. The City has multiple projects in its Capital Improvements Plan identified to improve mobility and active transportation opportunities in the western part of the City.	As identified in CIP Schedule; Environmental Justice Element adopted by the end of 2023. BayREN rebates in the 2022-23 fiscal year.	Targeted roll out of program to Western Pinole/EJ Element Impacted Community first.	Completed Capital Improvement Projects and Adopted Environmental Justice Element.
Program 20	The City will advertise the services of and collaborate with the County's contracted fair housing provider, currently ECHO Housing. ECHO housing holds monthly Regional Fair Housing Trainings for tenants, landlords, service providers, and staff of local governments. The City will hold an annual workshop with	Biennial fair housing workshops. Ongoing provision of resources and referrals to fair housing service providers. Review of demographics to determine appropriate translation	Hold at least 50% of in person workshops for fair housing in west Pinole, or other areas with low	Provide annual workshops or information fairs with the County fair housing

HE Programs or Other Activities	Specific Commitment	Timeline	Geographic Targeting	2023–2031 Metric
	the County's fair housing service provider or another qualified fair housing service provider in the City of Pinole. The City will make educational and training resources available to tenants, landowners, homeowners, and any other residents who may be affected by fair housing policy. The City will continue to encourage improved community participation and representation in all official city business, events, and communications. The City will contract with a translation service as needed for meetings, putting a standard note on all hearing notices and communications in Tagalog, Spanish and Chinese indicating that interpretation and translation services are available upon request. The City will contract with a translation service for direct on the spot translation/interpretation needs at the front counter. The City will review demographic changes in the City to determine if translation should be provided for new or additional languages every four years. Translation to additional languages added as determined by demographic analysis. The City will also participate in the Regional Analysis of Impediments to Fair Housing Choice, which is updated every five years. The City will work with the County to publicize the outreach program for the update.	and interpretation languages every 4 years.	access to opportunities per the most recent TCAC opportunity area map.	provider or another qualified fair housing provider. Provide fair housing resources or referrals to 50 households annually.
Program 22	The City will promote and advertise available housing resources to residents through a variety of mediums. The City will continue to promote homebuyer assistance programs available through the County and State, such as the Mortgage Credit Certificate (MCC) program and California Housing Finance Agency's down payment assistance programs.	Provision of information within 18 months of Housing Element adoption. Presence at community events at least once per year.	Citywide	Provision of housing information to approximately 75 residents annually.

HE Programs or Other Activities	Specific Commitment	Timeline	Geographic Targeting	2023–2031 Metric
	Promotion of housing resources and education efforts will be done in accordance with the recently adopted Communication and Engagement Plan that was created to help strengthen the City's communication efforts and effectively reach and engage residents. The Plan includes steps to develop a defined process for translation services and include bilingual communication in social media posts.			
Program 11	The Home Sharing and Tenant Matching program will work in tandem with educating residents and facilitating additional ADU and JADU developments across the City. The pamphlets developed in Program 22 will include detailed the Pinole home sharing program, once developed, and references to other educational and financial resources for homeowners incorporating and ADU and/or JADU on their properties or seeking housemates to live in their JADU. A Home Sharing and Tenant Matching program can also assist in helping those who work in Pinole, including teachers, find housing options in the City.	Develop program components, outreach strategies and compile resources within three years of Housing Element adoption.	Citywide	10 tenant matches completed throughout the planning period.
Outreach and Enforcement Capacity				
Program 19	As a part of the EJ Element, the City will pursue programs to increase environmental health and quality of life across Pinole. The City is working with County develop a contractual arrangement to develop an enhanced BayREN Home+ rebate incentive structure for Pinole homeowners and multifamily property owners to undertake needed energy efficiency projects.	As identified in CIP Schedule; Environmental Justice Element adopted by the end of 2023. BayREN rebates in the 2022-23 fiscal year.	Targeted roll out of program to Western Pinole/EJ Element Impacted Community first.	Completed Capital Improvement Projects and Adopted Environmental Justice Element.

HE Programs or Other Activities	Specific Commitment	Timeline	Geographic Targeting	2023–2031 Metric
	The City has multiple projects in its Capital Improvements Plan identified to improve mobility and active transportation opportunities in the western part of the City.			
Program 20	The City will advertise the services of and collaborate with the County's contracted fair housing provider, currently ECHO Housing. ECHO housing holds monthly Regional Fair Housing Trainings for tenants, landlords, service providers, and staff of local governments. The City will hold an annual workshop with the County's fair housing service provider or another qualified fair housing service provider in the City of Pinole. The City will make educational and training resources available to tenants, landowners, homeowners, and any other residents who may be affected by fair housing policy. The City will continue to encourage improved community participation and representation in all official city business, events, and communications. The City will contract with a translation service as needed for meetings, putting a standard note on all hearing notices and communications in Tagalog, Spanish and Chinese indicating that interpretation and translation services are available upon request. The City will contract with a translation service for direct on the spot translation/interpretation needs at the front counter. The City will review demographic changes in the City to determine if translation should be provided for new or additional languages every four years. Translation to additional languages added as determined by demographic analysis. The City will also participate in the Regional Analysis of Impediments to Fair Housing Choice, which is updated every	Biennial fair housing workshops. Ongoing provision of resources and referrals to fair housing service providers. Review of demographics to determine appropriate translation and interpretation languages every 4 years.	Hold at least 50% of in person workshops for fair housing in west Pinole, or other areas with low access to opportunities per the most recent TCAC opportunity area map.	Provide annual workshops or information fairs with the County fair housing provider or another qualified fair housing provider. Provide fair housing resources or referrals to 50 households annually.

HE Programs or Other Activities	Specific Commitment	Timeline	Geographic Targeting	2023–2031 Metric
	five years. The City will work with the County to publicize the outreach program for the update.			
Program 22	The City will promote and advertise available housing resources to residents through a variety of mediums. The City will continue to promote homebuyer assistance programs available through the County and State, such as the Mortgage Credit Certificate (MCC) program and California Housing Finance Agency's down payment assistance programs. Promotion of housing resources and education efforts will be done in accordance with the recently adopted Communication and Engagement Plan that was created to help strengthen the City's communication efforts and effectively reach and engage residents. The Plan includes steps to develop a defined process for translation services and include bilingual communication in social media posts.	Provision of information within 18 months of Housing Element adoption. Presence at community events at least once per year.	Citywide	Provision of housing information to approximately 75 residents annually.
Program 23	The City is developing a comprehensive education program to promote the development of second dwelling units in the City. The program will contain information for residents who may be unaware of the ability to build or incorporate an ADU and/or JADU on their properties, as well as detailed guidance on how to go through the ADU an JADU process and what financial resources are available. The City will provide pamphlets on the City website and at City Hall with detailed information on the ADU and JADU processes. The City will also provide a pamphlet with detailed information on SB 9 opportunities in the City. This will include a FAQ and detailed guidance on how to utilize SB 9 in the City. This program will work in conjunction with Program 11.	Develop outreach strategies and compile resources within two years of Housing Element adoption. Promotion of Home Sharing and Tenant Matching (Program 11) six months after program development.	Increased promotion of ADUs, JADUs, and SB 9 potential in higher opportunity areas of the City as determined by TCAC opportunity area maps.	Increased development of ADUs from 3 to 5 annually. Development of 1 JADU annually.

Sites and Resources

Land Inventory

The sites and resources section of the Housing Element provides an overview of available land resources and residential sites for future housing development, evaluates how these resources can satisfy future housing needs, reviews financial and administrative resources available to support affordable housing, and discusses resources available for the development, rehabilitation, and preservation of housing in Pinole.

Housing Allocation

California General Plan law requires that a community provide a fair share of sites to allow for and facilitate production of the regional share of housing. To determine whether a jurisdiction has sufficient land to accommodate its share of regional housing needs for all income groups, that jurisdiction must identify "adequate sites." As defined under California Government Code Section 65583(c)(1), adequate sites are those with appropriate zoning and development standards, with services and facilities to encourage and provide for the development of a variety of housing for all income levels.

The California Department of Housing and Community Development (HCD) and the California Department of Finance (DOF) are responsible for assessing the housing needs for different regions across the state. Pinole is in the Association of Bay Area Governments (ABAG) region, which received a regional allocation of 441,176 housing units. ABAG then distributed these housing units between all jurisdictions, a process known as the Regional Housing Needs Allocation (RHNA). ABAG adopted its final allocations on December 16, 2021. The City of Pinole's RHNA for the 2023-2031 planning period (6th Cycle) is 500 total units, spread among different income categories, as shown in Table 76.

Table 76: 2023–2031 RHNA

Very Low Income	Low Income	Moderate Income	Above Moderate Income	Total
121	69	87	223	500

Source: Regional Housing Needs Allocation, ABAG, 2023-2031.

*Note: Pursuant to AB 2634, local jurisdictions are also required to project the needs of extremely low income households (0–30% of area median income). The projected extremely low-income need can be assumed as 50 percent (60) of the total need for the very low-income households.

No Net Loss Buffer

Recent changes to state law (Senate Bill 166 – 2017) require cities to continually maintain adequate capacity in their sites inventories to meet their RHNA for all income levels. In the event that a site is developed below the density projected in the Housing Element, or at a different income than projected, the City must have adequate sites available to

accommodate the remaining balance of the RHNA. If the City does not have any additional capacity within the existing zoning, it must identify and rezone new sites that can accommodate the remaining need within six months. For these reasons, the City is including an additional buffer of 20 percent above the remaining RHNA need once accounting for pending projects and ADUs. The City is already meeting its low and above moderate RHNA with pending projects. Table 77 illustrates the RHNA breakdown by income category with the 20 percent buffer beyond the remaining need. As shown below, the City will provide adequate capacity for a total of at least 759 units (152% of the RHNA). This accounts for the 659 pending projects.

Table 77: 2023–2031 RHNA Buffer Calculation

Row Identifier	Capacity Category	Very Low	Low	Moderate	Above Moderate	Total
A	RHNA	121	69	87	223	500
B	Pending Projects + Projected ADUs	56	172	69	362	659
C	Remaining Need (A – B)	65	-	18	-	83
D	20% Buffer (C x 0.2)	13	-	4	-	17
E	Remaining Need + Buffer (C+ D)	78	-	22	-	100
F	Total Site Capacity (B + E)	134	172	91	362	759

Realistic Capacity

State law requires that a city project realistic estimates for housing capacity on its RHNA sites. Realistic capacity may be estimated by utilizing recent project history, using a minimum density, or through other methods. As the majority of the City's new housing growth is expected to take the form of multifamily housing, the City reviewed multifamily projects constructed during the 5th Cycle to understand historical trends for multifamily housing production.

As a part of the Housing Element update process, the City reviewed all applications for development received. There were no applications for development in the 5th Cycle that were denied, reduced in size, or withdrawn.

Multifamily developments in the City have had success in meeting the densities required by the Zoning Ordinance. Table 78 lists the recent multifamily projects built, approved, or proposed in the City. The table shows the project, land use, zoning, density, number of units,

maximum density of the zone, and yield percentage of the project. Seven recent projects have density yields ranging from 55 percent to 183 percent, with an average of 109 percent of the maximum permitted density. The project with the 55 percent yield, the BCRE project, was designed around keeping the existing commercial/office building that is to remain, lowering the yield. For Appian Village, there were site-specific considerations such as steeply sloped areas around the western property line and Specific Plan height limitations when adjacent to single family residential that the applicant chose to design around, lowering the yield of the project to 63 percent. Three of the seven projects used density bonuses to achieve densities greater than allowed by the underlying zoning. This greatly increased the individual and the average project yield.

To project future development yields a very conservative approach was taken. Rather than use the actual average yield (109%), the City deducted all additional units derived from density bonuses. In this manner, the yields from the recent projects were limited to a maximum of 100% of the maximum density instead of using the actual yields of up to 183% on 43% of the sites, as shown in Table 78. This lowered the average yield from 109% to 83%, as shown in Table 78. The assumed yield used in the calculations was further reduced to 70% to provide a combined 36% reduction and buffer from the actual average yields to provide a conservative and achievable estimate of project yield based on past trends. This will effectively result in a 36% buffer and safety factor over and above the 20% buffer in excess of the required RHNA.

The realistic capacity calculations above consider the potential for commercial development on the site in the three mixed-use zones in the City. The RHNA inventory only includes sites in the CMU and RMU mixed-use zones. The inventory does not include any sites in zones that do not allow for 100 percent residential development. The RMU zone requires at least 51 percent residential use. Both the RMU and CMU allow for 100 percent residential developments. CMU allows up to 100 percent of the floor area for residential use for developments with the inclusionary affordable housing component and community benefits as specified in the General Plan.

The City reviewed recent development, both residential and non-residential, in the mixed-use zones to determine realistic capacity. Seventy percent (70%) of all development projects in the mixed-use zones in the last eight years have been either entirely residential or mixed-use. An average yield of the residential projects in the RMU and CMU zone is 107 percent of the maximum residential density. The combined yield is 75% (70% of sites x 107% of max density). The City has had three recent redevelopment of sites as commercial-only uses. All occurred in the CMU zoning district which is oriented towards commercial in general and allows for 100 percent commercial uses onsite by right. These developments included a Valero gas station demolished and rebuilt as a 7-Eleven gas station, an approved demolition

and rebuild of the majority of the aging Appian 80 Shopping Center and Safeway supermarket, and redevelopment of a vacant medical office building as a CVS pharmacy. The Valero gas station site was small, adjacent to the freeway, and not generally suitable for housing; the Appian 80 site maintains the same shopping center use but is not precluded from future additional redevelopment for residential opportunities; and the CVS site replaces a vacant office building with a commercial building compatible with the commercial and office development in the surrounding area. As discussed above and shown in Table 78 below, realistic capacity calculations take into consideration the capacity for commercial development through the reduction of yield from the 107% in zones that allow commercial use to 70%. The assumed 70% yield is less than 75% combined yield (70% of mixed-use zoned sites x 107% of max residential density).

Table 78: Recently Built, Approved, or Proposed Multifamily Projects

Project	Land Use	Zoning	Project Density (du/acre)	Acres	Num. of Units	Max Density	Yield Percent	Calculated Percent (100% max)
Vista Woods	MUSA	R4	89	2.01	179	50	178%	100%
Appian Village	SSA, Appian Way Corridor	RMU/ CMU	20.9	7.37	154	32.7*	63%	63%
BCRE Mixed-Use Office and Residential	SSA, Pinole Valley Road Corridor	OPMU	16.6	0.61	29	30	55%	55%
SAHA Veteran's Housing	MUSA	CMU	55	1.79	34	30	183%	100%
Pinole Vista	SSA, Appian Way Corridor	CMU	37.6	5.93	223	30	125%	100%
1479 San Pablo Ave	MUSA	RMU	29.7	0.10	3	35	85%	85%
810 E Meadow	Suburban Residential	R2	15.2	0.33	5	20	76%	76%
						Average	**109.3%**	**82.7%**

* Density calculated proportional to acreage between two zones

Du/acre = dwelling units per acre

The City has substantial evidence that demonstrate average project yields in excess 100% for its multi-family zones. However, to be highly conservative and meet all requirements in state law, the City is further reducing the anticipated yield to 70%. This assumption accounts for and anticipates that some properties may develop with mixed-use projects, or that some portions of existing uses may remain on site. For example, the actual average and proposed yields include the BCRE project which adds new office and residential to an existing office development.

The recent projects also demonstrate that the mixed-use zones have been developed with 100% residential projects, showing application of flexible development standards in the City. While there is a commercial component required in mixed-us zones it was waived in two recent projects. In one case it was waived due to the density bonus and in another case it was waived as the applicant provided community benefits.

Yields were determined based on recent projects shown above and zoning standards. This serves as a conservative estimate which is lower than the average of recent development projects in these zones. In mixed-use zones alone, recent projects have averaged 74 percent of the yield, using 100 percent as the maximum for density bonus projects. Using 70 percent ensures a realistic estimate for sites in these zones. Table 79 displays the assumed yields for multifamily zones, by zone and provides and estimated yield density for each. Based on higher recent trends in development, a 70 percent yield is a conservative estimate that is highly likely to be achieved and exceeded as the proposed RHNA sites are developed.

Table 79: Assumed Yields for Multifamily Zones

Zone	Maximum Density (du/acre)	Yield	Estimated Yield Density (du/acre)
R2	20	70%	14
Residential Mixed Use (RMU)	35	70%	24.5
Commercial Mixed Use (CMU)	30	70%	21
Very High Density Residential (R4)	50	70%	35

Du/acre = dwelling units per acre

Assumed Affordability

Density

The California Government Code states that if a local government has adopted density standards consistent with the population-based criteria set by state law (at least 20 dwelling units per acre (du/ac) for Pinole), HCD is obligated to accept sites with those density standards (20 du/ac or higher) as appropriate for accommodating the jurisdiction's share of

regional housing need for lower-income households. Per Government Code Section 65583.2(c)(3)(B), the City's R2, R3, R4, RMU, CMU, and OPMU zones are consistent with the default density standard (20 du/ac) for Pinole, and therefore considered appropriate to accommodate housing for lower-income households. For parcels that were split-zoned, the density was assumed proportional to the acreage of each zone.

Moderate-income housing can be accommodated through medium- and higher-density zones, with densities ranging from 15 du/ac and above. Above moderate-income housing needs may be met through lower-density, single-family typologies, typically in the 0 to 15 du/ac range. The sites in the inventory are assumed at a mix of very low-, and moderate-incomes.

Size

Pursuant to state law, sites accommodating lower-income units must have areas between 0.5 and 10 acres, regardless of allowed density. The City identified sites that meet the size criteria for the lower-income units.

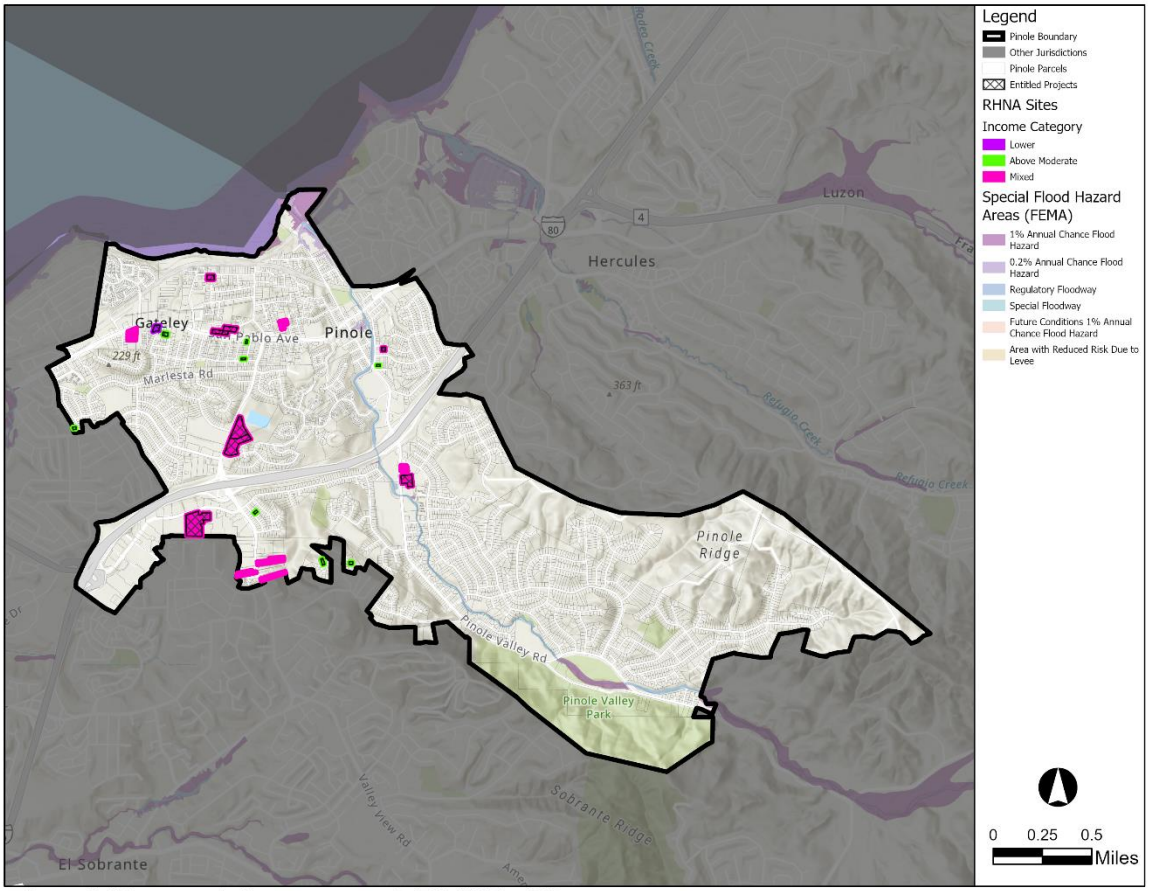
Environmental and Infrastructure Constraints

The site inventory analysis takes into consideration any environmental constraints such as habitat, flood, noise hazards, and steep slopes. Any environmental constraints that would lower the potential yield have already been accounted for in the site/unit capacity analysis through a reduction of the developable acreage of the site. In general, the deductions in the yield from the maximum will cover and accommodate any reductions in site capacity due to environmental constraints.

Flooding

Figure 50 displays the flood hazard zones as identified by the Federal Emergency Management Agency (FEMA). The vast majority of Pinole falls into an area with no identified flood risk. A regulatory floodway running through the city creates minimal spots of areas with identified flood risk along the regulatory floodway. None of the RHNA sites are in any areas with an identified flood risk.

Figure 50: Flood Hazard Zones



Flood Hazard Areas and RHNA Sites

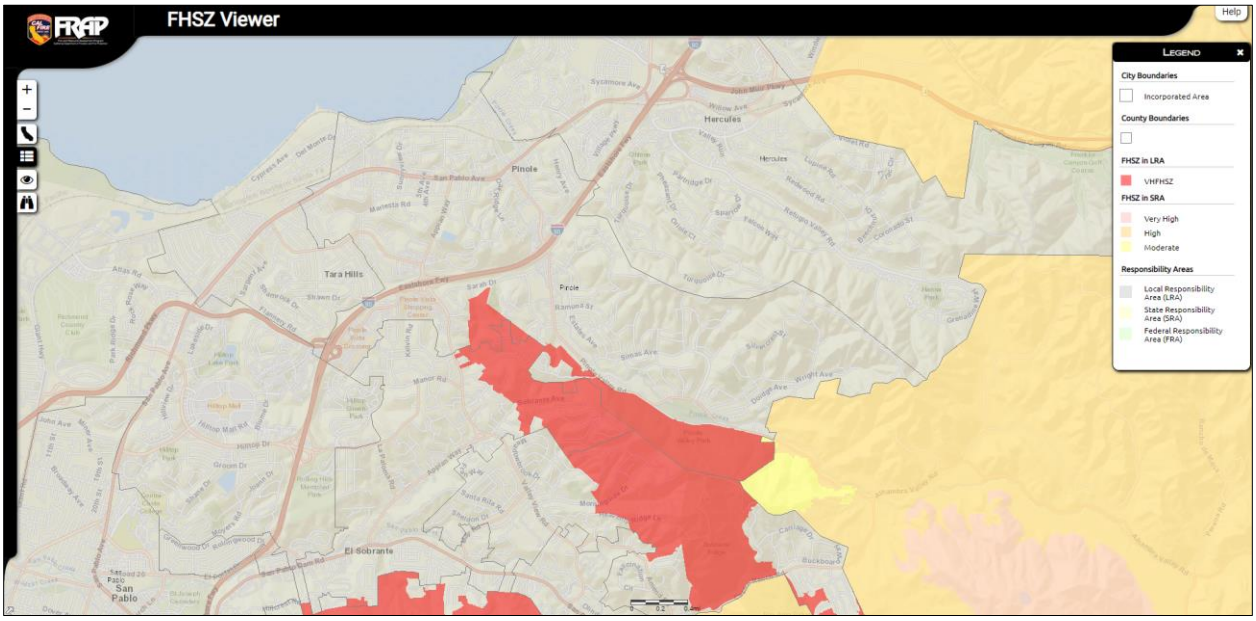
Source: Federal Emergency Management Agency.

Fire

There are few areas in the City that fall into a Very High Fire Hazard Severity Zone (VHFHSZ), as shown in Figure 51. Areas in the VHFHSZ are along the southeastern edge of the City, along the City boundary. None of the RHNA sites fall into the VHFHSZ.

The City of Pinole Fire Department provides service to the City. There is currently one operating fire station, fire station No. 73. The City is recently worked with ConFire to negotiate a contractual arrangement for ConFire to take over all fire protection services (fire prevention, suppression, and emergency medical response), effective March 1, 2023. This includes reopening Fire Station No. 74 that has been closed since 2011. This will allow for shortened response times throughout the City and increased services.

Figure 51: Very High Fire Hazard Severity Zones



Source: California Department of Forestry and Fire Protection. Fire Hazard Severity Zone Viewer.

Infrastructure

Most vacant or underutilized land currently available for development in the City of Pinole can be served by the infrastructure necessary for development. Parcels that do not have all utilities are large, single-family parcels that are not included in the RHNA inventory. All of the RHNA sites are served by the necessary infrastructure for development.

The East Bay Municipal Utility District (EBMUD) provides water service to the City. The City of Pinole and West County Wastewater District (WCWD) are the wastewater service providers to the City. Currently there is adequate capacity available within EBMUD and both wastewater service providers sewer districts to handle development anticipated in the Pinole General Plan. The installed utilities that provide gas distribution, electric circuit, and service are also adequate to handle future development in Pinole.

The City complies with requirements regarding water and sewer priority allocation to affordable housing. As needed, the City will coordinate with EBMUD, WCWD, and the Pinole/Hercules Water Pollution Control Plant (WPCP) Joint Powers Authority to facilitate adoption of similar policies or to ensure adherence to California Public Utilities Commission policies on water/sewer priority for affordable housing. In 2016, the City adopted a policy for water and sewer services to provide priority allocation to affordable housing in the event a rationing system is implement.

Entitled and Pending Projects

A total of 635 entitled units are counted toward meeting the RHNA, as listed in Table 80. There are enough entitled, deed-restricted low-income units to fully meet the low-income RHNA of 69. There are 165 low-income pending units, which yields a surplus of 96 units beyond the RHNA. There are also 359 pending above moderate units which exceed the RHNA of 223 by 136 units. In addition, there are 49 pending very low units and 62 pending moderate units.

All entitled projects are anticipated to be completed in the 6th Cycle. There are no known barriers to the completion of any of these projects within the 6th Cycle. The City reviewed residential development applications received during the previous cycle, and there were no projects that were withdrawn, decreased in size, or denied.

Entitled and pending projects are described in detail below. Appendix D includes letters from developers of these projects indicating their intent to complete the projects in the next eight years. Appendix B provides additional information on pending projects. The City is committed to ensuring adequate sites are available to meet the RHNA, and should circumstances change and any of these projects are not anticipated for completion during the 6th Cycle, the City will identify additional sites and programs as necessary (see Program 1).

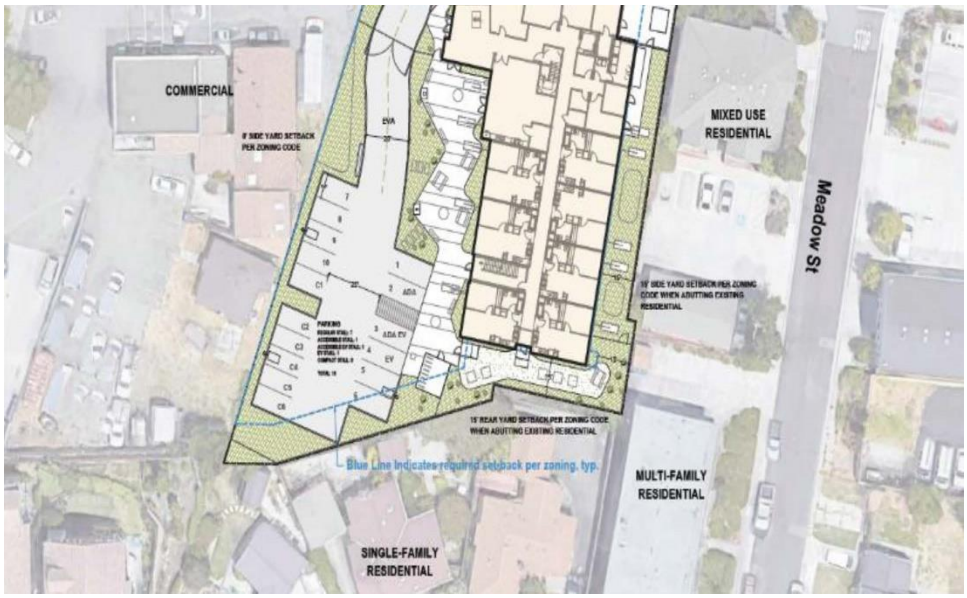
Projects with affordable units are deed-restricted for a length of 55 years. All very low, low, and moderate income units listed in Table 80 will be deed-restricted. Agreements approved by City Council are required for all projects with affordable (including moderate-income) units to document the terms of affordability. The approval of agreements are required prior to final inspection. The Vista Woods, Appian Village, SAHA, and BCRE projects all have a restrictive covenant for a length of 55 years from the certificate of occupancy, which have not yet been issued.

Appian Village

Appian Village is an all-electric residential condominium housing development. It consists of 154 units including 8 units for sale to low-income households and 23 units for sale to moderate income households. It is the reuse of a former hospital site. The project was entitled in one hearing with the Planning Commission. The demolition permit was issued on September 9, 2022 and the building permit submitted on December 13, 2022.

SAHA Affordable Veteran's Housing

The Satellite Affordable Housing Associates (SAHA) development is 33 units on a 0.61 acre previously vacant infill parcel. The development is all lower-income housing units. The project is on city-owned land and the City is contributing over three million dollars in Housing Asset Funds towards the project's construction. The project was entitled in under five months from application submittal and in one hearing with the Planning Commission. A grading permit was submitted on July 5, 2022 and building permit was submitted on December 12, 2022. Construction will begin in June 2023.

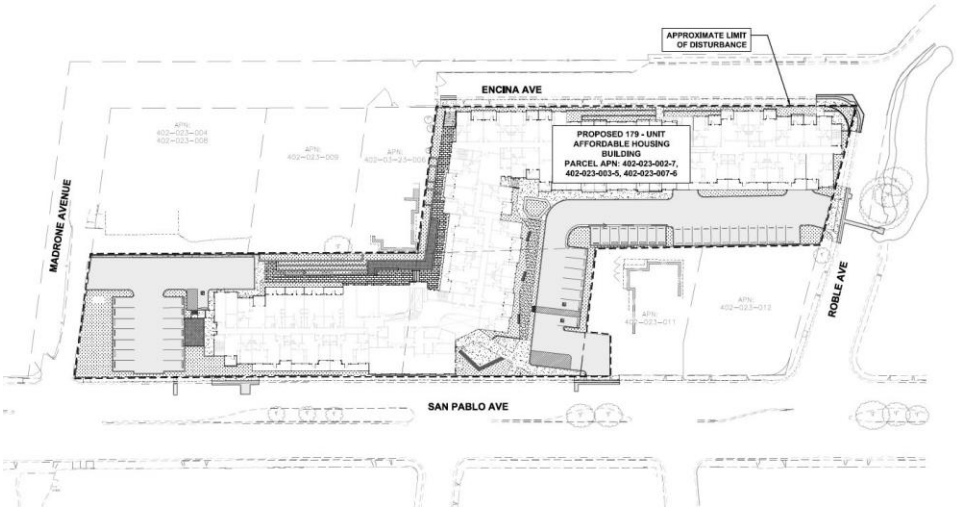


BCRE Mixed-Use

This mixed-use project consists of adding 29 units and additional office/commercial space to an existing office/commercial use on a 1.79 acre site. It was entitled in one hearing with the Planning Commission. The grading permit was submitted on January 30, 2023.

Vista Woods

The Vista Woods project is 179 units on a 2.01 acre site and is 100 percent affordable senior housing. The project is currently under construction. The project was entitled in less than six months from the application submittal and in one hearing with the Planning Commission. Building permits were issues within four months of building permit submittal. The Affordable Housing Agreement was approved by City Council on November 16, 2021.



Pinole Vista

The Pinole Vista project is a 223 unit redevelopment project on a 5.93 acre site with a vacant former commercial building. There are 13 very low and 14 low income units included in the development. The project includes horizontal mixed use and connections to existing transit. It was entitled in one hearing with the Planning Commission and one hearing with the City Council. The building permit application is anticipated by October 2023.

Other Developments

There are eight of other small developments included in the pending project list, totaling 17 units. Appendix B provides additional information on these pending projects. They include:

- Four new single family homes with new ADUs (8 total units)
- Two new single family homes
- A new triplex

- A new four-lot subdivision, including one for sale moderate income unit

Table 80: Entitled and Pending Projects

Entitled and Pending Projects	Very Low	Low	Moderate	Above Moderate	Total
Single Family Homes, ADUs, triplex, and lot subdivisions	-	-	2	15	17
Appian Village	-	8	23	123	154
SAHA Affordable Veteran's Housing	27	6		-	33
BCRE Mixed-Use Office and Residential	2	2	-	25	29
Vista Woods Affordable Senior Housing	7	135	37	-	179
Pinole Vista	13	14	-	196	223
Total	**49**	**165**	**62**	**359**	**635**

Source: City of Pinole.

Accessory Dwelling Units

Recent changes to state law have spurred accessory dwelling unit (ADU) production across the state, and Pinole has seen an increase in ADUs permitted since 2017. Based on recent growth and interest in ADU production, the City anticipates that ADUs will accommodate some of the RHNA requirement. ADUs included in the RHNA are calculated based on recent trends seen in the City.

The City is including Program 4 and Program 23 to incentivize and encourage ADU development. This includes continuing the process of working with the state to update the ADU ordinance to comply with state law. The City has submitted its ADU ordinance to the State and the State acknowledge that the ordinance was received. Should the State require revisions to the ordinance, it will be modified to reflect the requested revisions within one year upon receipt of the comments. The programs also include monitoring the affordability levels of ADUs to ensure they are being built at the projections below. If annual production and affordability rates do not match the estimates included in the Sites and Resources Section, the City will update the ADU strategy to ensure that the City continues to maintain adequate capacity for all income levels. In the event of an ADU shortfall that results in a net loss of units below the RHNA, the City will adopt another ADU program or identify additional sites using the additional development opportunity list the City maintains.

The ADU programs also include measures to specifically facilitate ADU construction for lower-income households per California Government Code Section 65583(c)(7).

ADU Production Trends

Table 81 illustrates trends in ADU production since 2018. ADU production has grown and is expected to continue expanding throughout the 6th Cycle. In 2022, the City has permitted four ADUs through September, with 6 additional applications undergoing review. The average number of ADU permits issued since 2018 is three per year, for a prospective total of 24 during the 6th Cycle. The City is not relying heavily on ADUs to meet the RHNA.

Table 81: ADUs Building Permits Issued

Year	# of ADUs
2018	1
2019	2
2020	5
2021	3
2022	4*
Average	**3**

Source: City of Pinole.
* Through September 2022

Affordability Trends

To best predict future affordability levels, the City relies on the ABAG "Using ADUs to Satisfy RHNA" Technical Memo,[24] which contains the affordability assumptions for ADUs as shown in Table 82. The City predicts that this trend will continue and that future ADU production will also be affordable to low- and very low-income households. Many ADU applicants from 2018 to 2020 indicated intent for the unit to remain affordable at no or negligible cost for immediate family members, such as adult parents or children.

Table 82: ADU Affordability Assumptions

Percent	Income Category	# of ADUs
30%	Very Low	7
30%	Low	7
30%	Moderate	7
10%	Above Moderate	3

[24] ABAG. "Using ADUs to Satisfy the RHNA." https://abag.ca.gov/sites/default/files/documents/2022-06/ADUs-Projections-Memo_final.pdf

Ability to Meet the RHNA

The City has enough existing residentially zoned land with near-term development potential to meet its RHNA and 20 percent buffer of the unmet RHNA units (83). The existing zoning has capacity to meet the RHNA without rezoning, as shown in Table 83, through pending projects, ADUs, and both vacant and non-vacant sites. The development considered in this table takes development constraints into consideration when evaluating each site's development potential, such as environmental constraints and split-zoning.

To meet the unmet RHNA for lower- and moderate-income households, the Housing Element Sites Inventory relies on sites with densities that allow for at least 20 du/acre. The sites are projected with a mix of very low- and moderate- incomes.

California Government Code Section 65583.2 (h) states that cities must have a program to facilitate by-right approval for projects that include at least 20 percent of the units for lower-income housing on rezoned low-income sites. The City of Pinole is not rezoning any sites to meet the RHNA. Thus, this provision is not applicable to the sites inventory for Pinole.

California Government Code Section 65583.2 (c) states that cities must have a program to facilitate by-right approval for projects that include at least 20 percent of the units for lower-income housing on vacant sites that were included in the previous cycle and non-vacant sites included in the previous two cycles. The sites inventory does not include any sites used in previous cycles. Thus, this provision is not applicable to the sites inventory for Pinole.

Table 83: Housing Capacity

Row Identifier	Category	Very Low	Low	Moderate	Above Moderate	Total
A	RHNA Requirement	121	69	87	223	500
B	Pending Projects	49	165	62	359	635
C	ADUs	7	7	7	3	24
D	*Unmet RHNA (A – B – C)*	*65*	-	*18*	-	*83*
E	*Unmet RHNA + 20% Buffer (D x 1.2)*	*78*	-	*22*	-	*100*
F	Vacant Opportunity Site Capacity	45	-	15	-	60
G	Non-Vacant Opportunity Site Capacity	40	-	12	-	52
H	**Total Identified Capacity (B + C + F +G)**	**141**	**172**	**96**	**362**	**771**
I	Opportunity Site Capacity Buffer ([F +G] / D)	31%	-	50%	**-**	**-**

Lower Income Capacity

Government Code Section 65583.2 (g) (2) states that housing elements relying on non-vacant sites for greater than 50 percent of its lower-income households need to demonstrate that the existing use does not constitute an impediment to additional residential development. This section does not apply to Pinole, as the City exceeds the 50 percent threshold through vacant sites, pending projects, and ADUs, as shown in Table 84. Ninety percent (170 units) of the 190 lower-income RHNA units will be met by the pending entitlement sites, projected ADUs, and vacant RHNA sites. The remaining 10 percent (20 units) will be met on non-vacant sites.

The City has low-income capacity through ADUs, pending projects, and vacant sites. Fifty percent of the lower-income RHNA is 95 units. The City has over twice its low-income RHNA (69 units) fulfilled in pending sites (165 units). In addition to meeting the low-income RHNA already, the City has 49 pending very low-income units and 7 projected very-low income ADUs. This sums to a total of 125 pending units and ADUs (69 pending low-income units, 49 pending very-low income units, 7 projected very low ADUs).

Beyond this, the City also has capacity on vacant sites for additional 45 lower-income units. This totals to 170 units on vacant, pending sites, or ADUs, resulting in an excess capacity of 75 units beyond the 50 percent that is needed per Government Code Section 65583.2 (g) (2).

Table 84: Lower-Income Capacity

Category	Units	% of Lower-Income RHNA
Low and Very Low Income RHNA	*190*	*100%*
50% of Low and Very Low Income RHNA	*95*	*50%*
Total Provided	**170**	90%
Low Income RHNA (Met by Pending Units)	69	36%
Very Low Income Pending Units	49	26%
Very Low Income Projected ADUs	7	4%
Lower Income Capacity: Vacant Sites	45	24%
Excess Capacity beyond 50%	75	-

Site Details

The site selection process examined zoned capacity, existing uses, vacancy, and recent development trends to determine which parcels to include to meet the RHNA. Both vacant and non-vacant sites are included in the RHNA.

For a detailed analysis of the sites as they relate to affirmatively further fair housing, see the Affirmatively Furthering Fair Housing chapter.

Vacant Sites

A portion of the RHNA will be met on vacant land that is zoned for residential use. Per HCD's Housing Element Sites Inventory Guidebook, a vacant site is one "without any houses, offices, buildings, or other significant improvements [...] or structures on a property that are permanent and add significantly to the value of the property."[25] The vacant site capacity is shown by zone in Table 85.

[25] HCD. Housing Element Sites Inventory Guidebook. https://www.hcd.ca.gov/community-development/housing-element/docs/sites_inventory_memo_final06102020.pdf.

Table 85: Vacant Site Capacity

APN	Zone	Capacity
401350015	R2	11
426020027	RMU	25
430290006	RMU	12
430290026	RMR/R*	12
Total:	-	**60**

*Capacity calculated for RMU portion of parcel only.

Non-Vacant Sites

There are two non-vacant sites included in the site inventory. Sites were selected based on their existing uses, capacity for residential redevelopment, and their high potential for short-term redevelopment. Sites that are included have similar locations and zoning (CMU and RMU) as sites that have been recently developed. Existing uses include small, older commercial buildings on large mixed-use parcels. Non-vacant sites are underutilized parcels with buildings that take up a small percentage of the site. The sites selected all have adequate infrastructure capacity. The non-vacant sites are each described below. Table 87 summarizes the capacity of non-vacant sites included to meet the RHNA. The realistic capacity of non-vacant sites is 40 very low and 12 moderate units.

As shown in Table 84, 170 units (90 percent) of the 190 lower-income RHNA units will be met by the pending entitlement sites, projected ADUs, and vacant RHNA sites. The remaining 20 units (10 percent) will be met on non-vacant sites.

Sites were also selected based on trends of similar existing uses converting to residential or residential mixed-uses. There are limited but recent examples of non-vacant sites converting to residential uses in the City. Recent development of non-vacant sites in the City include:

- An entitled redevelopment of a former Kmart into a mixed-use development with 223 units.
- The demolition of the existing vacant Doctors Medical Center Pinole Campus and a subsequent development of 154 units.
- Additions to the existing office commercial building and the development of 29 new units, providing the basis for retaining and expanding the existing use on a site while adding residential uses.
- A former redevelopment property adding four units into an existing mixed-use building
- A former redevelopment property adding two units into an existing commercial space.

Land-improvement ratios were also calculated and considered in site selection. The comparison of assessed values for land and improvements (land-improvement ratios) is a reliable indicator of whether and to what extent sites are utilized. Typically, a newly improved site will have a ratio of well under 0.2, or where the improvements are valued at five times the value of the land. The greater the ratio, the greater the value of the land and greater likelihood that it will be redeveloped. All of the non-vacant sites included in the inventory have a land-improvement ratio that is greater than 1.0, with the sites having ratios of 10.0 and 1.2.

The table below compares aspects of recent redeveloped sites to RHNA opportunity sites. The opportunity sites share similarities with the recent redeveloped sites such as the year built, acreage, land improvement ratio, and maximum density. Especially when comparing the opportunity sites to the BCRE project, the similarities are even closer in addition to each of the projects being mixed-use. The comparison on non-vacant sites to recent projects below can be used as justification for likelihood of redevelopment.

A floor area ratio is not utilized in any of the zones of Pinole. The two opportunity sites have significant additional floor area that could be developed before reaching any maximum floor area requirements. There is no maximum developable floor area or building coverage; the sites are just limited by setbacks and height.

Table 86: Comparison on Non-Vacant Sites to Recent Projects

Project	Jurisdiction	Year Built	Acreage	LIR	Max. Density
Appian Village	Pinole	1967	7.37	38.4	32.7*
BCRE Mixed-Use	Pinole	1984	0.61	0.8	30
Pinole Vista	Pinole	1981	5.93	5.6	30
Vista Woods	Pinole	1948, 1984	2.01	120	50
612 Tennent	Pinole	1908	0.12	0.57	35
2279 Park	Pinole	1945	0.12	1.4	35
Opportunity Site #1	Pinole	1975	0.6	10.0	30
Opportunity Site #3	Pinole	1966	1.6	1.2	35

Table 87: Non-Vacant Site Capacity

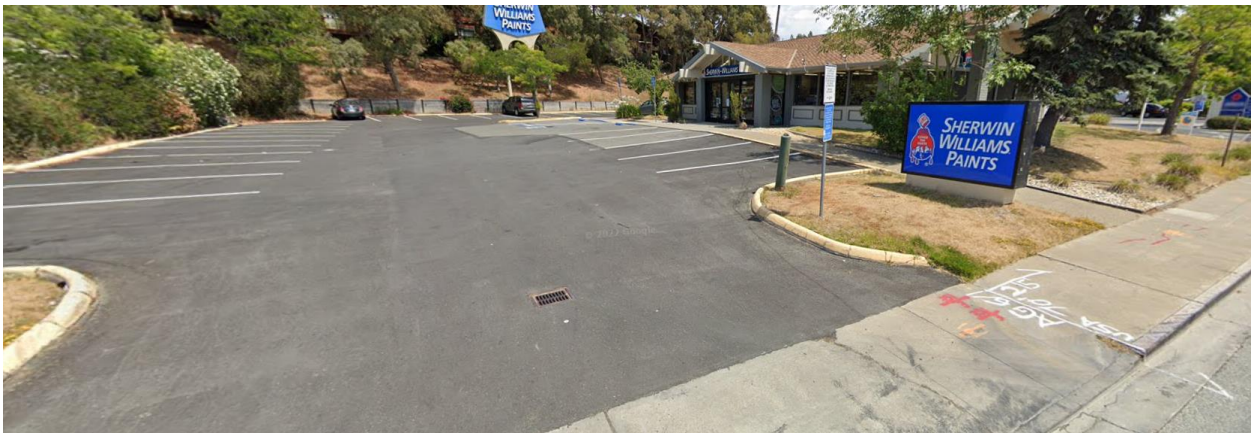
Opportunity Site #	APN	Zone	Capacity
Opportunity Site #1	360010031	CMU	14
Opportunity Site #3	403051012	RMU	38
Total:		**-**	**52**

2727 PINOLE VALLEY ROAD (CMU)

APN 360010031

2727 Pinole Valley Road, APN 360010031

This 0.63-acre site at 2727 Pinole Valley Road is currently about 12 percent occupied by a paint store. The building was built between 1968 and 1980. The remaining land is covered by an underutilized surface parking lot and landscaping. It is located in a mix of residential and residential-serving uses, making this site optimal for further residential development. It is located within walking distance of grocery stores, restaurants, personal services, a library, tennis courts, transit stops, and a high school, which provide necessary resources for residents. The land-improvement ratio for the site is 10. The realistic capacity is 14 units. The existing commercial use is not anticipated to be an impediment to redevelopment due to the age of the building, high land-improvement ratio, and location of the parcel. The existing use could be maintained with redevelopment, similar to a recently approved project in the OPMU mixed-use zone. There is no maximum developable floor area or building coverage; the site is limited by applicable setbacks and height.



2727 Pinole Valley Road, APN 360010031

725 San Pablo Avenue (RMU)

APN 403051012

725 San Pablo Avenue, APN 403051012

The 1.56-acre site at 725 San Pablo Avenue is currently occupied by a passport printing business. The building was built in the 1960s. This building makes up less than 6 percent of the site. The remaining lot is partially an underutilized surface parking lot, and partially vacant lot. It is adjacent to existing residential to the east, west, and south, making this site optimal for further residential development. The site could be redeveloped with the existing use maintained or with additional commercial uses, similar to a recently approved project in the OPMU zone. The site is located within a half mile of several restaurants, a grocery store, and a daycare center, which provide necessary resources for residents. The land-improvement ratio for the site is 1.2. The realistic capacity for this site is 38 units. The existing commercial use is not anticipated to be an impediment to redevelopment due to the age of the building, high land-improvement ratio, and location of the parcel.

725 San Pablo Avenue, APN 403051012

Financial Resources

Administrative Resources

The City of Pinole's Community Development Department consists of multiple divisions including the Planning Division, Building Division, Code Enforcement, Affordable Housing Division, Redevelopment Successor Agency Division and Economic Development Division. The Planning Division reviews land use entitlement applications and is responsible for the implementation of the General Plan, Three Corridors Specific Plan, and Zoning Ordinance. The Building Division is responsible for processing building permit applications, issuing building permits, and conducts building inspections. The Code Enforcement Division resolves land use-related violations on private property. The Affordable Housing Division ensures that facilities that have received City financial assistance to create affordable housing units comply with affordability agreements, investing limited City affordable housing resources to provide affordable housing units and support to the homeless, and developing or disposing of the City's remaining real property assets inherited from the former Pinole Redevelopment Agency affordable housing program. The Redevelopment Successor Agency Division is responsible for effectively winding down the activities of the Redevelopment Successor Agency by administering the remaining enforceable obligations. The Economic Development Division is a new division, instituted in FY 2021/22. It coordinates with the City Manager department to create economic development strategies for the City and is responsible for carrying out those strategies.

As a part of Program 7, the City is developing a Housing Successor's Low and Moderate Income Housing Asset Fund Policy. The policy will set priorities and goals for the use of affordable housing funds in the City as well as investigate the creation of an in-lieu fee as an additional alternative to the inclusionary housing requirement.

Countywide Programs

BayREN

The Bay Area Regional Energy Network (BayREN) is a coalition of the Bay Area's nine counties that partners to promote resource efficiency at the regional level, focusing on energy, water and greenhouse gas reduction. BayREN offers rebates, funding and technical assistance to help residents, property owners, business owners and local governments improve the resource-efficiency and carbon footprint of their buildings. They include additional programs and incentives for lower income households.

The City is partnering with BayREN in the 2022-23 fiscal year to provide $250k in funding for weatherization and energy efficiency projects in Pinole. The program will offer additional discounts to eligible households to make it more financially feasible to make improvements to their homes to save energy and money. A component of the program will target projects in lower resourced areas of the City, including western Pinole (Program 19).

Weatherization Program

The Weatherization Program is a Federal and State-funded program intended to aid low – and/or fixed - income persons in adapting their home to become more energy-efficient. The program is available to any individuals renting or owning regardless of housing type.

The Program will test the gas appliances of the home as well as whole home evaluation to determine what energy-saving measures can be taken. Evaluations can determine several improvements which may include:

- Installation of ceiling insulation
- Gas furnace repair or replacement
- Weather-stripping of exterior doors
- Gas stove repair or replacement
- Replacement of exterior doors if necessary
- Gas water heater repair or replacement
- Installation of carbon monoxide alarm
- Plug gaskets
- Installation of programmable thermostats
- Installation of water saving devices
- Replacement of broken windows
- Other minor home repairs

MCE

MCE is a not-for-profit clean energy public agency and provides electrify service to more than one million residents and businesses in 37 member communities across four Bay Area counties including Contra Costa County.

MCE provides a program for single-family homeowners and renters to receive home energy upgrades, home energy assessments, and a gift box with energy-saving products at no cost, but must meet the qualifying gross annual household income requirements. The home assessment determines the eligibility for the free energy upgrades, qualifying homes can receive the following upgrades:

- Heat pump
- Water heater
- Attic insulation
- Gas furnace

- Duct sealing
- Pipe insulation

The energy-saving gift box includes:

- Smart thermostat
- Water-saving shower head
- Water-saving kitchen faucet aerator
- Two bathroom faucet aerators

MCE customers who are single family homeowners are also eligible to receive a $1,000 rebate for installing a heat pump water heater. BayREN Home+ also offers cash rebates for weatherization, efficient heating and cooling, and other electrification measures, as well as bonus rebates for combining measures.

Emergency Housing Voucher

Through the American Rescue Plan (ARP), the Housing Authority of the County of Contra Costa received 201 vouchers appropriated for the Emergency Housing Voucher (EHV) program. Families participating in the EHV program benefit from a subsidy each month to help pay their rent and utilities. The subsidy varies for each family depending upon the family's size and income. The Housing Authority has established payment standards for the EHV program set at 110 percent of the fair market rents (FMRs) established by the US Department of Housing and Urban Development (HUD). The payment standards are the maximum amount of assistance a family can receive based on HUD funding.

Table 88: EHV Program Payment Standards

	0-BR	1-BR	2-BR	3-BR	4-BR	5-BR	6-BR	7-BR
Payment Standards	$1,691	$2,038	$2,501	$3,306	$3,935	$4,525	$5,116	$5,706

EHV eligibility is limited to households (individuals and families) who are homeless; at risk of homelessness; fleeing or attempting to flee domestic violence, dating violence, sexual assault, stalking, or human trafficking; and recently homeless, and for whom providing rental assistance will prevent homelessness or risk of housing instability.

Permanent Local Housing Allocation

The Permanent Local Housing Allocation (PLHA) program is a state program with entitlement and competitive components. The state designated Contra Costa County as the administrator of the entitlement grant award for the Contra Costa "Urban County," which includes unincorporated communities and the cities in the county with the exception of Antioch, Concord, Pittsburg, and Walnut Creek. PLHA funds are used for the following:

- Increase the supply of housing for households at or below 80 percent area median income;
- Facilitate housing affordability, particularly for lower- and moderate-income households; and
- Promote projects and programs to meet the local government's unmet share of the RHNA.

Neighborhood Preservation Program

The Neighborhood Preservation Program (NPP) provides low-interest loans to low-income homeowners for the purposes of rehabilitation. Eligible repairs include accessibility improvements, plumbing, HVAC, and electrical repairs, reroofing, dry rot repair, foundation stabilization, lead-based paint abatement, and window and door replacement. The program is in partnership with Habitat for Humanity East Bay/Silicon Valley. All residents who meet the program criteria in all cites and the unincorporated area of the county with the exception of Antioch, Concord, Pittsburg, and Walnut Creek are eligible.

Statewide Resources

There are a variety of statewide programs and resources available. The City receives regular notification regarding state and federal funding and grant opportunities. Additionally, the City pursues grants on a programmatic and project basis for active programs and projects.

Affordable Housing & Sustainable Communities Program (AHSC)

The AHSC Program builds healthier communities and protects the environment through prioritizing the creation of affordable housing near jobs, transit, and other important resources. The program funds land-use, housing, transportation, and land preservation projects that support infill and compact development in proximity to transit to reduce greenhouse gas ("GHG") emissions.

Funding for the AHSC Program is provided from the Greenhouse Gas Reduction Fund (GGRF), an account established to receive Cap-and-Trade auction proceeds.

Cal Housing Finance Agency's ADU Grant Program

The ADU grant program provides up to $40,000 of reimbursement for low- or moderate-income homeowners building an ADU on their property. The property must be owner-occupied. The grant goes towards pre-development and non-reoccurring closing costs associated with the construction of an ADU. Predevelopment costs include site prep, architectural designs, permitting, soil tests, impact fees, property survey, and energy reports.

CalHome

The purpose of the CalHome program is to support existing homeownership programs aimed at low-, very low-income, and moderate-income households. The goal is to increase homeownership, encourage neighborhood revitalization and sustainable development, and maximize the use of existing housing stock.

CalHome provides grants to local public agencies and nonprofit corporations to assist:

1. First-time homebuyer mortgage assistance through deferred-payment loans for down payment,
2. Owner-occupied home rehabilitation,
3. Homebuyer counseling,
4. Technical Assistance for self-help housing projects
5. Technical assistance for shared housing programs, or
6. (Junior) Accessory dwelling unit assistance.

All funds to individual homeowners will be in the form of loans not directly given to individuals.

Golden State Acquisition Fund (GSAF)

The GSAF is a $93 million financing program aimed at supporting affordable housing developers with capital for the development and/or preservation of affordable housing in California. Financing is available for rental housing and homeownership opportunities in urban and rural communities with loans up to five years and a maximum of $13,950,000.

Local Early Action Planning Grant

The Local Early Action Planning (LEAP) grant provides one-time grant funding to cities and counties to update their planning documents and implement process improvements that will facilitate the acceleration of housing production and help local governments prepare for their 6th Cycle RHNA, much like the SB 2 planning grants.

The 2019-20 Budget Act provides a spectrum of support, incentives, resources, and accountability to meet California's housing goals. Some specific elements include:

- Local and regional planning grants (LEAP and REAP)
- Pro-housing preference points on competitive funding applications
- Additional funding resources
- Accountability (penalties for noncompliant housing plans)
- Reform (collaborative processes to reform regional housing needs)

The City of Pinole was awarded $65,000 in LEAP funding to help fund the Housing Element Update, prepare California Environmental Quality Act documentation relating to the Housing Element Update, and fund activities to facilitate housing.

Local Housing Trust Fund Program (LHTF)

The purpose of this program is to provide funds to cities and counties, Native American Tribes, and nonprofit organizations to increase the supply of housing to households with incomes of 80 percent or less of area median income. To do this the LHTF program provides matching grants to local and regional housing trust funds that are funded on an ongoing basis and dedicated to the construction, rehabilitation, or preservation of affordable housing, transitional housing, and emergency shelters.

Regional Early Action Planning Grant

Regional Early Action Planning (REAP) 2.0 is a flexible program that seeks to accelerate progress toward the state housing goals and climate commitments through a strengthened partnership between the state, its regions, and local entities. REAP 2.0 seeks to accelerate infill housing development, reduce vehicle miles traveled (VMT), increase housing supply at all affordability levels, affirmatively further fair housing, and facilitate the implementation of adopted regional and local plans to achieve these goals.

REAP 2.0 will be administered by HCD in collaboration with the Governor's Office of Planning and Research, the Strategic Growth Council, and the California Air Resources Board.

REAP 2.0 provides a $600 million investment to advance implementation of adopted regional plans by funding planning and implementation activities that accelerate infill housing and reductions in per capita VMT.

The City of Pinole was awarded $20,000 in REAP funding to help fund the Housing Element Update, prepare California Environmental Quality Act documentation relating to the Housing Element Update, and fund activities to facilitate housing.

Senate Bill (SB) 2 Grant

In 2017, a 15-bill housing package was signed into law aimed to address the state's housing issues; the package included the Building Homes and Jobs Act. This established a $75 recording fee on real estate documents to increase the supply of affordable homes in California.

This funding was designed to help cities and counties accomplish the following:

- Accelerate housing production;
- Streamline the approval of housing development affordable to owner and renter households at all income levels;

- Facilitate housing affordability, particularly for lower- and moderate-income households;
- Promote development consistent with the State Planning Priorities (Government Code Section 65041.1); and
- Ensure geographic equity in the distribution and expenditure of the funds.

The City of Pinole maximum grant amount that could be awarded in 2019 was $160,000. The City is anticipating using this funding to develop objective design and development standards and preparing, updating or revising the environmental documentation supporting the Specific Plan/General Plan to provide CEQA clearances for projects that comply with existing zoning (Program 6).

The No Place Like Home Program

The No Place Like Home Program provides loans to eligible counties to acquire, design, construct, rehabilitate, and/or preserve permanent supportive housing for persons who are experiencing homelessness or chronic homelessness, or who are at risk of chronic homelessness, and who need mental health services. Projects funded through this must be apartment complexes of five or more units.

Department of Housing and Urban Development Grants

Home Investment Partnerships Program

The HOME Program is federally funded by HUD to provide decent affordable housing to lower-income households. The HOME Program is administered on behalf of the Urban County cities, which includes Pinole.

Housing Choice Voucher Program

The Housing Choice Voucher (HCV) program is a rental assistance program that helps very low-income families to live in market-rate housing units rather than public housing. Households are provided with vouchers that are paid to private market-rate landlords, who are then reimbursed by HUD.

Project-Based Voucher Program

The Project-Based Voucher Program provides rental assistance to households living in specific housing sites. Because the rental assistance is tied to a particular unit, a family who moves (voluntarily or through eviction) no longer qualifies to receive housing assistance. The Housing Authority administers different waiting lists by bedroom size for each project-based housing site. These housing sites are either multifamily or senior housing developments.

Housing Goals, Policies, and Programs

The section of the Housing Element outlines the City of Pinole's goals, policies, and implementation programs for the preservation, conservation, improvement, and production of housing for the 2023 – 2031 planning period. The goals, policies, programs, and quantified objectives are designed to help ensure housing opportunities for all existing and future residents of the community. As appropriate, programs also include a geographic targeting.

Housing Goals and Policies

Housing Production and Adequate Sites to Meet Regional Housing Needs

Goal 1	*Provide adequate residential sites to accommodate projected housing needs and encourage the production of a variety of housing types*

Policy 1.1: Encourage the provision of a variety of housing options for Pinole residents.

Policy 1.2: Strive to ensure adequate land is available at a range of densities to meet Pinole's existing and projected housing needs.

Policy 1.3: Pursue partnerships between non-profit and for-profit housing developers to encourage affordable housing production.

Policy 1.4: Provide an active leadership role in helping attain the objectives of the City's Housing Element by following through on the actions prescribed in the Housing Element in a timely manner and monitoring progress annually.

Policy 1.5: Work cooperatively with west county jurisdictions to plan for the satisfaction of regional housing needs, including the development of affordable housing units for all economic segments of the region.

Policy 1.6: Encourage the development of ADUs.

Housing to Meet the Needs of All Income Levels and Special Needs Groups

Goal 2	*Provide a broad range of housing opportunities to meet the needs of all income levels, with emphasis on providing housing that meets the special needs of the community.*

Policy 2.1: Maintain appropriate land use regulations and other development tools to encourage development of affordable housing opportunities throughout the City.

Policy 2.2: Develop programs to assist lower income seniors and individuals with disabilities to live independently, age in place, and maintain their homes.

Policy 2.3: Continue the use of the inclusionary housing ordinance to facilitate the development of below market-rate units.

Policy 2.4: Encourage the development of new affordable housing. Facilitate housing development that is affordable to extremely low-, very low-, low-, and moderate-income households by providing technical assistance, regulatory incentives and concessions, expedited development review, and financial resources as funding allows.

Policy 2.5: Encourage and incentivize mixed-use development to allow for increased housing opportunities.

Removal of Governmental Constraints

Goal 3	*Reduce or remove governmental constraints to the development, improvement, and maintenance of housing where feasible and legally permissible.*

Policy 3.1: Periodically review City regulations, ordinances, permitting processes, and residential fees to ensure that they do not constrain housing development and are consistent with State law.

Policy 3.2: Support housing for individuals with disabilities through the use of reasonable accommodations procedures, including flexibility in the application of land use or zoning regulations, when necessary to eliminate barriers to housing opportunities.

Policy 3.3: Accommodate housing needs for extremely low-income households and special needs persons through modification of the City's development regulations.

Conserve, Preserve, and Improve the Housing Stock

Goal 4	*Maintain and conserve the existing housing stock in a sound, safe, and sanitary condition.*

Policy 4.1: Monitor and maintain the supply of existing affordable housing to ensure that it remains affordable.

Policy 4.2: Promote the maintenance and rehabilitation of structures in poor condition and take action to prevent poorly maintained properties from further deterioration.

Affirmatively Further Fair Housing

Goal 5	*Ensure the provision of adequate housing for all persons regardless of income, age, sex, race, or ethnic background, consistent with the Fair Housing Act.*

Policy 5.1: Increase housing opportunity and mobility so that all residents of Pinole have choice of adequate housing options.

Policy 5.2: Refer discrimination complaints to a fair housing service provider that addresses housing discrimination.

Policy 5.3: Promote fair housing standards and ensure compliance with State and federal fair housing laws.

Housing Education and Community Outreach

Goal 6	*Increase awareness, availability of information, and participation in housing programs.*

Policy 6.1: Consolidate and disseminate housing-related resources to provide better access to information on available housing programs and affordable housing units.

Policy 6.2: Encourage the production of ADUs in all residential areas of the City through outreach and educational materials.

Policy 6.3: Encourage and support early public participation in the development and review of City housing policy from all economic segments of the community, including encouraging neighborhood level planning and working with community group and other interest groups. Encourage developers of any major project to have neighborhood meetings with residents early in the process to undertake early problem solving and facilitate more informed, faster and constructive development review.

Quantified Objectives

Housing Element law requires that quantified objectives be developed with regard to new construction, rehabilitation, conservation, and preservation activities that will occur during the eight-year Housing Element cycle. These objectives are shown in Table 89.

- The Construction Objective represents the City's RHNA of 60 units for extremely low-income households, 61 units for very low-income households, 69 units for low-income households, and 87 units for moderate-income households, and 223 units for above moderate-income households.
- The Rehabilitation objective represents rehabilitation assistance to 20 households through the City's rehabilitation and acquisition programs.
- The Conservation/Preservation objective represents the conservation of the existing 301 affordable units in the City during the planning period (2023-2031).

Table 89: Quantified Objectives

Target	Extremely Low Income	Very Low Income	Low Income	Moderate Income	Above Moderate Income	Total
New Construction	60	61	69	87	223	500
Rehabilitation	5	5	5	5	-	20
Conservation/Preservation	-	75*	42**	184***	-	301
					Total	**821**

* Units at 50% AMI

** Units at 60% AMI

*** 37 units and 90% AMI and 147 units at 120% AMI

Housing Programs

The programs in this section of the Housing Element describe specific actions the City will carry out over the eight-year Housing Element cycle to satisfy the community's housing needs and meet the requirements of State law. Each program identifies the actions to be taken to implement the program, timeline to complete the action, funding source, implementing agency, supporting agency or agencies as appropriate, and a quantified objective and/or geographic target for the program, where applicable.

Housing programs define the specific actions the City will undertake to achieve the stated goals and policies with the eight-year (2023-2031) planning period. The City's housing programs for addressing community housing needs are described according to the City's housing goals.

Adequate Sites and Housing Production to Meet Regional Housing Needs

Program 1. Provision of Adequate Sites and Site Inventory Monitoring

The City will ensure that adequate sites to meet the RHNA are provided throughout the 6th Cycle. To ensure that the City monitors its compliance with SB 166 (No Net Loss), the City will track:

- Unit count and income/affordability assumed on parcels included in the sites inventory.
- Actual units constructed and income/affordability when parcels are developed.
- Net change in capacity and summary of remaining capacity in meeting remaining RHNA.

The City is not including any reused sites from the 4th or 5th Cycle in the inventory to meet the RHNA. Therefore, the requirements of Government Code sections 65583.2(h) and (i) do not apply. The statutory requirements of Government Code sections 65583.2(h) and (i), require by-right approval of housing development that includes 20 percent of the units as

housing affordable to lower-income households on sites being used to meet the 6th Cycle RHNA that are "reuse sites" previously identified in the 4th and 5th cycles Housing Element.

The City will implement the Surplus Lands Act to annually review city-owned parcels and provide affordable housing developers the first priority for designated surplus lands as applicable per Government Code section 54227.

The City will keep a list of additional development opportunity sites to be used in the case of a net loss situation. Should the City have a net loss during the Cycle, this list shall provide the priority replacement sites to add to the RHNA site inventory. The City has begun development of this list, which currently includes six sites that have the combined capacity for 109 units eligible for lower-income development. These additional development opportunity sites provide for an additional 131% of the unmet RHNA (83 total units).

The City will conduct a mid-cycle review of units built and capacity to meet the RHNA in 2027. If the entitled projects are not anticipated to be completed during the 6th Cycle at this time, the City will identify additional sites from the list described above and/or programs to adequately meet the RHNA.

Implementing Agency: Community Development Department

Supporting Agency: Public Works Department

Timeline: Review RHNA site status annually and as development proposals are submitted. Annual review of City-owned land in conjunction with the review of Surplus Lands. Creation of additional development opportunity site list to use in the case of a net loss within three months of Housing Element adoption. Mid-cycle review by Q1 2027. Identification of additional sites or programs by Q3 2027.

Funding Source: General Fund

Quantified Objective: Provide adequate sites to accommodate the City's entire RHNA allocation of 500 units, including the 83 units not met with pending projects or projected ADUs. No net loss of capacity below the RHNA requirement during the planning period.

Program 2. Publicize and Promote Residential Sites Inventory

The City will publicize and promote the RHNA site inventory through a multitude of ways during the planning period. This includes publicizing the RHNA site inventory and contacting site owners and developers. Specific actions include the following.

- The City shall make the residential sites inventory available to developers by creating a City website specifically for RHNA sites and publicizing it on the City website. The City shall update the list of sites annually, or as projects are approved on the sites.
- The City shall contact affordable housing builders annually and provide information about sites to facilitate development of affordable housing.

- The City will conduct informational sessions and directly contact RHNA site owners to inform them about development opportunities on their property.

Implementing Agency: Community Development Department

Supporting Agencies: City Manager's Department, IT Department

Timeline: Create City webpage for RHNA sites and post sites within 6 months of adoption; update annually, or as needed. Conduct annual outreach to affordable housing builders. Contact RHNA site owners twice during the planning period, including once during the first 18 months post Housing element adoption.

Funding Source: General Fund

Quantified Objective: Maintain accurate and publicly available residential site inventory throughout the planning period. Outreach with 100 percent of RHNA site owners twice during the planning period.

Program 3. Outreach to Developers and Technical Assistance to Applicants

The City will provide technical assistance to developers to encourage provision of affordable housing that are consistent with City goals. Methods of technical assistance may include, but are not limited to:

- Provision of information about available funding sources.
- Pre-application planning meetings.
- Expedited development review and processing.
- Facilitation of neighborhood meetings.
- Coordination of all other required City departments to provide technical assistance and collaborative problem solving to applicants during development review and can include development review meetings. This includes a continuity of support from pre-application meetings through entitlement and construction.
- Facilitate communication with applicants and PG&E to assist with requirements of utility undergrounding.

To encourage housing production and development, the City will engage and coordinate with other public agencies, faith and community-based organizations, and housing developers. Specifically, the City will:

- Seek out opportunities to work with other public agencies by identifying housing grant funding opportunities to encourage and implement improvements and expansion of housing supply, for example participation in a continuation of the Contra Costa County Collaborative (C4).

- Work with developers by creating a developer interest list and periodically assessing development needs to encourage new residential development to provide affordable housing.
- Annual and proactive outreach to developers of housing for special needs and lower-income households. The City shall contact such housing builders annually and provide information about sites to facilitate development of affordable rental housing.
- Notify developers of interest in including some options for larger (3+ bedroom) units in residential development projects.
- Contact other public agencies such as the Contra Costa County Housing Authority or Contra Costa County Department of Conservation and Development at least once a year for funding and partnering opportunities.
- Contact faith-based organizations in Pinole to discuss opportunities for housing at their facilities and provide information on recent legislation regarding religious-institution affiliated housing projects.

Implementing Agency: Community Development Department

Supporting Agency: Contra Costa Housing Agency

Timeline: Technical assistance provided as needed. Develop comprehensive coordinated review procedures with all city departments within one year of Housing Element adoption. Create developer interest list within 6 months of Housing Element adoption and contact affordable housing builders annually with information about sites to facilitate development of affordable rental housing and housing for special needs populations. Annual outreach to public agencies and community and faith-based organizations for funding and partnership opportunities.

Funding Source: General Fund

Quantified Objective: Technical assistance to all affordable housing applicants. Make the comprehensive coordinated review with all city departments standard operating procedure for all residential developments. Annual review of available funding sources and contact to other agencies and developers.

Geographic Targeting: Faith-based organizations and facilities across Pinole

Program 4. Facilitate ADU Production

To encourage and increase ADU production in the City, a number of efforts are included. The programs are intended to help the City meet its target projection of three ADUs per year. This program works in conjunction with Program 23, ADU, JADU, and SB 9 Education. If annual production and affordability rates do not match the estimates included in the Housing Resources Section, the City will update the ADU strategy to ensure that the City continues to maintain adequate capacity for all income levels.

If annual production and affordability rates do not match the estimates included in the Sites and Resources Section, the City will update the ADU strategy to ensure that the City continues to maintain adequate capacity for all income levels. In the event of an ADU shortfall that results in a net loss of units below the RHNA, the City will adopt another ADU program or identify additional sites using the additional development opportunity list the City maintains within six months.

- **Updated ADU Ordinance.** The City has submitted its ADU ordinance to the State and the State acknowledge that the ordinance was received. Should the State require revisions to the ordinance, it will be modified to reflect the requested revisions within one year upon receipt of the comments.
- **ADU Tracking.** The City will track and monitor its ADU production to ensure that annual production achieves the RHNA projections (3 ADUs/year). The City will begin to request information about ADU rents from applicants to better track the affordability of proposed ADUs. As a part of ADU tracking, the City will analyze geographic distribution of ADUs biennially to understand which neighborhoods are building ADUs.
- **ADU Fast Track Program.** The City will develop a process to fast track ADU applications through plan check by moving them to the top of the queue and reducing plan check turnaround times.
- **ADU Amnesty Program.** To ensure safe and adequate housing, the City will develop an ADU amnesty program for existing, unpermitted ADUs to receive inspections and bring units into compliance with code and permits without risk of code enforcement action, significant fee reductions and assistance in determining necessary improvements.
- **Fee Waivers for Affordable ADUs.** Current successor funds require an affordability covenant length of 55 years. The City will modify Zoning Ordinance Section 17.70.060 to shorten the required ADU covenant length (for example, for 5 – 15 years) pending alternate funding to offset the fee waivers for ADUs over 750 square feet that are made available to lower or moderate income households for a shorter period of time. The City will pursue funding sources, such as PLHA or in-lieu fees, funds for this effort.

To promote more housing choices and affordability throughout the City, the City will implement new software to provide residents and developers with tools to determine if an ADU or SB 9 unit can be put on their property. The software will provide information regarding zoning, rebate opportunities, opportunities for fee waivers available for affordable ADU and SB 9 development, and the ADU amnesty program. Additionally, the software will allow residents and developers to explore ADU designs that will fit their property. The City will advertise and promote the software in conjunction with outreach efforts in Program 23.

By facilitating ADU production in single-family neighborhoods, the City is striving to go beyond state law to encourage increased housing choices.

Implementing Agency: Community Development Department

Supporting Agency: Finance Department

Timeline: Track ADU permits as they are submitted. Review ADU strategies annually as part of the Annual Progress Report process; additional ADU program or identification of sites within 6 months if production and affordability are not matching estimates. Adopted amnesty program and developed fast track program within 2 years of Housing Element adoption. Review geographic distributions of ADUs biennially.

Funding Source: General Fund, Housing Successor Low and Moderate Income Housing Asset Fund; Contra Costa County, State and Federal funding programs as available.

Quantified Objective: Increased production of ADUs from 3 to 5 per year.

Geographic Targeting: Targeted promotion of ADUs in east Pinole. Targeted promotion of ADUs in neighborhoods where geographic review identifies fewer ADUs were built.

Program 5. SB 9 Technical Assistance and Facilitation

The City is in the process of creating informational materials to assist applicants and property owners in submitting applications for the development of SB 9 projects, which would highlight permit requirements and development standards to promote greater clarity in preparing submittals. Materials are anticipated to be completed in 2023. In the interim, City staff provides guidance to applicants and owners through correspondences by phone, email, and counter meetings to help applicants understand State standards and provisions under SB 9, discuss preliminary design concepts, and explain permit procedures. Additionally, the City is in the process of establishing objective design standards. Objective design standards would provide greater predictability and clarity regarding design attributes for new residential development and support ministerial review and are anticipated to be completed within two years of Housing Element adoption.

The City has recently received its first SB 9 application. In an effort to encourage and facilitate development in single family zone, the City will pursue a number of technical assistance and facilitation efforts including:

- Updating the zoning code. This will include a review of developmental standards that could constrain SB 9 development and updating the zoning code to remove such constraints.
- Creating a simplified lot split form to process SB 9 projects and provide the form online
- Ensure objective design standards for SB 9 units (Program 13)
- Provide enhanced technical assistance through Program 4, which includes implementing new software to provide residents and developers with tools to determine if an ADU or SB 9 unit can be put on their property. The software will provide information regarding zoning, rebate opportunities, opportunities for fee

waivers available for affordable ADU and SB 9 development, and the ADU amnesty program. The objective design standards and simplified lot form for SB 9 units will be made available through the software.

This program works in conjunction with Program 23, ADU, JADU, and SB 9 Education, which provide a variety resources and outreach to homeowners regarding SB 9.

Implementing Agency: Community Development Department

Supporting Agency: Finance Department

Timeline: Zoning amendments and objective design standards by Q2 2025. Creation of simplified lot split form by Q1 2024.

Funding Source: General Fund,

Quantified Objective: Facilitation of 10 SB 9 applications.

Geographic Targeting: Targeted promotion in the R1 zone. Targeted promotion of SB 9 units in neighborhoods where geographic review identifies fewer were built.

Program 6. Incentives for Mixed-Use Developments

The City will develop incentives to encourage residential mixed-use development in areas consistent with the Three Corridors Specific Plan Land Use Plans, and in particular along portions of the San Pablo Avenue, Pinole Valley Road, and Appian Way. Specific incentives for mixed-used development include:

- A waiver of park development impact fees for deed-restricted affordable units beyond the inclusionary requirement in a development in coordination with the development of a Housing Successor's Low and Moderate Income Housing Asset Fund Policy (Program 7).
- Prepare, update, or revise EIR as appropriate to provide CEQA clearances for projects that comply with existing zoning . The City will review and update as necessary the EIR prepared for the GP and Specific Plan so that individual projects can utilize opportunities for tiering from environmental documentation and streamlining provided under CEQA, where applicable, which can reduce duplicative analyses and streamline environmental review. The City will begin the review within 3 years of Housing Element adoption and complete it within 6 years of adoption.
- Priority development project review and processing.

Additional incentives the City shall explore include but are not limited to:

- Increased densities.
- Providing flexibility in parking requirements.

Implementing Agency: Community Development Department

Supporting Agencies: Community Services Department, Finance Department

Timeline: Adopted incentives within three years of Housing Element adoption. Begin the review of environmental documents within 3 years of Housing Element adoption and complete it within 6 years of adoption.

Funding Source: General Fund, Housing Successor Low and Moderate Income Housing Asset Fund, SB 2 Grant, Contra Costa County, State and Federal funding programs as available.

Quantified Objective: Amended zoning ordinance with adopted incentives. Entitlement of three mixed-use projects using one or more of the available incentives.

Geographic Targeting: Mixed-use zones allowing for residential in the Three Corridors Specific Plan.

Housing to Meet the Needs of All Income Levels and Special Needs Groups

Program 7. Development of Housing Successor's Low and Moderate Income Housing Asset Fund Policy

The City will develop a Housing Successor's Low and Moderate Income Housing Asset Fund Policy. The policy will set priorities and goals for the use of affordable housing funds in the City as well as investigate the creation of an in-lieu fee as an alternative to the inclusionary housing requirement. The policy guide will ensure efficient and productive use of the resources. The policy guide will consider RHNA requirements, local housing needs and demographics, and fair housing objectives, among other factors. To encourage housing mobility and choice across Pinole, the City will prioritize use of limited affordable funding to create affordable housing developments and provide ownership of housing for moderate and lower-income households in higher opportunity areas of the City, including those with healthy environment, access to transportation and resources, and higher education scores, more common in eastern Pinole. The City is also including a waiver of park impact fees for affordable units beyond the inclusionary housing requirement (per Program 8).

The City will continue to require 15 percent of the units located in new residential developments of four or more to be affordable, and of those units, 40 percent must be affordable to very low income households with the construction of units off-site as an alternative. The City will pursue creation of an in-lieu fee alternative for the inclusionary housing requirement to provide flexibility for smaller projects and to create a new funding source for affordable housing projects.

Implementing Agency: Community Development Department

Supporting Agency: Finance Department

Timeline: Three years after Housing Element adoption

Funding Source: Housing Successor Low and Moderate Income Housing Asset Fund; Contra Costa County, State and Federal funding programs as available.

Quantified Objective: Create a housing fund policy guide, create in-lieu fee alternative and funding source. For applicable development projects, maintain a minimum requirement of 15 percent inclusionary units, and of those 40 percent of units affordable to very low income households.

Geographic Targeting: Target 50 percent of affordable housing funding towards development of affordable housing and facilitating ownership of housing for moderate and lower-income households in higher opportunity areas.

Program 8. Affordable Housing Incentives

Create and adopt a set of incentives for projects that provide a minimum of 15 percent of total units affordable to low and moderate income households, and provide additional affordable housing beyond the City's 15 percent inclusionary requirement. Specific incentives include:

- Priority and expedited review for affordable housing developments. The City will create and adopt a process for expedited and priority review which may include, for example, completion of initial review within 20 days following the intake of a new application and providing subsequent review comments back to applicants at a targeted expedited review rate 50 percent faster than the regular review process. The expedited review process would apply to projects that include affordable housing beyond the City's inclusionary requirement and would include factors such as affordability level, location in City, and developments targeting special needs population.
- Waiver of park impact fees for all deed-restricted affordable units in excess of the 15 percent inclusionary units requirement.

The City will continue to provide incentives for lot consolidation requests made to facilitate low-income housing through strategies that may include, but are not limited to:

- Flexibility in development standards.
- Ministerial approval of lot consolidation requests made in order to facilitate development of affordable housing.

Additional incentives the City shall investigate include but are not limited to:

- Standard planning application fee waivers based on the affordability level proposed.

Implementing Agency: Community Development Department

Supporting Agency: Community Services and Finance Departments

Timeline: Adopt expedited review process and incentives for affordable housing within two years of Housing Element adoption.

Funding Source: General Fund; Housing Successor's Low and Moderate Income Housing Asset Fund; Contra Costa County, State and Federal funding programs as available.

Quantified Objective: Adoption of priority review process. Completion of initial review of affordable housing developments within prescribed timeline. Expedited review of projects to take 50% less time than the normal City review process.

Program 9. Housing for Extremely Low, Very Low, Low, and Moderate Income Households and Special Needs Households, Including Persons with Disabilities

To encourage and facilitate the development of housing for lower income households, especially extremely low income households and special needs households, including housing for persons with disabilities, the City is pursuing a number of efforts identified in this program and in coordination with other programs in the Housing Element. As identified in the needs analysis of this Housing Element, special needs households with the greatest identified need in Pinole include the elderly and persons with disabilities. Specific actions and timelines to assist in the development of housing for extremely low-, very low-, low-, and moderate-income households, as well as housing for persons with special needs are as follows:

- Develop a Housing Successor's Low and Moderate Income Housing Asset Fund Policy that prioritizes affordable housing developments for extremely-low income households, households with special needs and households with persons with disabilities. The policy guide will consider RHNA requirements, local housing needs, such as the needs of special needs households, demographics, and fair housing objectives, among other factors and will be completed within 3 years of Housing Element adoption. (see Program 7).
- Develop a fee waiver program that would provide low or no-cost building permits to age-qualified, lower income households, and qualified special needs households to make improvements to their home for universal design. The fee waiver program will help reduce costs for qualifying special needs households to improve their homes. The City will develop a list of qualifying households and qualifying upgrades for the program. Eligible improvements may include plumbing, roofing, water damage, accessibility/mobility modifications, and improvements to make moving around inside and outside the home easier, such as stair lifts and hand rails. The Program will be completed with 18 months of Housing Element adoption.
- Reduce parking standards for lower-income household developments. Zoning Ordinance amendments for will be completed within two years of Housing Element adoption.
- Contact housing service providers within Contra Costa County to determine the best way to facilitate development of housing for extremely low-income households and special needs households, including persons with disabilities within one year of Housing Element adoption
- Based on funding availability, explore, at least once a year, development assistance for multifamily and supportive housing to meet the needs of extremely low-income

households and persons with disabilities (including persons with developmental disabilities), and other special needs households.

- Implement a waiver of park impact fees for all deed-restricted affordable units in excess of the 15 percent inclusionary units requirement within two years of Housing Element adoption (see Program 8.)
- A suite of actions to encourage development of housing for seniors as outlined Program 10. Actions include reducing parking for senior housing developments, a home sharing and tenant matching program, enhanced rebate options for energy efficient home improvements, and participation in regional programs.
- Annually contact developers of special needs and lower income housing to assist in development where feasible by:
    - Assisting and supporting new applications.
    - Providing priority processing, in coordination with Program 8.
    - Evaluate fee deferrals or subsidies and design modifications.
    - Facilitating site acquisition.
    - Hosting an annual workshop for developers to provide information on the City's regulations regarding housing development, opportunities and sites available for development, and the City's development incentives.

Implementing Agency: Community Development Department

Supporting Agencies: Community Services Department, Finance Department

Timeline: Annual review of funding opportunities, collaboration with services providers, and contact of developers. Annual developer workshop and proactive contact of housing developers. Coordination with Contra Costa County within one year of Housing Element adoption. Development of fee waiver program within 18 months of Housing Element adoption. Zoning Ordinance amendments for parking reduction within two years of Housing Element adoption.

Funding Source: General Fund, Housing Successor's Low and Moderate Income Housing Asset Fund; Contra Costa County, State and Federal funding programs as available.

Quantified Objective: Annual contact of developers. Assist 25 lower income or special needs households with the fee waiver program. Use of one or more incentives for lower income and/or households with persons with disability housing development in one project throughout the planning period.

Program 10. Senior Housing Incentives

The needs analysis identified a special need for the development of housing for seniors in Pinole. In response to this need, the City will develop a set of incentives to encourage the development of housing for seniors. Specific incentives include:

- Reducing parking requirements for senior housing development.
- Permit fee waivers for elderly residents for adaptation and modifications of households to accommodate universal design and aging in place (per Program 9).
- Enhanced rebate incentives for homeowners to make it financially feasible to undertake energy efficient and weatherization projects (per Program 19).
- Promote home match shared housing programs (per Program 11), such as Front Porch's Home Match, for homeowners to turn an available room into an opportunity to earn income, save money, age-in place, provide affordable housing and create new social connections.
- Participation in regional programs to provide assistance to seniors. Continue the partnership with the Contra Costa and Solano Food Bank to provide food resources to the community and seniors.

Additional incentives the City shall investigate include but are not limited to:

- Investigate Density Bonus beyond state law.
- Allow smaller senior units via an equivalent density unit factor that would count one senior unit as a fraction of a regular dwelling unit.

Implementing Agency: Community Development Department

Supporting Agency: Public Works Department

Timeline: Within two years of Housing Element adoption.

Funding Source: General Fund

Quantified Objective: Use of one or more incentives for senior housing development in one project throughout the planning period.

Program 11. Home Sharing and Tenant Matching

The increasing number of elderly persons in the population is creating more demand for affordable, accessible, and low-maintenance housing. As residents age, they may desire alternatives to single-family units, opting for smaller multifamily units or assisted care living, or home sharing options. Home-sharing programs match lower income home seekers with homeowners with excess space who are interested in sharing their homes. Sharing a home promotes independent living, provides additional income for the provider, an affordable rent for the seeker, and the potential for deeper relationships for both. Shared housing promotes

the efficient use of the housing stock and can help address the housing needs of seniors in the community.

The Home Sharing and Tenant Matching program will work in tandem with educating residents and facilitating additional ADU and JADU developments across the City. The pamphlets developed in Program 23 will include detailed the Pinole home sharing program, once developed, and references to other educational and financial resources for homeowners incorporating an ADU and/or JADU on their properties, or seeking housemates to live in their JADU.

A Home Sharing and Tenant Matching program can also assist in helping those who work in Pinole, including teachers, find housing options in the City.

Specific program components include:

- Partnership with support organizations that facilitate house sharing, such as Front Porch's Home Match, to turn an available room into an opportunity to earn income, save money, age-in place, provide affordable housing, and create new social connections.
- Work with the Community Services Commission to explore establishing a local shared housing program, which may include a process for matching home seekers and home providers.
- Develop detailed how-to guides that promote development ADUs and JADUs and the shared housing program to be displayed at City Hall, the Senior Center and the City's website (in coordination with Program 23).
- Active promotion of the shared housing program through senior citizen organizations such as the Pinole Senior Center and educational institutions in the City.

Implementing Agency: Community Development Department

Supporting Agencies: Community Services Department, Non-Profit Home Sharing Organizations

Timeline: Develop program components, outreach strategies and compile resources within three years of Housing Element adoption.

Funding Source: General Fund

Quantified Objective: 10 tenant matches completed throughout the planning period.

Removal of Governmental Constraints

Program 12. Zoning Amendments

The City is including a number of zoning amendments as identified in the constraints section to ensure compliance with state law and remove constraints to development. Amendments to the zoning ordinance are as follows.

- Amend the Emergency Shelter ordinance to comply with AB 139 and to ensure that standards for emergency shelters are subject to the same standards as other uses in the same zone and parking requirements are based on staffing levels only.
- Amend the zoning ordinance pursuant to Government Code Section 65583 to allow for Low Barrier Navigation Centers by right in areas zoned for mixed uses and nonresidential zones that permit multifamily uses.
- Amend the zoning ordinance in RMU to permit manufactured homes on permanent foundations as if they were single-family homes.
- Amend the zoning ordinance to comply with SB 9 standards (California Government Code section 65852.21).
- Review and revise standards and definitions for both group homes and residential care facilities to ensure that they are fully compliant with all appropriate state laws and that there are no constraints on group homes in the Zoning Code. This includes an amendment to allow group homes in the R zone as a permitted use by right as is allowed in all other residential zones and adding a definition of group residential to the Zoning Code.
- Review the definition of family and revise as appropriate to ensure that the definition does not require, or imply that it requires a single lease or rental agreement.
- Amend the zoning ordinance to comply with state density bonus law (California Government Code section 65915). Specifically the update will increase the maximum density bonus from 35 to 50 percent, add student housing as a housing type that is eligible for density bonus incentives, reduce parking from 2 to 1.5 spaces for two and three bedroom units and from 2.5 to 2 spaces for four or more bedroom units. The City is complying with state density bonus law though the code is not yet updated.
- The City will reduce the level of approval for a parking reduction or shared parking agreement from a conditional use permit to an administrative use permit, which approval by the Zoning Administrator. The City will review the four criteria for a parking reduction to evaluate additional criteria or/and reduce the minimum number of required criteria.
- The City will further study parking requirements and reduce them so they do not post a constraint on development. Specifically, the City will do one or more of the following: remove or reduce guest parking, remove covered parking requirements, allow tandem parking, or reduce minimum parking requirements. The City is pursuing assistance with parking evaluation and reduction through MTC-ABAG's parking policy technical assistance.
- ***Implementing Agency:*** Community Development Department

Supporting Agency: N/A, MTC-ABAG (parking policy technical assistance)

Timeline: Within two years of Housing Element adoption.

Funding Source: General Fund

Quantified Objective: Not Applicable

Program 13. SB 330 Objective Design Standards and SB 35 Streamlining Compliance

SB 330 enacts changes to local development policies, permitting, and processes that will be in effect through January 1, 2025. SB 330 places new criteria on the application requirements and processing times for housing developments; prevents localities from decreasing the housing capacity of any site, such as through downzoning or increasing open space requirements, if such a decrease would preclude the jurisdiction from meeting its RHNA housing targets; prevents localities from establishing non-objective standards; and requires that any proposed demolition of housing units be accompanied by a project that would replace or exceed the total number of units demolished. Additionally, any demolished units that were occupied by lower-income households must be replaced with new units affordable to households with those same income levels.

The City will ensure compliance with SB 330, by requiring any demolished units that were occupied by lower-income households to be replaced with new units affordable to households with those same income levels and establishing objective design standards.

Pursuant to SB 330, the City will review and amend the Zoning Ordinance and Design Review Guidelines to ensure that all development standards, design guidelines, and findings are objective, and promote certainty in the planning and approval process. The objective standards will also include standards for SB 9 projects. The City has begun the process and is currently cataloging existing objective and subjective standards. Through implementing objective design standards, the City is aiming to reduce the time it takes to complete the comprehensive design review process.

The City will review its approval processes to accommodate SB 35 streamlined applications and by-right applications for permanent supportive housing and navigation centers. The City will provide information regarding the SB 35 process on its website.

Implementing Agency: Community Development Department

Supporting Agency: Public Works Department

Timeline: Within two years of Housing Element adoption.

Funding Source: General Fund, SB 2 Grant

Quantified Objective: Adopted zoning amendments. Faster permit turnaround time.

Program 14. Fee Evaluation and Publicization

The City updated its fee schedule based on the results of a completed fee review on September 1, 2022. Fees were adjusted to be more equitable and comparable to

surrounding jurisdictions. To monitor the new fee schedule, the City will periodically review development impact fees to ensure that new development contributes its fair share of the costs for the provision of services and facilities. The first review of the adopted fee schedule will occur within one year of Housing Element adoption. The City will also review its Development Impact Fees (last updated in 2008) by the end of 2023.

Pursuant to AB 1483, the City will compile all development standards, plans, fees, and nexus studies in an easily accessible online location. The City will continue to provide a high-quality, parcel-specific zoning map and general plan map online.

Implementing Agency: Community Development Department

Supporting Agencies: Finance Department, City Manager Department

Timeline: Complete review of updated fees within one year of Housing Element adoption. Subsequent fee evaluations and modifications not less than every 5 years. Review of Development Impact Fees by the end of 2023.

Funding Source: General Fund

Quantified Objective: Reviewed and amended fee schedule as appropriate.

Program 15. Permit Streamlining

The City is including multiple efforts to expedite the permitting and review process through reducing the necessary levels of approval. This is a response to public outreach, constraints, and needs analyses.

Specifically, the City will:

- Lower the approval authority of entitlements for all Density Bonus projects from City Council to Planning Commission.
- Process lot consolidations ministerially.
- Adopt a priority permitting process for developments with affordable units beyond the inclusionary requirement (Program 8)

The City is in the process of implementing an electronic permitting application and tracking system. The online permitting process will help to expedite permitting procedures and will make permitting submittals and subsequent reviews easier for applicants, including allowing applicants to review items needed for submittals, check current project status, and digitally submit materials.

Implementing Agency: Community Development Department

Supporting Agency: Public Works Department

Timeline: Within two years of Housing Element adoption. Electronic permitting process anticipated to be in place by the end of 2023.

Funding Source: General Fund

Quantified Objective: Amended zoning ordinance.

Conserve, Preserve, and Improve the Housing Stock

Program 16. Rehabilitation Assistance

The City will improve public awareness of rehabilitation loan subsidy programs and energy efficiency rebate and financing programs offered by the County and other agencies. Specific actions include:

- Pamphlets on the programs available at City Hall, the Senior Center and the Library.
- Providing public information through articles in the local newspaper, social media, the City's biweekly Administrative Report, postings on the City website, and cable TV public service announcements.

In addition, the City will annually explore funding availability at the local, State, and federal levels and pursue funding programs as appropriate with the goal of reinstating the City's Rehabilitation Program.

Implementing Agency: Community Development Department

Supporting Agency: Contra Costa County Housing Agency

Timeline: Ongoing, with annual assessment of funding opportunities to reinstate the City's Rehabilitation Program.

Funding Source: Housing Successor Low and Moderate Income Housing Asset Fund; Contra Costa County, State and Federal funding programs as available.

Quantified Objective: Provide information about County and other rehabilitation programs to 40 households, landlords, or developers annually. Rehabilitation of 20 units throughout the planning period, 5 extremely low, 5 very low, 5 low, and 5 moderate).

Geographic Targeting: Rehabilitation of 5 units (25% of the quantified objective above) in lower opportunity areas of the City per the most recent TCAC opportunity area maps (west Pinole).

Program 17. Acquisition/Rehabilitation of Properties

The City will continue to pursue opportunities to partner with nonprofit housing developers to acquire and rehabilitate blighted or distressed properties, with the objective of making these units available to low-income households as affordable housing.

The City will continue to use its Successor Housing Funds to partner with organizations to provide support for low-income developments as applicable. The City has currently reserved $2 million in funding for development of the 33-unit SAHA affordable housing project.

Implementing Agency: Community Development Department

Supporting Agencies: Finance Department and City Manager Department

Timeline: Ongoing, as funding is available.

Funding Source: Housing Successor Low and Moderate Income Housing Asset Fund; Contra Costa County, State and Federal funding programs as available.

Quantified Objective: Provide information about County and other rehabilitation programs to 40 households annually. Development of 50 units, including the 33-unit SAHA project, during the planning period.

Program 18. Housing Preservation/Below Market Rate Regulations and Conversions

The City will take appropriate steps to preserve affordable units. This includes ensuring that the units with affordability covenants that are close to expiration are conserved or replaced and will remain affordable to moderate and lower income households.

Specifically, the City will:

- Contact the property owners to assess their interest in extending the affordability covenant for the at-risk units.
- Work with property owners to notify tenants of potential conversion to market rate, pursuant to State law.
- Contact affordable housing developers/providers to solicit their interest and financial capacity in acquiring the at-risk units.

Additionally, the City will continue to, either by itself or through a third-party contractor, implement and monitor rental and resale restrictions for low- and moderate-income units assisted or constructed by the former Redevelopment Agency to assure that these units remain at an affordable price level as they are occupied and transferred. The City conducts annual compliance monitoring on over 300 affordable units to ensure property owners and management are complying with affordable income and rent restrictions required by City agreements. The City expects to monitor over 400 affordable units as new affordable units are constructed over the next five years. The majority of affordable units are at rental properties. The City monitors two ownership units to ensure the property owners continue living at their properties as their primary residence or sell their units to income qualified buyers.

Implementing Agency: Community Development Department

Supporting Agency: N/A

Timeline: Notification processes as covenants for below-market rate units are set to expire. Contact of property owners and affordable housing developers/providers at least twice throughout the planning period. Monitor rental and resale restrictions annually.

Funding Source: Housing Successor Low and Moderate Income Housing Asset Fund; Contra Costa County, State and Federal funding programs as available.

Quantified Objective: Contact of property owners and affordable housing developers/providers at least twice throughout the planning period to pursue preservation or extension of at-risk units that are set to expire in the next 10 years. Ensure that 100% of housing for low- and moderate-income units assisted or constructed by the former Redevelopment Agency remains in compliance with rental and resale restrictions. Annual compliance monitoring of all affordable units (anticipated over 400).

Affirmatively Further Fair Housing

Program 19. Place-Based Improvements

The City is currently drafting and will adopt an Environmental Justice (EJ) Element. As a part of the EJ Element, the City will pursue programs to increase environmental health and quality of life across Pinole. Goals in the draft EJ Element are organized and grouped into the following topic areas:

- Equity in Access: healthy food, public facilities, public transit, key employment centers, government services, medical/health services, quality schools, and childcare.
- Equity in Environment: air quality, water quality, health risks associated with climate change and climate vulnerability, safe and sanitary housing.
- Equity in Civic Engagement Opportunities: access to civic engagement opportunities, access to voting/polling places
- Equity in Generations: preserving the right of future generations to live, work, and enjoy Pinole.

The City is working with County develop a contractual arrangement to develop an enhanced BayREN Home+ rebate incentive structure for Pinole homeowners and multifamily property owners to undertake needed energy efficiency projects. The City is partnering with BayREN in the 2022-23 fiscal year to provide $250k in funding for weatherization and energy efficiency projects in Pinole and to reduce the barrier to home electrification. The program will assist with achieving financially feasible for energy efficient and weatherization projects to move forward in Pinole. As a part of the program, lower resource areas in west Pinole will be targeted first.

Additionally, the City has multiple projects in its Capital Improvements Plan identified to improve mobility, active transportation opportunities, and park quality in the western part of the City. The City will continue to prioritize the Capital Improvement Program and implement broader planning efforts, including seeking additional funding. This will serve to continue to improve communities through neighborhood improvements such as enhanced streetscapes, multi-modal and active transportation, pedestrian safety improvements, safe routes to schools, community facilities, park improvements, and other community amenities. Projects in the west side of Pinole include:

- **Appian Way Complete Streets.** This project includes preliminary engineering and design to provide continuous sidewalks and bike lanes along Appian Way, from unincorporated El Sobrante to about 1500 feet north of the City limit.
- **Pedestrian Improvements at Tennent Ave**. Improvements to Tennent Avenue at the Railroad Crossing will facilitate safe movement of bicycles and pedestrians and connect the gap from Bayfront Park to Railroad Avenue that exists on the trail.
- **Safety Improvements at Appian Way and Marlesta Road:** Safety improvements to improve crossing conditions for pedestrians and bicyclists.
- **Active Transportation Plan:** Development of an Active Transportation Plan will act as a guide for active mobility within and around Pinole. The plan will identify an integrated network of walkways and bikeways that connect Pinole neighborhoods and communities to employment, education, commercial, recreational, and tourist destinations. The plan will prioritize a set of connected projects, that when fully implemented, will increase active transportation opportunities and make it safe and more convenient for people to walk, bike, and use non-auto forms of travel.
- **Park Master Plan:** Preparation of a park master plan will aid the City in developing a strategic approach to park maintenance and operation. The master plan will allow the City to quantify and qualify the existing park system, identify deficiencies, and develop a financial analysis of the cost to maintain and operate park assets. The master plan will also consider differences in quality between parks on a geographic level and address this accordingly in the plan.
- **Improvements at Fernandez Park:** Replacement of rubberized surface improvements at tot lot and replacement of existing engineered mulch with rubberized surface at older age play equipment.
- **Obtaining Additional Grant Funding.** The City is seeking professional grant writing assistance to obtain additional funding to support Capital Improvement Projects, among other important projects in the City. The grant writing support will enhance the City's ability to be competitive in seeking additional funding sources. The assistance is anticipated to be available beginning in summer 2023.

Implementing Agency: Community Development Department

Supporting Agencies: Public Works Department and Finance Department

Timeline: As identified in CIP Schedule; Environmental Justice Element adopted by the end of 2023. BayREN rebates in the 2022-23 fiscal year.

Funding Source: Capital Improvement Fund; General Fund; Contra Costa County, State and Federal funding programs as available.

Quantified Objective: Completed Capital Improvement Projects and Adopted Environmental Justice Element

Geographic Targeting: Targeted roll out of program to Western Pinole/EJ Element Impacted Community first

Program 20. Fair Housing Resources and Services

The City will advertise the services of and collaborate with the County's contracted fair housing provider, currently ECHO Housing. ECHO housing holds monthly Regional Fair Housing Trainings for tenants, landlords, service providers, and staff of local governments. The City will hold an annual workshop with the County's fair housing service provider or another qualified fair housing service provider in the City of Pinole.

To assist in the enforcement of fair housing laws, the City will make educational and training resources available to tenants, landowners, homeowners, and any other residents who may be affected by fair housing policy. These materials will include information on fair housing testing, arbitration, reporting health risks and discrimination, best rental practices, and more. The services will include fair housing presentations, mass media communications, and multilingual literature distribution. The programs will use alternative formats for fair housing education workshops such as pre-taped videos and/ or recordings. Staff will distribute fair housing pamphlets provided by fair housing organizations at the public information counter at City Hall, Pinole Library, and at the Pinole Senior Center, as well as on the City's website. Staff will continue to refer all fair housing complaints to ECHO Housing, a local fair housing advocacy firm, or other groups that provide comparable service.

The City will continue to encourage improved community participation and representation in all official city business, events, and communications. The City will contract with a translation service as needed for meetings, putting a standard note on all hearing notices and communications in Tagalog, Spanish and Chinese indicating that interpretation and translation services are available upon request. The City will contract with a translation service for direct on the spot translation/interpretation needs at the front counter.

The City will review demographic changes in the City to determine if translation should be provided for new or additional languages every four years. Translation to additional languages added as determined by demographic analysis.

The City will also participate in the Regional Analysis of Impediments to Fair Housing Choice, which is updated every five years. The City will work with the County to publicize the outreach program for the update.

Implementing Agency: Community Development Department

Supporting Agency: ECHO Housing

Timeline: Biennial fair housing workshops. Ongoing provision of resources and referrals to fair housing service providers. Review of demographics to determine appropriate translation and interpretation languages every 4 years.

Funding Source: General Fund

Quantified Objective: Provide annual workshops or information fairs with the County fair housing provider or another qualified fair housing provider. Provide fair housing resources or referrals to 50 households annually.

Geographic Targeting: Hold at least 50% of in person workshops for fair housing in west Pinole, or other areas with low access to opportunities per the most recent TCAC opportunity area map.

Program 21. Displacement Prevention/Housing Mobility

Within one year, coordinate with a qualified fair housing service provider to conduct a meeting/workshop to inform residents and landlords of sources of income protection and state rent control laws such as AB 1482. This may be done in coordination with the workshop in Program 20.

Coordinate outreach efforts to inform landlords and tenants of recent changes to state law that prevent source of income discrimination, including allowance of housing choice vouchers (HCVs) to establish a renter's financial eligibility.

Pursuant to SB 330, ensure that when existing housing is demolished, at least an equivalent number of units at the same affordability are created as replacements.

To promote housing mobility in relatively higher income and lower density areas, the City will employ a variety of strategies to achieve the development of 40 units (such as ADUs, JADUs, and SB 9 units) throughout the entirety of the planning period. Strategies include:

- ADUs (Program 4)
- SB 9 Units (Program 5)
- Tenant Matching/Home Sharing (Program 11)
- Additional marketing and technical assistance tools (Program 4)
- Housing Choice Vouchers (Program 21)

As part of these efforts, the City will conduct a mid-cycle evaluation to review the effectiveness of the above strategies and consider additional programs as necessary, including but not limited to higher density opportunities on religious, institutional and quasi-institutional lands, missing middle zoning in addition to SB 9 such as SB 10, adaptive reuse, more than one JADU per structure, acquiring and adding affordability to existing structures, and upzoning.

Implementing Agency: Community Development Department

Supporting Agency: ECHO Housing

Timeline: Mid-cycle review in 2027. Revise zoning ordinance to require affordable unit replacement within two years of Housing Element adoption; create and distribute informational materials by within 18 - 24 months of Housing Element adoption, with annual outreach to tenants and relevant organizations. Conducted workshop within one year of adoption.

Funding Source: General Fund

Quantified Objective: Conducted workshop within one year of adoption. Provide resources on source of income discrimination and housing choice vouchers to 35 households annually.

Geographic Targeting: Conduct the source of income protection/tenant's rights workshop in west Pinole.

Housing Education and Community Outreach

Program 22. Housing Resources Education

The City will promote and advertise available housing resources to residents through a variety of mediums. The City will continue to promote homebuyer assistance programs available through the County and State, such as the Mortgage Credit Certificate (MCC) program and California Housing Finance Agency's down payment assistance programs.

Specific actions shall include:

- Providing information regarding housing resources on the City website.
- Pamphlets on the programs available at City Hall and other community locations such as the Senior Center and Library.
- Providing public information through articles in the local newspaper and with cable TV public service announcements.
- Advertising housing resources through social media.
- Presence at a booth in community events at least once per year.
- Provision of materials in multiple languages, in coordination with Program 20.

Promotion of housing resources and education efforts will be done in accordance with the recently adopted Communication and Engagement Plan that was created to help strengthen the City's communication efforts and effectively reach and engage residents. The Plan includes steps to develop a defined process for translation services and include bilingual communication in social media posts.

Implementing Agency: Community Development Department

Supporting Agency: Community Services Department, City Manager's Department, Pinole Community Television

Timeline: Provision of information within 18 months of Housing Element adoption. Presence at community events at least once per year.

Funding Source: General Fund

Quantified Objective: Provision of housing information to approximately 75 residents annually.

Program 23. ADU, JADU, and SB 9 Education and Promotion

To encourage development of second dwelling units including ADUs, JADUs, and SB 9 opportunities, the City is developing a comprehensive education program to promote the development of second dwelling units in the City. The program will contain information for residents who may be unaware of the ability to build or incorporate an ADU and/or JADU on their properties, as well as detailed guidance on how to go through the ADU an JADU process and what financial resources are available, such as CalHOME funding for homeowners to build ADUs. The City will provide pamphlets on the City website and at City Hall with detailed information on the ADU and JADU processes.

The City will provide information regarding ADUs, JADUs, and SB 9 opportunities at no less than 2 events annually. Events could include workshops, a Q&A session, or presence at community events throughout the year. Examples of community events where the City may provide the information include National Night Out, the summer concert series, the Earth Day Event, and the Easter Egg Hunt.

The City will also provide a pamphlet with detailed information on SB 9 opportunities in the City. This will include a FAQ and detailed guidance on how to utilize SB 9 in the City.

Educating residents and providing new guidance are expected to work in tandem and facilitate additional ADU developments across the City. The pamphlets will be provided in both English and Spanish, and other languages as determined necessary by Program 20. The pamphlets will include detailed information on the ADU process, basic responsibilities and legal requirements of being a landlord, a “fair housing fact sheet,” and references to other educational and financial resources for homeowners building or incorporating ADUs on their property.

This program will work in conjunction with Program 11. Pamphlets created for both ADUs and JADUs will include detailed information on the Pinole home sharing program and references to other educational and financial resources for homeowners seeking housemates to live in their ADU or JADU. Pamphlets will be provided at the Pinole senior center.

Implementing Agency: Community Development Department

Supporting Agency: Public Works Department, Community Services Department, City Manager’s Department, Pinole Community Television

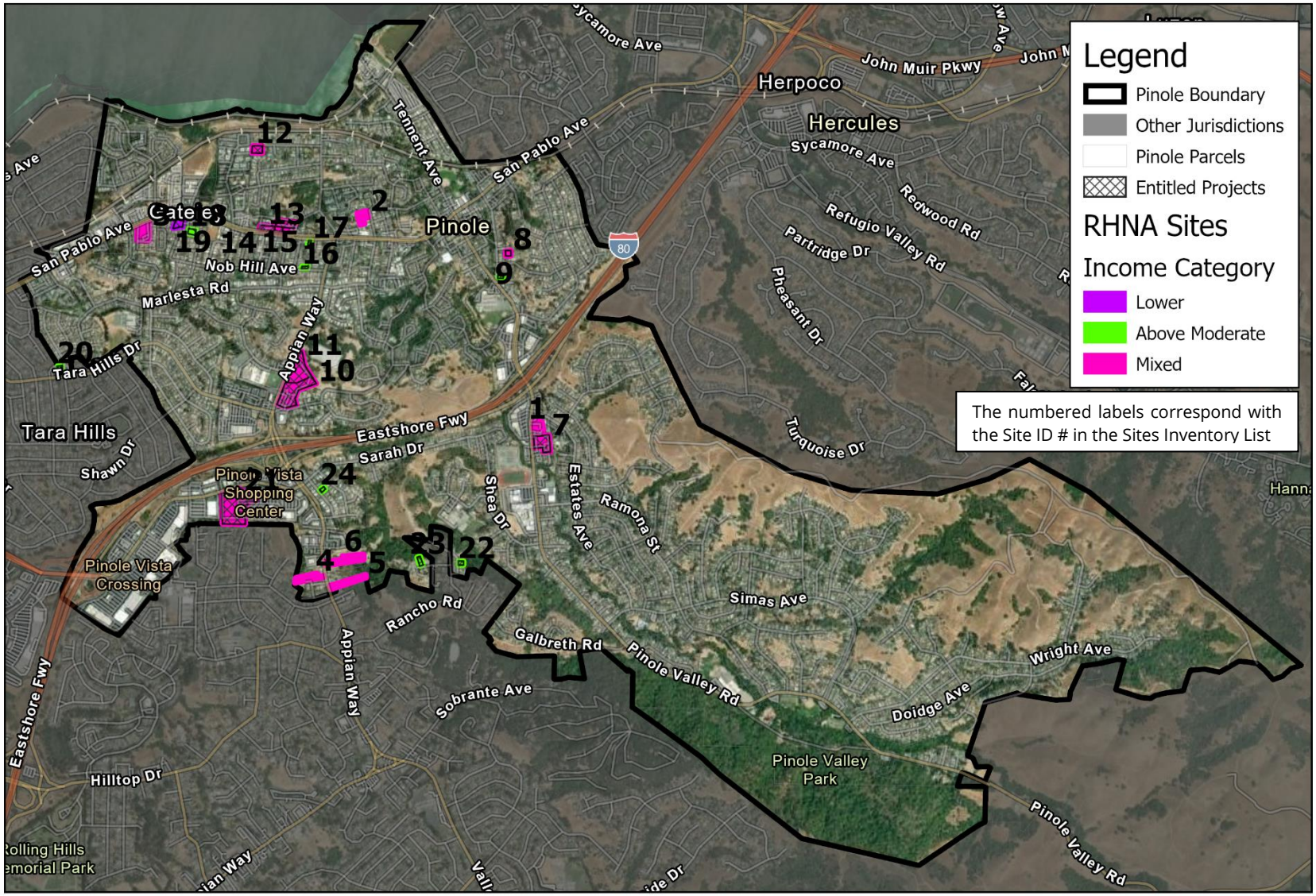
Timeline: Develop outreach strategies and compile resources within two years of Housing Element adoption. Promotion of Home Sharing and Tenant Matching (Program 11) six months after program development. Outreach at no less than 2 events annually.

Funding Source: General Fund

Quantified Objective: Increased development of ADUs from 3 to 5 annually. Development of 1 JADU annually.

Geographic Targeting: Increased promotion of ADUs, JADUs, and SB 9 potential in higher opportunity areas of the City as determined by TCAC opportunity area maps.

APPENDIX A: SITES INVENTORY MAP



Pinole RHNA Sites and Entitled Projects

APPENDIX B: SITES INVENTORY LIST

Opportunity Site Inventory

Site ID # (on map)	Address	Zip Code	Assessor Parcel Number	Existing General Plan	Existing Zone	Maximum Density	Size (Acres)	Lower Income Capacity	Moderate Income Capacity	Above Moderate	Total Capacity	Infrastructure	City Owned	Existing Use	4th Cycle	5th Cycle
1	2727 PINOLE VALLEY RD	94564	360010031	Service Sub-Area	CMU	30	0.67	11	3	0	14	Yes	-	Commercial	-	-
2	LAUREL AVE, north of 580 Laurel Ave*	94564	401350015	Medium Density Residential	R2	20	0.78	8	3	0	11	Yes	-	Vacant	-	-
3	725 SAN PABLO AVE	94564	403051012	Mixed Use Sub Area	RMU	35	1.56	29	9	0	38	Yes	-	Commercial	-	-
4	APPIAN WAY, south of 2672 Appian Way*	94564	426020027	Mixed Use Sub Area	RMU	35	1.03	19	6	0	25	Yes	-	Vacant	-	-
5	2693 APPIAN WAY	94564	430290006	Mixed Use Sub Area/Rural	RMU	35	1.04	9	3	0	12	Yes	-	Vacant	-	-
6	APPIAN WAY, south of 2655 Appian Way*	94564	430290026	Mixed Use Sub Area/Rural	RMU/R	35	1.63	9	3	0	12	Yes	-	Vacant	-	-

* **Parcels noted with an asterisk (*) in the address column do not have a current street address. For these sites, a description or the closest Google street address was provided. Google street addresses may not provide the exact location of the parcel. Using the APN is the most accurate way to identify the parcel.**

Entitled Projects Inventory

Site ID # (On Map)	APN	Address	Zip Code	Zoning	Lower Income Units	Moderate Income Units	Above Moderate Income Units	Total Units
7	360010029	2801 Pinole Valley Road	94564	OPMU	4	0	25	29
8	401192015	2525 Brandt Court	94564	R-1	0	1	1	2

Site ID # (On Map)	APN	Address	Zip Code	Zoning	Lower Income Units	Moderate Income Units	Above Moderate Income Units	Total Units
9	401193006	1169 Pinole Valley Road	94564	R-1	0	0	2	2
10	401240017	2151 Appian Way	94564	RMU/CMU	8	23	123	154
11	401240018		94564	RMU/CMU	*	*	*	*
12	402013060	1630 Hazel Street	94564	R-1	0	1	3	4
13	402023002	600 Roble Ave, 1109 San Pablo Ave, 1230 San Pablo Ave	94564	R-4	142	37	0	179
14	402023003	600 Roble Ave, 1109 San Pablo Ave, 1230 San Pablo Ave	94564	R-4	*	*	*	*
15	402023007	600 Roble Ave, 1109 San Pablo Ave, 1230 San Pablo Ave	94564	R-4	*	*	*	*
16	402050021	980 Second Ave	94564	R-1	0	0	1	1
17	402050023	1479 San Pablo Ave	94564	RMU	0	0	3	3
18	402161025	816 E Meadow	94564	R-2	0	0	5	5
19	402166030	811 San Pablo Ave	94564	CMU	33	0	0	33
20	403500020	472 Limerick Rd	94564	R-1	0	0	2	2
21	426391010	1500 Fitzgerald Drive	94564	CMU	27	0	196	223
22	430240025	8 N. Rancho Court	94564	R-1	0	0	2	2
23	430260013	209 N Rancho Pl	94564	R-1	0	0	1	1
24	430302012	2529 Lynn Dr	94564	R-1	0	0	1	1

APPENDIX C: PUBLIC PARTICIPATION

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PUBLIC PARTICIPATION

California Government Code Section 65583 requires that each local government shall make diligent efforts to solicit public participation from all economic segments of the community in the development of the General Plan Housing Element. During the preparation of the City of Pinole's 6th Cycle Housing Element Update, public input was sought in a variety of ways. It should be noted that public meeting summaries, including questions and staff responses, have been summarized and edited for clarity.

EFFORTS TO ACHIEVE CITIZEN PARTICIPATION

Public participation efforts during the 6th Cycle Housing Element Update included:

- Publication and maintenance of a dedicated Housing Element Update webpage at LandUsePlanningForPinole.com
- Online public outreach survey (provided in English, Tagalog, Cantonese, and Spanish)
- Two virtual Community Workshops (recordings translated into Tagalog, Cantonese and Spanish and posted to City website)
- Two stakeholder interviews and surveys
- Three focus group interviews and surveys
- Public updates to the Planning Commission and City Council:
    - City Council Study Session, March 22, 2022
    - Planning Commission and City Council Study Session, July 13, 2022
    - City Council Study Session, November 15, 2022
- Social media postings on the City of Pinole's Facebook and Instagram pages
- Email notifications to interested parties contact list
- Notifications in the City's biweekly administrative report
- Postcard mailed to postal customers citywide
- Flyers printed and distributed around the City
- 11 banners of various sizes, ranging from 58 square feet to eight square feet hung at key locations in the City, including community facilities (such as the senior center, swim center, tennis court, and the library), neighborhood parks, over major throughfares and key pedestrian pathways
- QR codes were printed on all postcards and flyers linking the recipient to the project website, which contained an option to participate in the survey, meeting dates, and notification that translation services are available printed in four languages (English, Tagalog, Cantonese, and Spanish)

Due to office/business closures related to the COVID-19 pandemic, the City of Pinole took a new approach to hosting public meetings and elected to host two Community Workshops (public outreach meetings) online using the Zoom platform.

Notices for the Community Workshops were printed on postcards and mailed to addressees in the City of Pinole. Flyers were distributed for posting at community locations and local businesses, and 12 banners were hung at community facilities and in Pinole's Old Town area.

The City contacted business groups, service providers, community groups, religious organizations, affordable housing developers, and major employers (53 in all) by either phone or email to participate in the focus groups or to elicit feedback. A full list of the groups that were contacted by the City of Pinole is shown in the table below**.**

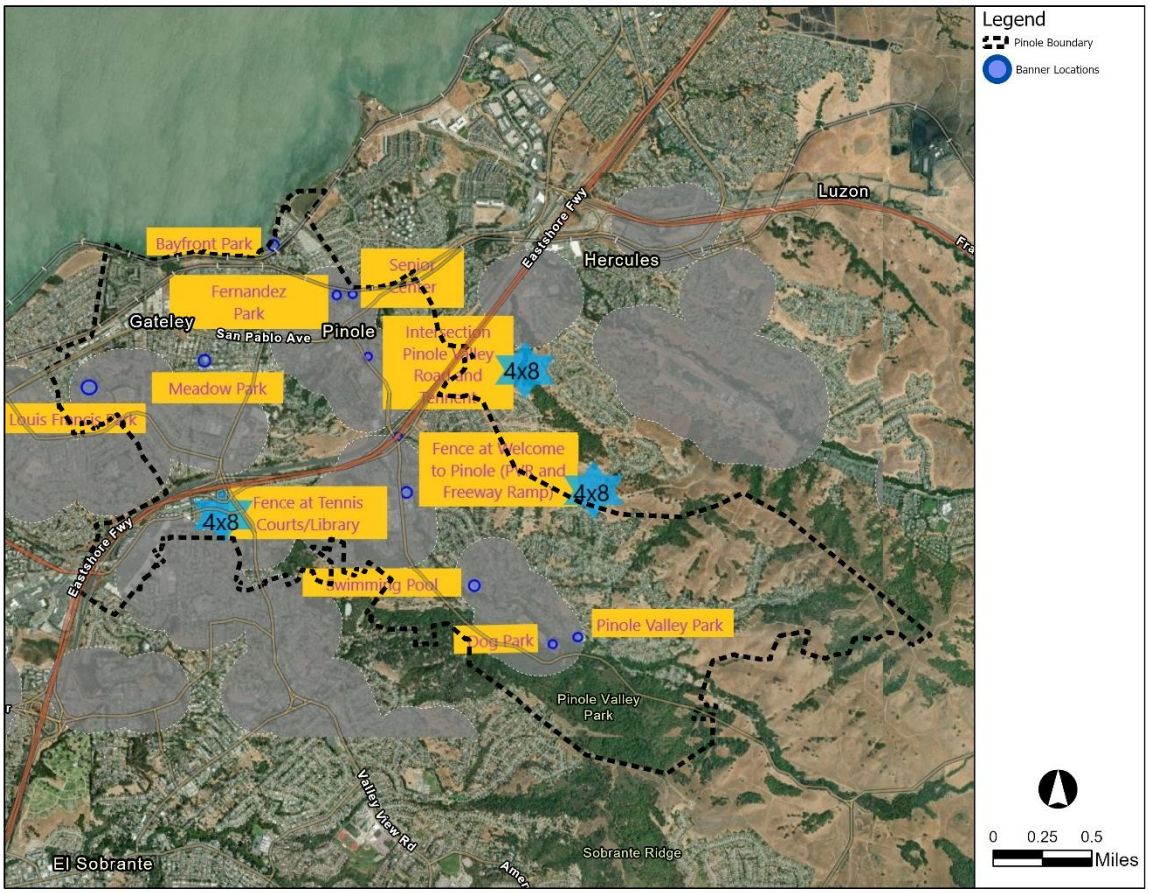
Meeting links and announcements were regularly updated on the City's Housing Element website and social media accounts, including Instagram and Facebook. survey was conducted to obtain "local knowledge" about housing, health and safety, and environmental justice. A total of 149 people participated in the online survey, which was offered in English, Spanish, Cantonese, and Tagalog. The results of the housing portion of the survey are reported below. Some survey questions presented the option to select "other" and include written responses. Those write-in responses are reported following the original survey question.

Group Category	Name
Business Groups	Bayfront Chamber of Commerce
	Contra Costa College Economic & Workforce Development Department
	San Pablo Economic Development Corporation
Real Estate and Construction Groups	Coldwell Banker Real Estate (Pinole Branch)
	Security Pacific Real Estate Brokerage (Richmond Branch)
	DeNova Homes
	BGAM - Property Management
	Sequoia Real Estate
	Contra Costa Association of Realtors
Service Providers	Eden Council for Hope and Opportunity
	ECHO Housing (Fair Housing)
	Disabled People's Recreation Center
	Cole Vocational Services
	Pinole Senior Center
	EAH Housing
	Housing Authority of Contra Costa County
	Bay Area Rescue Mission
	Contra Costa Health Services
	The Salvation Army
	Meals on Wheels Contra Costa County
	Pinole Rotary Club
	Contra Costa County Aging & Adult Services
	HOPE Solutions
	Pathway to Choices
	East Bay Housing Organizations
	Pinole Library
Community and Environmental Justice Groups	Communities for a Better Environment
	Environmental Justice League
	Friends of the Library
	Richmond Pinole Lions Club
	Friends of Pinole Creek Watershed
	Pinole Garden Club
	Pinole Seals Swim Club

	Pinole for Fair Government
	West County League of Women Voters
	Contra Costa Builders Exchange (CCBE)
	Building Industry Association of the Bay Area
	Pinole Historical Society
	Their Club (youth group)
	The Quinan Street Project
Religious Organizations	Church of Christ
	Church of Jesus Christ of Latter-day Saints
	Nichiren Shoshu Myoshinji Temple
	Our Savior Lutheran Church
	Pinole United Methodist Church
	Pinole Valley Community Church
	St. Joseph's Church
	Valley Bible Church
	Christ the Lord Church
	Sunset Evangelistic Center
Affordable Housing Developers	SAHA (Satellite Affordable Housing Associates)
	MRK
	BRIDGE Housing
	Community Housing Development Corporation
Major Employers	Kaiser Permanente
	Target
	West Contra Costa Unified School District

BANNERS LOCATIONS AND PHOTOS

A map of the locations of the eleven banners posted across the City and photos of the banners are shown below.



Banner Locations

Banner at Pinole Swimming Pool

Banner at Pinole Senior Center

Banner at San Pablo Avenue and Oak Ridge

Banner at PVR Park

Banner at PVR Park and Tennent

Banner at Lou Francis Park

Banner at Pinole Valley Road and Freeway Entrance

Banner at Meadow Park

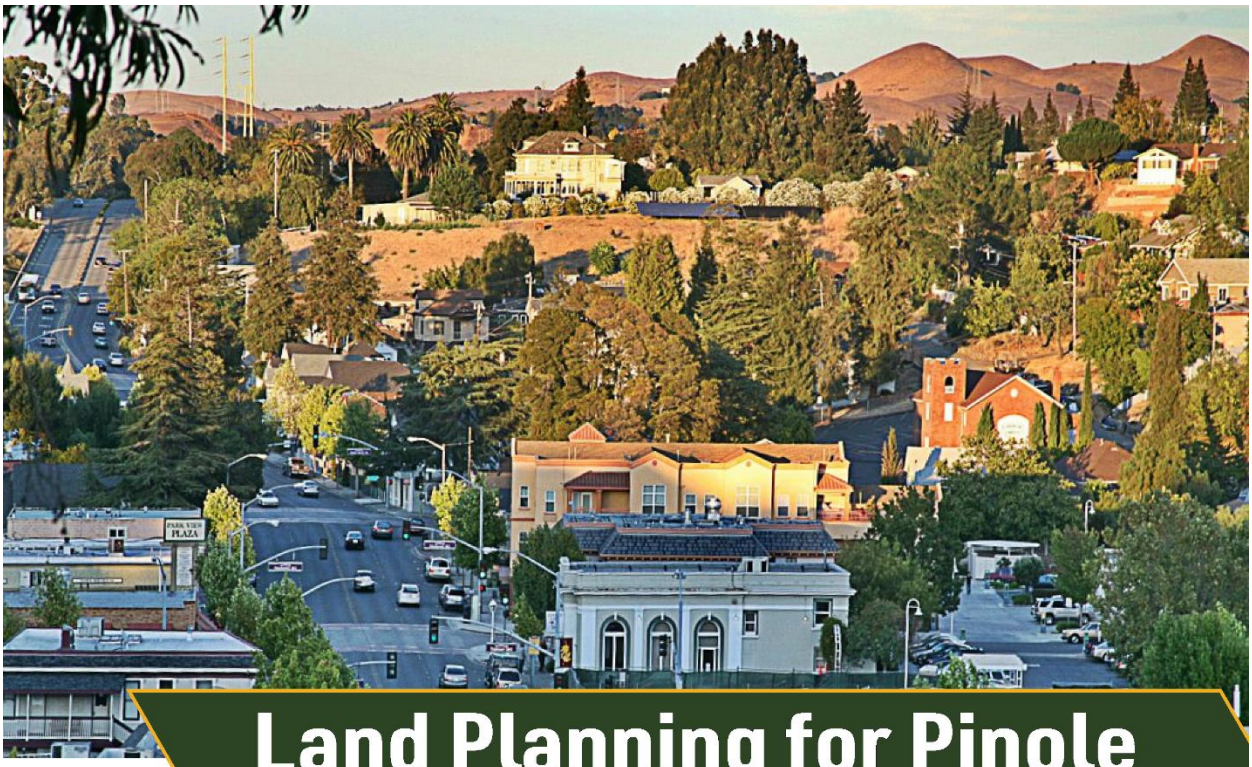
Banner at Fernandez Park

Banner at Bayside Park

Banner at Pinole Valley Dog Park

SOCIAL MEDIA POSTS

The social media posts that were posted on various social media sites including Instagram, Facebook, and Nextdoor and fliers used are shown below. Provided are the social media posts and flier for the October 24th Planning Commission meeting and November 15th City Council meeting, flier advertising the survey, informational screen shown on Pinole TV Channels, and postcard advertising the survey and community meeting on May 11th and June 9th.



Land Planning for Pinole

City Council Meeting

Mark your calendars for a discussion on the Housing Element draft and update on Safety, and Health & Environmental Justice Elements.

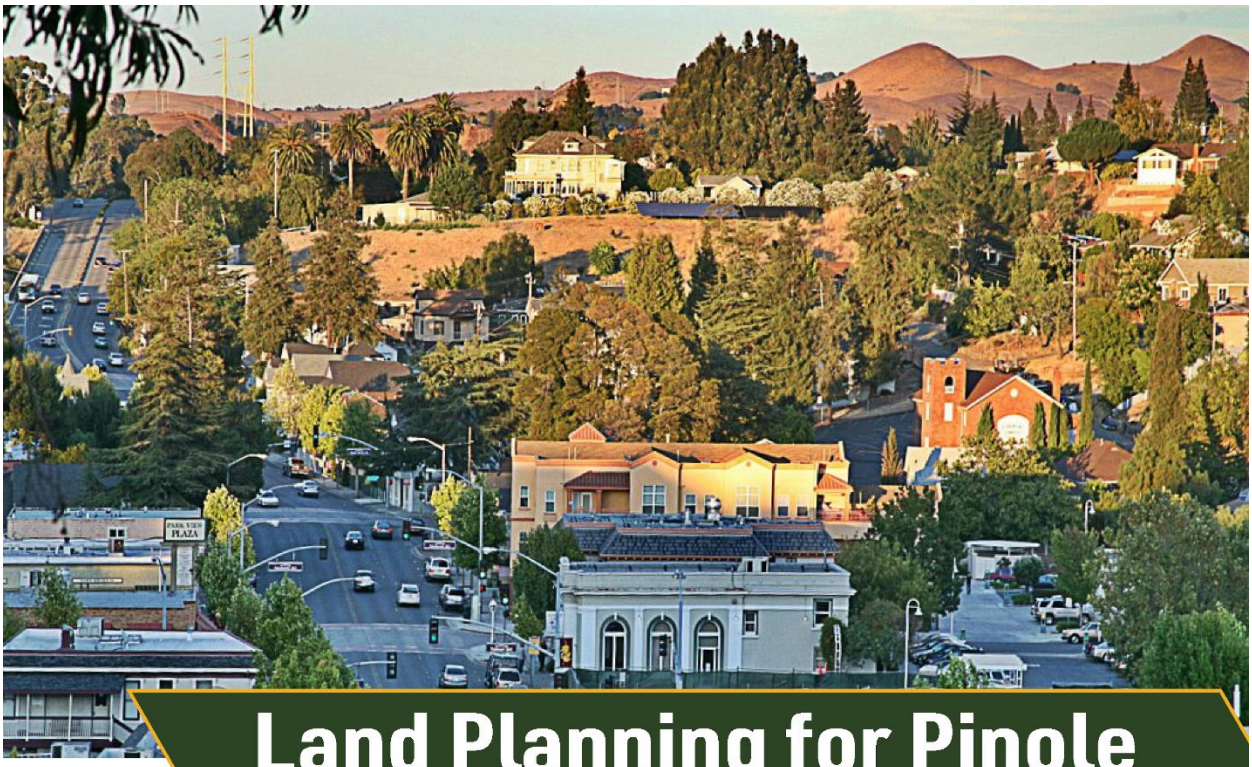
TUESDAY, NOVEMBER 15th at 6:00 PM

Participate In-person - 2131 Pear Street, Pinole CA 94564

Participate Virtually- https://us02web.zoom.us/j/89335000272

LANDUSEPLANNINGFORPINOLE.COM

ContactUs@LandUsePlanningForPinole.com



Land Planning for Pinole

Planning Commission Meeting

An informational update on Housing Element will be provided at the Planning Commission meeting on:

MONDAY, OCTOBER 24th at 7:00 PM

2131 Pear Street, Pinole CA 94564

LANDUSEPLANNINGFORPINOLE.COM

ContactUs@LandUsePlanningForPinole.com

LAND PLANNING FOR PINOLE
An update and discussion on the Housing, Safety, and Health & Environmental Justice Elements will be held on:
TUESDAY, NOVEMBER 15th at 6:00 PM
2131 Pear Street, Pinole CA 94564
Participate Virtually- https://us02web.zoom.us/j/89335000272
LANDUSEPLANNINGFORPINOLE.COM
ContactUs@LandUsePlanningForPinole.com

Land Planning for Pinole

Housing, Safety, Health & Environmental Justice Elements

The City of Pinole is updating its General Plan to create a more resilient future. The update will focus on:

Housing

The Housing Element analyzes the City's demographics, economics and housing supply, analyzes housing constraints and resources, evaluates appropriate sites for potential housing, and develops housing goals, objectives, policies, and programs for the next eight years.

Safety

The Safety Element aims to reduce potential short and long-term risk of death, injuries, property damage, and economic and social dislocation resulting from fires, floods, droughts, earthquakes, landslides, climate change, and other hazards.

Health and Environmental Justice

The Health and Environmental Justice Element evaluates areas of the City which face higher environmental, economic, and social challenges. This Element ensures all parts of the City have the same degree of protection from environmental and health hazards and equal access to the decision-making process.

The public review draft of the Housing Element Update will be available starting October 17th, at:

LANDUSEPLANNINGFORPINOLE.COM

Public comments on the draft Housing Element Update will be accepted from October 17th through November 17th via e-mail:

ContactUs@LandUsePlanningForPinole.com

Comments can also be provided in-person or virtually at the City Council meeting on November 15th.

Planning Commission Meeting

An informational update on Housing Element will be provided at the Planning Commission meeting on **October 24, 2022**.

City Council Meeting

Mark your calendars for a discussion on the Housing Element draft and update on Safety, and Health & Environmental Justice Elements.

TUESDAY, NOVEMBER 15th at 6:00 PM

Participate In-person - 2131 Pear Street, Pinole CA 94564

Participate Virtually- https://us02web.zoom.us/j/89335000272

Land Use Planning for Pinole

Environmental Justice ***Housing*** ***Health*** ***Safety***

JOIN US FOR A VIRTUAL INTERACTIVE COMMUNITY WORKSHOP ON

June 9th, 7:00 PM

on Zoom

Community Survey and meeting link at:

LandUsePlanningForPinole.com

City of Pinole
General Plan Updates

Environmental Justice | *Housing* | *Safety* | *Health*

YOU ARE INVITED TO PARTICIPATE IN LAND USE PLANNING ACTIVITIES FOR PINOLE

The City of Pinole is in the process of updating portions of the City's General Plan, which is a long-range vision for the future of the community. The City will be updating its plans for both housing, health and safety and adopting a plan for environmental justice. It's a great time to get involved in land use planning in Pinole! Please see the back of this card for information on upcoming community outreach meetings and to take the survey about housing, health, safety and environmental justice issues in Pinole.

We Need Your Input!
Who in our community has the greatest need for housing and related services? How concerned are you about evacuating in the event of a disaster? Are you worried about health risks associated with climate vulnerability (such as wildfire, flood, sea level rise)? Does everyone in Pinole have access to affordable and healthy food?
Take the survey (see reverse) today!

酒店提供翻譯服務。 畀我哋發電子郵件，畀我哋知您的需求。

Translation services are available. Email us to let us know about your needs.

Los servicios de traducción están disponibles. Envíenos un correo electrónico para informarnos acerca de sus necesidades.

Available ang mga serbisyo sa pagsasalin. Mag-email sa amin upang ipaalam sa amin ang tungkol sa iyong mga pangangailangan.

ContactUs@LandUsePlanningForPinole.com

Community Meetings

MEETING ONE
May 11, 7:00 PM

MEETING TWO
June 9, 7:00 PM

Zoom link to meetings:
https://us06web.zoom.us/j/81837284958

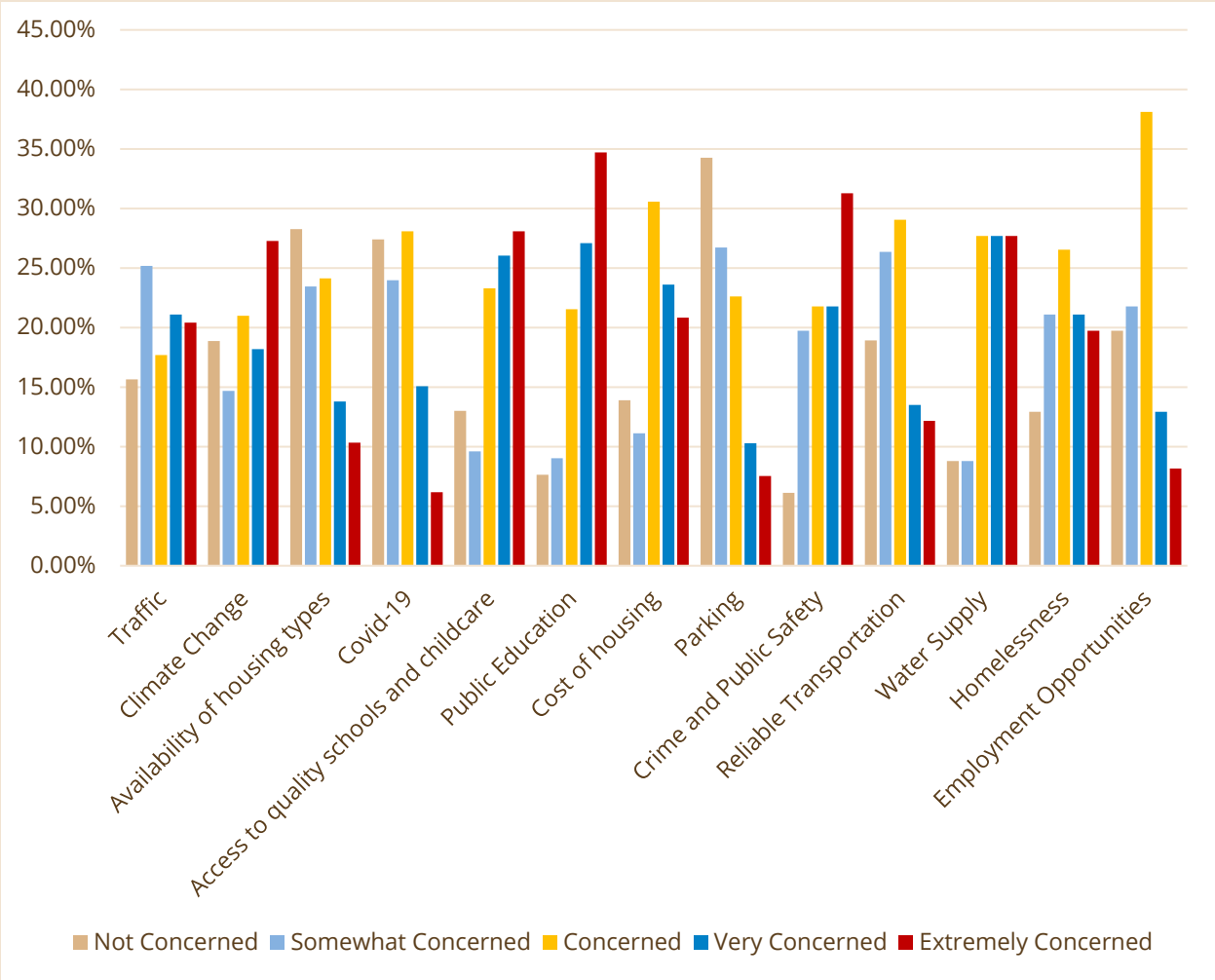
Community Survey

SCAN FOR SURVEY.
AVAILABLE IN ENGLISH, TAGALOG, CANTONESE AND SPANISH

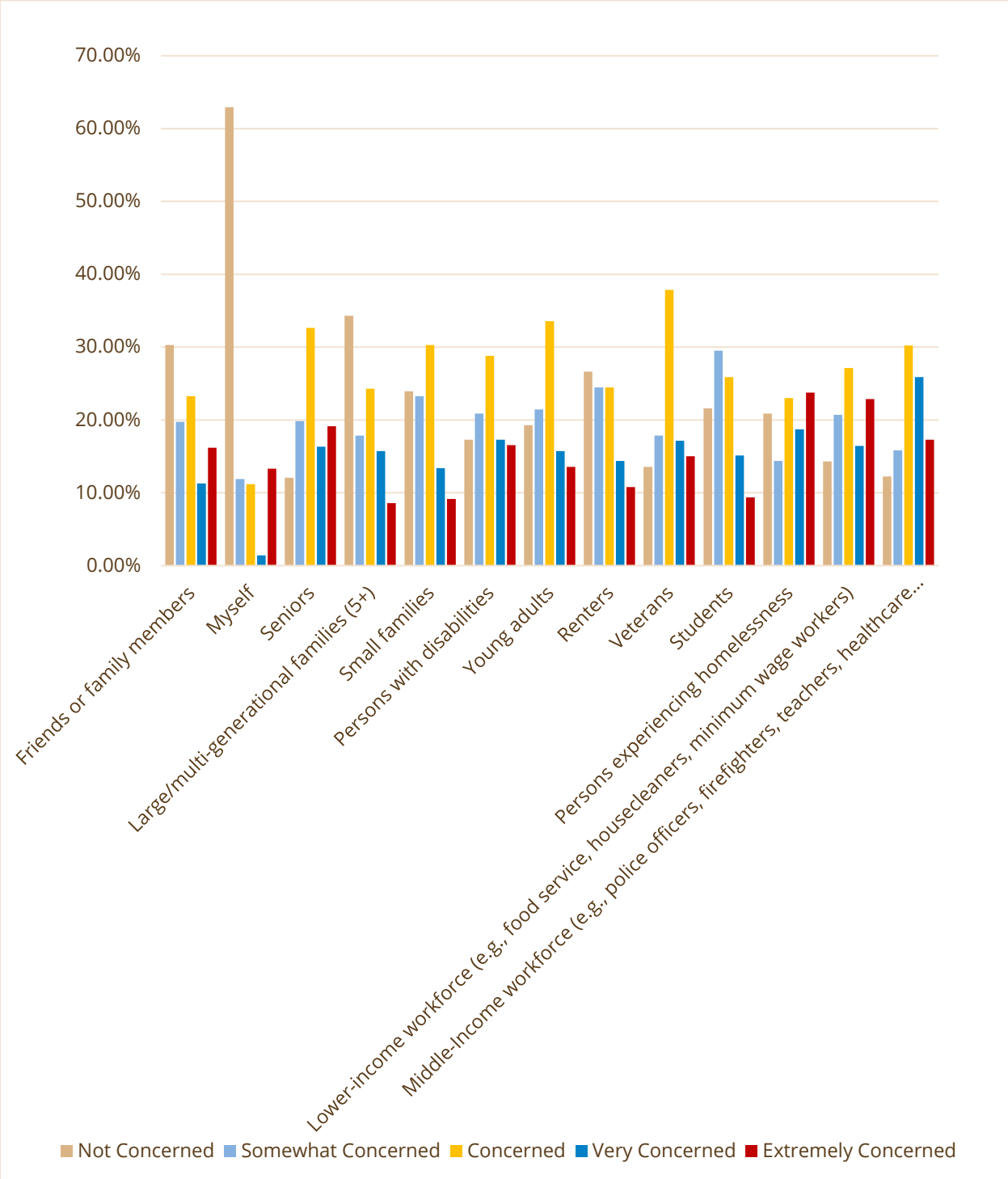
LandUsePlanningforPinole.com

ONLINE SURVEY RESULTS

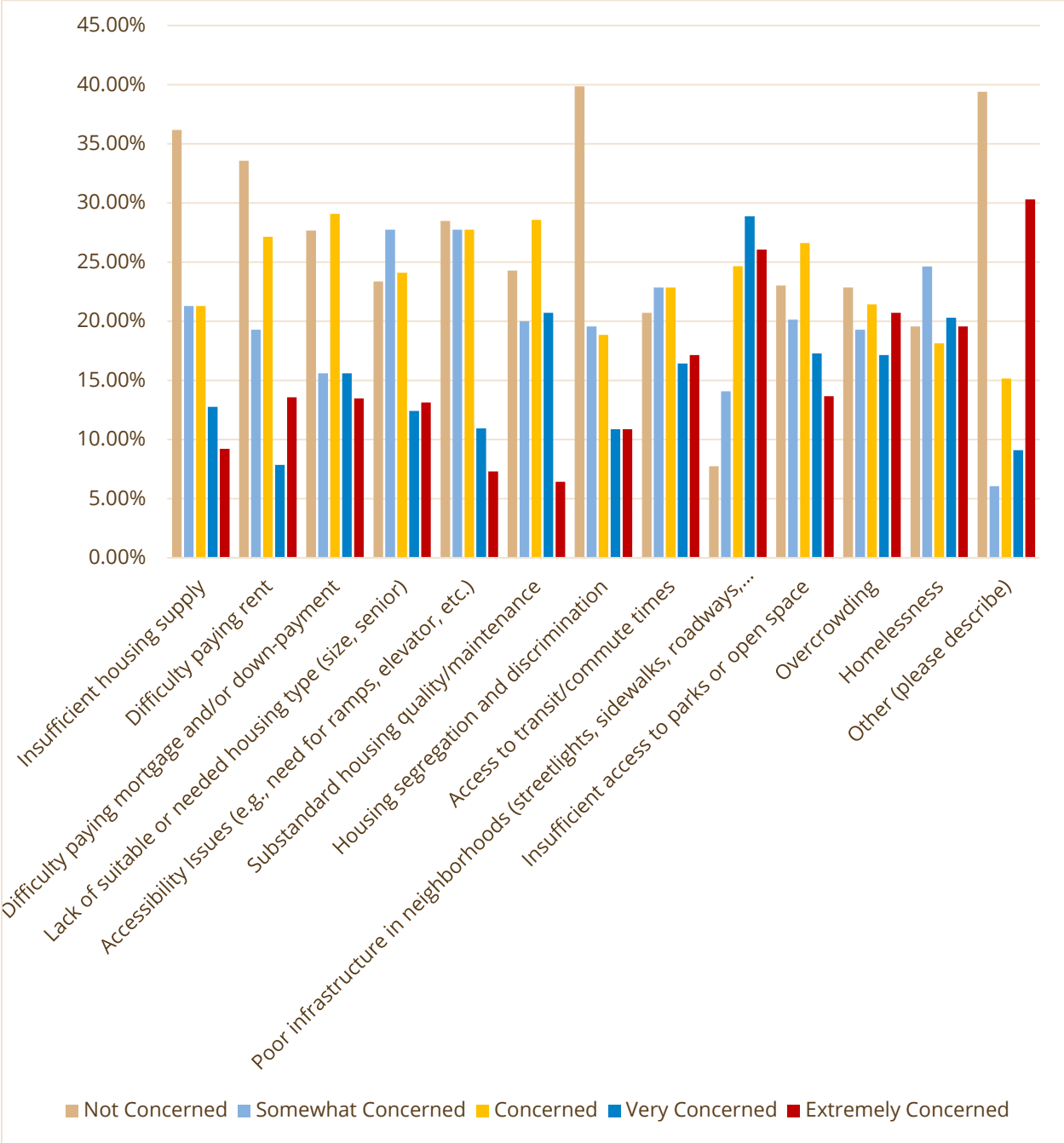
Q1. The following is a list of issues facing Pinole. Please indicate how concerned you are about each of the following items using a scale of not concerned, somewhat concerned, concerned, very concerned, or extremely concerned.



Q2. Please indicate your level of concern about the following groups and their ability to find an affordable place to live in Pinole:



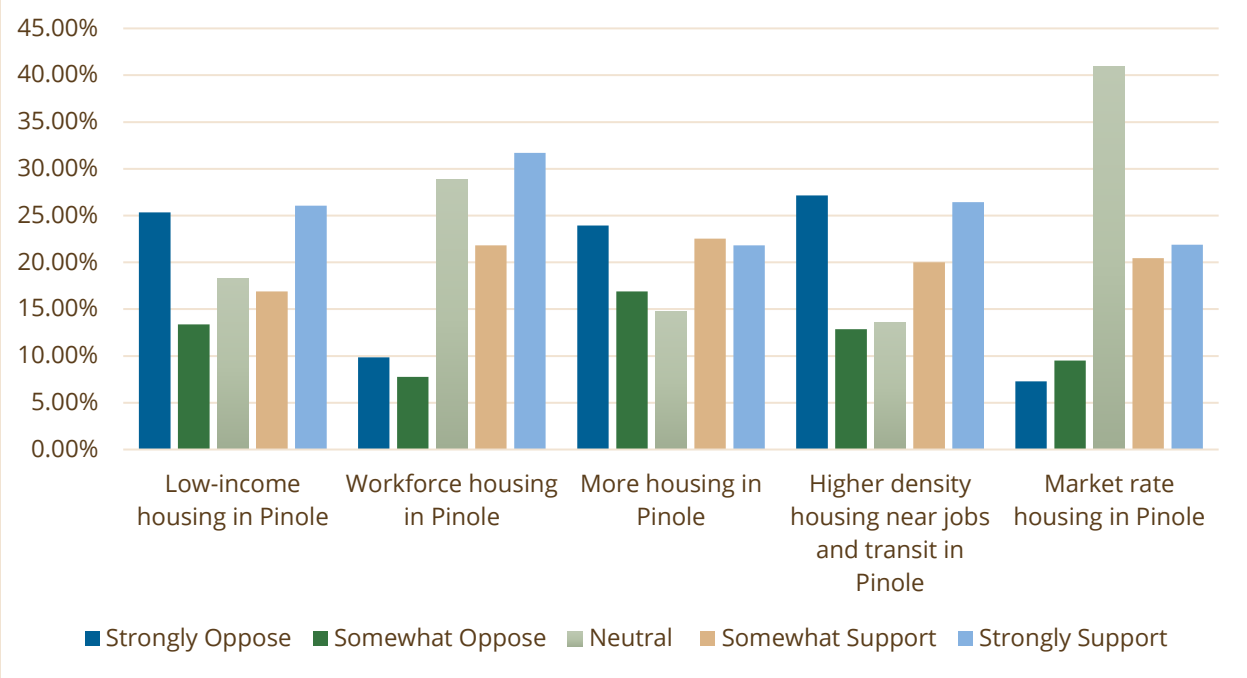
Q3. Indicate your level of concern about the following housing issues in Pinole.



Q3. "Other" responses.

#	OTHER (PLEASE SPECIFY)	DATE
1	maintenance of existing facilities	8/2/2022 8:00 AM
2	I'm not sure how I feel about ADU's there are pros and cons. Predesigned plans will make Pinole look like a cookie cutter community (it already is to some degree) Rent control only for multiple units if that.	8/2/2022 12:37 AM
3	Roads and Infrastructure	7/26/2022 5:53 PM
4	housing sustainability - zoning should encourage smaller units and lots, solar/efficiency incentives	7/23/2022 11:52 AM
5	Roads need maintenance - poor condition	7/13/2022 6:25 PM
6	Our streets need turnabouts to stop all of the people doing donuts in the intersections; especially on Tara Hills Drive	7/10/2022 11:27 AM
7	Code enforcement lacking	7/7/2022 1:28 PM
8	City tearing down green spaces to make way for commercial/ housing properties: very concerned	6/18/2022 6:48 AM
9	Destroying open space (nature) for commercial development	6/17/2022 9:02 AM
10	Crime	6/15/2022 7:47 PM
11	Pedestrian safety, especially on Pinole Valley Road by Ellerhorst Elementary.	6/14/2022 11:25 AM
12	Crime, shootings, vandalism, speeders, traffic backups on Pinole valley road; poor deplorable condition of dog park n lack of walking n hiking trail in Pinole valley	6/9/2022 7:23 PM

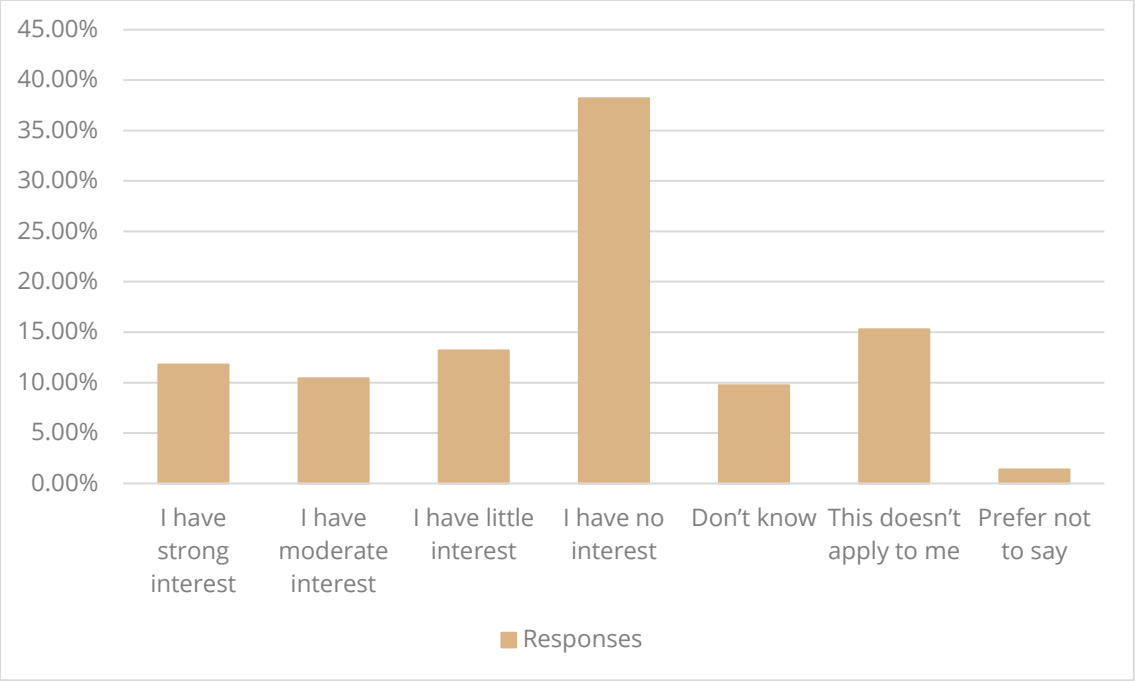
Q4. Using the scale of 1 = Strongly Oppose and 5 = Strongly Support, please indicate your level of support for each of the following in Pinole:



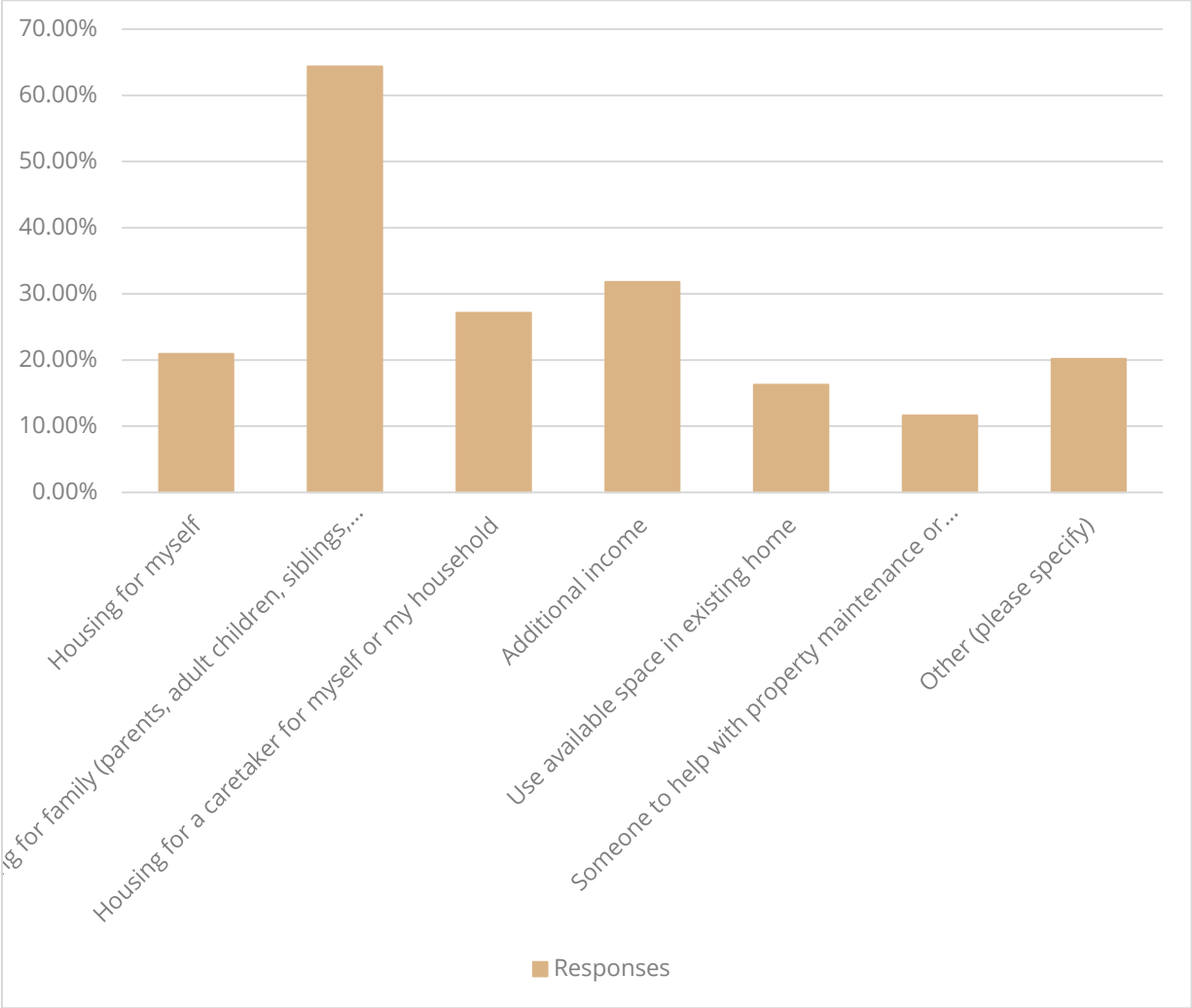
Q5. Next you will read a list of potential proposals around housing policy in Pinole. Using the scale of 1 = Strongly Oppose and 5 = Strongly Support, please indicate your level of support.

	STRONGLY OPPOSE	SOMEWHAT OPPOSE	NEUTRAL	SOMEWHAT SUPPORT	STRONGLY SUPPORT	TOTAL	WEIGHTED AVERAGE
Changing the zoning in single family home neighborhoods to allow duplexes, triplexes, and fourplexes	42.36% 61	19.44% 28	9.72% 14	11.81% 17	16.67% 24	144	2.41
Making sure that current affordable housing continues to stay affordable to those who need it	9.79% 14	9.79% 14	16.78% 24	23.08% 33	40.56% 58	143	3.75
Building housing in areas that are already zoned for commercial office development	18.88% 27	16.78% 24	23.08% 33	16.78% 24	24.48% 35	143	3.11
Building housing in areas that are already zoned for retail development	23.57% 33	15.71% 22	21.43% 30	15.00% 21	24.29% 34	140	3.01
Protecting tenants and low-income communities from unjust evictions and limiting annual rent increases	16.78% 24	11.89% 17	19.58% 28	19.58% 28	32.17% 46	143	3.38
Creating more housing by streamlining the approval process, making it faster and easier to build more housing at all income levels	18.44% 26	14.89% 21	13.48% 19	22.70% 32	30.50% 43	141	3.32
Requiring a greater percentage of affordable housing units in new market-rate developments	21.99% 31	14.18% 20	17.02% 24	18.44% 26	28.37% 40	141	3.17
Providing access to low-cost pre-designed plans for Accessory Dwelling Units	19.72% 28	10.56% 15	23.94% 34	19.72% 28	26.06% 37	142	3.22
Helping existing residents find housing that better fits their needs so they can stay in Pinole	7.80% 11	4.26% 6	24.11% 34	33.33% 47	30.50% 43	141	3.74
Support the expansion of transitional, supportive, or other emergency housing types for people experiencing homelessness	15.49% 22	16.90% 24	20.42% 29	23.24% 33	23.94% 34	142	3.23
Require community amenities in new housing developments (e.g., on-site child-care, community meeting rooms, open space)	12.06% 17	9.93% 14	19.86% 28	26.24% 37	31.91% 45	141	3.56

Q6. New California State Law (Senate Bill 9) requires cities to permit a lot split and/or the addition of a second primary dwelling unit on a lot via an over-the-counter approval. How likely or interested are you to add a primary or secondary dwelling unit on your property within the next 8 years?



Q7. Accessory dwelling units (ADUs) are small living spaces on single-family home lots that can be rented. They can be a room in or a new addition to an existing home, or separate building on the same lot. They can provide additional income to homeowners, housing for parents, adult children, single persons and small families. Please select all the reasons you would consider owning or constructing an ADU:

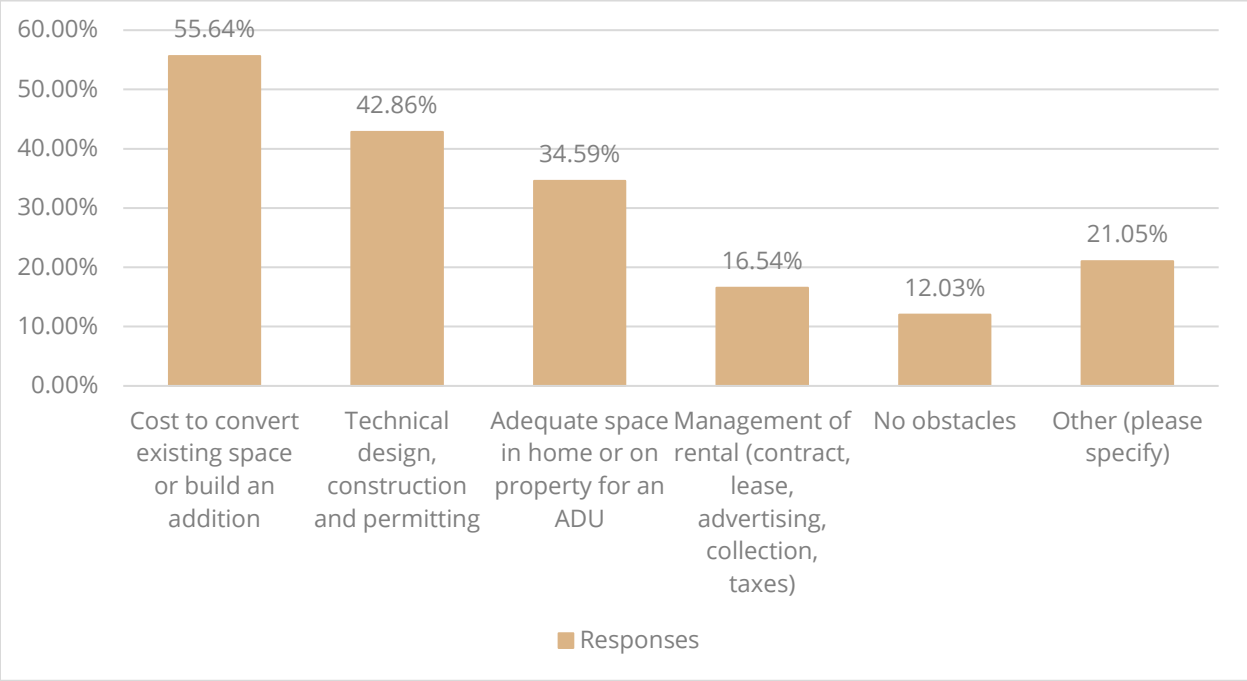


Q7. "Other" responses.

#	OTHER (PLEASE SPECIFY)	DATE
1	I live in a condo and this does not apply to me	8/2/2022 8:00 AM
2	I can see these turning into urban blight (I date myself w certain terms I refer to); pre approved	8/2/2022 12:37 AM

	low cost plans means owners will be forced to use someone else's idea of an ADU but not be afforded the low cost option if they have a different plan/idea.	
3	n/a	7/26/2022 5:53 PM
4	None	7/22/2022 2:28 PM
5	Not a consideration	7/22/2022 2:13 PM
6	No interest	7/13/2022 6:25 PM
7	Not interested	6/26/2022 10:52 AM
8	Guest room	6/18/2022 6:48 AM
9	Don't want this in my neighborhood	6/15/2022 7:47 PM
10	None, it's too crowded here already.	6/15/2022 3:20 AM
11	None	6/14/2022 11:25 AM
12	Not interested	6/13/2022 11:35 AM
13	Not interested	6/10/2022 2:49 PM
14	Xxc	6/9/2022 8:48 PM
15	I would not consider constructing an ADU	6/8/2022 12:13 PM
16	not interested	6/4/2022 10:00 AM
17	None	5/31/2022 2:26 PM
18	No interest	5/20/2022 4:19 PM
19	I strongly oppose ADUs	5/20/2022 1:58 PM
20	I do not support ADU units on property zone for single family home lots.	5/17/2022 5:24 PM
21	None of the above	5/16/2022 9:46 AM
22	Not interested in this, PERIOD!	5/16/2022 7:30 AM
23	N/a	5/11/2022 12:57 PM
24	N/A	5/9/2022 9:59 AM
25	not interested in an ADU at this time	5/7/2022 11:42 AM
26	Wouldn't consider it.	5/6/2022 2:19 PM

Q8. Please choose what obstacles may prevent you from building an ADU on your property. (Please select all that apply.)



Q8. "Other" responses.

#	OTHER (PLEASE SPECIFY)	DATE
1	memeber of an HOA and don't have the authority to build	8/2/2022 8:00 AM
2	ADU's most likely will be rentals; It will cost the city a lot of money to keep an oversight of these rental units; who gets and ADU and who does not if on a block there are 10 people owners wanting to put on in? How easily could Pinole become predominantlly rental population.	8/2/2022 12:37 AM
3	No interest	7/13/2022 6:25 PM
4	I own a Townhouse, no room for such a unit	7/10/2022 11:27 AM
5	Not interested	6/26/2022 10:52 AM
6	Concerned renters will stop paying rent and I woun't be allowed to evict them	6/19/2022 9:27 AM
7	Don't want this in my neighborhood	6/15/2022 7:47 PM
8	Not interested	6/13/2022 11:35 AM
9	No need	6/13/2022 7:48 AM
10	Not interested	6/10/2022 2:49 PM
11	PG&E easement	5/31/2022 3:09 PM
12	Existing Association's Board of Directors Make-up	5/23/2022 12:32 PM
13	It's the cost and the process I can't afford to build a unit that costs 200,000 dollars	5/20/2022 5:59 PM
14	No interest	5/20/2022 4:19 PM
15	I strongly oppose ADUs	5/20/2022 1:58 PM
16	I do not support ADU units on property zone for single family home lots.	5/17/2022 5:24 PM
17	Working with the city of Pinole is time-consuming and aggravating. Plus, it's very expensive.	5/16/2022 5:46 PM
18	Do not want to	5/16/2022 9:46 AM
19	I don't own a home	5/11/2022 7:38 PM
20	NA	5/11/2022 12:57 PM
21	the permit is outrageous!	5/10/2022 7:16 PM
22	In a townhome association	5/9/2022 9:59 AM
23	Time it takes to receive a permit	5/7/2022 2:57 PM
24	Building permit costs	5/7/2022 1:49 PM
25	HOA restrictions	5/7/2022 7:09 AM
26	Not allowed by HOA	5/6/2022 5:07 PM
27	Would never do this.	5/6/2022 2:19 PM
28	Do not own	5/6/2022 12:32 PM

Q9. Please describe any other considerations, policies, or programs the City should consider here:

#	RESPONSES	DATE
1	With the growth of housing the city should keep a budget that allows for the support of all the services the growth requires: water, parking, sewer, traffic, etc.	8/2/2022 8:00 AM
2	I am concerned about the use of eminent domain and closing up of open areas with the rush to build, build, build. I would like to see some control over corporations (Zillow, Chase, Summer, etc. buying up land and housing in Pinole.	8/2/2022 12:37 AM
3	Traffic enforcement for speeders, stop sign runners in residential neighborhoods, where certain intersections are regularly affected. Helping us to get a regular(non-Kaiser) hospital back which is desperately needed since Doctors Medical Center closed	8/1/2022 8:05 PM
4	I would like to see the city have more events for local small business gatherings and marketplaces.	7/27/2022 5:39 PM
5	Improve our infrastructure and roads.	7/26/2022 5:53 PM
6	Park maintenance and improvements; increased funding for more police; improve schools; graffiti removal and weed abatement - this City looks awful especially near freeways	7/22/2022 2:28 PM
7	Park maintenance, city beautification (e.g., graffiti removal and weed abatement), increase in Police funding for more officers, pothole/road repair.	7/22/2022 2:13 PM
8	I underscore the need for a higher percentage of affordable units in new developments, i.e. a higher inclusionary housing policy	7/22/2022 11:29 AM
9	N/a	7/13/2022 6:25 PM
10	Safe places/shelter for women with children and LBTQIA, better open green spaces, better access (walkable) to wholesome food	7/12/2022 4:20 PM
11	City needs to appoint a daily cleaning crew to drive around Pinole streets and clean the debris. Pinole once was a clean and beautiful small city, it's not so much now	7/10/2022 11:27 AM
12	Docks open for boats	7/10/2022 6:19 AM
13	Stricter code enforcement on existing, or new, homes/residences to maintain quality community	7/7/2022 1:28 PM
14	Rent control!	7/1/2022 1:28 AM
15	Please incorporate solar panels on any new housing built in Pinole, especially if public funds are somehow used for such housing.	6/30/2022 4:09 PM
16	We need a hospital more than any more housing.	6/26/2022 11:31 AM
17	Make sure pinole is not only area to accommodate affordable housing. Would like to see it in affluent zip codes, too	6/19/2022 9:27 AM
18	Avoid reducing green space near Pinole Park	6/18/2022 6:48 AM
19	Expand the parks and open spaces/nature/hills that surround Pinole. This is the best of our little city, supports and nourishes our environment, addresses climate change and makes Pinole a very special place to live.	6/17/2022 9:02 AM
20	Crime crime crime. More police. More firefighters.	6/15/2022 7:47 PM
21	Pinole is too crowded here already, there's constant noise and traffic and a bunch of new apartments are already being planned that will make it much, much worse.	6/15/2022 3:20 AM

22	Pinole should prioritize creating a functional self-contained city with employment and plenty of amenities and small businesses instead of building excessive housing to subsidize the workforces of other larger, richer communities that refuse to build their own housing to support their own workers. We don't want to be just a commuter/bedroom community and 80 is already an absolute nightmare during commute times without a huge influx of new residents. The only housing I am in favor of is Senior housing because that would allow older folks to sell their big homes to new families without needing to leave our community.	6/14/2022 11:25 AM
23	Slow down the population growth! The roadways are packed now. We don't need more population to bring in more cars!	6/10/2022 2:49 PM
24	Xxx	6/9/2022 8:48 PM
25	Cleaning up Bay Front Park by removing broken sidewalks and replacing with boulders like most bay towns use.	6/8/2022 8:55 PM
26	I think Pinole is getting crowded and doesn't need anymore people. Also the roads are terrible and the gas taxes too high.	6/8/2022 8:04 AM
27	consider the traffic problems if housing is built on the old Doctor's Hospital site	5/31/2022 6:00 PM
28	There should be fewer obstacles to walking and commuting in Pinole, not more. I really don't like to see developers block off public streets (like Jones Ave. and Alvarez Ave.) without even so much as a gate for pedestrian traffic. It also makes little sense to me to go to the effort and expense of installing and maintaining fences that prevent pedestrians from moving from one public area to another (such as the fence separating the sidewalk along Woodfield from the walking path along the east side of Pinole Creek). We should be making our neighborhoods more walkable and more livable, not less so. I really like the SF Bay Trail and the ways it is overcoming obstacles to walkability like railroads and freeways, and I'd like to see a lot more efforts like that.	5/31/2022 3:09 PM
29	Traffic and street improvements to support the efficient flow of vehicles while protecting bicyclists and walkers.	5/31/2022 2:26 PM
30	Pinole is an above average exceptional place to live. Pinole's elected and assigned government personnel must keep Pinole a uniquely positioned city above all other cities in the Bay Area. Above all else, maintain the credo "Pride in Pinole".	5/31/2022 11:08 AM
31	The city looks dilapidated. The signs are old, there's weeds and trash on the off ramps. Let's get it together and beautify Pinole. Also, no one wants low income residents that bring crime and problems here.	5/27/2022 12:53 PM
32	None	5/23/2022 12:32 PM
33	Keep Pinole the a gem of suburban living, by focusing on safety (not allowing criminals a handhold), services (keep lights, water, sewage, garbage for demand), and do not let the city get greedy and promote doing what ethical (not sell out).	5/20/2022 8:19 PM
34	I would like to see more housing in pinole and more higher paying jobs. I am concerned about what would happen if one of the refineries catches fire.	5/20/2022 8:18 PM
35	1. Walkability -Pinole has no bike lanes, dangerous roads, and sidewalks that are unmanaged. This makes the city hard to walk around in. 2. Lack of local businesses- there is a lack of diverse businesses in Pinole, how many hair salons, insurance companies, and real estate businesses do we need in one town? Also we need support for mom and pop businesses not big box chain stores it gives these kind of businesses would give the town character and also support locals. 3. Beautification -Too many empty lots down town and strange abandoned places. There literally a car/boat storage place that takes up a lot of space down town that could be a park or something for the community.	5/20/2022 5:59 PM
36	Open the valley fire station to provide support to the valley residences to eliminate an Oakland Hills or Loma Preto event. In any major disaster our neighboring cities are gonna be too busy with their own to help us. If the freeway overpasses go down how will the downtown station get to the other side of the freeway to save the residence of the Valley?	5/20/2022 3:45 PM
37	Public safety, street cleanliness, maintenance of road and sidewalks. So far I feel Pinole has done an amazing job in these areas	5/20/2022 1:58 PM
38	Homeless people have to be somewhere. Can't just kick them out of places. Put dumpsters in	5/20/2022 10:35 AM

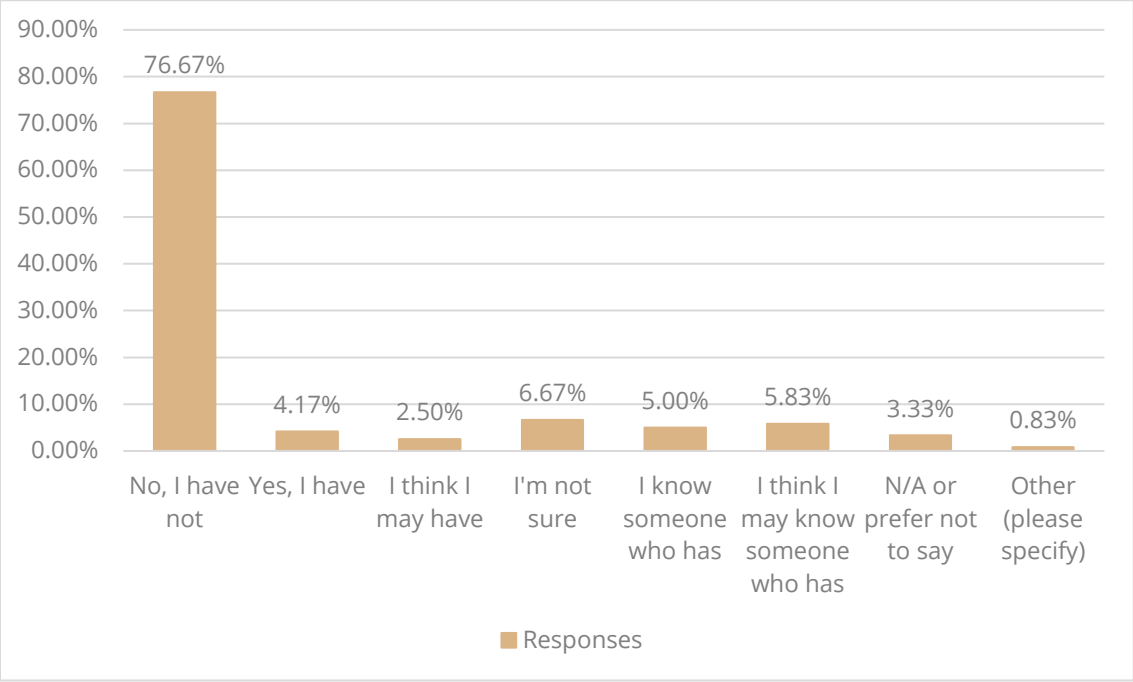
	encampments. Find transitional housing in unused warehouses.	
39	Making the permitting process easier for ADU's and adding extra rooms to an existing house	5/17/2022 1:20 PM
40	We desperately need a hospital in our area!!	5/16/2022 5:46 PM
41	Pinole needs urgent care facilities or a hospital. I have to travel to Berkeley or Concord for a hospital or emergency care.	5/16/2022 4:26 PM
42	Life safety! Fire Department is woefully understaffed, only 1 station & inadequate staffing! Below ISO safety standards!	5/16/2022 7:30 AM
43	More retail stores to increase sales tax revenues	5/14/2022 3:13 PM
44	If housing were to be built, I think aesthetics should be a significant focus as well to cost. we the people know when things are obviously being gentrified, pinole has a small-town aesthetic that feels lively and comfortable and housing should resemble the vibe of our community, we are not city dwellers. Keep a bit of the victorian style in housing, people who always visit Pinole comment how cute our city is so why not embrace it, let's not be a major city but we have a lot of just empty office spaces taking up space that could be apartments. Another concern I have is losing a lot of just plain open space, a healthy balance of just having a small plain of grass with no buildings on it. What I like about pinole is that there are nice hidden spots where you can relax outdoors and not run into anyone, let's also focus on keeping open areas. Sincerely, just a young adult who has lived here and attended school here.	5/11/2022 7:38 PM
45	Reducing crime in shopping areas (car break in)	5/11/2022 12:57 PM
46	A Town Plaza/square to replace the Community Corner.	5/10/2022 5:15 PM
47	Safety from fire. The whole area across from the ellerhorst school is a fire trap waiting to happen.	5/9/2022 7:28 PM
48	Please do not approve more housing near Pinole Valley High School. It's already congested and parking already difficult for homeowners and renters, especially during school hours. Drivers are reckless.	5/9/2022 7:24 PM
49	Parking issues	5/9/2022 4:44 PM
50	Community meetings to discuss the government overreach and how to share individual research/awareness about the lack of mainstream media to give both sides to giant issues. The people deserve learning from those who are open to discuss and offer factual data. I don't mean political, for example; sharing by the very group of scientists/doctors/nurses/activists who are not in it for the money. The American people in every city, state deserve the truth. We also need truth about climate change. I am in favor of taking care of mother earth as much as any person in this country. I am very aware of how a certain agenda is affecting what we hear and limiting what we are able to listen to. You did not include	5/9/2022 2:34 PM
51	There aren't condos/cottages that seniors can move in to. IE Sell our larger home and purchase condo/cottage and stay in the area live in now. Senior apartments are being built but we don't want to rent we want to own.	5/9/2022 9:59 AM
52	Safety and crime rate in our area.	5/8/2022 9:38 PM
53	lack of adequate parking in congested neighborhoods, HOA rules preventing garage conversions	5/8/2022 8:40 PM
54	More retail opportunities would certainly be welcome. Traffic congestion and speeding have both been issues.	5/7/2022 6:16 PM
55	I understand the city wants to build housing where the old Doctors Hospital and the old Kmart use to be and I'm concern with the amount of traffic that's going to come with the hundreds of units that plan to be build there since the traffic affects the same streets and freeway entrances on Appian Way.	5/7/2022 5:43 PM
56	Put a red light runner at Fitzgerald/Appian/Sarah. It's horrible! Mainly people coming from Fitzgerald making a left. It's horrible. And you really need to think about the traffic implications with housing where a hospital to exist.	5/7/2022 2:40 PM
57	Do not change any zoning without providing funds to the current owners to make those changes or re-zone commercial property to something unreasonable that devalues their	5/7/2022 1:49 PM

	investment so that they are trapped	
58	No additional apartments on Pinole Valley road or in the valley.	5/6/2022 6:36 PM
59	The City needs to make downtown more inviting to INTERESTING BUSINESSES that are NOT NAIL SALONS!! Let's see some better restaurants/pizzerias/taprooms!! Look to Martinez! They have a "Public Market" (with an oyster bar, tap room, bakery and pasta maker) of sorts that would be very popular here. PLEASE make it more inviting to these kinds of businesses. Pinole is kinda ghetto with it's 25 nail salons and facial places. Also, maybe close off downtown to through traffic and make it a pedestrian zone. Finally, close that ugly eyesore of RV storage park by Bay Front park. Thank you	5/6/2022 6:01 PM
60	Parking of inoperable vehicles on private and public property including streets and yards!	5/6/2022 5:43 PM
61	Access to Hospital Emergency Room is a huge issue for Seniors	5/6/2022 5:07 PM
62	Please cover the sharp metal edges on slabs on the pinole valley road northbound lane between Ellerhorst and Downer streets. One has to risk tire damage or cross into head on traffic every time they pass. Also please extend the no parking red curb at pinole valley road and Rafaela so those turning south on Rafaela don't have to turn into a blind curve and oncoming traffic. This would allow visibility of oncoming traffic.	5/6/2022 4:25 PM
63	Non highway public transit. Let's make Pinole a streetcar suburb	5/6/2022 3:58 PM
64	Crime, Traffic, more police officers, more firefighters, overgrown vegetation that is a fire hazard.	5/6/2022 2:19 PM
65	Pinole needs more locally owned businesses that could be destination points for the surrounding communities (example: pear street bistro + east bay coffee). Less salons (all for locally owned salons but we have a lot of em), real estate and insurance brokers and more restaurants, bar/breweries, and coffee shops. No more strip mall and chain development commercial spaces. New large scale residential projects should include small commercial spaces as well and the city should promote and subsidize local small businesses to create more of a local community feel downtown. Finally the square downtown is a gross mess, we should plant a community California native garden in that space and develop the vacant space next to the bank to help beautify and bring ppl to the historic downtown area.	5/6/2022 12:53 PM

Q10. Illegal housing discrimination is when one or more of the following occurs based on a person's race, national origin, color, age, familial status, religion, sex, or if they have children or a disability:

Refusing, discouraging, or charging more to rent an apartment or buy a home.
Discouraging a person from living where he or she wants to live, often by steering him or her to another property, neighborhood, or city.
Refusing or discouraging the acquisition of a loan to buy, refinance, or access home equity through tactics that include charging more or providing less favorable terms than the market would otherwise dictate.
Refusing, discouraging, or charging more for home insurance.
Refusing to make a reasonable accommodation or refusing to allow a modification to make an apartment more accessible for a person with a disability.
Predatory lending: unfair, misleading, deceptive, or fraudulent loan practices.

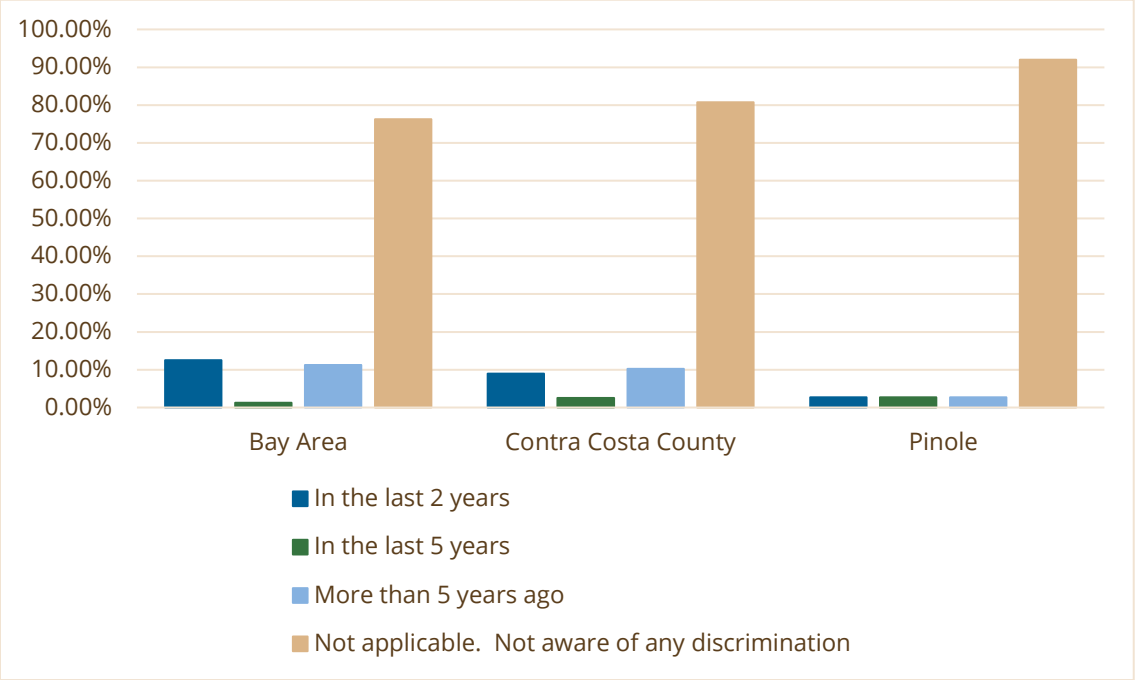
Have you or someone you know ever encountered any of the forms of housing discrimination described above? (Please select all that apply.)



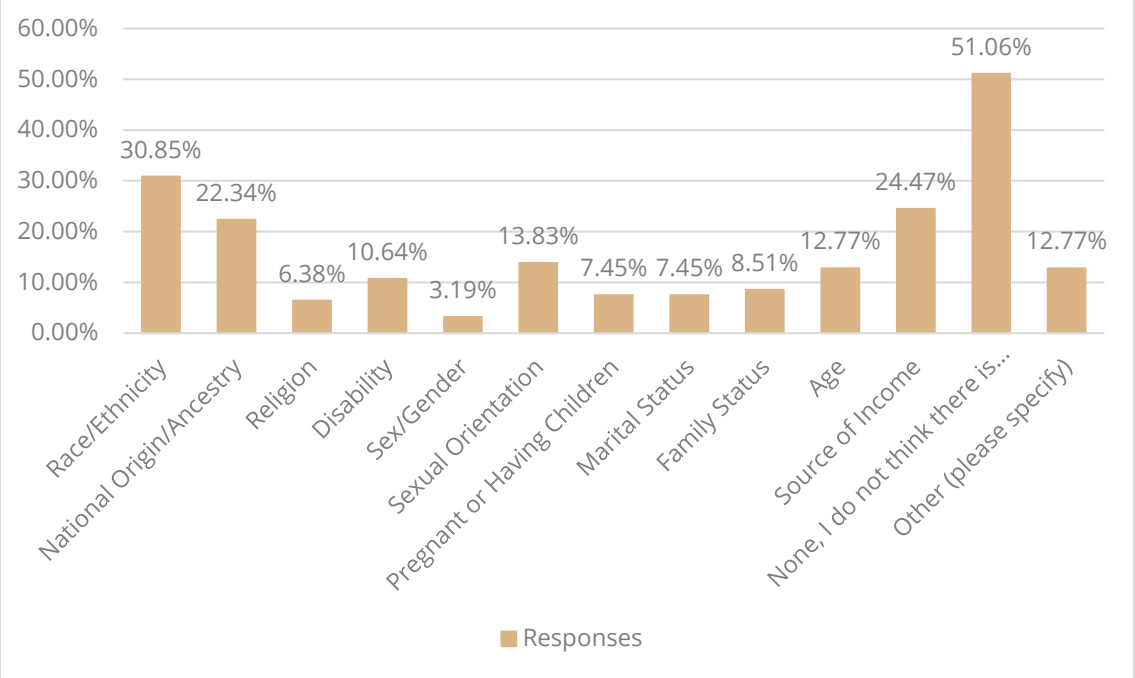
Q10. "Other" responses.

#	OTHER (PLEASE SPECIFY)	DATE
1	Not me personally, but I'm an able, white guy. I'm pretty sure discrimination is happening to others.	5/20/2022 10:39 AM

Q11. If you believe that you or someone you know encountered housing discrimination, please identify the location and time period when it occurred. (Please select all that apply.)



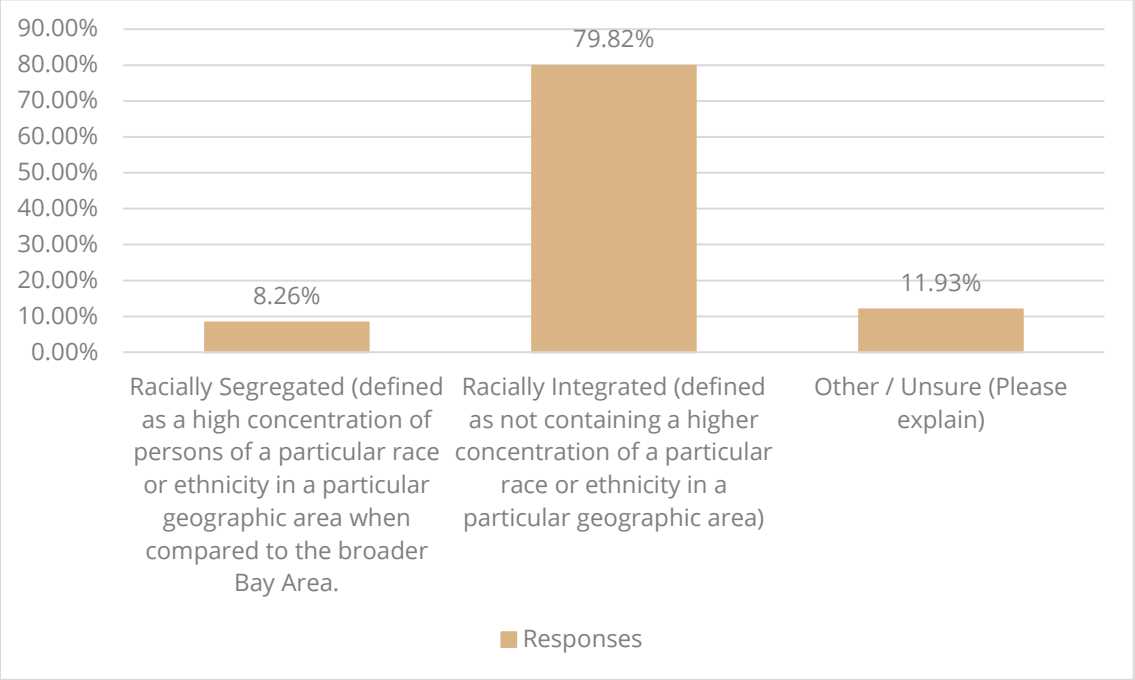
Q12. If you think housing discrimination is occurring in Pinole, what types of discrimination do you think are prevalent? (Please select all that apply.)



Q12. "Other" responses.

#	OTHER (PLEASE SPECIFY)	DATE
1	As long as you have a diverse population there is going to be discrimnation of every type. The thing is to be vigilant and apply the law where it is found	8/2/2022 12:44 AM
2	New resident and not aware of any local discrimination	7/22/2022 11:30 AM
3	I have no knowledge whether this statement is true or false	6/15/2022 1:13 PM
4	Dont know any stories of discrimination, but I dont deny the possible existence of housing discrimination	6/9/2022 4:42 PM
5	I believe there may be housing discrimination; I have just been lucky to have not witnessed it myself.	5/31/2022 3:13 PM
6	None that I know of.	5/31/2022 2:27 PM
7	I don't have enough information to anwser this question correctly.	5/20/2022 6:04 PM
8	I do not know if this is occurring	5/20/2022 4:22 PM
9	Don't know	5/20/2022 3:48 PM
10	single parent	5/14/2022 6:35 PM
11	Not aware	5/9/2022 10:02 AM
12	not personally aware of it in Pinole	5/8/2022 8:44 PM

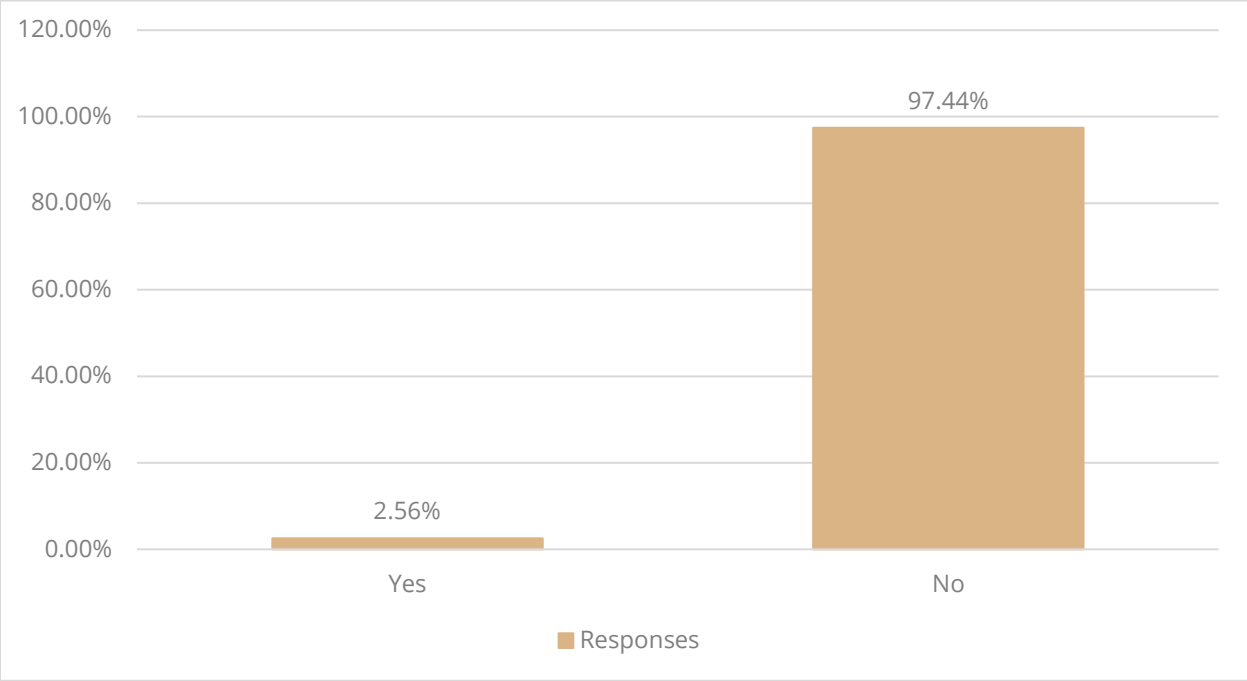
Q13. Please indicate whether you feel Pinole is: (Select one)



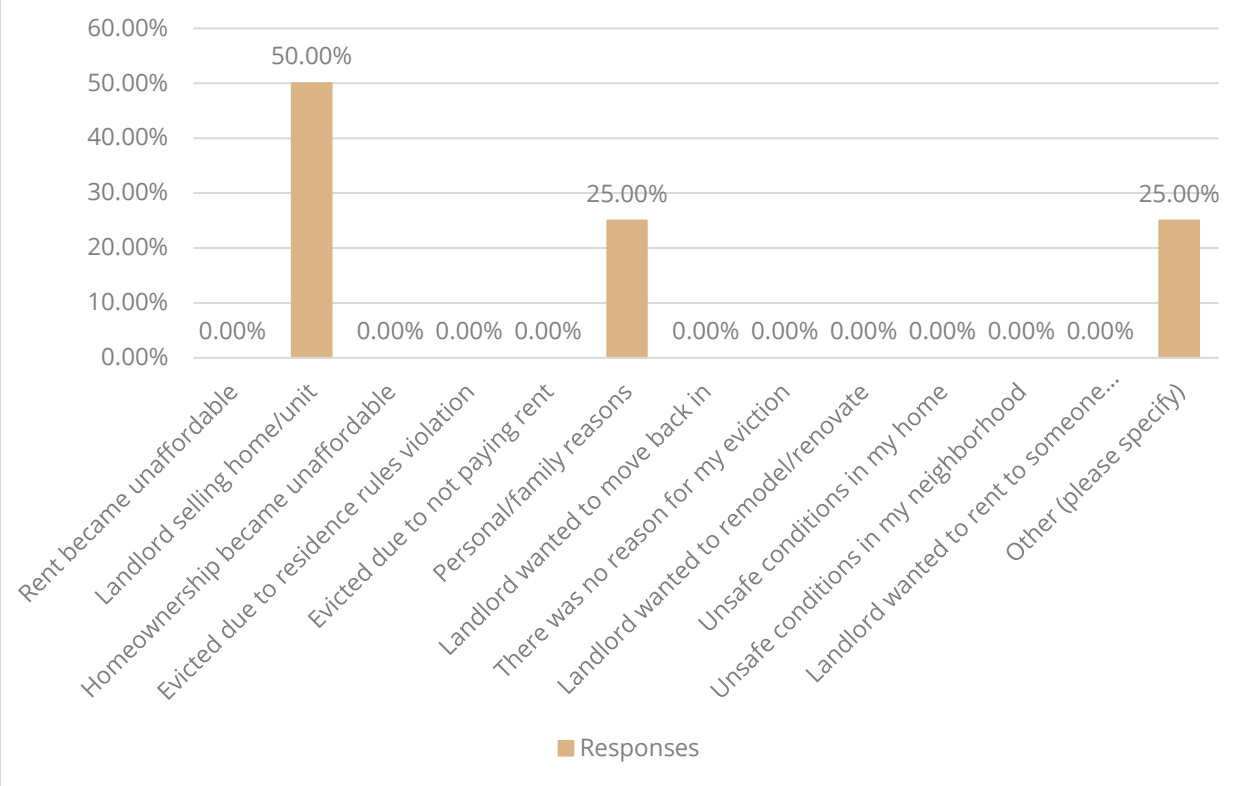
Q13. "Other" responses.

#	OTHER / UNSURE (PLEASE EXPLAIN)	DATE
1	It has been a traditionally middle class white area, but that has changed a lot in the past decade or so	8/1/2022 8:08 PM
2	I don't believe any of your questions apply to Pinole.	7/26/2022 11:59 AM
3	Just moved here	7/22/2022 11:30 AM
4	Predominately white with other races integrated	6/18/2022 6:50 AM
5	I think Pinole is fine just the way it is.	6/8/2022 8:07 AM
6	It feels more diverse than where I moved from (San Francisco) and I feel like it was segregated at some point but now it feels like a new group of people are moving in and they are less segregated.	5/20/2022 6:04 PM
7	New to area	5/16/2022 7:54 AM
8	Unsure	5/14/2022 2:32 PM
9	Lacks diversity. Have encountered racist white people.	5/9/2022 7:27 PM
10	it is becoming more diverse with each passing year from where it was decades ago	5/8/2022 8:44 PM
11	There are more white people in Pinole, but my neighborhood has a variety of colors,	5/7/2022 3:18 PM
12	Socioeconomically homogeneous.	5/6/2022 4:01 PM
13	The newer residents appear to be much more racially integrated than the older residents. Areas that once were an all white neighborhood the newer home buyers appear much more mixed racially and ethnically. Thus overall Pinole feels more integrated than most other place in the Bay Area, opinion of a long time SF resident.	5/6/2022 1:00 PM

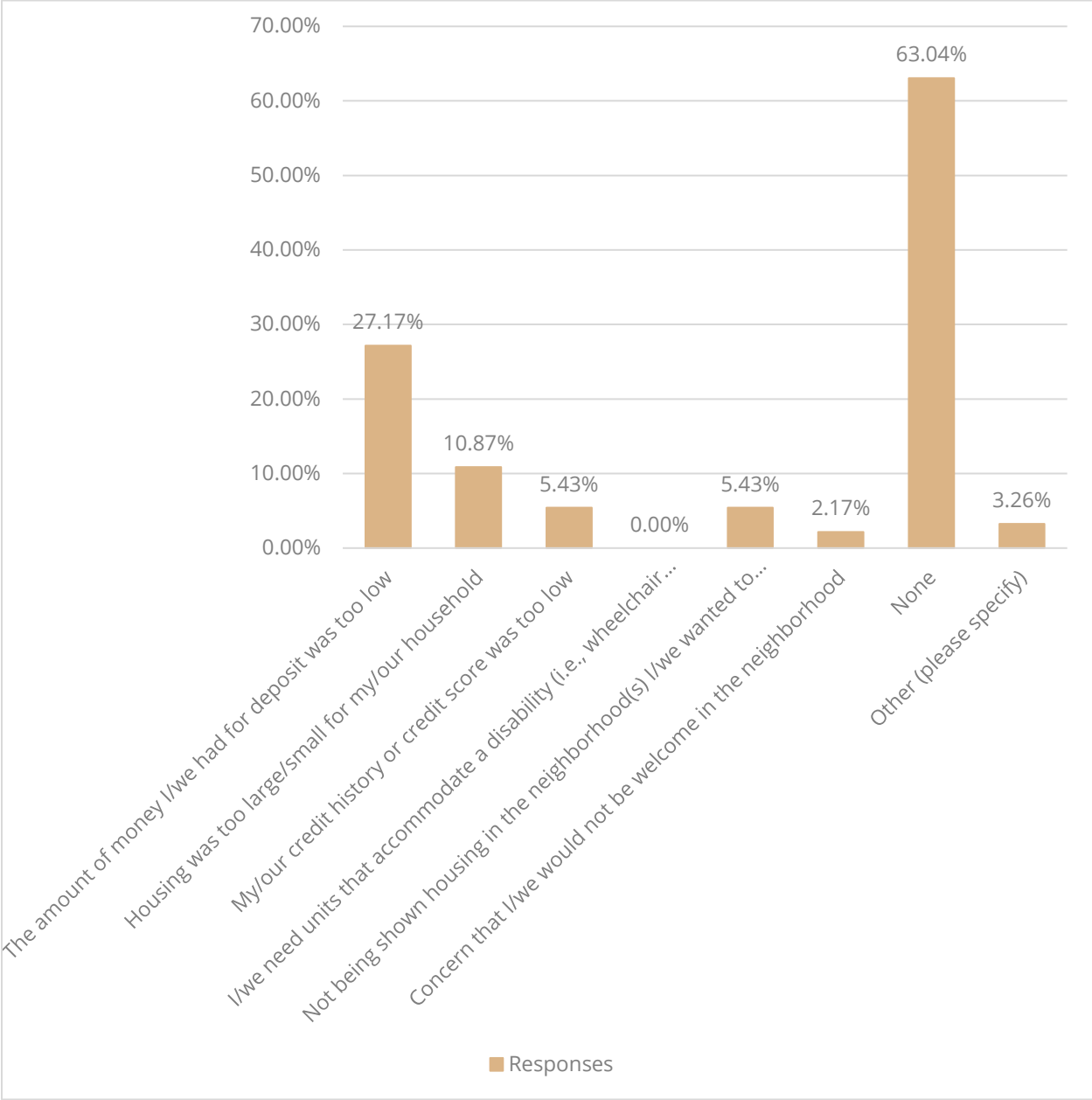
Q14. Since 2015, have you had to move out of your residence in Pinole when you did not want to move?



Q15. If you answered yes to the previous question, why did you have to move? (Please select all that apply.)



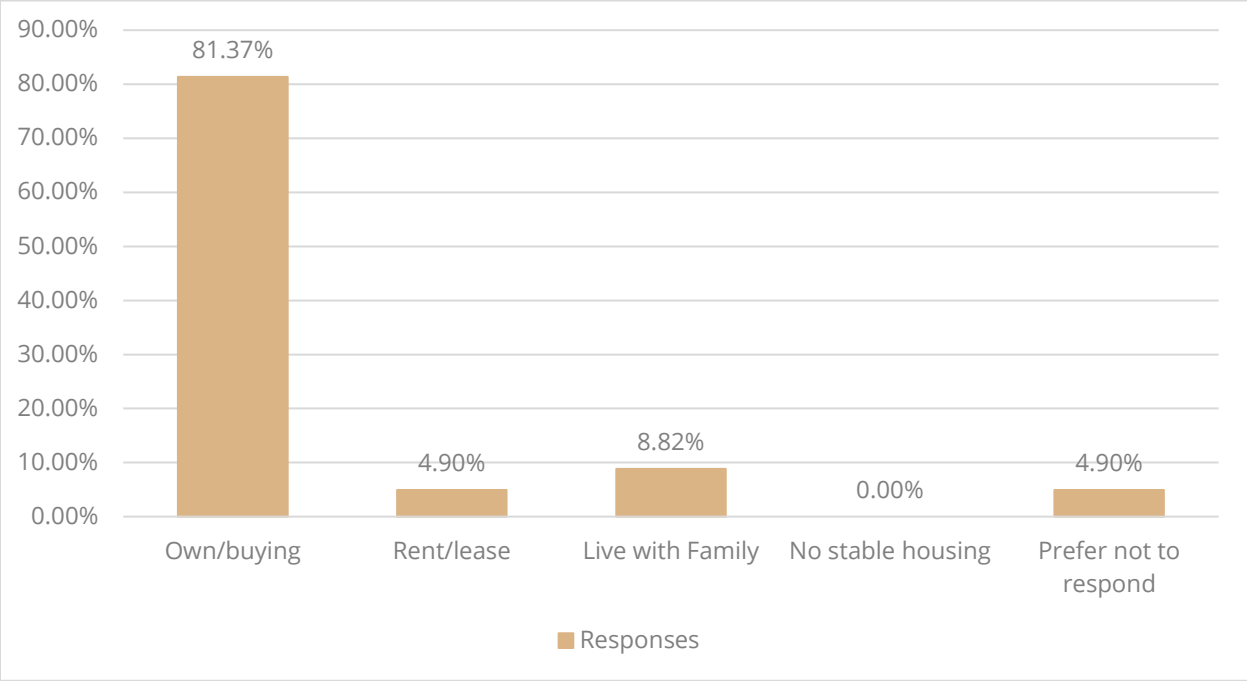
Q16. Which of the following issues, if any, have restricted the housing options you were able to consider? (Please select all that apply.)



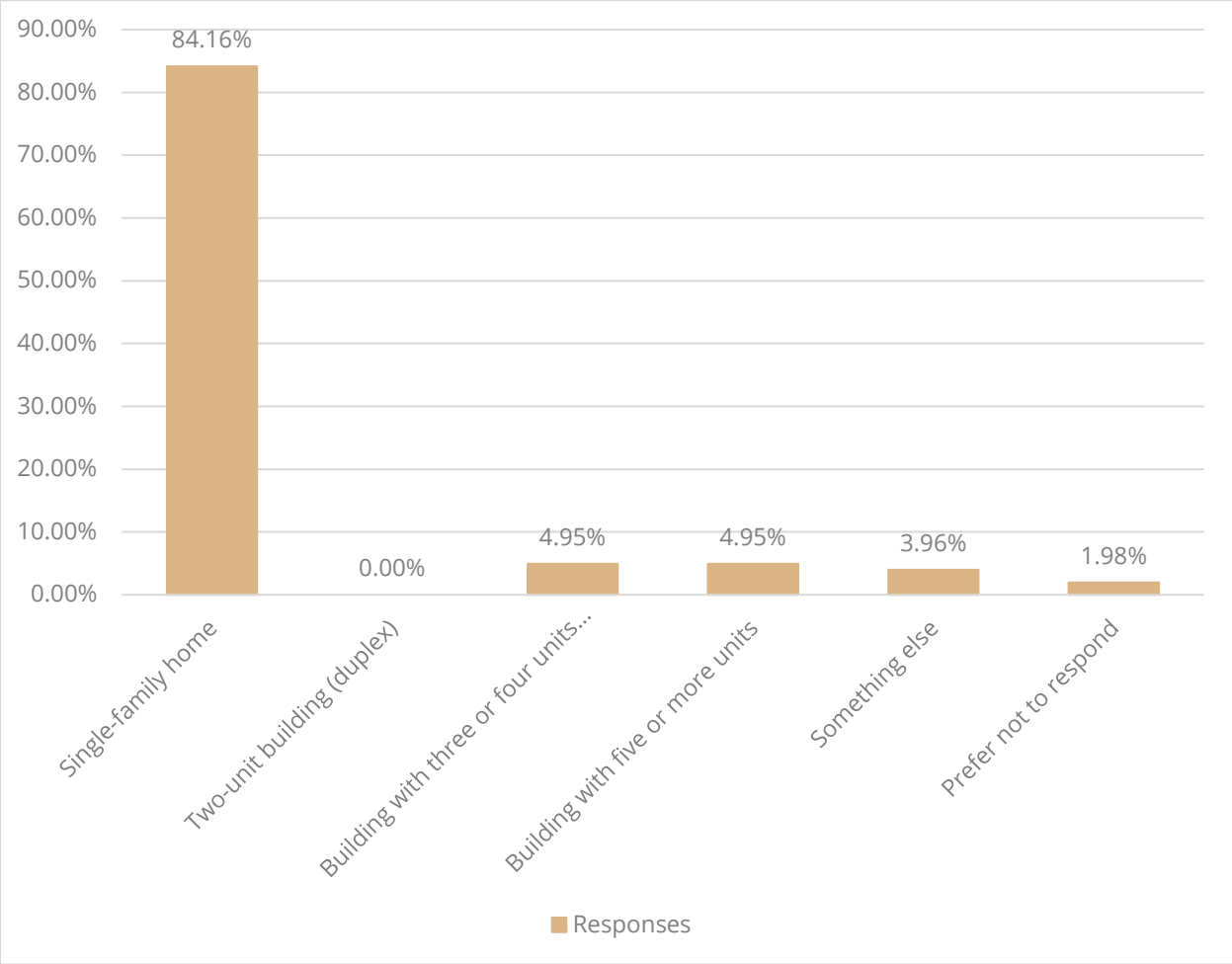
Q16. "Other" responses.

#	OTHER (PLEASE SPECIFY)	DATE
1	The overall cost/the size of a mortgage loan required was not feasible	6/2/2022 9:19 AM
2	I couldn't afford a house anywhere else in the Bay Area, Pinole is affordable	5/20/2022 6:04 PM
3	No small senior condos to buy	5/9/2022 10:02 AM

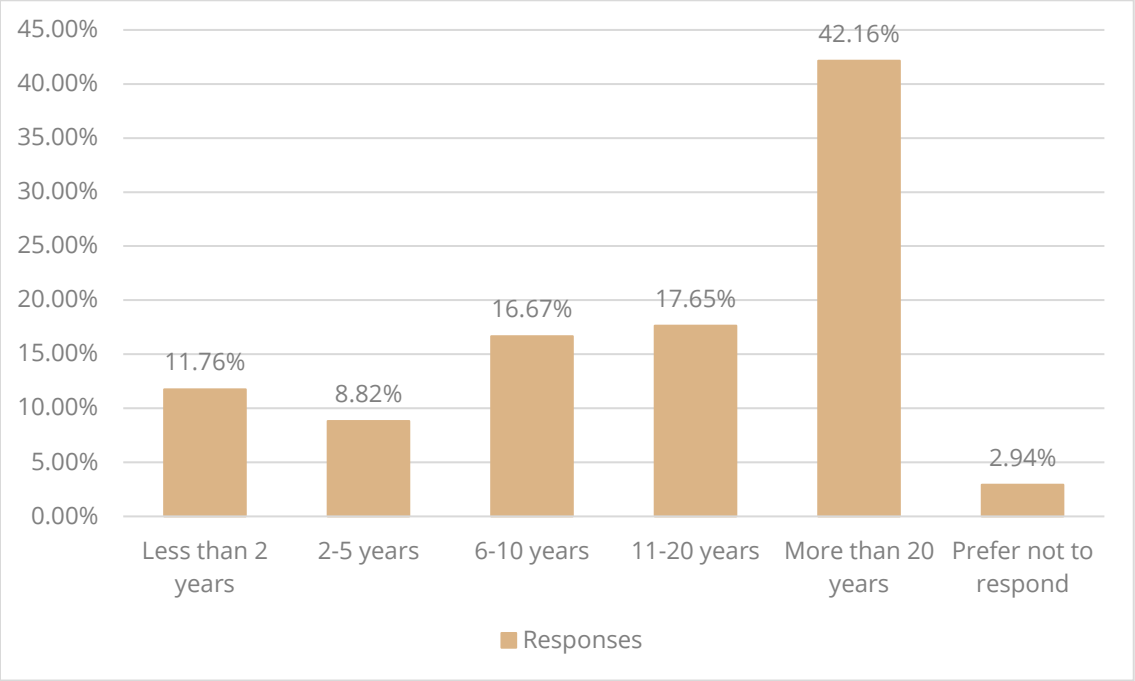
Q17. Do you currently own the home or apartment where you live, do you rent, do you live with family, or do you not have stable housing?



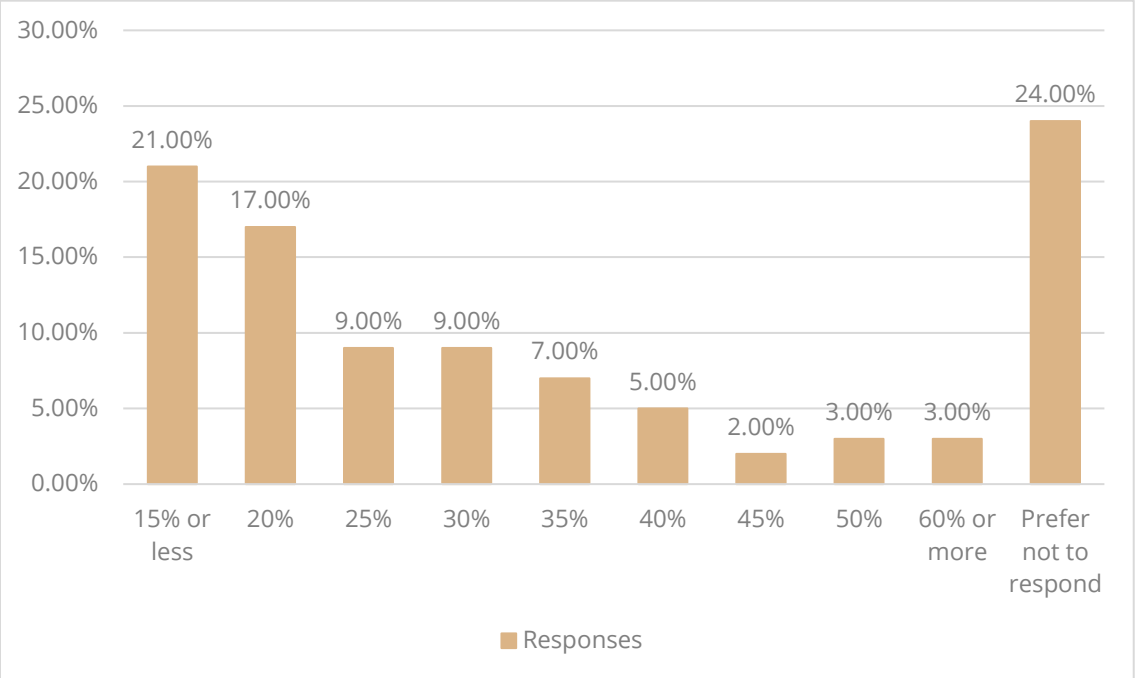
Q18. Do you live in a:



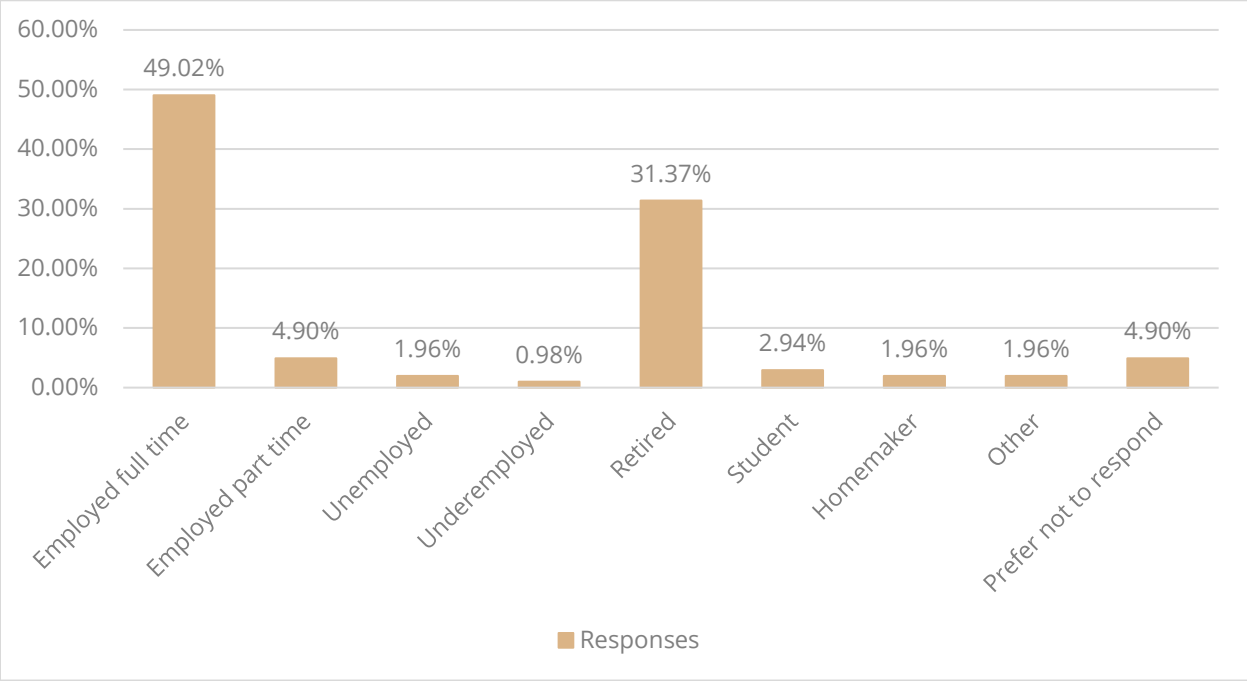
Q19. How many years have you lived at your current address?



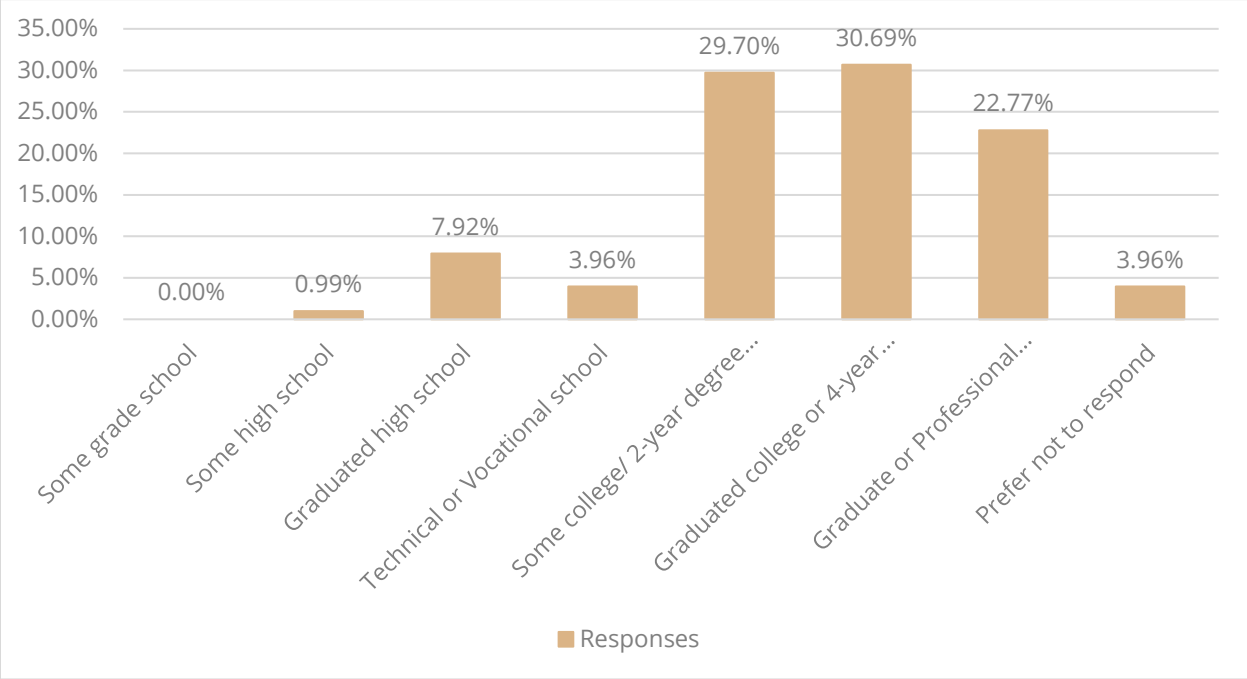
Q20. Approximately what percentage of your gross household income do you spend on housing? Example: If your monthly gross income is $4,000 and you spend $1,500/month on rent, you would spend 37% of your household income on housing.



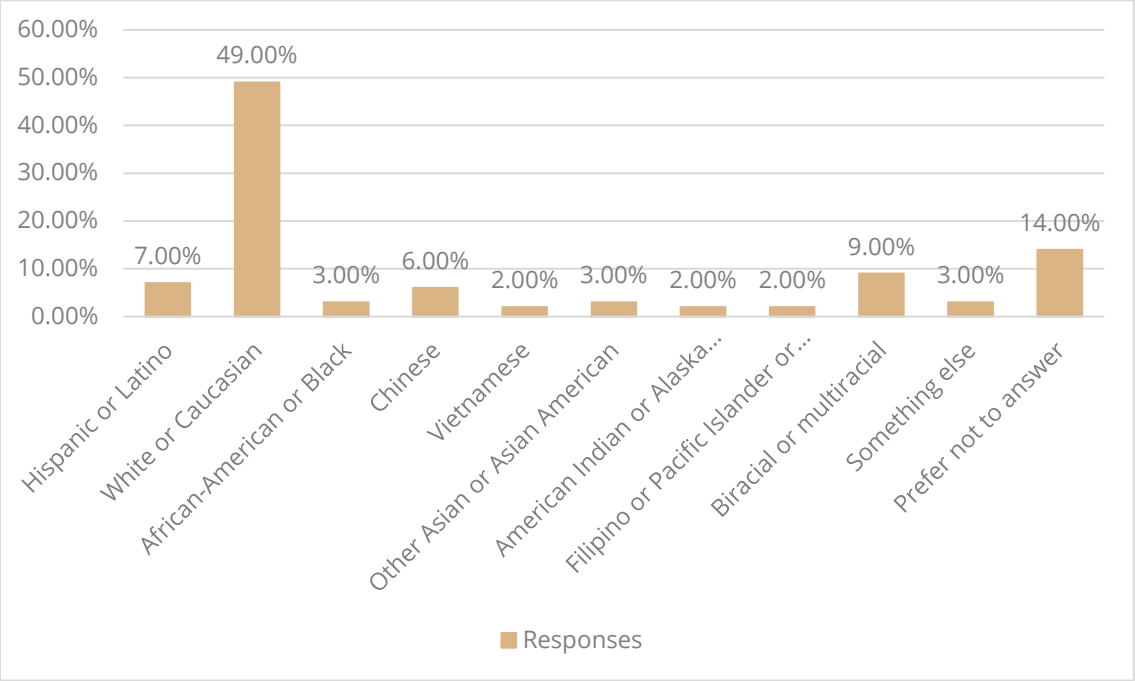
Q21. In terms of your job status, are you:



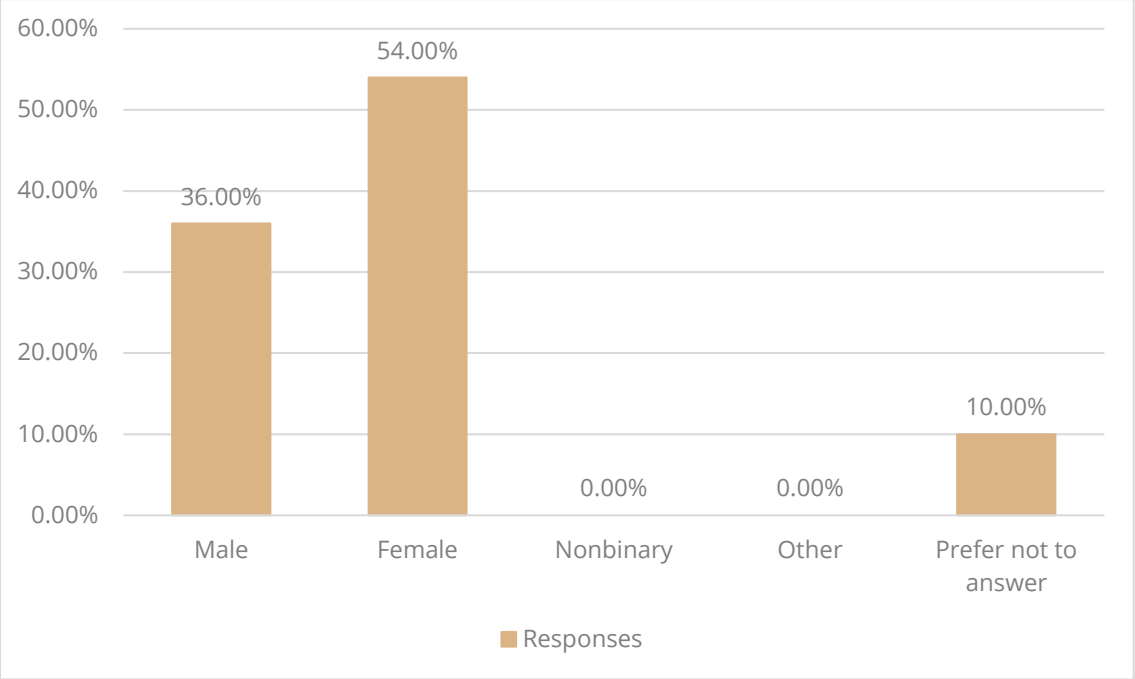
Q22. What is the last grade you completed in school?



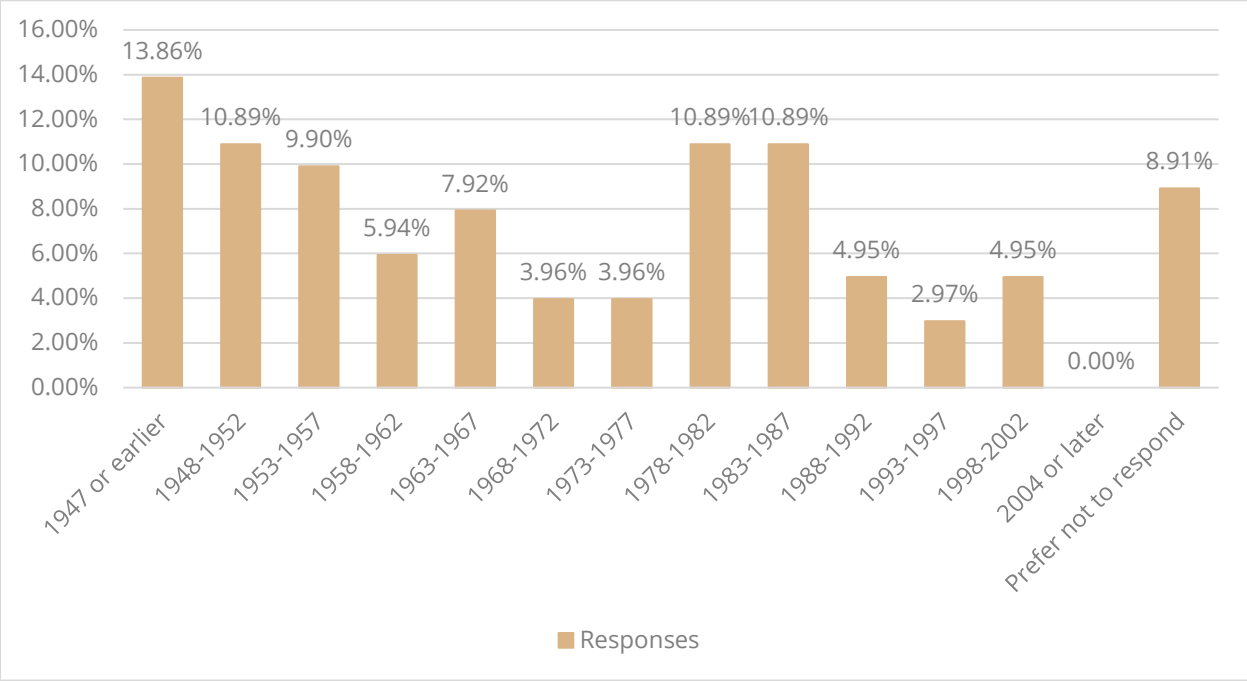
Q23. Do you consider yourself to be:



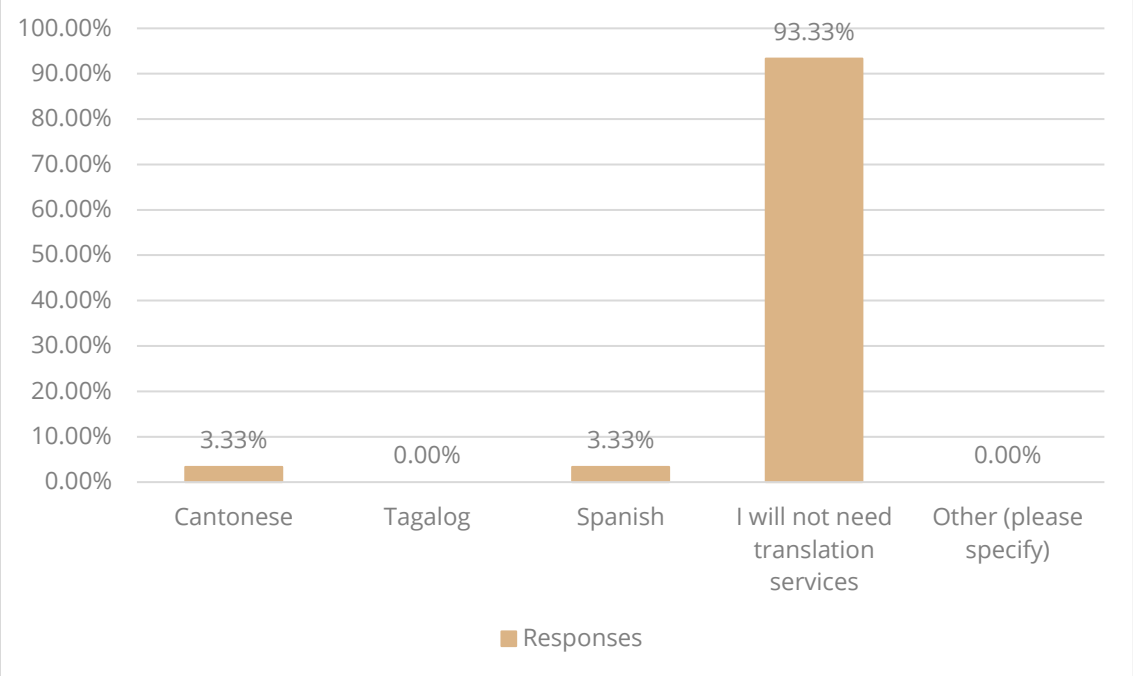
Q24. Do you identify as male, female, nonbinary, or something else?



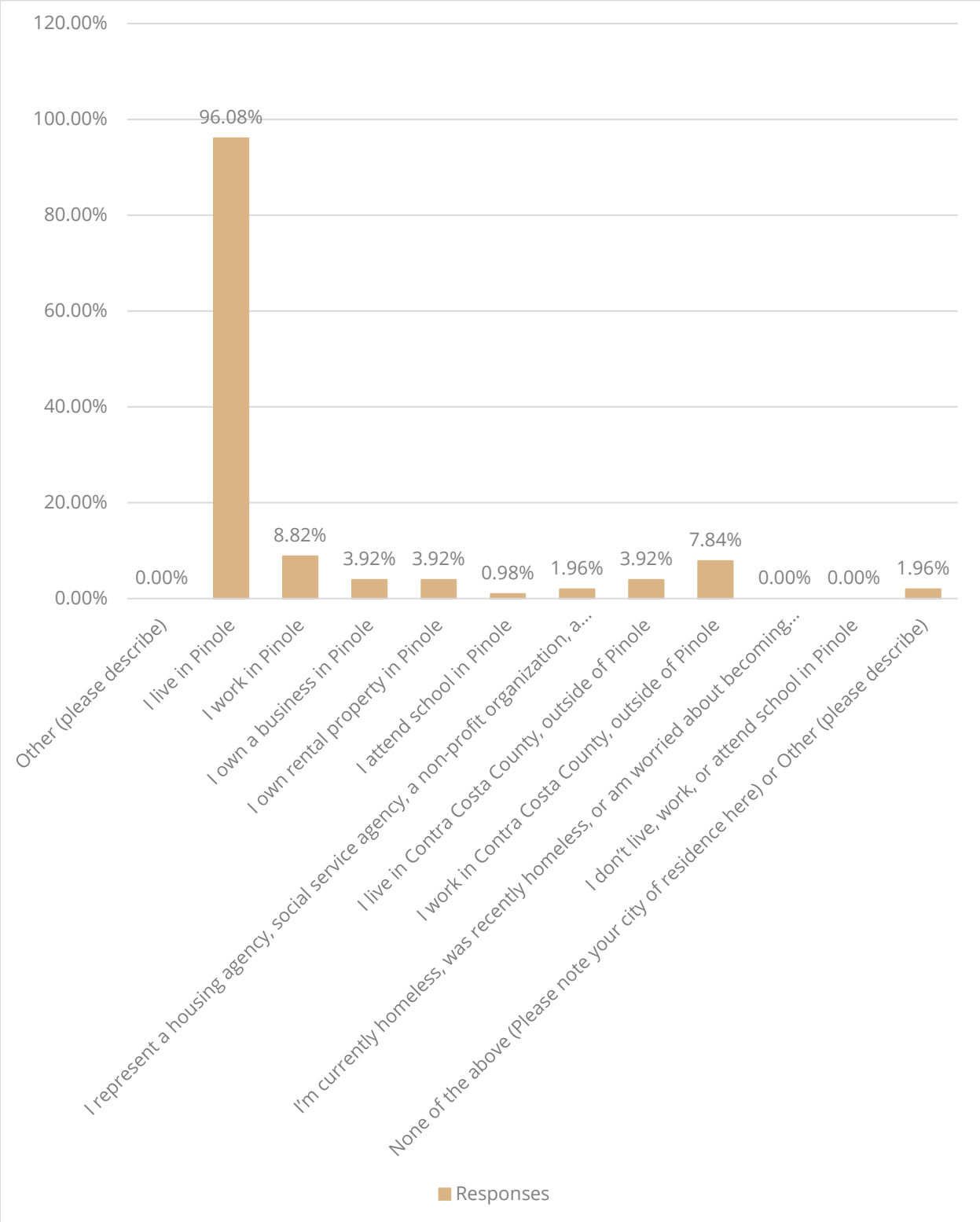
Q25. In what year were you born?



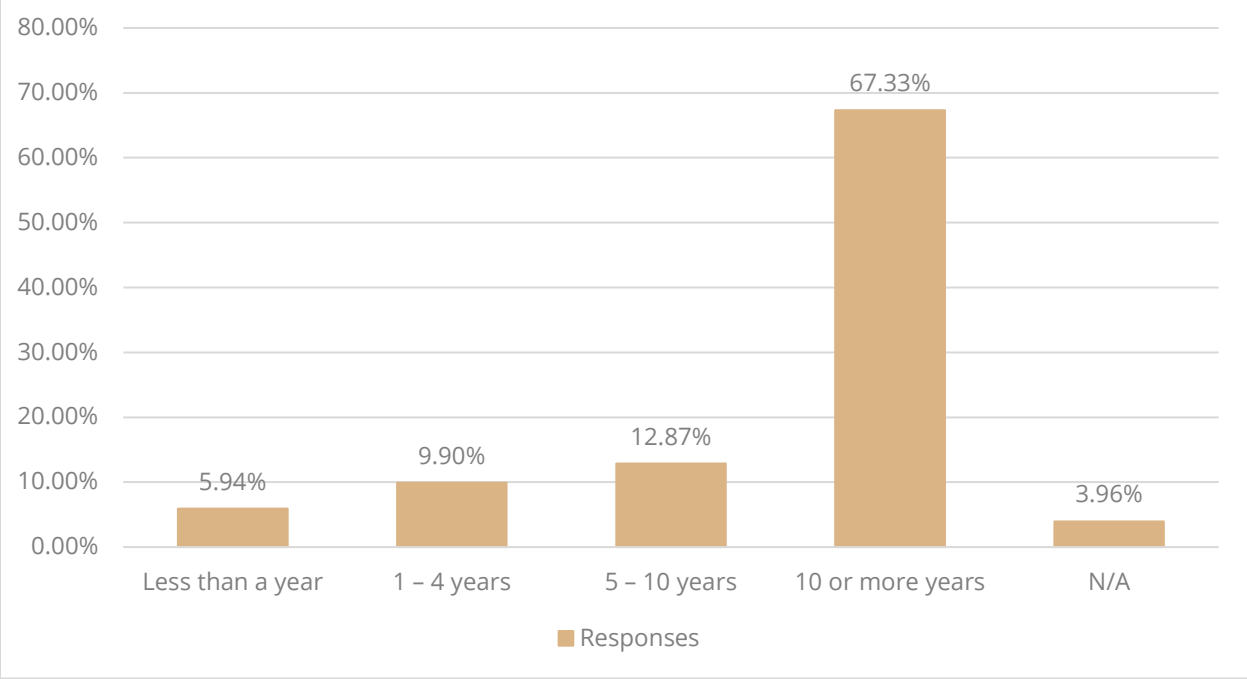
Q26. We want to ensure everyone can participate in this process. Community workshops will be held in English. If a live translator would be helpful for you to participate in community workshops, what language would you prefer?



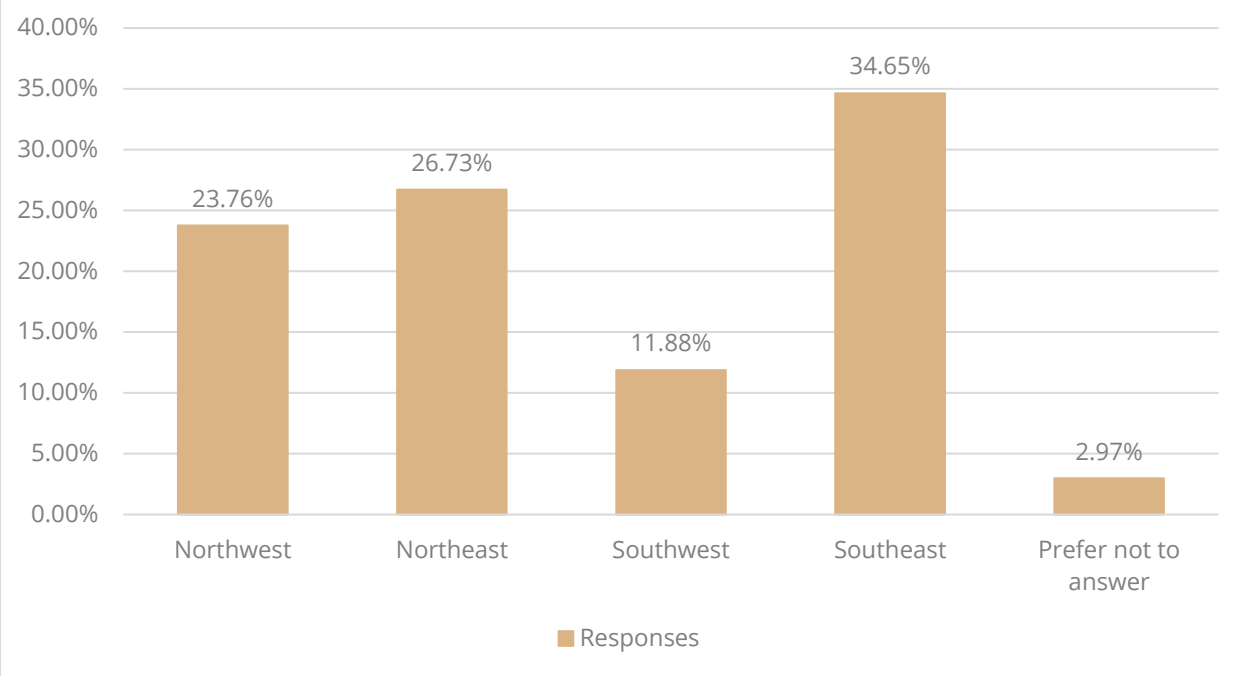
Q27. Please note your connection to the City of Pinole. (Please select all that apply.)



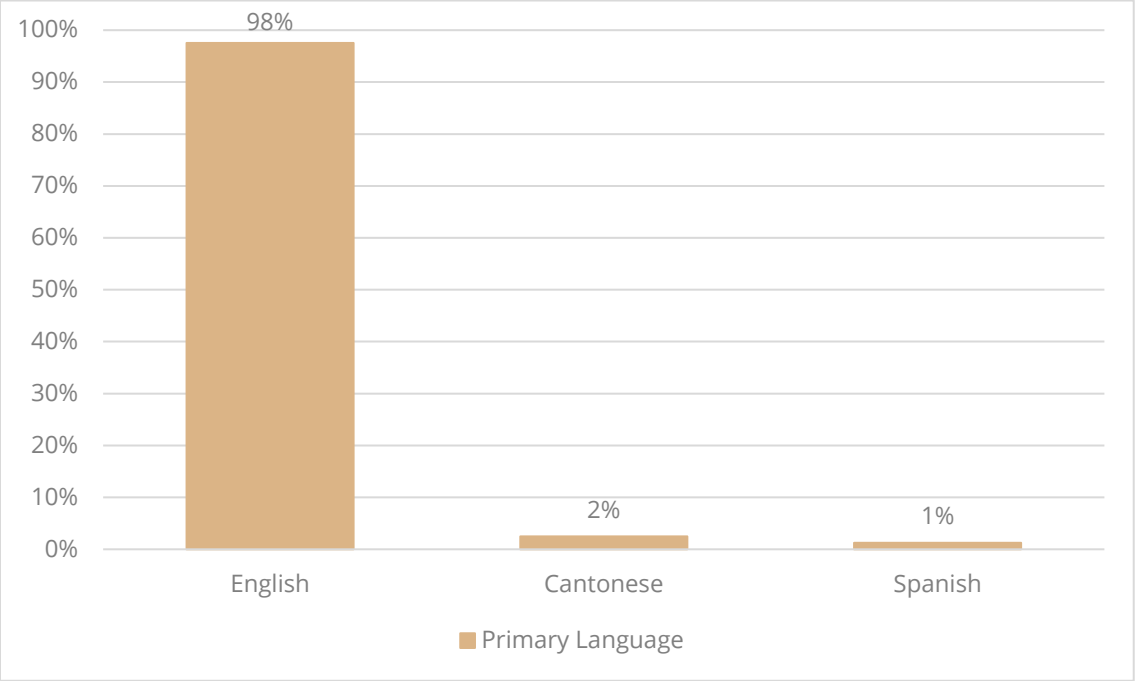
Q28. How long have you had this connection in Pinole?

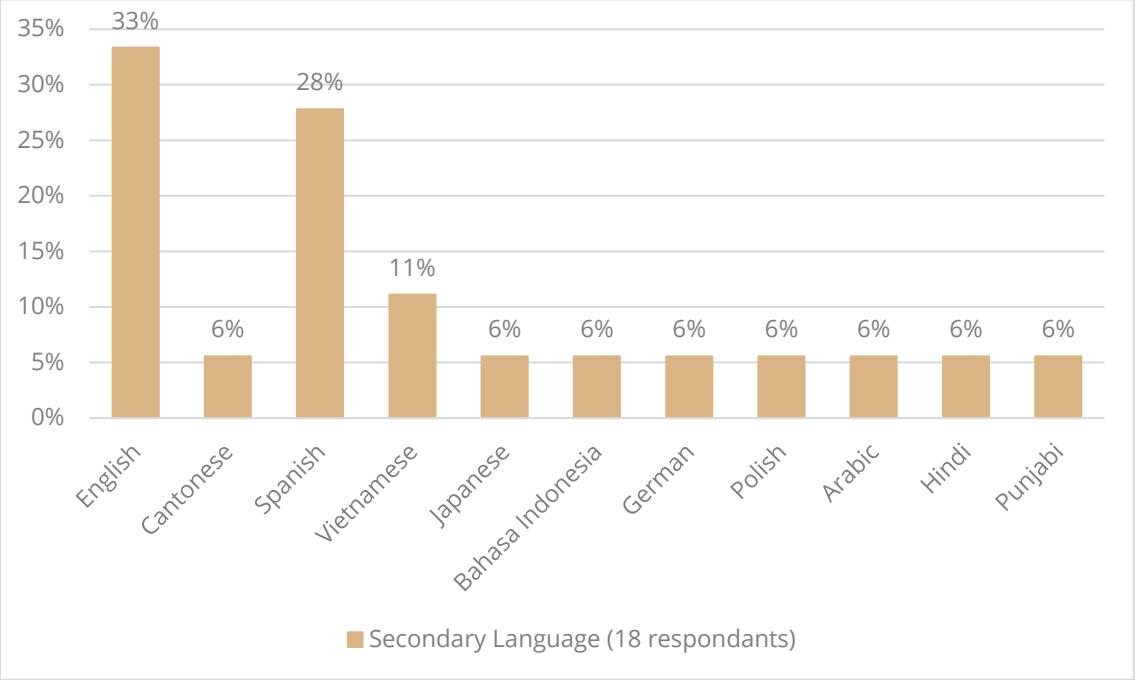


Q29. Using the map of Pinole's census tracts, please indicate in which part of Pinole you live, work, or spend the most your time. (Select one.)

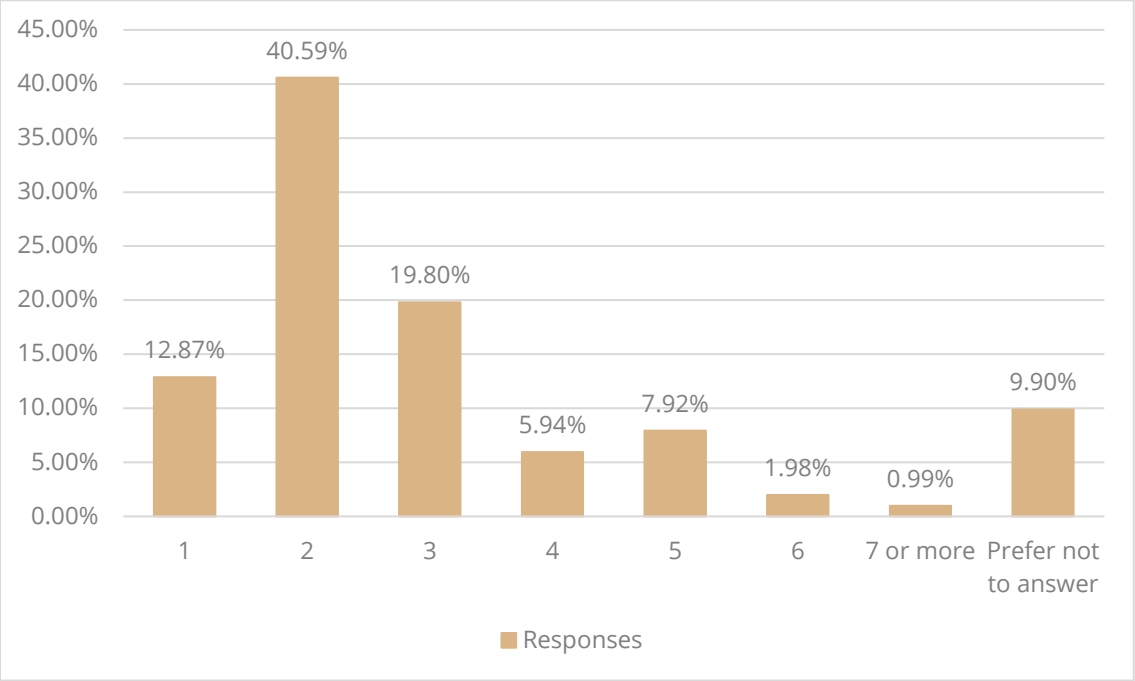


Q30. Please specify the primary language and any other secondary languages spoken in your household:

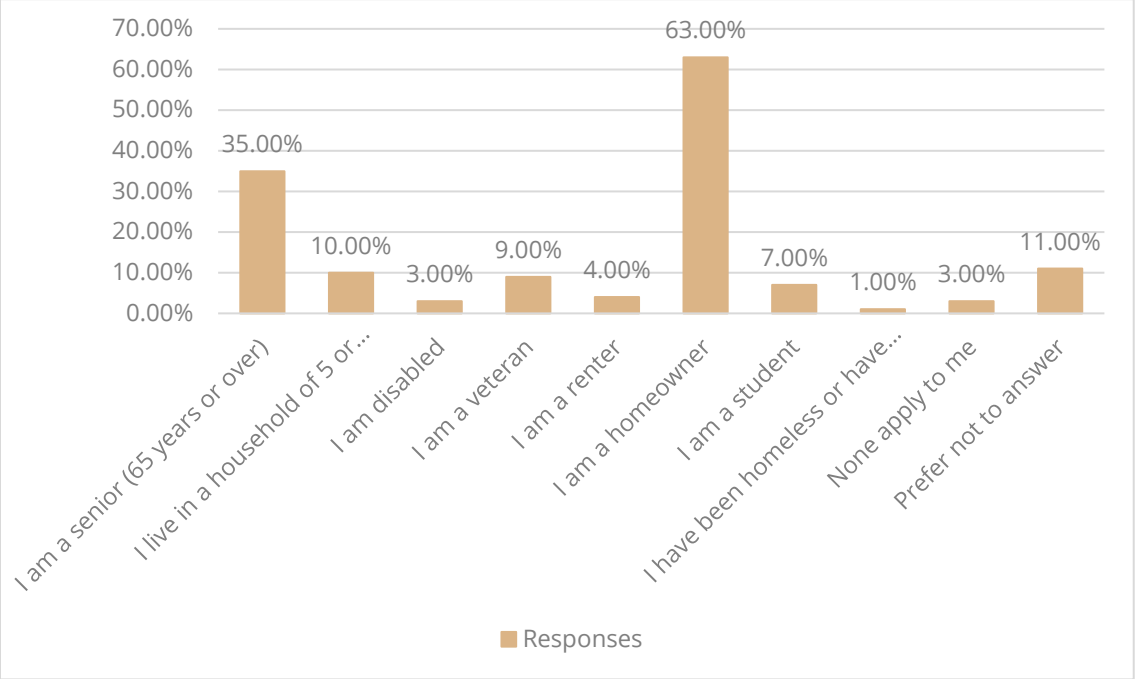




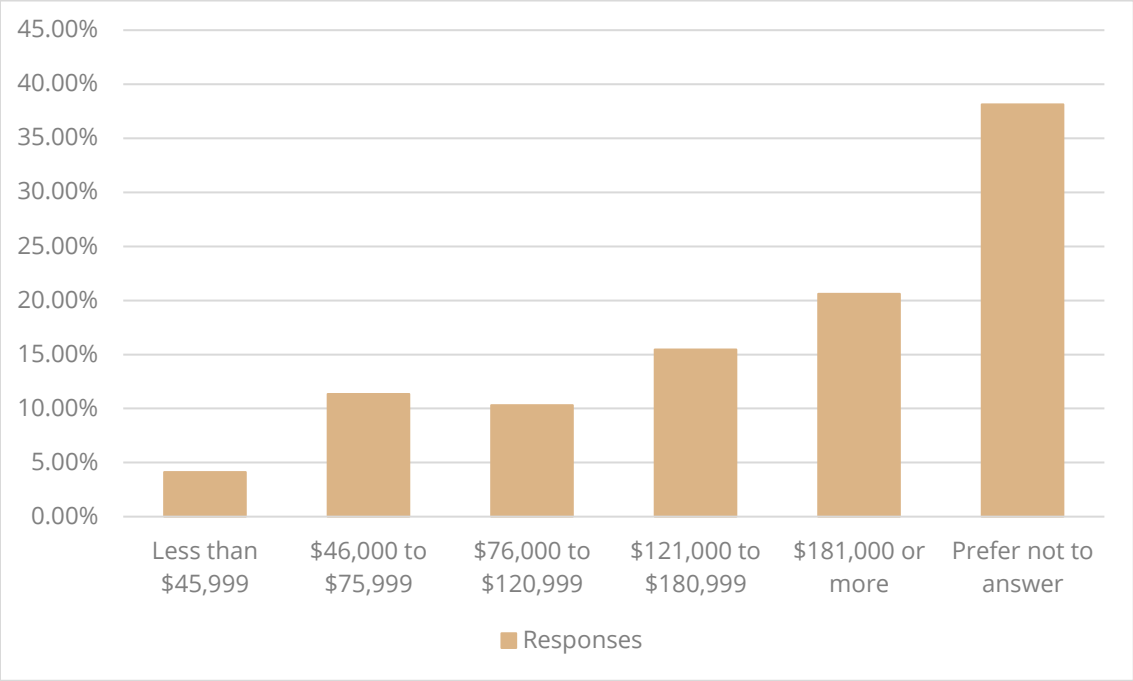
Q31. How many people including yourself live in your household?



Q32. Please select all that apply to you:



Q33. Please share the total (gross) annual household income for all adults in your household.



STAKEHOLDER INPUT

To gain additional insight from stakeholders, the City held consultations with a number of stakeholder groups. Two virtual stakeholder focus groups were held via Zoom. They were held at different times and days of the week to accommodate different schedules. The first was held on Monday, June 27, 2022, at 12:00 p.m. and the second was on Thursday, June 30, 2022, at 4:00 p.m.

The first focus group experienced technical difficulties, so registered attendees were invited to participate in one-on-one interviews at a time of their choosing. Neither of the two registered participants chose to participate at a later date.

The second focus group had five attendees representing three different organizations: the Friends of Pinole Creek Watershed, Pinole Valley Community Church, and BGAM Property Management. A summary of the focus group feedback is provided below.

In addition to the two focus groups, stakeholders were offered an opportunity to provide their individual responses to the stakeholder interview questions in writing or via a one-on-on scheduled phone call or video conference. Two individuals provided one-on-one input.

In the focus groups and interviews, the stakeholders were asked the following questions:

1. Please describe your agency or role in the City.
2. What would you say are your agency's top priorities in the next 2-3 years?
3. What do you think is the best strategy to build more housing to meet the City of Pinole's Regional Housing Needs Allocation (RHNA) goals?
4. What segment of the City's population do you think is most vulnerable in terms of having affordable housing?
5. How do you think the City can assist that population segment?
6. What do you think the greatest challenge may be in terms of housing needs for the City?
7. Do you have any other thoughts or comments that you would like to share?

The following stakeholder groups were represented at the second focus group:

- Friends of Pinole Creek Watershed (June 30, 2022)
- Pinole Valley Community Church (June 30, 2022)
- BGAM Property Management (June 30, 2022)

The following stakeholders were interviewed in a one-on-one format:

- Pinole Rotary Club (July 25, 2022)
- Contra Costa Association of Realtors (July 26, 2022)

Below is a summary of stakeholder feedback:

A. Stakeholder Focus Group #2 (June 30, 2022)

The key themes that were important to Pinole stakeholders were as follows:

- Grow awareness of the specialness of Pinole
- Educate people to "do their part" and not litter
- Habitat restoration and protection needs to be considered when locating housing sites
- Housing is too expensive
- There is not enough housing located within a reasonable distance to parks and open spaces
- Commercial retail has suffered due to COVID-19 – can we reuse this land for housing?
- Incentivize developers to including housing in their nonresidential retail projects
- Concern for low income and the young and old – populations on low or fixed incomes, people living on the fringes
- Impact fees are a constraint on development
- Place new housing near transportation
- Schools in Pinole do not have a strong reputation
- Pinole is a commercial "black hole"
- Running out of real estate
- Pinole needs to meet housing objectives while keeping it a nice place to live – enforcing standards
- Put an emphasis on community events for community building

B. Pinole Rotary Club (July 25, 2022)

In the stakeholder interviews, participants were asked to describe their agency's role in the City and what their top priorities are in the next few years. The Pinole Rotary Club is a community service organization that is currently prioritizing developing new events to revive in-person community engagement post-pandemic and increasing growth of the organization. Opportunities for community engagement include a crab feed, community cleanup, and creek cleanup.

The Pinole Rotary Club believes that there is evidence of effort being made to increase housing in the community, but it's taking a long time. The City hasn't had a lot of housing development. One suggested strategy to develop more affordable housing would be to consider such development on vacant land along San Pablo Avenue, which is currently mostly industrial. There is misinformation about what affordable housing represents. More

education is needed about what affordable housing means. There is a lack of housing for first-time homebuyers and lower-income earners (retail clerks, public service employees such as police and teachers, etc.)

The two most vulnerable segments of the population are seniors who want to downsize to a small apartment because they don't want to take care of large property and want to stay in the City and lower-income earners as mentioned above.

The Rotary Club stated that the City could assist these segments of the population by analyzing the area's needs and prioritizing the needs of those individuals. Some seniors want to move but are not able to move anywhere else in the City. The City should also incentivize accessible dwelling units, make sure fees are studied, and reduce restrictions to make this type of housing more available.

The greatest challenge the City faces with regard to housing needs is a lack of information and clarification about what affordable housing projects are and how they benefit the community. The Rotary Club believes that education on this topic will allow citizens to take a more active role in supporting affordable housing efforts in the City. There is a lot of misinformation being circulated on social media by individuals in the community. More town hall events where residents can hear from experts in the field and get factual information would be helpful. The pandemic has led to disconnection in the community, and efforts should be taken to rebuild that in-person sense of community. Town hall events would also help with that.

C. Contra Costa Association of Realtors (July 26, 2022)

When asked about their agency's role in the City and their top priorities over the next few years, the Contra Costa Association of Realtors (CCAR) stated they are a trade organization representing over 4,000 members, including 500 in West County of Contra Costa County. The organization's primary role is to work to protect homeowners' property rights and protect members' ability to conduct business.

Strategies recommended for building more housing in Pinole include incentivizing accessory dwelling units and looking at case studies to see what others are doing outside California to come up with creative housing solutions. Some examples include conversion of abandoned industrial buildings and shopping malls and construction of apartments using shipping containers.

CCAR sees the middle class as the most vulnerable in terms of having affordable housing. The low-income population is always a concern, but there are also not enough options for middle-income earners who don't qualify for low-income income limits (both rental and homeownership).

CCAR recommends that the City advocate for housing solutions that specifically use the term "work-force housing." There is too much stigma with the term "affordable housing," and many people associate affordable housing only with Section 8 rentals. More education is

needed about what work-force housing is. The City should encourage new development and programs that help the middle class get into homes. Work-force housing should be included in low-income properties, so there are move-up opportunities when residents no longer qualify for the low-income units.

CCAR recommended a couple programs for those with limited incomes. Richmond Community Foundation Connects has a program called the Black Wealth Builder's Fund[26], which helps Black potential homebuyers with down payment assistance through a zero percent-interest loan, to be paid back only when the home is refinanced or sold. California Association of Realtors Housing Affordability Fund[27] is another similar program, which is a closing cost assistance grant program that helps first-time homebuyers who are members of an "underserved community" (especially black and Latino individuals).

The greatest challenges CCAR sees with housing needs in the City is cost and timing of housing development. There is limited housing supply and availability of land. Costs of real estate, land, labor, and construction are all high in this area and make building new housing difficult.

CCAR has observed that there is a misconception that younger generations want apartments; many still want the opportunity for small, traditional single-family homes in which they can start families.

[26] https://give.richmondcf.org/campaigns/17536-black-wealth-builder-s-fund

[27] https://www.car.org/difference/haf/hafclosingcostgrantprogram

COMMUNITY WORKSHOPS (PUBLIC OUTREACH MEETINGS)

Due to office/business closures related to the COVID-19 pandemic, the City of Pinole hosted two Community Workshops (public outreach meetings) online using the Zoom platform.

- The first Community Workshop was held via Zoom on Wednesday, May 11, 2022, and had seven community member attendees. This meeting provided an overview of the three major components of the project: Update the Housing Element, Update the Health and Safety Element, and Creation of a new Environmental Justice Element.

- The second Community Workshop was held via Zoom on Thursday, June 9, 2022, and had 18 community members attendees. The meeting provided an overview of key housing policies that could be incorporated into the updated Housing Element.

A question-and-answer period was held during both Community Workshops. During this time, questions/comments received were answered verbally and written in the text box on the Zoom meeting platform. An electronic poll was also conducted during each Community Workshop. The results of each Community Workshop are provided below.

COMMUNITY WORKSHOP #1 (MAY 11, 2022)

Live Poll Results

Question 1

Poll | 1 question | 6 of 7 (85%) participated

1. Are you listening in Tagalog, Cantonese, English, or Spanish? (Single Choice) *

6/6 (100%) answered

Tagalog	(0/6) 0%
Cantonese	(0/6) 0%
English	(6/6) 100%
Spanish	(0/6) 0%

Question 2

Poll | 1 question | 8 of 8 (100%) participated

1. How long have you lived/worked in the City? (Single Choice) *

8/8 (100%) answered

Less than 5 years	(3/8) 38%
5 - 10 years	(0/8) 0%
More than 10 years	(5/8) 63%
I do not live/work in Pinole	(0/8) 0%

Question 3

Poll | 1 question | 7 of 9 (77%) participated

1. Please select those that apply to you: (Multiple Choice) *

7/7 (100%) answered

Homeowner	(5/7) 71%
Renter	(2/7) 29%
Landlord	(0/7) 0%
Other (please note using Q&A box)	(0/7) 0%

Question 4

Poll | 1 question | 11 of 11 (100%) participated

1. What type of housing do you live in? (Single Choice) *

11/11 (100%) answered

Single-family dwelling	(11/11) 100%
Accessory dwelling unit	(0/11) 0%
Duplex, Triplex, Quadplex	(0/11) 0%
Condominium	(0/11) 0%
Apartment Building	(0/11) 0%
Mobile Home	(0/11) 0%
Assisted/Group/Senior Housing	(0/11) 0%

Question 5

Poll | 1 question | 8 of 11 (72%) participated

1. Please choose the appropriate area where you live/work (Single Choice) *

8/8 (100%) answered

Northwest	(2/8) 25%
Northeast	(3/8) 38%
Southwest	(1/8) 13%
Southeast	(2/8) 25%
Unsure	(0/8) 0%

Question 6

Poll | 1 question | 8 of 12 (66%) participated

1. What are the top housing issues facing people in Pinole? (Single Choice) *

8/8 (100%) answered

Difficulty paying rent, mortgage, down-payment, etc.	(4/8) 50%
Lack of suitable or needed housing type (size, senior, group)	(1/8) 13%
ADA accessibility	(0/8) 0%
Substandard housing quality/maintenance	(0/8) 0%
Housing segregation and discrimination	(0/8) 0%
Access to transit/commute times	(3/8) 38%
Overcrowding	(0/8) 0%
Homelessness	(0/8) 0%
Other? (Please Describe)	(0/8) 0%

Question 7

Poll | 1 question | 7 of 12 (58%) participated

1. Please provide your top three (3) programs to improve housing access in Pinole? (Multiple Choice) *

7/7 (100%) answered

Extend price control period on existing affordable units	(3/7) 43%
Provide incentives to developers that restrict a portion of units to be affordable	(3/7) 43%
Require affordable units in new developments	(4/7) 57%
Allow more higher-density (multi-family) housing	(3/7) 43%
Simplify the process to approve projects	(0/7) 0%
Provide access to low-cost pre-designed plans for Accessory Dwelling Units (ADU)	(4/7) 57%
Other (please specify)	(0/7) 0%

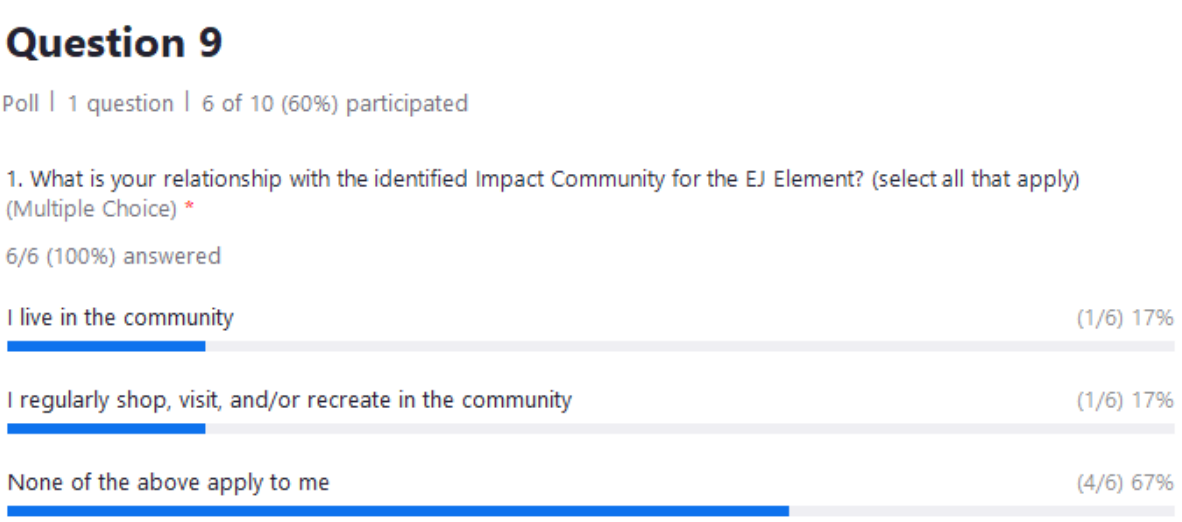
Question 8

Poll | 1 question | 7 of 10 (70%) participated

1. Which of the following areas would you like the EJ Element to focus on? (Multiple Choice) *

7/7 (100%) answered

Access to healthy food, facilities, nature, transit, etc.	(5/7) 71%
Access to medical care	(3/7) 43%
Access to healthy air quality, water quality, reduced pollution	(3/7) 43%
Preserving future generation's right to live, work, and enjoy Pinole	(2/7) 29%



QUESTION-AND-ANSWER SESSION

Question 1: We have mostly watershed land left and traffic is horrible. A RHNA of 500 is a lot for a 5-square-mile town. We should appeal for less because we only have bus transportation. We don't have a ferry terminal or Amtrak station.

Answer 1: Thank you, Annmarie. The RHNA allocations are firmly set by the State and ABAG [Association of Bay Area Governments]. Pinole has a relatively smaller increase than many other cities.

Question 2: ADUs are gross and smelly.

Answer 2: The condition of ADUs are not inherently different than any other form of housing. Maintenance is up to the owner. Many cities are preparing preapproved designs to encourage attractive and affordable ADU construction.

Question 3: Too fast on survey please.

Answer 3: Thank you. We will have time for Q&A. You can type any time and we will address at the end.

Question 4: Covid/pandemic precautions

Answer 4: Thank you. Yes, we have included Health Crises as a topic in the Safety Element.

Question 5: Reduction of flammable vegetation needs to be addressed in the city; many property owners do not comply.

Answer 5: Thank you. We will include fuel modification and fire safe design policies as well as enforcement in the Health and Safety Element.

Question 6: I would like to see the City of Pinole address code enforcement better. Many property owners do not take care of their front yards. Junk stacked up, weeds. We need to take pride in our neighborhoods.

Answer 6: Thank you for your comment. Enforcement is often one of the programs of the Housing Element.

Question 7: Hospitals are gone. We have to go to John Muir or the county hospital or Kaiser if you have it.

Answer 7: Thank you. We understand the concern and will address distance to quality medical care in the Environmental Justice Element.

Question 8: Was civic engagement supposed to be an option on that poll?

Answer 8: Feel free to use the Q&A tool to comment if we missed your poll answer.

Question 9: I was able to select an option for question 8, but it seems as though it only had 4 out of the 5 options to choose from. I was curious if Civic Engagement was supposed to be part of question 8 or the question was meant to emphasize the other options?

Answer 9: Apologies - we can note your preference to highlight civic engagement in our response. Thank you!

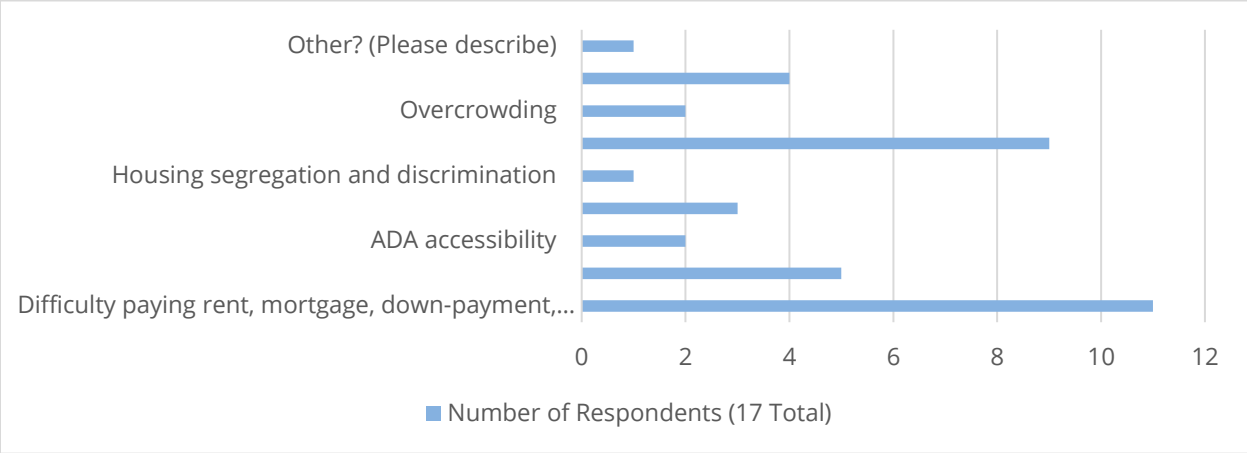
Question 10: I noticed that all the respondents (at least at the start of the meeting) were using the English room. Is there a way the city could do more targeted outreach to Spanish/Cantonese/Tagalog-speaking communities in Pinole?

Answer 10: Great question! We are recording this session in all three languages, and these will be available on the project website. The surveys are also available in all four languages. The project team and City sent postcards to all households in Pinole with QR codes to the survey and Zoom meeting. The postcards included information in the four selected languages that translation services are available. The team is also contacting stakeholders, including religious institutions and service organizations, who can help us reach their constituents.

COMMUNITY WORKSHOP #2 (JUNE 9, 2022)

Live Poll Results

Poll Question 1: What are the top housing issues facing people in Pinole?



Question-and-Answer Session

Question 1: Can you define climate health risks?

Answer 1: From the CDC: "Climate change, together with other natural and human-made health stressors, influences human health and disease in numerous ways. Some existing health threats will intensify, and new health threats will emerge. Not everyone is equally at risk. Important considerations include age, economic resources, and location.

In the U.S., public health can be affected by disruptions of physical, biological, and ecological systems, including disturbances originating here and elsewhere. The health effects of these disruptions include increased respiratory and cardiovascular disease, injuries and premature deaths related to extreme weather events, changes in the prevalence and geographical distribution of food- and water-borne illnesses and other infectious diseases, and threats to mental health."

Question 2: May I please get a copy for this and the previous slide deck?

Answer 2: Yes. Recordings will be uploaded on the website: LandUsePlanningForPinole.com. Also, if you send an email to contactus@landuseplanningforpinole.com, we can reply with a PDF copy.

Question 3: What is the median income for the area?

Answer 3: The California Department of Housing and Community Development has a 2021 median income for Contra Costa County of $125,600 for a family of four. The 2021 values have served as the basis of our data assessment.

Question 4: Clarification of blue on previous slide?

Answer 4: The blue indicates projects in the pipeline that are counted toward the City's RHNA (Regional Housing Needs Allocation).

Question 5: Are you sure about the income levels in the earlier slide? Looking at the 2021 Contra Costa CDBG, it looks like low income for a household of four is capped at $109,600 which you have as the floor of above moderate, when it should be floor of moderate.

Answer 5: Noted. Low income is between $68,500 and $109,600. Moderate income is between $109,500 and $150,700, with the median income of $125,600.

Question 6: Does senior housing fall under low-income housing?

Answer 6: Senior housing can fall under multiple income levels. For a senior housing development to be considered low-income housing, an affordability covenant would need to be included for those units that would count toward low-income housing.

Question 7: For the Affirmatively Furthering Fair Housing, how is a commitment to meaningful actions measured? Is there a metric that will be reported or any other reporting requirement?

Answer 7: The City will need to determine metrics unique to each specific program/action. For instance, for neighborhood connectivity improvements, the metric could be a number of specific sidewalk segments. Or for housing preservation, the City could commit to issuing X number of grants, or a certain service for a specific period of time, to maintain homes.

The City reports its progress on Housing Element implementation to the State annually in the Housing Element Annual Progress Report. This report is also filed with the City Council.

Question 8: What is the demographic breakdown of Pinole compared to Contra Costa County?

Answer 8: The Housing Element includes an assessment on the demographics of Pinole and Contra Costa County, including age, race, ethnicity, employment, household trends, tenure, income, vacancy, and housing costs, among other factors. This analysis will be released with the Draft Element.

Question 9: In the poll, is suitable housing the same as affordable housing?

Answer 9: For the Housing Element, suitable housing refers to housing that is safe, accessible, and habitable.

Question 10: Require affordable housing in developments.

Answer 10: Noted. This would fall under an Inclusionary Housing Ordinance.

Question 11: How can we require developers to mitigate transportation impacts?

Answer 11: Transportation impacts are addressed by the California Environmental Quality Act (CEQA). Projects subject to CEQA are required to assess transportation impacts and mitigate any impacts that exceed the City's thresholds.

Question 12: Greener buildings. White roads, plants on the roof, grey water, more solar panels, plant more trees and CA Native pollinator plants.

Answer 12: This is great feedback! Especially for the Environmental Justice and Housing Elements.

APPENDIX D: DEVELOPER LETTERS

MRK PARTNERS INC

Lilly Whalen
Community Development Director
City of Pinole
2131 Pear Street
Pinole, CA 94564

February 6, 2023

Dear Lilly,

As you know, MRK Partners Inc. (via Pinole Venture LP) submitted a development application to the City of Pinole in 2021 to construct 179 units of affordable housing for seniors at 600 Roble Avenue. In January 2022 the project was issued permits and construction began shortly thereafter. We are currently at approximately 40% completion, with delivery of the new apartments targeted for year end 2023.

Our experience working with the City on this project has been positive overall. Navigating an often daunting landscape of overlapping Federal, State, County, and City regulations is no easy task, especially when operating under the tight deadlines required for tax credit applications in California. City staff understood these requirements and the timing needs in order to make the project a success, and it was clear the City was truly a partner throughout. We look forward to wrapping up this project over the next year and delivering new affordable housing stock to Pinole, and we would welcome the opportunity to work with the City again on a future development.

Sincerely,

Sydne Garchik

Manager, Pinole Venture LP

Principal, MRK Partners, Inc.

sgarchik@mrkpartners.com

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SAHA
SATELLITE AFFORDABLE HOUSING ASSOCIATES

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February 7, 2023

Lilly Whalen
Community Development Director
City of Pinole
2131 Pear Street
Pinole, CA 94564

RE: 811 San Pablo Avenue, Pinole

Dear Ms. Whalen,

I am writing this letter on behalf of Satellite Affordable Housing Associates (SAHA) to emphasize our commitment to completing the construction of 811 San Pablo ("the project") within the next 8 years (by 2031). As you are aware, SAHA and the City of Pinole entered into a Disposition and Development Agreement in July 2021 to acquire and develop the vacant land located at 811 San Pablo Avenue, Pinole. The project will provide 33 units of affordable housing for low-income veterans, including households experiencing disability and chronic homelessness.

In Contra Costa County, there were 127 Veterans identified in the Point-in-Time Count conducted in January 2020. Over the last three years, the County has observed a 6% increase in veteran homelessness. The 811 San Pablo project represents a unique opportunity to address this issue and increase both the County and City of Pinole's supply of much needed affordable housing for low-income veteran households. This opportunity was made possible by the City's comparatively easy design review process, effort in advocating for the project, and staff support for permit applications throughout the past year and a half.

In addition to the City's short entitlement timeframe (within four months of submittal), its financial assistance for land and construction loan funds also contributed a great benefit to the project. By having local funding committed and site control, SAHA was able to garner additional funds from the Contra Costa County, California Department of Housing & Community Development, California Tax Credit Allocation Committee and California Debt Limit Allocation Committee. The project will begin construction in May 2023 with projected

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construction completion to be August 2024.

On behalf of SAHA, we look forward to continue our work with the City on this project, and developing more projects in Pinole in the future.

Sincerely,

Susan Friedland
Chief Executive Officer

ROIC
RETAIL OPPORTUNITY INVESTMENTS CORP.

February 7,2023

Lilly Whalen
Community Development Director
City of Pinole
Community Development Department
2131 Pear Street, Pinole, CA 94564

RE: Pinole Vista - Redevelopment of the Kmart Site

Dear Lilly,

Thank you for reaching out to Chris regarding the 223 Unit Pinole Vista Housing Project.

ROIC has enjoyed working with the City of Pinole and appreciates the collaborative entitlement process.

We were attracted to the Pinole opportunity because it lines up nicely with ROIC's goal of reimagining outdated concepts and adding vitality to their shopping centers. The revisioning of the Kmart site is a great example of how synergies can be opened between a proposed residential use and an adjacent retail shopping center. From an environmental perspective, creating a place where people can live, shop, and dine without having to get into a car is a real positive.

ROIC's intent is to have the redevelopment of the site take place by 2031. The current challenge is the inflationary pressure on building materials and rising interest rates.

We look forward to working with the City of Pinole during the building permit process.

Sincerely,

Rich Schoebel
Chief Operating Officer
RETAIL OPPORTUNITY INVESTMENTS CORP.

Retail Opportunity Investments Corp.
11250 El Camino Real Suite 200, San Diego, CA 92130 Ph: (858) 677-0900 Fx: (858) 408-3668
NASDAQ: ROIC

From: Trent Sanson <trent@denovahomes.com>
Sent: Friday, February 10, 2023 3:02 PM
To: Lilly Whalen <lwhalen@ci.pinole.ca.us>; David Hanham <dhanham@ci.pinole.ca.us>; Justin Shiu <jshiu@ci.pinole.ca.us>
Subject: Appian Village - 154 unit multifamily project

***** EXTERNAL MESSAGE *****

Good afternoon Lilly, Dave, and Justin. Happy Friday! I hope all is well with you all.

Please accept this email as our formal correspondence demonstrating our ongoing desire and commitment to work towards bringing our project, Appian Village (containing 154 multi-family housing units), to life. Since the Planning Commission approved our project and granted us our entitlements back on April 11, 2022, we have closed escrow on the property and continued to heavily invest in our property and project.

Since closing escrow, we have commenced with the following activities to further invest in the project and hope shows our commitment to seeing it be built sooner than later (or at least within the next 8 years for the City's next RHNA/Housing Element cycle); on top of our immediate investment in Pinole to acquire the property outright from the previous land owners:

- Demolition – being an abandoned and old hospital facility, we have commenced and are

nearing completion of the massive demolition efforts to clear the property of its previous hospital uses to clear the way for future redevelopment to proceed with grading and improvements for the future housing

- Plan Preparation and Plan Checking -
  - Paid the hundreds of thousands of dollars to the City's building and engineering divisions for parallel and ongoing plan check efforts for all horizontal plans (grading plans, improvement plans, final map) and vertical plans (master building plan review for each multi-family building) for future building permit issuances once land development for the necessary infrastructure is completed
  - We have submitted all related plans to EBMud for their separate but parallel review of the water plans for them to service the project with other city services
  - We have prepared and submitted all related joint trench/dry utility plans and applications to PG&E for their review of the future electric infrastructure (this is an all electric project with no gas infrastructure) and communications with phone/internet providers
  - HOA/DRE preparations – we have continued to invest in preparing the needed various CC&Rs and condo plans to be ready to submit the CA Department of Real Estate when ready … but also need to be transparent that due to market conditions have put a slight pause on those efforts as we may need to pivot and re-evaluate the project becoming a rental community rather than for-sale, but that is still to be determined while we advance the construction plans through plan check and evaluate the ever evolving national economy and local market conditions as a result

We are committed to continuing processing our project through plan check and continue advancing the project forward and investing in Pinole here at Appian Village, and hope to be able to start land development activities as soon as we can (given ongoing evolution of market conditions however), but I do not see any reason why this project won't be constructed within the next 8 year RHNA/Housing Element cycle with how far along we are already since approvals/entitlements were first granted.

My team and I at DeNova Homes develop all over the greater Bay Area in multiple counties and jurisdictions (projects as small as 7 lots in Walnut Creek or 15 lots in Calistoga, mid-sized apartment/townhome projects spread across the Bay Area of various sizes ranging from 25 multifamily units in Fairfield up to 172 multifamily units in Livermore, all the way up to 500+ unit master plans in various areas in eastern Contra Costa County), but what attracted us to our property/project and wanting to invest in Pinole was the unique nature of this property being a promoted housing site in the Appian Way Land Use Plan that was within the Three Corridors Specific Plan (Three Corridors Specific Plan - City of Pinole, CA) where we knew we could collaboratively and constructively work with City Staff and Leadership in Pinole to develop an economically viable project that we and the City of Pinole could all be proud of for generations to come while helping achieve the housing goals for Pinole and the State of California given the ongoing housing crisis our communities face.

It has been a pleasure collaborating and working with all members of Pinole City Staff across all departments, naturally we will never agree on everything but we truly value us being able to

collaboratively and productively work together to achieve all of our goals with our project to make not only beautiful but viable to build. We look forward to continuing our ongoing project review and plan checking efforts to work towards getting this project built as soon as we can (but again I do not see any reason why it would take the entire 8 years of the current RHNA/Housing Element cycle to achieve those goals).

Based on our respect and great working relationship with City Staff we hope we can find another property owner to work with in Pinole for us to do more projects in the near and distant future!

Please do not hesitate to give me a call with any questions. Thank you all for everyone's continued thoughtful consideration and support to bring Appian Village to life!

All the best,

Trent Sanson
Vice President of Land Acquisition & Entitlements
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